

Metropolitan Public Transportation Authority

Operations and Safety Committee

September 23, 2026

METROPOLITAN PUBLIC TRANSPORTATION AUTHORITY

MPTA Operations and Safety Committee Members

Julie Eiselt, Committee Chair
Mecklenburg County

David Longo, Committee Vice Chair
NC House of Representatives

Mike Bryant
Mecklenburg County

T. Anthony Lindsey
Town of Huntersville

Christy Long, MPTA Board Secretary
City of Charlotte

Cameron Pruette
City of Charlotte

Kenneth Schorr
Mecklenburg County

Brad A. Simmons
Town of Mint Hill

Bishop Dwayne Walker
NC Governor

OPERATIONS AND SAFETY COMMITTEE MEETING

AGENDA

Wednesday, September 23, 2026

9:00 AM

Charlotte-Mecklenburg Government Center, Room 280

1. CALL TO ORDER

2. INTRODUCTIONS

3. ETHICS STATEMENT

4. PUBLIC COMMENT

5. ADVISORY COMMITTEE REPORTS ***(10 Minutes)***

6. REPORT OF THE CHAIR ***(5 Minutes)***

7. STAFF REPORTS ***(30 Minutes)***
   - Updates (Projects and Initiatives, Advisory Committee)
   - Performance Reporting

8. BUSINESS ITEMS

   FOR COMMITTEE ACTION: ***(5 Minutes)***

   A. Approve OSC Meeting Summary – August 26, 2026

   FOR RECOMMENDATION TO EXECUTIVE COMMITTEE:

   No Items

   FOR DISCUSSION OR PRESENTATION: ***(50 Minutes)***

   B. Rail Services Overview (15 min)

   C. Fare Ambassador Program (15 min)

   D. Public Transit Agency Safety Plan (ASP) Bus Plan and Rail Plan (20 min)

9. REPORTS TO THE COMMITTEE

10. OTHER BUSINESS ***(15 minutes)***
    - Granicus Overview

11. NEXT MEETING: **October 21, 2026 @ 9:00 AM**

12. ADJOURN

MPTA OPERATIONS AND SAFETY COMMITTEE
UPCOMING AGENDA ITEMS

Month	Topic	Discussion or Action	Responsibility (Dept)
October 21, 2026	– Public Transit Agency Safety Plan (Bus Plan and Rail Plan)	Approval	Safety and Security
	– Transit Management of Charlotte Overview	Discussion	Operations
	– Better Bus/Bus Stops Quarterly Update*	Discussion	Planning
	– Technology Transition and Ops Projects Update	Discussion	Technology
November 18, 2026	– MPTA Sustainability Strategy	Discussion	Operations
	– Transit Asset Management (TAM) Program Overview*	Discussion	Planning
	– Staffing and Recruitment	Discussion	Human Resources
December 16, 2026	– Mobility Services Overview	Discussion	Operations
	– Fare Modernization Implementation Plan	Discussion	Technology
	– Emergency Management	Discussion	Safety and Security
	– Technology Transition and Ops Projects Update	Discussion	Technology

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 3 – Ethics Statement

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is for information and Board member disclosure, if applicable.

Summary:

In accordance with the MPTA Board of Trustee's adopted Code of Ethics and Conflict of Interest Policy, it is the duty of every committee member to avoid both conflicts of interest and appearances of conflict.

To comply with this statement, the Chair will ask whether any trustee has a known conflict of interest or appearance of conflict with respect to any matters coming before the committee today.

If so, the trustee should identify the conflict or appearance of conflict when the item appears on the agenda for consideration and refrain from any undue participation in the particular matter involved by leaving the room until the item is complete.

Committee Process:

N/A

Staff Contact:

Brad Thomas, CATS General Counsel
James Cass, Robinson Bradshaw
Adam Doerr, Robinson Bradshaw

Attachments:

N/A

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 4 – Public Comment

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is for information only.

Summary:

Committee Rules of Procedures for Public Comment:

- Members of the public may provide oral comments at Committee meetings as set forth in the agenda for any regular meeting of the Committee.
- The public comment period shall follow the procedure provided for public address to the Board in the Board Rules and Operating Procedures, except that the public comment session shall be no more than ten (10) minutes long and speakers are limited to no more than two (2) minutes each.
- Individuals cannot yield their time.

Registering to Speak:

- Speakers are required to sign up in advance with the Clerk to the Board.
- Speakers will give their name, address, phone number, email address, meeting date, and subject matter to be discussed
- Members of the public can register to speak at an MPTA meeting by visiting ridempta.com and completing the online registration form (available under upcoming events). You can register by leaving a voicemail at 704-353-1794 or sending an email to CATSBoards@CharlotteNC.gov. We ask that you register by 3:00 p.m. the day before the meeting if possible.
- In addition, individuals can still register with the clerk in person before the start of the meeting.

What to Expect at the Meeting:

- Public comment is the time during the meeting that members of the public are welcome to speak to the committee. This is the community's opportunity to voice concerns, opinions, and suggestions directly to the committee.
- To ensure we can complete our meeting, the committee members will not engage in dialogue with the speaker. Rather, the period is designed for the committee to listen to the community and gather information.
- During public comment, the Chair will call the names of those signed up to speak.

- Names will be called in the order in which they were received.
- When your name is called, go to the podium and state your name and subject matter.
- If a name is called and that individual is absent, the Chair will proceed to the next name on the list. Individuals who are absent when their name is called will be moved to the bottom of the list and may speak if time permits. This will be at the discretion of the Chair or presiding officer.
- All comments should be made to the full Committee, not to an individual Board member(s).
- The Committee does not take action on public comments but may refer the matter to staff for follow-up.

Written Comments:

- Members of the public may also submit comments to the Committee at any time in writing. Any such comments should be submitted through the Chair or appropriate Authority staff or comments can be emailed to CATSBoards@Charlottenc.gov.
- The Chair or appropriate Authority staff shall have responsibility for ensuring that Committee members are informed about all comments received and shall provide information about relevant public comments received on matters on the agenda for a Committee meeting prior to the meeting so that Committee members have an opportunity to review the comments.
- If you want your comments disseminated in advance of the meeting, please email them at least 24 hours prior to the meeting to ensure they can be sent out to the board of trustees and provide them with time to review your comments.

Committee Process:

N/A

Staff Contact:

Brad Thomas, CATS General Counsel
James Cass, Robinson Bradshaw
Adam Doerr, Robinson Bradshaw

Attachments:

N/A

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 5 – Advisory Committee Reports

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion.

Summary:

A report will be provided by Obdulio Oden, Public Transit Advisory Committee Co-Chair.

Committee Process:

N/A

Staff Contact:

Elizabeth Presutti, CATS Chief Administrative Officer

Attachment(s):

N/A

ADVISORY COMMITTEE REPORT TO MPTA OPERATIONS & SAFETY COMMITTEE
INTERIM PUBLIC TRANSIT ADVISORY COMMITTEE (PTAC)
SEPTEMBER 23, 2026

Co-Chair Report of the September 16, 2026 PTAC Meeting

Call to Order and Administrative Updates

At 4:00 PM, PTAC Co-Chair Obdulio M. Oden called the September 16, 2026 meeting of the Public Transit Advisory Committee to order and welcomed committee members, CATS staff, and guests. Co-Chair Oden announced that Committee Member Jeffrey Parker resigned effective September 2 due to deployment, and the committee extended best wishes to him and his family for a safe return.

Meeting procedures were reviewed, including recognition by the Chair, virtual participation, and allowing staff to complete presentations before questions. The August 13, 2026 PTAC meeting summary was approved without objection. No public comments were presented.

Committee Member Forum – TRAC and MAC Applications

Members identified inconsistent information in application materials for the new advisory committees. Staff clarified that the Mobility Advisory Committee (MAC) is expected to meet every other month, while the Transit Riders Advisory Committee (TRAC) is expected to meet monthly, and committed to correcting the online information.

Staff reported approximately 60 completed TRAC applications and 27 completed MAC applications. Applicants represented multiple transit modes, with opportunities identified to increase participation from Mecklenburg County towns and STS/paratransit riders. Outreach continues through social media, the CATS-Pass app, buses, STS vehicles, and other customer channels. Hybrid participation is expected to support broader regional involvement.

Better Bus Program Update

CATS reviewed the first wave of Better Bus service improvements scheduled for October 5, 2026. Improvements include increased frequency on Route 5 Airport Sprinter, Route 9 Central Avenue, and Route 6; expanded express service; new midday service on Route 64X Matthews Express; and introduction of Route 177, the North Mecklenburg Midday Connector serving park-and-ride locations in Huntersville, Cornelius, and Davidson.

Additional FY 2027 improvements are planned for Routes 7, 16, and 21, along with service-span enhancements on selected express routes. Staff stated that the broader strategy prioritizes high-ridership routes for phased frequency improvements through 2030.

PTAC Co-Chair – MPTA Operations & Safety Committee Report

Co-Chair Oden presented his written report from the August 26, 2026 MPTA Operations & Safety Committee meeting. The report highlighted safety oversight, operational reliability, customer experience, data-driven performance management, governance, and technology modernization.

Priority areas included continued analysis of extreme-weather impacts on rail infrastructure, improved safety and service-performance reporting and benchmarking, comprehensive customer surveys, and executive-level performance dashboards. The committee also emphasized measurable performance, accountability, operational resilience, customer-focused service, and clear governance procedures during the MPTA organizational transition.

Microtransit Update

CATS reported continued growth in North Mecklenburg microtransit ridership, with weekday ridership averaging more than 280 passengers per day and weekend ridership increasing. Approximately 54% of trips were reported as pooled or shared rides. Increased demand has contributed to longer customer wait times, and staff discussed mitigation strategies including additional higher-capacity vehicles during peak-demand periods.

The new West Microtransit Zone is scheduled to launch October 5 as part of the Better Bus program. The zone will connect customers with existing bus and rail services and improve access to employment, medical services, grocery stores, the VA clinic, the regional farmers market, and other community destinations.

CATS is coordinating outreach with the West Boulevard Neighborhood Coalition, Mecklenburg County Farmers Market, Arbor Glen Community Center, Goodwill Industries, and the VA clinic. Travel training will help customers use the CATS-Pass app and other transit services. A third microtransit zone, currently identified as the North End/Batties Ford Zone, is planned for February 2027.

Customer Research and Surveys

CATS presented an expanded customer research strategy to strengthen engagement and data-driven decision-making. The program includes customer satisfaction surveys, pulse surveys, community brand-perception research, origin-and-destination surveys, stakeholder engagement, and marketing and creative testing.

The Origin and Destination Survey is intended to identify where customers board, transfer, and travel, with a goal of approximately 5,200 responses. The Customer Satisfaction Survey will evaluate the experience across bus, rail, paratransit, and microtransit, with a goal of approximately 3,500 responses. Staff emphasized that customer information collected through the surveys will remain protected and will not affect eligibility for transit programs.

Wayfinding Pilot Project

The Wayfinding Pilot Project subcommittee reported continued progress in evaluating technology to improve navigation and transit accessibility for visually impaired customers. NaviLens was identified as an additional technology for consideration, with discussion of potential integration with Soundscape and lessons from other transit systems. The previously identified focus group remains available for field testing as the pilot advances.

Committee Member Forum and Follow-Up

Staff confirmed that discrepancies in the TRAC/MAC application information would be corrected. Discussion also addressed North Mecklenburg transportation options for advisory committee meetings, including Route 177 midday service and existing Route 77X express service. Members requested information on potential future crosstown service between Central Avenue and NoDa; staff stated that crosstown concepts are being evaluated through the Better Bus program, but no specific routing has been finalized.

Summary

The September 16, 2026 PTAC meeting focused on Better Bus implementation, microtransit expansion and performance, customer research and engagement, development of the new transit advisory committees, and accessible wayfinding technology. The meeting reflected continued emphasis on expanding transit access, improving service frequency and reliability, strengthening customer communication, increasing regional and rider participation, and using performance data and customer feedback to guide future improvements.

Next Meeting

Thursday, October 15, 2026 at 4:00 p.m., Government Center, Room CH-14

SUBMITTED BY:

Obdulio M. Oden

Obdulio M. Oden, Co-Chair
Interim Public Transit Advisory Committee

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 6 – Report of the Chair

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion.

Summary:

A report will be provided by the Committee Chairperson at the meeting.

Committee Process:

N/A

Staff Contact:

Elizabeth Presutti, CATS Chief Administrative Officer

Attachment(s):

N/A

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 7 – Staff Report

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion.

Summary:

- **TRAC and MAC Progress Report** - Attached is a midway update on the progress of applications and selection process for the new MPTA advisory committees. As of midday Friday, we have 66 completed applications for the Transit Riders Advisory Committee (TRAC) and 33 for the Mobility Access Committee (MAC). Staff will provide a brief synopsis at the meeting. Over the coming week staff will target outreach to segments missing in representation, including community members from the towns and customers using STS.
- **August 2026 Monthly Performance Reports** – Attached is the August 2026 Monthly Performance report. The report has been updated to the new format that Soo Yap, Director of Strategy and Performance outlined in her presentation to the Operations and Safety Committee last month. The report is focused on reporting key metrics and highlighting overall performance. The report includes the following components:
    - Summary of Monthly Statistics and Information
    - How to Read the Performance Reports
    - Transit Performance Reports by Mode
    - Service Delivery & Reliability Summary
    - Safety & Security Summary
    - Ridership Report
    - Ridership Report by Mode
    - September CATS Sales Tax Report FY2026

Committee Process:

N/A

Staff Contact:

Elizabeth Presutti, CATS Chief Administrative Officer

Attachment(s):

- TRAC and MAC Progress Report
- August 2026 Monthly Performance Reports

MAC and TRAC Applicant Progress

Half Time Report

September 23, 2026

1

Advisory Committees – Purpose

MEMBERS ARE EXPECTED TO ADVISE AND RECOMMEND

- Share customer perspective
- Review and analyze issues related to transit and provide feedback
- Contribute to improving the experience and accessibility of riding CATS
- Facilitate dialog between members of the public and the MPTA and solicit feedback

MOBILITY ACCESS COMMITTEE

- Demonstrate understanding of experience of customers riding with range of disabilities and their caregivers

TRANSIT RIDERS ADVISORY COMMITTEE

- Demonstrate understanding of customers' experience broadly across different services/modes and from different perspectives

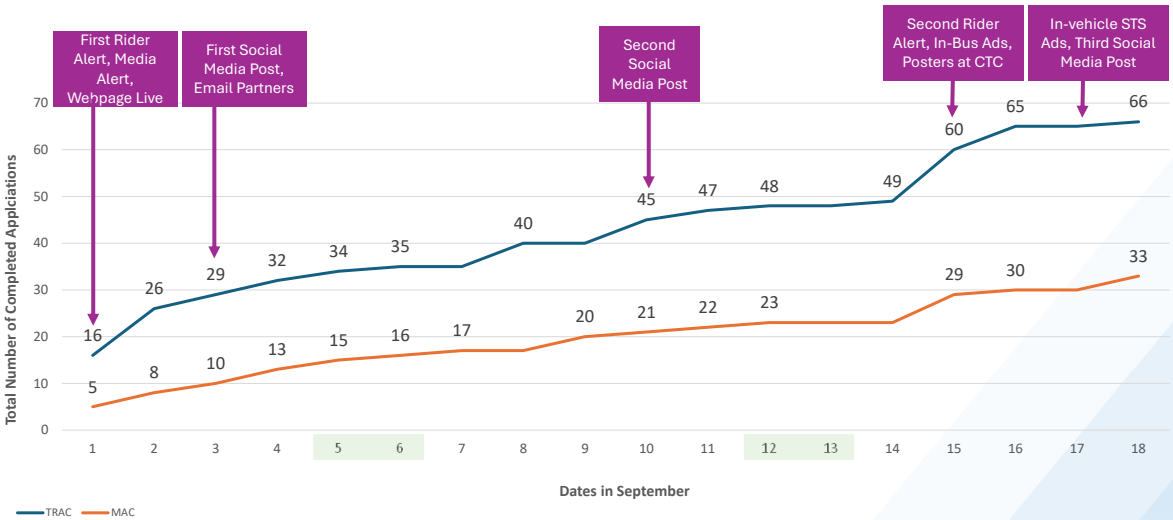
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Advisory Committees – Applications

- Open September 1st through September 30th
- On website: https://www.ridempta.com/advisory-committees/
- Application questions on transit use, experience, community and rider connections, plus:
  - Expectations for meeting frequency and time
  - Voluntary answer section on socio-economic and demographics for review in comparison to CATS ridership and service area

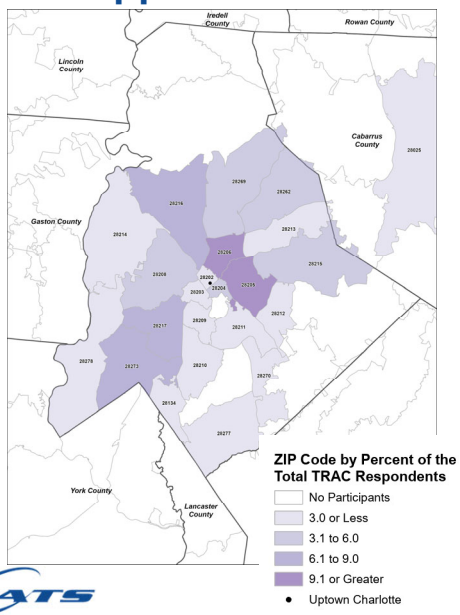
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Communications and Recruitment



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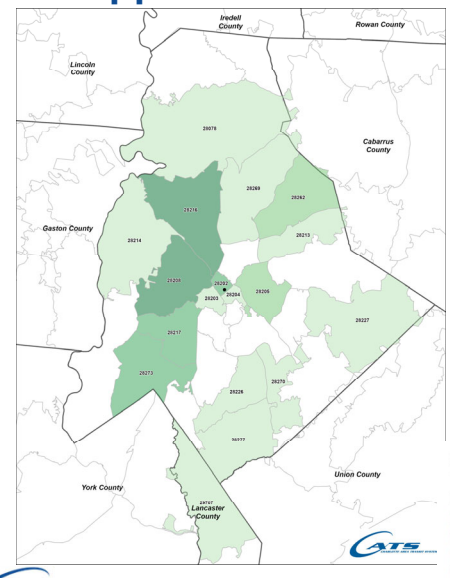
TRAC Applications to Date (Friday, September 18)



Applicant Response	
What modes they ride	Rail: 97% (six or less times/week) Bus: 74% (more than six times/week) Micro: 5% (six or less times/week) STS: 5% (six or less times/week)
How often they use CATS	Six times or less/week: 55% More than six times/week: 45% Less than weekly: 10%
Primarily use CATS	For half week's trips: 64% Don't have car: 29%
Demographics	30-64 years old: 75% African American/Black: 44% White/Caucasian: 34% Hispanic/Latino: 2%
Socio-Economics	Speak Spanish: 9% Less than Bachelor's: 30% Make less than $50,000: 32%

5

MAC Applications to Date (Friday, September 18)



Applicant Response	
What modes they ride	Rail: 76% (six or less times/week) Bus: 79% (six or less times/week) Micro: 9% (six or less times/week) STS: 15% (even spread)
How often they use CATS	Six times or less/week: 65% More than six times/week: 35% Less than weekly: 30%
Primarily use CATS	For half week's trips: 61% Don't have car: 41%
Disability	Personally have a disability: 79% Vision disability: 21% Audio disability: 6% Mobility disability: 29% Cognitive disability: 6% Neurological: 24% Senior (65+): 15% Caregiver for someone: 7% Other advocate: 14%

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Proposed Selection Process

Early October 2026

Staff review committee reviews all applications and shortlist applicants that best fit the purpose set forth by the MAC and TRAC charters

Mid October 2026

2-4 MPTA trustees to meet with staff to review shortlist and rationale behind recommendations and finalize applicants to recommend for appointment

Early November 2026

(At latest) Appointment recommendations submitted to MPTA Board Chair to make appointments in consultation with the Executive Committee

December 2026

(At latest) Board Meeting announcement of appointments to MAC and TRAC

Staff Evaluation Process

Composition of evaluation team: Managers of Customer Service, Service Planning, Paratransit, Business Partnership Community Engagement, Special Projects and current PTAC Staff Liaison

- **Staff review and shortlist:**
  - 13 candidates for TRAC (2 seats reserved for MAC members): Active transit rider (8-9 seats minimum) + non-rider community advocate/service provider (up to 4-5 seats)
  - 15 candidates for MAC: Active rider with a disability (at least 9 seats) +non-rider disability community advocate/caregiver/service provider (up to 6 seats)
  - Identify 2 alternates for each committee in case circumstances change for candidates
- **Assess applications for depth and diversity of customer and community service experience:**
  - Reflective of customer priorities and experience
  - Demonstrated familiarity and experience with CATS
  - Experience working collaboratively to serving community
  - Demonstrate value and ways of soliciting feedback from other CATS riders
- **Review answers to optional socio-economic, demographic questions to evaluate:**
  - How well candidates reflect our customer base and service area
  - Representation from groups that are typically underrepresented in engagement efforts

Questions?

SUMMARY OF MONTHLY STATISTICS AND INFORMATION – AUGUST 2026

PERFORMANCE BY MODE	
Bus	Delivered 99.6% of scheduled trips, while ridership increased 4% and miles between failures improved 20%.
STS	Served more riders with improved timeliness and fewer complaints, although vehicle reliability declined.
Light Rail	Normal service resumed August 4th, five days ahead of schedule following the Scaleybark drainage project.
Streetcar	Limited vehicle availability reduced service delivery and on-time performance, particularly during the second half of August.
Microtransit	Ridership continued to grow, with no major collisions or safety events.
Vanpool	The program has seen rider attrition after a price increase took effective Oct 2025.

SAFETY AND SECURITY
Reportable incidents declined from 11 in July 2026 to four in August 2026.
CATS recorded 46 incidents from January through August 2026, 67% of which were vehicle collisions.
In August 2026, two bus collisions occurred when motorists entered the buses' paths while changing lanes or turning; both resulted in minor damage, eight passengers were transported for treatment of minor injuries.

RIDERSHIP HIGHLIGHTS	
Bus	Local bus ridership increased 3%, serving 757,741 passengers. Local Express and Regional Express ridership grew 22% and 21%, with continued strength in north Mecklenburg and Steele Creek.
Light Rail	Ridership declined 15.7% from August 2025, while average daily ridership remained consistent with recent months.
Streetcar	Ridership declined 25% from August 2025, while average daily ridership remained consistent with recent months. Limited vehicle availability in August reduced service delivery and may have impacted ridership.
Microtransit	Ridership declined slightly from July 2026 but remained 26% above August 2025.

HOW TO READ THE PERFORMANCE REPORTS

PERFORMANCE MEASURE DEFINITIONS	
Ridership	Total passenger boardings by mode. Transfers count as separate boardings.
Service Delivered	Scheduled trips completed or revenue miles delivered, depending on mode.
Complaint Rate	Customer complaints as a percentage of boardings.
On-Time Performance (OTP)	The percentage of delivered service that meets the applicable mode-specific on-time standards below. Cancelled or otherwise undelivered service is reflected in the Service Delivered measure and is not included in the OTP calculation. **Bus, Light Rail & Streetcar** A delivered timepoint is on-time when departure is no more than one minute early or five minutes late. **STS & Microtransit** A completed pickup or drop-off is on-time when the vehicle arrives within the applicable window of the scheduled time: 30 minutes for STS and 15 minutes for Microtransit.
Miles Between Mechanical Failure	Revenue miles operated between NTD-reportable major mechanical failures. **NTD-reportable major mechanical failures** prevent completion of the current trip or the start of the next trip because vehicle movement is limited or continued operation would pose a safety concern.
Major Collision Rate	Number of NTD-reportable collisions per 10,000 vehicle revenue miles. **NTD-reportable collisions** involve a transit vehicle and meets the applicable NTD reporting threshold: For non-rail modes, thresholds include a fatality, an injury requiring transport for medical attention, a life-safety evacuation, property damage of at least $25,000, or a vehicle tow-away; Additional criteria apply to rail collisions, including collisions occurring at a grade crossing or intersection.
Major Event Rate	Number of NTD-reportable major safety and security events per 10,000 vehicle revenue miles. **NTD-reportable events** may include collisions, derailments, fires, evacuations, hazardous-material spills, certain acts of nature, and qualifying security events. Both preventable and non-preventable events are included.

STATUS LEGEND



Strength
Strong performance or meaningful favorable progress



Monitor
Stable, mixed, or requiring continued observation



Needs Focus
Material concern requiring management attention

HOW STATUS IS ASSESSED

Status considers the current performance level, materiality of change, established targets, and operational context; not simply whether the year-over-year change is positive or negative.

EXAMPLE

98% OTP may remain a Strength even when one percentage point lower than last year

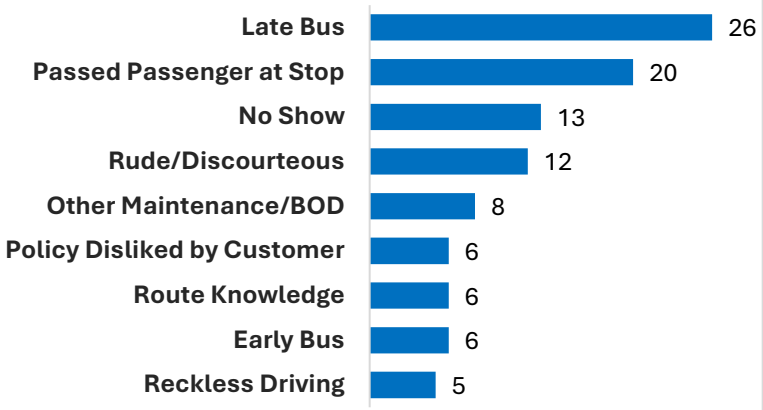
BUS SERVICE PERFORMANCE REPORT – AUGUST 2026

Mode Performance Owner: Seyi Osiyemi, General Manager – Bus Operations Division

Bus ridership increased 4% as CATS delivered 99.6% of scheduled trips, while fewer mechanical failures improved miles between failures by 20%. Pass-ups and late or missing service remain the primary management focus.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	824,687	795,820	+4%	●	
Scheduled Service Delivered	99.6%	98.7%	+1%	●	
Customer Complaints as % of Boardings	0.016%	0.010%	+54%	○	
On-Time Performance	85%	84%	+1%	◐	
Miles between Mechanical Failure	16,562	13,767	+20%	●	
Major Collisions per 10K Miles	0.403	0.396	+2%	◐	
Major Events per 10K Miles	0.40	0.53	-24%	●	

TOP CUSTOMER COMPLAINTS (AUGUST)



PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

Strength	**More service delivered supported ridership growth**	Bus service delivery reached 99.6% and ridership increased 4%. Sustain operator and vehicle coverage supporting scheduled service.
Strength	**Fewer mechanical failures improved vehicle reliability**	Mechanical failures declined from 55 to 45, increasing miles between failures by 20%. Continue current maintenance focus and monitor recurring defects.
Needs Focus	**Pass-ups and late or missing service drove customer complaints**	These issues accounted for more than half of August complaints. Use vehicle location data and video to identify recurring routes, times, capacity constraints, and operator issues.

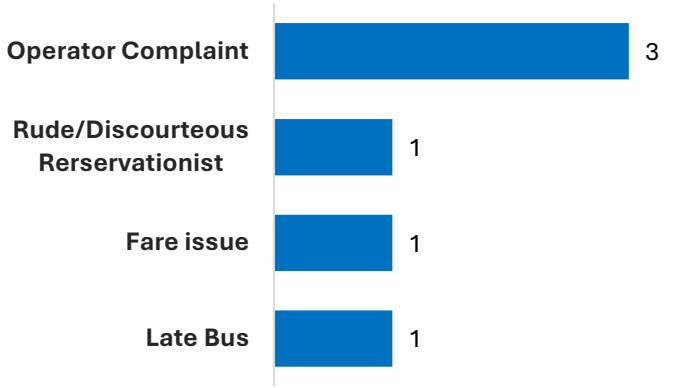
SPECIAL TRANSPORTATION SERVICE PERFORMANCE REPORT – AUGUST 2026

Mode Performance Owner: Dr Tina Hall, Interim General Manager – STS

STS delivered strong August results, serving more riders with better timeliness and fewer overall complaints. Declining vehicle reliability and operator-related complaints are priority areas for management attention.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	20,247	18,968	+7%	●	
Service Delivered (Miles)	209,617	174,063	+20%	●	
Customer Complaints as % of Boardings	0.03%	0.19%	-84%	●	
On-Time Performance	90.2%	81.4%	+11%	●	
Miles between Mechanical Failure	41,923	87,031	-52%	○	
Major Collisions per 10K Miles	No Major Collisions	No Major Collisions	-	●	
Major Events per 10K Miles	No Major Events	No Major Events	-	●	

TOP CUSTOMER COMPLAINTS (AUGUST)



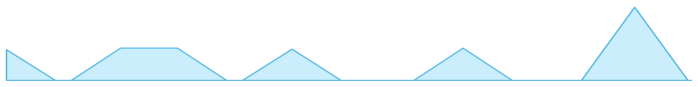
PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

Strength	**Service Delivery and Timeliness**	Revenue miles increased 20%, ridership 7%, and OTP 11%. Management will sustain the scheduling and dispatch practices supporting the improvement.
Needs Focus	**Vehicle Reliability**	Five failures reduced miles between failures by 52%. Ten new vehicles entered service in September, with ten more expected next month, which should improve fleet reliability.
Monitor	**Operator Conduct and Late Service**	Overall complaints declined, but operator conduct and late service remain concerns. Management will monitor trends and provide targeted coaching.

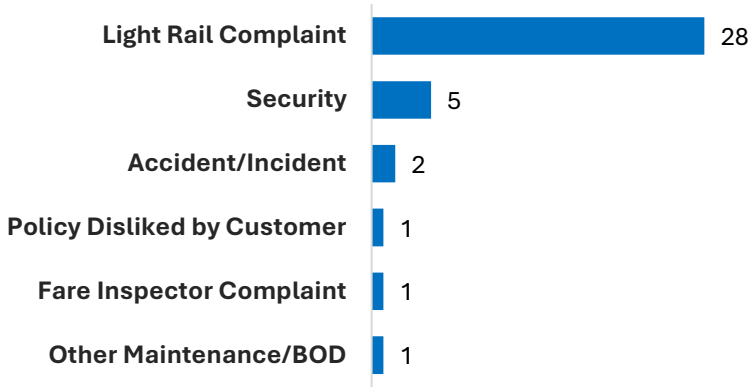
LIGHT RAIL SERVICE PERFORMANCE REPORT – AUGUST 2026

Mode Performance Owner: Gary Lee, General Manager – CATS Operations Division

Light Rail service stabilized following completion of drainage improvement project near Scaleybark Station on Aug 4. Lower ridership may reflect increased fare enforcement.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	455,145	539,697	-16%	◐	
Scheduled Service Delivered	101%	100%	+1%	●	
Customer Complaints as % of Boardings	0.009%	0.001%	+849%	◐	
On-Time Performance	98%	99%	-1%	●	
Miles between Mechanical Failure	63,014	27,479	+129%	●	
Major Collisions per 10K Miles	No Major Collisions	No Major Collisions	-	●	
Major Events per 10K Miles	No Major Events	0.73	-	●	

TOP CUSTOMER COMPLAINTS (AUGUST)



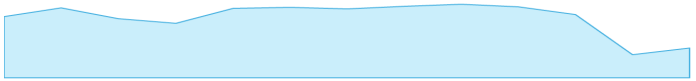
PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

Strength	**Early completion of Scaleybark drainage project**	CATS restored normal service on August 4, five days ahead of schedule. On-time performance improved from 86.1% in July to 98.2% in August
Strength	**Single-track service planning**	Schedule adjustments and additional peak trains reduced crowding during planned single tracking. Management will retain these practices for similar disruptions.
Needs Focus	**6th St. Interlocking catenary incidents**	Two incidents disrupted 29 trips. Operations implemented G.O. 26-008 to reduce pantograph damage during alignment transitions.

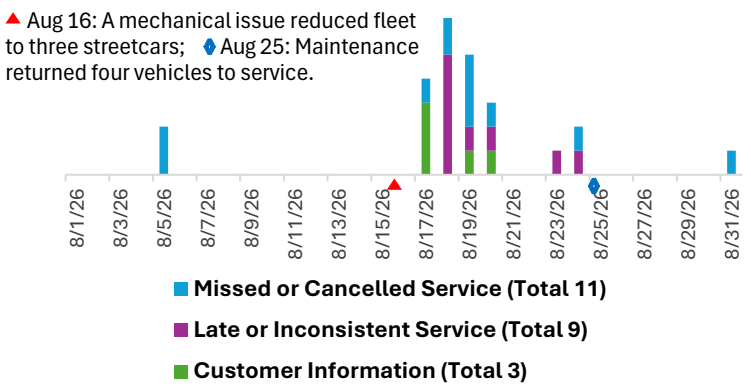
STREETCAR SERVICE PERFORMANCE REPORT – AUGUST 2026

Mode Performance Owner: Gary Lee, General Manager – CATS Operations Division

Performance weakened because we lacked available vehicles for service. Ongoing vehicle issues from previous months and the multiple 6th Street interlocking incidents reduced fleet availability, particularly in the month's second half.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	47,842	63,858	-25%	○	
Scheduled Service Delivered	91%	97%	-6%	○	
Customer Complaints as % of Boardings	0.052%	0%	-	◐	
On-Time Performance	86%	96%	-11%	○	
Miles between Mechanical Failure	No Mechanical Failures	No Mechanical Failures	-	◐	
Major Collisions per 10K Miles	No Major Collisions	No Major Collisions	-	●	
Major Events per 10K Miles	No Major Events	No Major Events	-	●	

CUSTOMER COMPLAINTS (AUGUST)



PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

Strength	**Fleet Restoration**	Maintenance returned four vehicles to service, allowing CATS to restore 20-minute headway.
Needs Focus	**Vehicle Availability**	Focusing on maintenance allowed for us to return the damaged vehicles to service as well as maintaining the preventative maintenance schedule.
Needs Focus	**Adjusted service frequency**	CATS developed a 30-minute schedule for periods with reduced fleet and manpower availability, and will investigate technology and procedures for improved schedule changes.

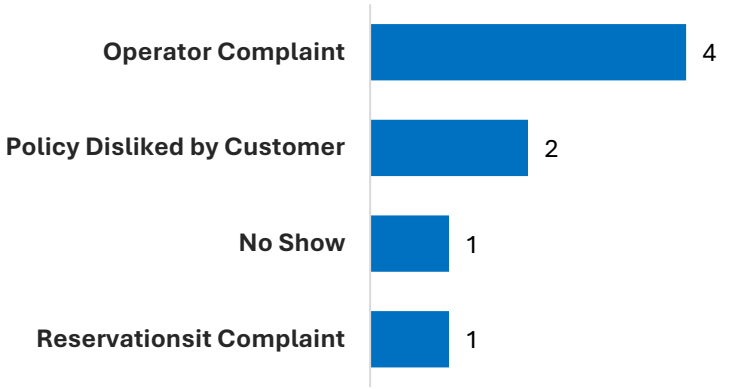
MICROTRANSIT SERVICE PERFORMANCE REPORT – AUGUST 2026

Mode Performance Owner: Dietrich Brown, Microtransit Program Manager

Microtransit ridership continued to grow and complaints declined despite lower on-time performance. The service recorded no major collisions or safety events, and its only mechanical failure was a flat tire.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	7,453	5,917	+26%	●	
Service Delivered (Miles)	41,918	36,497	+15%	●	
Customer Complaints as % of Boardings	0.11%	0.09%	+27%	○	
On-Time Performance	92.3%	94.5%	-2%	◐	
Miles between Mechanical Failure	41,918	No Mechanical Failures	-	◐	First mechanical failure (Flat tire) occurred in Aug 2026
Major Collisions per 10K Miles	No Major Collisions	No Major Collisions	-	●	No Major Collisions
Major Events per 10K Miles	No Major Events	No Major Events	-	●	No Major Safety Events

CUSTOMER COMPLAINTS (AUGUST)



PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

Strength	**Ridership growth**	Ridership increased 26%, compared with a 15% increase in revenue miles. Monitor demand by time and zone and adjust resources as needed.
Needs Focus	**Customer Communication and Pickup Coordination**	Complaints cite incorrect pickup locations, disputed no-shows, missed vehicles, and inadequate notifications. Management is reviewing pickup and communication procedures.
Monitor	**Service Capacity and Dynamic Trip Scheduling**	Complaints cite escalating waits, reassignments, and cancellations. Policies and guidelines for increasing capacity, and procedures for identifying suitable trips for transitioning to fixed-route service are needed.

VANPOOL SERVICE PERFORMANCE REPORT – JULY 2026

Mode Performance Owner: Jessica Lanier, Business Partnerships Manager

Vanpool maintained strong safety and vehicle reliability, with no major incidents reported. Ridership remained below last year, reflecting lower participation and service activity.

	Current Month	Same Month Prior Year	YoY %	Status	13-Month Trend
Ridership	2,569	3,767	-32%	○	
Service Delivered (Miles)	25,677	37,868	-32%	○	
Customer Complaints as % of Boardings	0.04% (1 complaint)	No Complaints	-	◑	
Miles between Mechanical Failure	No Mechanical Failures	No Mechanical Failures	-	●	No Mechanical Failures
Major Collisions per 10K Miles	No Major Collisions	No Major Collisions	-	●	No Major Collisions
Major Events per 10K Miles	No Major Events	No Major Events	-	●	No Major Safety Events

COMPLAINTS RECEIVED (PAST 12 MONTHS)

All complaints received in the past 12 months related to the vanpool service were submitted by other road users reporting unsafe driving by CATS vanpool vehicles.



PERFORMANCE DRIVERS & MANAGEMENT RESPONSE

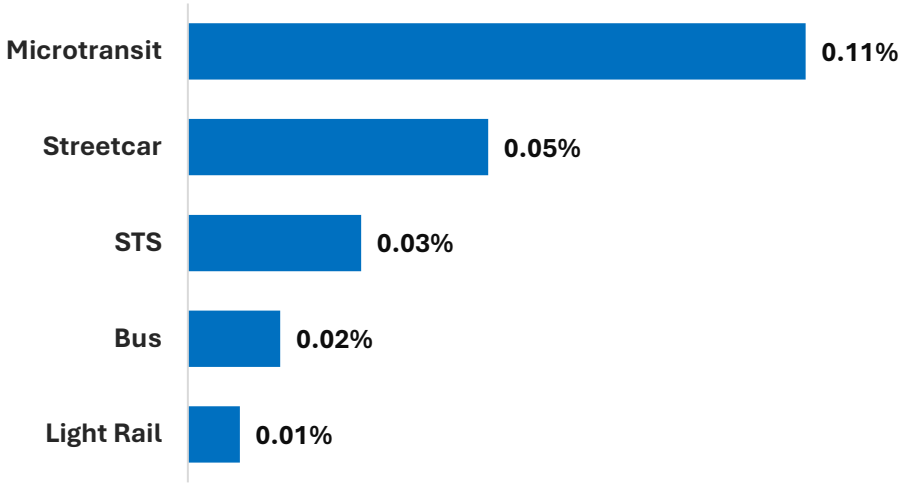
Strength	**No mechanical failures, collisions, or safety events were reported**	Maintain vehicle standards and participant safety requirements.
Needs Focus	**Participation and service levels**	July ridership and service mileage both declined approximately 32%, suggesting need to review outreach and participant retention.
Monitor	**Other road users reported unsafe driving by vanpool participants**	Review complaints, reinforce safe-driving requirements, and address repeated or substantiated concerns with the designated driver.

SERVICE DELIVERY & RELIABILITY SUMMARY - AUGUST 2026

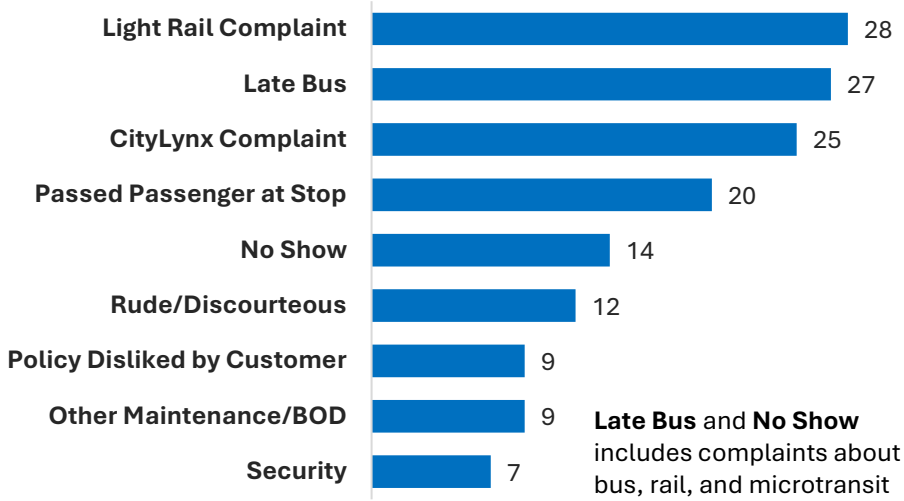
August performance was mixed but improved from July. Bus maintained strong service delivery while growing ridership, and Light Rail recovered after Scaleybark drainage construction. Incidents in August that caused two streetcars to be taken out of service highlighted the sensitivity of streetcar to fleet availability. STS timeliness and customer feedback improved, although vehicle reliability remains a challenge. Across the system, reportable safety incidents fell from 11 in July to four in August.

TRANSIT MODE	RIDERSHIP vs prior year	SERVICE DELIVERED vs prior year	ON-TIME vs prior year	MILES B/W FAILURE vs prior year	COMPLAINTS RATE vs prior year
Bus	824,687 +4%	99.6% +1%	85% +1%	16,562 +20%	0.02% +54%
STS	20,247 +7%	209,617 miles +20%	90.2% +11%	41,923 -52%	0.03% -84%
Light Rail	455,145 -16%	101% +1%	98% -1	63,014 +129%	0.01% +849%
Streetcar	47,842 -25%	91% -6	86% -11%	No Failures 0%	0.05% -
Microtransit	7,453 +26%	41,918 miles +15%	92.3% -2%	41,918 -	0.11% +27%
Vanpool (JULY)	2569 -32%	25,677 miles -32%	N/A	No Failures 0%	0.04% -

COMPLAINT RATE BY MODE



TOP COMPLAINTS SYSTEMWIDE



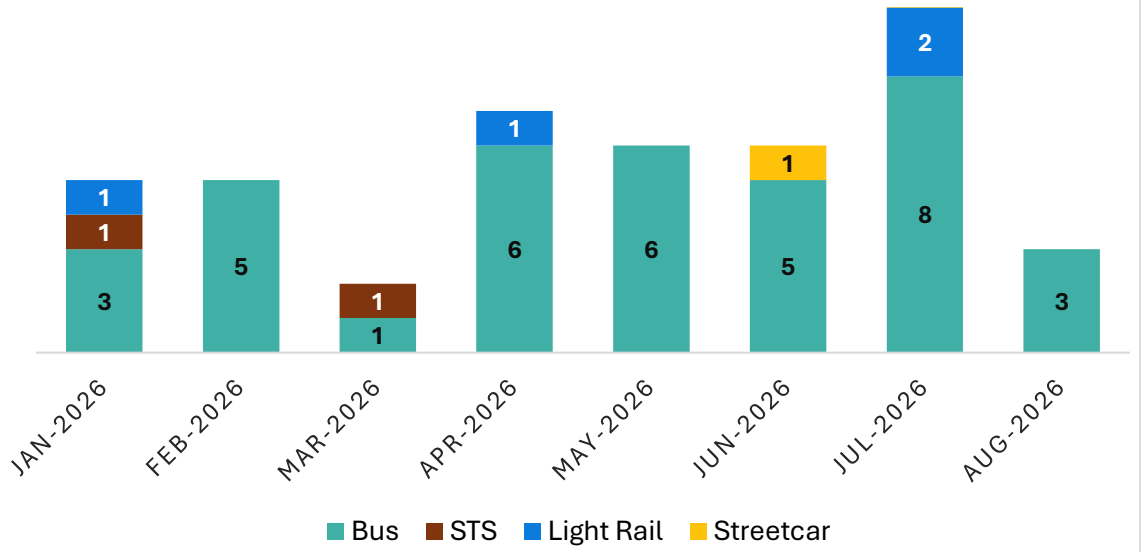
Late Bus and **No Show** includes complaints about bus, rail, and microtransit

SAFETY & SECURITY SUMMARY - JAN THROUGH AUG 2026

CATS recorded 46 reportable safety and security incidents from Jan through Aug 2026, 67% were vehicle collisions. Incidents declined from 11 in July to four in August. Two bus collisions occurred when motorists entered the buses' paths while changing lanes or turning; both resulted in minor damage, eight passengers were transported for treatment of minor injuries.

TRANSIT MODE	MAJOR EVENT RATE per 10K miles	
	Current Month	Calendar YTD
Bus	0.40	0.62
STS	No events	0.13
Light Rail	1.6	0.39
Streetcar	No Events	No Events
Microtransit	No Events	No Events
Vanpool	No Events	No events

MONTHLY SAFETY AND SECURITY INCIDENTS BY MODE



MAJOR EVENT TYPES	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	TOTAL
Collision with Vehicle	2	3	2	3	6	6	6	3	**31**
Collision with Pedestrian	1			2			1		**4**
Assault (Non-Sexual)	1	1		1					**3**
Mechanical Issue							1		**2**
Evacuation		1					1		**2**
Robbery							1		**1**
Passenger Injury	1								**1**
Collision with Fixed Object				1					**1**
Derailment							1		**1**

RIDERSHIP REPORT - August 2026

Transit Mode	Current Month	Same Mth Prior Year	YoY%	Average Daily Ridership		
				Weekday	Saturday	Sunday
Local						
BOD Local	757,741	736,313	**2.9%**	27,570	20,802	14,814
Subtotal	757,741	736,313	**2.9%**	27,570	20,802	14,814
Local Express						
Arboretum Express	1,762	1,492	**18%**	84	-	-
Harrisburg Road Express	1,086	1,178	**-7.7%**	52	-	-
Northcross Express	3,836	3,265	**17.5%**	183	-	-
Idlewild Express	884	936	**-5.6%**	42	-	-
Independence Blvd Express	3,876	3,165	**22.5%**	185	-	-
Lawyers Road Express	1,599	1,521	**5.1%**	76	-	-
Steele Creek Express	1,416	794	**78%**	67	-	-
Northlake Express	3,704	2,886	**28.3%**	176	-	-
North Mecklenburg Express	8,082	6,814	**18.6%**	385	-	-
Huntersville Express	5,729	3,997	**43.3%**	273	-	-
Rea Road Express	1,300	1,169	**11.2%**	62	-	-
Mountain Island Express	521	417	**25%**	25	-	-
Subtotal	33,796	27,634	**22.3%**	1,609	-	-
Regional Express						
Gastonia Express	1,300	1,039	**25.2%**	62	-	-
Union County Express	1,162	990	**17.4%**	55	-	-
Subtotal	2,462	2,029	**21.4%**	117	-	-
Community Circulator						
Neighborhood Shuttles	30,688	29,844	**2.8%**	1,076	965	656
Subtotal	30,688	29,844	**2.8%**	1,076	1,095	656
Microtransit						
Micro - North Mecklenburg	7,453	5,917	**26%**	271	179	173
Subtotal	7,453	5,917	**26%**	271	179	173
Human Services Transportation						
Special Transportation Services	20,247	18,968	**6.7%**	798	365	333
Subtotal	20,247	18,968	**6.7%**	798	365	333
Rideshare Services						
Vanpool	2,283	3,879	**-41.1%**	100	21	16
Subtotal	2,283	3,879	**-41.1%**	100	21	16
Rail						
LYNX Blue Line	455,145	539,697	**-15.7%**	16,655	12,326	8,750
CityLynx Gold Line	47,842	63,858	**-25.1%**	1,790	1,162	888
Subtotal	502,987	603,555	**-16.7%**	18,445	13,488	9,638
Total	**1,357,657**	**1,428,139**	**-4.9%**	**49,987**	**35,950**	**25,630**

**Rock Hill Regional Express Route was phased out July 1st, 2026. Regional Express percentage does not include FY26 82x data.*

CATS is currently preparing for the NTD certification process for APC Ridership Reporting. GFI data will be available upon request.

Ridership Comparison by Route

			Current: August 2026	Previous Month: July 2026	Prior Year: August 2025				
Service Type	Route	Route Name	Current Ridership	Previous Month Ridership	Prior Year Ridership		MoM %		YoY %
	1	Mt Holly Valleydale	16,498	15,741	15,332	↑	4.8%	↑	7.6%
	2	Ashley / Scaleybark	11,638	10,539	12,242	↑	10.4%	↓	-4.9%
	3	The Plaza	31,746	30,023	31,204	↑	5.7%	↑	1.7%
	4	Belmont	13,197	12,738	11,779	↑	3.6%	↑	12.0%
	5	Sprinter	35,957	34,795	38,756	↑	3.3%	↓	-7.2%
	6	Kings Drive	13,016	12,774	12,742	↑	1.9%	↑	2.1%
	7	Beatties Ford	45,470	44,465	45,257	↑	2.3%	↑	0.5%
	8	Tuckaseegee Road	21,879	19,999	20,153	↑	9.4%	↑	8.6%
	9	Central Avenue	77,794	74,976	77,155	↑	3.8%	↑	0.8%
	10	West Boulevard	19,605	19,615	19,974	↓	-0.1%	↓	-1.8%
Local	11	North Tryon	42,045	40,671	35,413	↑	3.4%	↑	18.7%
	12	South Boulevard	11,975	10,713	12,224	↑	11.8%	↓	-2.0%
	13	Nevin Road	6,760	6,198	6,333	↑	9.1%	↑	6.7%
	14	Providence Road	14,557	13,710	14,204	↑	6.2%	↑	2.5%
	15	Randolph Road	16,819	16,325	16,789	↑	3.0%	↑	0.2%
	16	South Tryon	43,298	42,227	40,376	↑	2.5%	↑	7.2%
	17	Commonwealth Avenue	23,974	23,011	22,790	↑	4.2%	↑	5.2%
	18	Paw Creek / Rosa Parks	5,895	5,386	5,897	↑	9.5%	↓	0.0%
	19	Park Road	23,947	23,310	22,375	↑	2.7%	↑	7.0%
	20	Queens Road	4,232	4,403	3,531	↓	-3.9%	↑	19.8%
	21	Statesville Ave	36,045	35,473	41,471	↑	1.6%	↓	-13.1%

Ridership Comparison by Route

			Current: August 2026	Previous Month: July 2026	Prior Year: August 2025				
Service Type	Route	Route Name	Current Ridership	Previous Month Ridership	Prior Year Ridership		MoM %		YoY %
Local	22	Graham Street	25,681	24,495	23,488	↑	4.8%	↑	9.3%
	23	Shamrock Drive	20,824	19,848	18,800	↑	4.9%	↑	10.8%
	24	Nations Ford	11,531	10,746	10,815	↑	7.3%	↑	6.6%
	26	Oaklawn Avenue	10,244	10,006	9,771	↑	2.4%	↑	4.8%
	27	Monroe Road	33,327	33,609	30,915	↓	-0.8%	↑	7.8%
	28	Fariview Road	3,741	3,658	4,006	↑	2.3%	↓	-6.6%
	29	UNCC / JW Clay	14,024	13,352	12,338	↑	5.0%	↑	13.7%
	30	Woodlawn Crosstown	10,232	9,722	10,232	↑	5.2%	↓	0.0%
	33	Blue Line Bus Bridge							
	34	Freedom Drive	27,841	26,346	26,551	↑	5.7%	↑	4.9%
	35	Wilkinson	3,171	2,985	2,527	↑	6.2%	↑	25.5%
	39	Eastway Drive	19,143	17,650	20,197	↑	8.5%	↓	-5.2%
	42	Carowinds	330	537	374	↓	-38.6%	↓	-11.9%
	43	Ballantyne	3,099	2,866	3,160	↑	8.1%	↓	-1.9%
	50	CIC / URP	460	426	350	↑	8.1%	↑	31.5%
	51	Pineville-Matthews Road	2,727	2,562	2,570	↑	6.4%	↑	6.1%
	54	URP	6,086	6,284	5,475	↓	-3.2%	↑	11.2%
	55	Westinghouse	6,998	6,352	6,973	↑	10.2%	↑	0.4%
	56	Arrowood	15,624	14,721	16,090	↑	6.1%	↓	-2.9%
	57	Archdale	4,767	3,892	4,514	↑	22.5%	↑	5.6%
	58	Carolina Place Mall	5,536	5,309	5,998	↑	4.3%	↓	-7.7%

Ridership Comparison by Route

		Current: August 2026		Previous Month: July 2026		Prior Year: August 2025	
Service Type	**Route**	**Route Name**	**Current Ridership**	**Previous Month Ridership**	**Prior Year Ridership**	**MoM %**	**YoY %**
Local	**59**	North Meck Connector	3,166	2,907	2,936	8.9%	7.9%
	60	Tyvola Road	12,841	12,917	12,234	-0.6%	5.0%
Neighborhood Shuttles	**211**	Hidden Valley	14,534	13,314	14,640	9.2%	-0.7%
	221	East Harris - Idlewild Rd	7,150	6,594	6,458	8.4%	10.7%
	222	Pence Road	4,176	3,835	4,366	8.9%	-4.3%
	235	Goodwill / Amay James	4,828	4,279	4,381	12.8%	10.2%
Local Express	**40x**	Lawyers Road Express	1,599	1,513	1,521	5.7%	5.1%
	41x	Steele Creek Express	1,416	1,499	794	-5.5%	78.4%
	46x	Harrisburg Road Express	1,086	1,322	1,178	-17.8%	-7.7%
	48x	Northcross Express	3,836	3,841	3,265	-0.1%	17.5%
	52x	Idlewild Express	884	755	936	17.1%	-5.6%
	53x	Northlake Express	3,704	3,690	2,886	0.4%	28.3%
	61x	Arboretum Express	1,762	1,660	1,492	6.2%	18.1%
	62x	Rea Road Express	1,300	1,356	1,169	-4.2%	11.2%
	63x	Huntersville Express	5,729	5,407	3,997	5.9%	43.3%
	64x	Independence Blvd Express	3,876	3,716	3,165	4.3%	22.5%
	77x	North Mecklenburg Express	8,082	8,147	6,814	-0.8%	18.6%
	88x	Mountain Island Express	521	546	417	-4.7%	24.7%
Regional Express	**74x**	Union County Express	1,162	1,191	990	-2.4%	17.4%
	85x	Gastonia Express	1,300	1,279	1,039	1.6%	25.2%
Light Rail	**501**	LYNX Blue Line	455,145	447,585	539,697	1.7%	-15.7%

Ridership Comparison by Route

		Current: August 2026		Previous Month: July 2026		Prior Year: August 2025		
Service Type	**Route**	**Route Name**	**Current Ridership**	**Previous Month Ridership**	**Prior Year Ridership**	**MoM %**		**YoY %**
Streetcar	**510**	CityLYNX Gold Line	47,842	50,544	63,858	-5.3%		-25.1%
Microtransit	**NMMT**	North Meck Microtransit	7,453	7,890	5,917	-5.5%		26.0%
STS	**STS**	Spectial Transportation Service	20,247	20,208	18,968	0.2%		6.7%
Vanpool	**VP**	Vanpool	2,283	2,569	3,879	-11.1%		-41.1%

September CATS Sales Tax Report FY2026

June Receipts

Sales Tax Collections and Distribution – June 2026

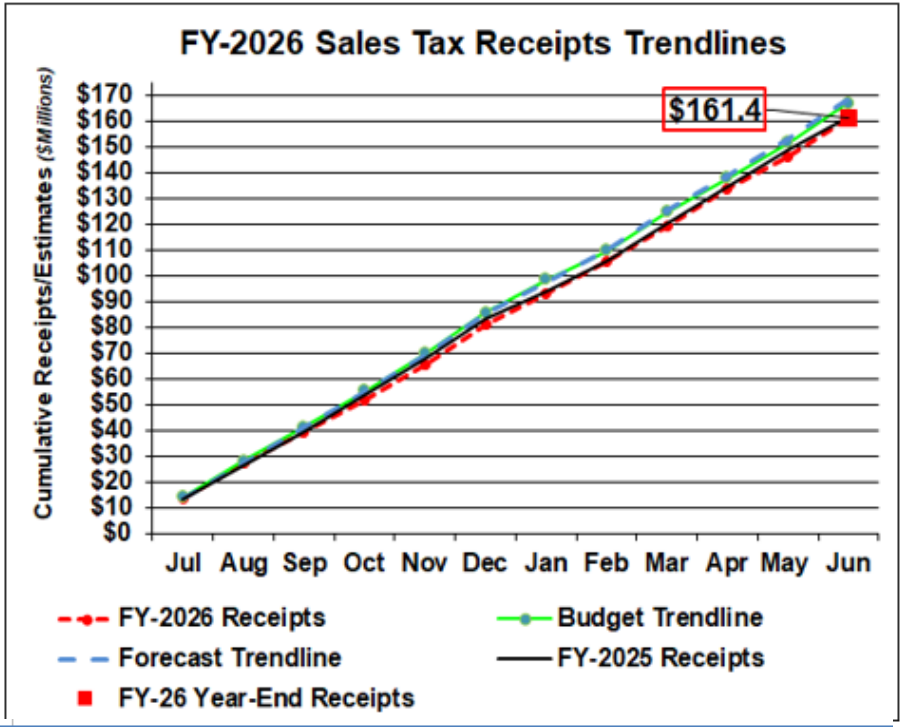
- The June 2026 receipts of $15,006,187 were $619,828 (-0.4%) below budget target for the month
- The June 2026 receipts were $499,115 (-3.2%) below forecast for the month
- The June 2026 receipts (FY26) were $1,998,053 (15.4%) above June 2025 (FY25)

Sales Tax Budget Data

- The FY26 sales tax budget is $167,333,658
- The FY26 actual year-end receipts of $161,370,972 is -$5,962,686 (-3.6%) below the FY-2026 budget target of $167,333,658
- FY2025 actual sales tax was $161,999,346

Local Government Sales and Use Tax Distribution

- Source: North Carolina Department of Revenue Sales & Use Distribution Report for the month June 30, 2026
- Published by NC Secretary of Revenue on August 13th, with actual receipts through June 30, 2026
- CATS sales tax report only includes Mecklenburg County Article 43 sales tax



FY2026 Budget Sales Tax Receipts (Actuals and Forecasts)

* Jurisdiction	Population	% of Total	Jul 25 Actuals	Aug 25 Actuals	Sep 25 Actuals	Oct 25 Actuals	Nov 25 Actuals	Dec 25 Actuals	Jan 26 Actuals	Feb 26 Actuals	Mar 26 Actuals	April 26 Actuals	May 26 Actuals	Jun 26 Actuals	Total
Charlotte	944,742	40.4%	$ 5,418,415	$ 5,505,487	$ 4,879,302	$ 5,241,719	$ 5,547,664	$ 6,312,581	$ 4,811,411	$ 4,899,696	$ 5,575,535	$ 5,907,718	$ 5,100,965	$ 6,069,586	$ 65,270,079
Cornelius	32,632	1.4%	$ 187,156	190,163	168,534	181,052	191,620	218,041	166,189	169,239	192,583	204,056	176,191	209,647	2,254,471
Davidson	15,833	0.7%	$ 90,808	92,267	81,773	87,846	92,974	105,793	80,635	82,114	93,441	99,008	85,487	101,721	1,093,866
Huntersville	66,955	2.9%	$ 384,010	390,180	345,802	371,487	393,170	447,380	340,990	347,247	395,145	418,687	361,511	430,159	4,625,769
Matthews	30,761	1.3%	$ 176,425	179,260	158,871	170,671	180,633	205,539	156,661	159,535	181,541	192,357	166,088	197,627	2,125,208
Mint Hill	28,761	1.2%	$ 164,954	167,605	148,542	159,575	168,889	192,175	146,475	149,163	169,737	179,850	155,290	184,778	1,987,032
Pineville	11,379	0.5%	$ 65,262	66,311	58,769	63,134	66,819	76,032	57,951	59,015	67,155	71,156	61,439	73,105	786,149
Stallings	454	0.0%	$ 2,604	2,646	2,345	2,519	2,666	3,034	2,312	2,355	2,679	2,839	2,451	2,917	31,366
Weddington	8	0.0%	$ 46	47	41	44	47	53	41	41	47	50	43	51	553
Meck. County	1,204,215	51.6%	$ 6,906,581	7,017,567	6,219,400	6,681,355	7,071,328	8,046,329	6,132,863	6,245,395	7,106,854	7,530,270	6,501,942	7,736,595	83,196,479
Total	**2,335,740**	**100.0%**	**$13,396,259**	**$13,611,532**	**$12,063,379**	**$ 12,959,403**	**$13,715,810**	**$15,606,957**	**$11,895,528**	**$12,113,800**	**$13,784,717**	**$14,605,990**	**$12,611,408**	**$ 15,006,187**	**$ 161,370,972**
														FY26 Budget	$ 167,333,658
														Variance	$ (5,962,686)

*Table is consistent with North Carolina General Statute § 105-507.3. Distribution and Use of Taxes

FY-2026 Budget Sales Taxes Receipts Year-over-Year Comparison

	Jul	Aug	Sep	Oct	Nov	Dec	Jan	Feb	Mar	Apr	May	June	YTD Total
Year-over-Year Comparison *(FY2026 over FY2025)*	2.00%	4.09%	-10.82%	-9.24%	-0.31%	1.16%	9.79%	4.47%	-6.87%	4.06%	-13.14%	15.36%	-0.39%
FY2026 Budget Target	$13,829,756	$14,280,944	$13,031,696	$ 14,172,841	$14,574,605	$15,982,121	$12,722,112	$11,370,451	$15,071,820	$13,034,709	$13,636,588	$ 15,626,015	$ 167,333,658
% of FY2026 Budget Achieved	8.01%	16.14%	23.35%	31.09%	39.29%	48.62%	55.73%	62.97%	71.20%	79.93%	87.47%	96.44%	96.44%

FY2021 - FY2025 Sales Tax Receipts

Fiscal Year	Jul	Aug	Sep	Oct	Nov	Dec	Jan	Feb	Mar	Apr	May	June	Total
FY2025	$13,133,587	$13,076,220	$13,526,391	$ 14,279,401	$13,759,027	$15,428,364	$10,834,789	$11,595,445	$14,802,286	$14,035,957	$14,519,746	$ 13,008,134	$ 161,999,346
FY2024	$13,045,415	$14,784,351	$ 9,765,503	$ 13,164,891	$13,484,481	$15,145,809	$11,630,823	$12,055,016	$13,302,965	$11,919,582	$13,412,910	$ 14,093,667	$ 155,805,412
FY2023	$12,687,115	$12,882,613	$13,528,146	$ 13,283,060	$13,151,617	$14,644,501	$11,902,754	$ 9,995,757	$14,159,184	$11,180,564	$13,440,164	$ 13,783,037	$ 154,638,512
FY2022	$11,298,388	$10,659,682	$11,073,183	$ 11,342,634	$12,115,265	$13,501,568	$10,221,788	$ 8,315,108	$13,351,825	$11,369,039	$12,932,254	$ 13,044,834	$ 139,225,568
FY2021	$ 8,921,474	$ 9,466,946	$ 9,245,058	$ 9,317,741	$ 9,964,913	$11,402,907	$ 9,134,772	$ 6,785,996	$11,253,531	$10,287,447	$ 8,942,957	$ 11,945,450	$ 116,669,192

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 8A – Operations and Safety Committee Meeting Summary

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

Approve the titles, motions, and votes reflected in the Clerk's records as the meeting minutes for the August 26, 2026 Operations and Safety Committee Meeting.

Summary:

- Under the North Carolina Open Meetings Law (G.S. § 143-318.10), governing bodies must keep full and accurate minutes of all official meetings.

Committee Process:

None

Staff Contact:

Elizabeth Presutti, CATS Chief Administrative Officer

Attachment:

- Draft August 26, 2026 Operations and Safety Committee Meeting Summary

METROPOLITAN PUBLIC TRANSPORTATION AUTHORITY
BOARD OF TRUSTEES
Operations and Safety Committee
Meeting Summary

Operations and Safety Committee (OSC) Members in Attendance:

Julie Eiselt, Chair, Mecklenburg County
David Longo, Vice Chair, NCGA
Mike Bryant, Mecklenburg County (V)
T. Anthony Lindsey, Town of Huntersville
Christy Long, City of Charlotte
Cameron Pruette, City of Charlotte
Kenneth Schorr, Mecklenburg County
Bishop Dwayne Walker, NC Governor (V)

Absent Committee Member(s):

Brad A. Simmons, Town of Mint Hill

Advisory Committee Member(s):

Obdulio M. Oden, Co-Chair, Interim PTAC (V)

Staff in Attendance:

Debra Campbell, MPTA Transition Co-Director
Carolyn Flowers, MPTA Transition Co-Director
Erna Jones Perkins, MPTA Transition Manager
Brent Cagle, CATS Interim CEO
Eric Osnes, CATS Chief Safety & Security Officer
Elizabeth Presutti, CATS Chief Admin Officer
Victoria Johnson, CATS Chief Operations Officer
Chad Howell, CATS Chief Finance Officer
Gary Lee, CATS Rail Operations Manager
Rachel Gragg, CATS Chief Technology Officer
Soohuey Yap, CATS Strategic Planning Mgr.
Brad Thomas, CATS General Counsel
Catherine Kummer, Director of MarComms
Vincent Rodriguez, Customer Service Mgr.
Rachel Stark, CATS Special Project Manager
Brian Horton, CATS Strategic Planning Mgr.
Brittany Faush, CATS Staff
Mindy Levine, CATS Staff

1. CALL TO ORDER

The Metropolitan Public Transportation Authority (MPTA) Board of Trustees Operations and Safety Committee convened for a meeting on Wednesday, August 26, 2026 at 9:00 a.m. in Conference Room 266 of the Charlotte-Mecklenburg Government Center with Chair Julie Eiselt presiding.

2. INTRODUCTIONS

Committee members and staff introduced themselves.

3. ETHICS STATEMENT

The Chair reminded the committee members that it was the duty of every board member to avoid both conflicts of interest and appearances of conflict. To comply with this statement, the Chair asked whether any Board member had a known conflict of interest or appearance of conflict with respect to any matters coming before the committee today. If so, please identify the conflict or

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appearance of conflict when the item appears on the agenda for consideration, refrain from any undue participation in the particular matter involved by leaving the room until the item is complete.

No trustees identified any potential conflict or appearance of conflict of interest

4. PUBLIC COMMENT

There were no speakers that addressed the Operations and Safety Committee.

5. ADVISORY COMMITTEE REPORTS

Obdulio M. Oden, Co-Chair for the interim Public Transit Advisory Committee (PTAC) said that a written report was provided in the meeting packet and he would be happy to answer any questions from the committee. There were no questions.

The PTAC report is available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

6. REPORT OF THE CHAIR

There was no Report of the Chair.

Trustee T. Anthony Lindsey requested that committee meeting summaries be brought for committee approval going forward.

Trustee Lindsey said that at the last MPTA Board Meeting, during the OSC Committee report, Vice Chair Longo referenced the formation of a stakeholder group to look at a potential police force study. He said that he wasn't aware of any action taken to form such a committee and doesn't believe the committee has the authority to do that under the current bylaws.

Vice Chair Longo responded that there was never a subcommittee, but that Chair Eiselt asked staff to include outside stakeholders who could add value as they are doing their jobs and that that request was within the purview of the Chair. Staff would then bring recommendations back to the committee and they would decide what to recommend to the full board.

Trustee Lindsey said that he takes issue with that and doesn't believe it is within the current governance structure. He said that the Charter does not provide any special dispensation for the Chair to ask for this.

Brad Thomas, CATS General Counsel, said he would look at the Charter and get back to the committee. He also cautioned that if a workgroup is established with a special purpose, it can be viewed as a public body and would be subject to open meetings law.

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7. STAFF REPORTS

Brent Cagle, CATS Interim Chief Executive Officer, reviewed the July 2026 Summary of Monthly Statistics including safety, on time performance, and ridership. He noted an occurrence in July and August when Blue Line operations were affected by the extreme temperatures. CATS is doing an engineering and operational analysis to understand the root causes of these issues and to develop mitigating measures.

Trustee Kenneth Schorr noted that each year there will continue to be more extreme heat days and asked what technologies will be needed to be adapted to address this.

Mr. Cagle responded that we need to look at operational resiliency given changing weather conditions for both heat and cold.

Trustee Christy Long asked about KPIs and what the target us for bus and rail.

Mr. Cagle responded that he would get back to her with that information.

Chair Eiselt asked if the committee could get information about what the average is amongst peer systems and asked how we are measuring what the national peer standard will be.

Elizabeth Presutti, Chief Administrative Officer, responded that there are two benchmarking groups, one for bus and one for rail and that they would bring this information back to the committee at a future date.

Staff responded to questions and comments from the committee members.

Secretary Christy Long asked if at the next committee meeting, they could look at outliers and have an explanation for the negative and positive, at a threshold of 10% and over.

Mr. Cagle said that usually staff reviewed data over a three-six-nine-month period but can start to look at this month-to-month.

Trustee Long asked if this could be analyzed quarter-over-quarter.

Mr. Cagle said it would also be beneficial to review on time performance route by route.

Chair Eiselt said it would be helpful to see what went right. We usually focus on what went wrong but for increases in ridership, it would be great to see why more passengers are using a particular route.

Trustee Lindsey asked about the injuries for July on the safety report for bus operations. It shows total worker injuries at four and total injuries at nine. He asked if the other five were pedestrians or riders.

Eric Osnes, Chief Safety and Security Officer, said he will bring that information back to the committee.

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Trustee Lindsey also noted that the increase in total worker injuries and total injuries from the prior three months has changed significantly. He said it would be useful to know if there is something there that they should be aware of.

Mr. Osnes said he would try and provide some designation that there was a change from month-to-month and there is also a year-end report that will show this data.

The July 2026 Monthly Transit Reports are available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

8. BUSINESS ITEMS

For Committee Action:

A. FY2027 Operations and Safety Committee Meeting Calendar

The Transition Team developed a proposed meeting cadence to schedule standing committee meetings on the third week of the month, the Executive Committee on the first week of the month, and Board meetings on the second week of the month.

Motion made by Vice Chair Longo, seconded by Trustee Kenneth Schorr, and carried unanimously to amend the OSC Meeting Calendar as proposed.

The Proposed New Committee Schedules and Amended FY2028 Executive Committee Calendar are available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

For Recommendation to the Executive Committee:

There were no items for recommendation to the Executive Committee.

For Discussion or Presentation:

B. Customer Service Overview and Upcoming Customer Surveys

Vincent Rodriguez, CATS Customer Service and Customer Programs Manager, shared a presentation about where Customer Service is today and where it is going in the future. The major focus is on processing customer contact and owning the customer outcome. The goal is greater ownership, fewer hand-offs and stronger focus on resolution, with the goal of resolving more during the first interaction with a customer.

Catherine Kummer, Director of Marketing and Communications, discussed how data related to customer satisfaction was measured. This is done through surveys, and they have built a comprehensive program with annual periodic surveys and studies. Coming up next month will be two surveys: Origin and Destination and Customer Satisfaction; together these will give staff a full picture of rider behavior and sentiment.

The Customer Service Overview Presentation is available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

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C. Data Strategy and Performance Management

Soohuey Yap, CATS Strategy and Performance Management Director, shared a presentation that introduced the new Strategy and Performance Management function and its initial 12-month workplan. Ms. Yap said that having a good data foundation ensures that there are no blind spots and staff will not be caught off guard. She shared a Performance Management Framework and said that she could create a cascade showing Board key performance indicators (KPIs), what factors contribute to that, what contributes to those factors and what areas of business are responsible for that. This will help us be clear on where to focus and ensure we are investing in analysis and insight. She is hoping to have this completed by the end of calendar year 2027.

Trustee Lindsey asked about blockages that impede service delivery.

Carolyn Flowers, Transition Co-Director, said that this will be part of the discussion at the upcoming Board Retreat.

Ms. Yap also noted that when things are blocked, resources are required to unblock them. Data allows us to clarify our most critical issues to better focus resources on blockages that are more critical to us.

The Building a Strategy-Driven, Data-Enabled Organization Presentation is available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

D. Technology Transition and Operations Projects Update

Rachel Gragg, CATS Technology Director, gave an overview of the CATS Operations Technology Modernization Program. It is important to keep in mind all the interdependencies while still operation business as usual. The goal is for us to be independent of the city systems as of June 30, 2027. She will be establishing an order of operations to minimize project collisions and delays, and we may have to make some hard decisions about what priorities are.

Trustee Long asked about the budget being tight and if there is a plan for when she would have to escalate concerns about the budget. Ms. Gragg said that there are a lot of timelines, and they'd have to look at the PILA and how that affects the timeline of what we need to deliver and when. Mr. Cagle said that things are not at a point now where they need to be elevated but that September 30 is an important date, and he anticipates having a better idea at that point. Ms. Flowers said that October 9 is the date we'll have to decide whether to go or not if end-to-end testing shows gaps or issues. Mr. Cagle said that at some point the go or no-go decision must be made in terms of people regarding benefits. Open enrollment starts on October 9. At some point we have to make a decision because of the benefit year, and the City of Charlotte must know which way we are going.

The CATS Operations Technology Modernization Program Update Presentation is available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

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8. REPORTS TO THE COMMITTEE

There were no Reports to the Committee.

9. OTHER BUSINESS

Trustee Lindsey asked that the OSC receive an update on microtransit and the STS rollout.

10. NEXT MEETING

The next Operations and Safety Committee meeting will be Wednesday, September 23, 2026.

Upcoming Agenda Items for the MPTA Operations and Safety Committee are available in full by referencing the August 26, 2026 MPTA OSC meeting packet.

11. ADJOURN

Motion made by Trustee Kenneth Schorr, seconded by Trustee Cameron Pruette, and carried unanimously to adjourn the meeting.

The meeting adjourned at 10:58 a.m.

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OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 8B – Rail Services Overview

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion only.

Summary:

- Staff will review the attached Rail Services Overview presentation at the meeting and answer any questions.
- CATS Rail has achieved significant progress in state-of-good-repair initiatives and advanced critical lifecycle programs.
- However, ongoing challenges persist, including aging infrastructure, fleet availability, staffing capacity, technology reliability, regulatory compliance, and limited funding.
- To address these issues, CATS recommends a disciplined, multi-year strategy focused on building a qualified workforce, maintaining reliable assets, enhancing system resilience, ensuring accountable governance, and prioritizing capital investments based on risk and operational impact.

Committee Process:

Operations and Safety Committee: September 23, 2026

Staff Contact:

Gary Lee, CATS Rail Operations Manager
Victoria Johnson, CATS Chief Operations Officer

Attachment:

- Rail Services Overview Presentation

RAIL OPERATIONS

Moving People Forward



Victoria Johnson, Chief Operating Officer

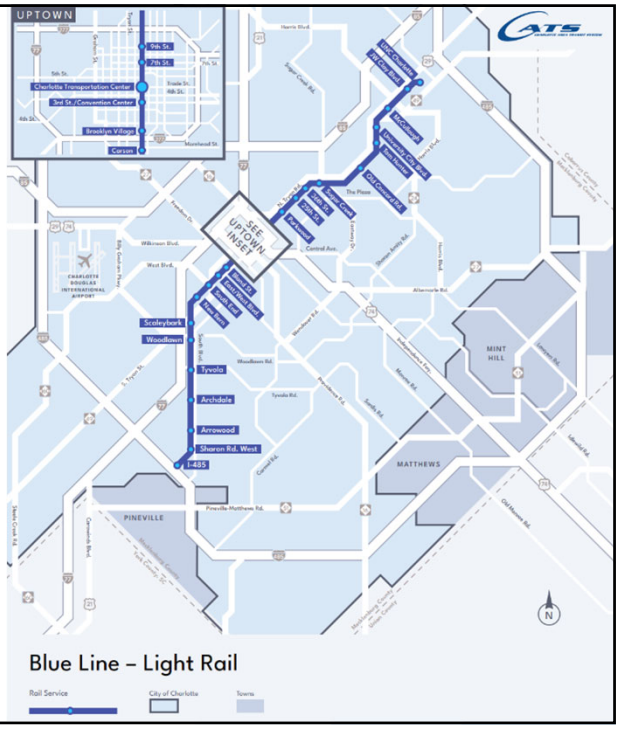
September 23, 2026

Light Rail

- **Blue Line**
  - 19 miles
  - 26 stations
  - 42 train cars
  - 11 park and rides
- **Fare:** $2.20

FY25 Ridership: 5,804,651

FY26 Ridership: 5,327,185



Streetcar

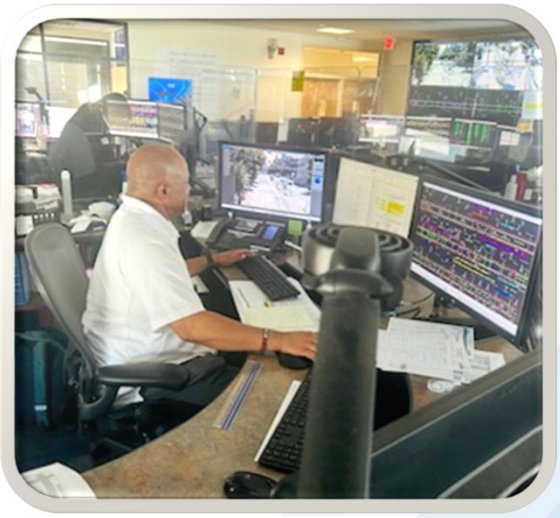
- **Gold Line**
  - 4 miles
  - 17 stations
  - 6 train cars

FY25 Ridership: 561,817
FY26 Ridership: 612,900



RAIL OPERATIONS CONTROL CENTER (ROCC)

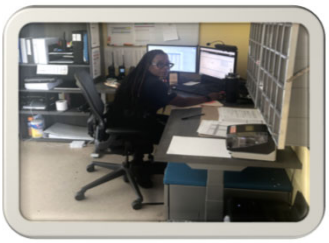
- Centralized facility that monitors and controls **train operations**.
- Coordinates **train movements and schedules** to prevent conflicts and delays.
- Supports **real-time decision-making** during emergencies and abnormal operating conditions.
- Monitors **passenger information systems** and provides updates during delays or service changes.
- Uses technologies such as **SCADA, CCTV, radio communication, train tracking, and computerized traffic management systems**.
- Operates **24 hours a day, 7 days a week**



RAIL CONTROLLER

RAIL TRANSPORTATION

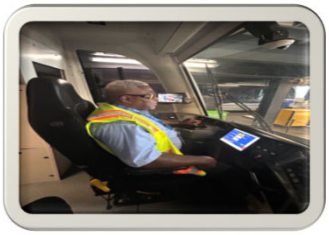
- **Dispatcher:** Directs and coordinates daily rail operations to ensure trains move safely and efficiently.
- **Train Operator:** Safely operates light rail vehicles in accordance with operating rules, procedures, and authorized speeds.
- **Field Supervisor:** Provides on-site operational oversight and support for rail transportation personnel.



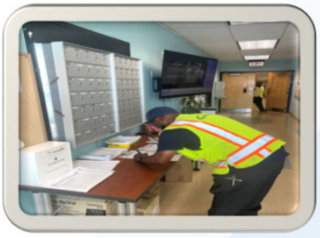
DISPATCHER



FIELD SUPERVISOR



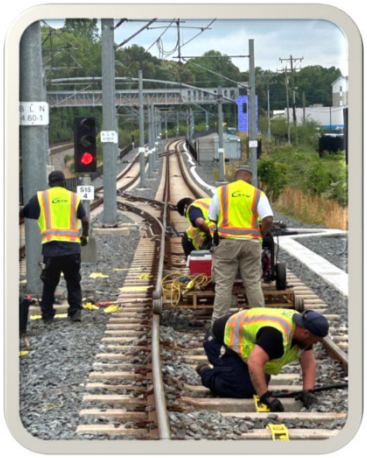
TRAIN OPERATOR



OPERATOR ON DUTY

MAINTENANCE OF WAY (MOW)

- **Track Safety:** Inspect and maintain track infrastructure for safe operations.
- **Preventative Maintenance:** Identify and correct defects before they impact service.
- **Reliability & Compliance:** Maintain infrastructure to support safe, reliable, and compliant rail operations.



OLD CONCORD REPLACED PRE-CURVED RAIL AND INSTALLED LATERAL RESISTANCE PLATES

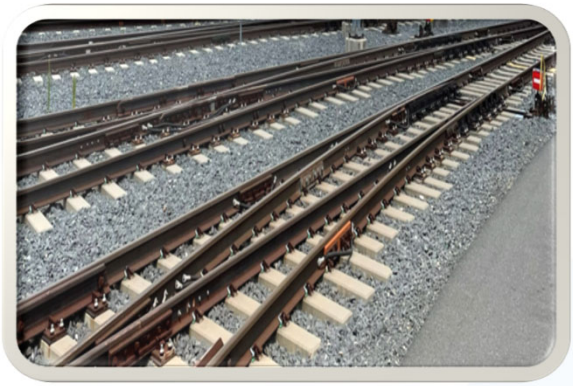


TPSS 1 PAD MOUNTED DISCONNECT REPLACEMENT STATE OF GOOD REPAIR

MOW (cont.)



LATERAL RESISTANCE PLATE INSTALLATION

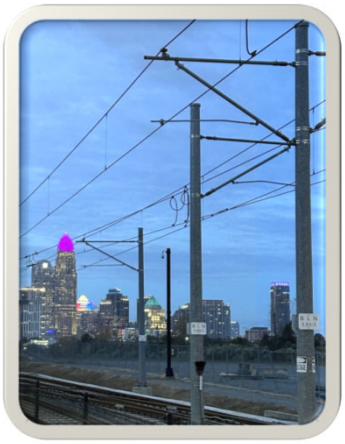


RAIL INFRASTRUCTURE MAINTAINED

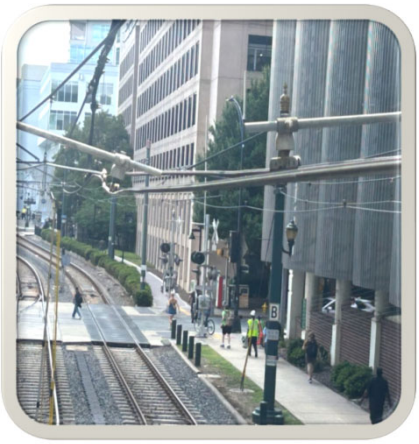
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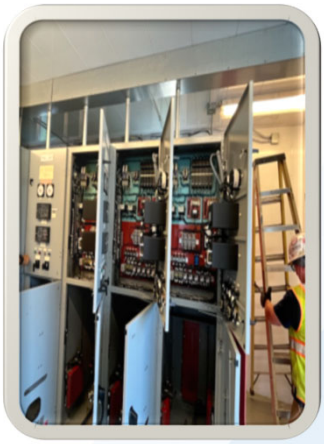
MOW



OVERHEAD CATENARY SYSTEM (OCS)



6TH STREET INTERLOCKING OCS REPAIR – DEVELOPMENT PLANNING TO INSTALL OCS VARIABLE TENSION



TPSS REFRSH SWITCHGEAR REPLACEMENT (SGR)

8

8

RAILCAR MAINTENANCE

- **Inspect & Maintain:** Perform inspections, serving, and repairs.
- **Safety & Reliability:** Ensure LRVs are safe and operational.
- **Preventative Maintenance:** Complete scheduled maintenance and correct defects promptly.



OVERHAUL TRUCK REPLACEMENT



POWER TRUCK



CENTER TRUCK FRAME DISASSEMBLED

9

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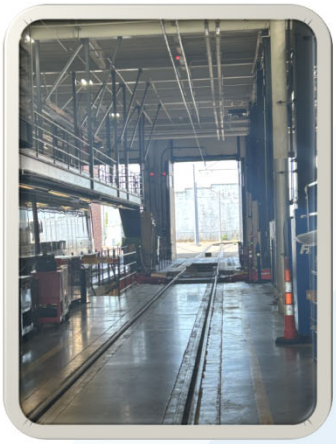
RAILCAR MAINTENANCE



COUPLER – TRAINLINE COMMUNICATION



TRUCK OVERHAUL PREPARATION



WHEEL TRUE – WHEEL RAIL INTERFACE

10

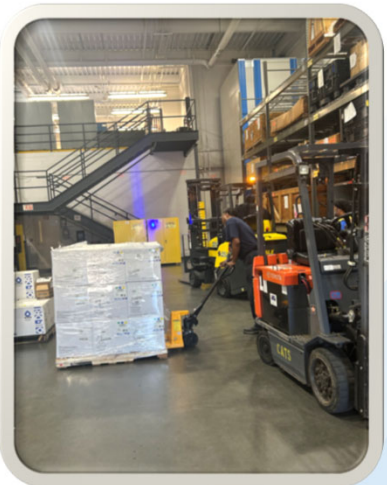
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RAIL INVENTORY

- **Inventory Control**: Track and maintain accurate rail parts inventory
- **Parts Availability**: Ensure critical parts are available when needed. Approximately 4,500 parts.
- **Stock Management:** Monitor usage, shortages, and reorder levels.
- **Accountability**: Maintain accurate records of receipts, issues, and adjust.



RAIL STOREROOM



RAIL INVENTORY

RAIL SYSTEMS AND OPERATING OVERVIEW

BLUE LINE

18.9-mile rail Track• 26 stations • I-485 ↔ UNC Charlotte.
Requires sustained investment in vehicles, track, signals, Overhead Catenary System (**OCS**), and traction power.

GOLD LINE

4-mile rail streetcar track • 17 stops/platforms • in-street operation.
Frequency has increased; continued infrastructure and service development needs remain.

CONTROL

Rail Operation Control Center **(ROCC)** provides continuous train control, communications, incident coordination, and service recovery across rail operations.

VEHICLES

Revenue and non-revenue fleet supported by lifecycle programs: We completed the 600K and are currently performing the 300K truck overhauls and component work.

INFRASTRUCTURE

Track • switches • signals • OCS • traction power • stations • communications • right-of-way.
Condition drives safety, reliability and state of good repair (**SGR**) priorities.

PEOPLE & MATERIALS

Transportation • ROCC • Rail Car Maintenance (RCM) • maintenance of way (**MOW**) • Inventory • Safety • Analytics • Administration.
Workforce and critical materials directly affect service capacity.

OPERATING BASELINE | Blue Line operates 7 days/week | Gold Line Phase 2 returned to revenue service Aug. 30, 2021, | Asset domains: rolling stock, guideway, control/systems, safety assurance

2027 – 2030 CAPTIAL PRIORITIES

Priority Tier	Investment Focus	Leadership Objective
1 — Safety Critical	Track, switches, signals, electrical safety, traction power	Reduce unacceptable safety and infrastructure risk
2 — Reliability Critical	Fleet overhaul, OCS, communications, critical spares	Improve availability and reduce service disruptions
3 — Capacity / Expansion	Gold Line, Blue Line and related capital interfaces	Prepare operations before new service is introduced
4 — Optimization	EAM, analytics, condition monitoring, predictive maintenance	Get more reliability from every maintenance dollar

Capital governance | Safety-critical first • Reliability-critical second • Capacity/expansion only with operational readiness • Optimization where data can demonstrate lifecycle value.

13

13

VEHICLE OVERHAUL & INFASTRUCTURE

Program	Purpose	Expected Operational Benefit	Status
600K Overhaul Truck Overhaul- CATS 1-2	Completed Deferred maintenance	Maintain useful life and reduce major failures	**Completed**
Bearing Exchange CATS 1-2-3	Address component reliability	Reduce bearing-related failures and risk	**Completed**
300K Overhaul Truck Overhaul-CATS-3	Intermediate lifecycle maintenance	Restore component condition and reliability	In progress
CATS3 Coupler Overhaul	Scheduled Maintenance	Maintain useful life and reduce major failures	In progress
Mid-Life Overhaul CATS 1-2	Major lifecycle System upgrade and obsolescence replacement	Support vehicle projected lifecycle	Specifications in development
OCS Fixed Tension Conversion	Study to investigate the current OCS fixed tension to variable option	Improve operational reliability during high-heat days	In progress

INFRASTRUCTURE WORKSTREAMS

TRACK / DRAINAGE
Rehabilitation, geometry, switches and drainage to reduce safety and water-related deterioration.

POWER / OCS
Traction power refresh and OCS modernization planning to improve availability, thermal performance, and resilience.

SIGNALS / AXLE COUNTERS
Train-control reliability evaluation, trials and modernization planning.

LEADERSHIP FOCUS
Prioritize highest-risk assets, integrate PM/condition data and align projects with SGR funding.

14

14

INFRASTRUCTURE CONDITION & RELIABILITY

TRACK

Rail, geometry, switches, crossings, drainage and right-of-way.

SIGNALS

Train control, wayside equipment, communications, and axle-counter technology.

OCS

Contact wire, support structures, tensioning and pantograph interface.

POWER

Substations, switchgear, distribution and stray-current/corrosion controls.

- **Priority: identify assets where condition deterioration can create a safety event, extended outage, or major service disruption.**
- **Use risk-based prioritization to sequence renewals rather than treating all assets equally.**
- **Integrate preventive maintenance, inspections, condition data, and capital planning.**

PRIORITY PRINCIPLE | Identify assets where deterioration can create a safety event, extended outage or major service disruption—and sequence renewals by risk, condition and customer impact.

RISK REGISTER – EXECUTIVE VIEW

Risk	Likelihood	Impact	Primary Mitigation
Fleet availability	High	High	Overhaul throughput, reliability engineering, critical spares
Aging track/switches	High	High	Risk-based renewal and enhanced inspection
Workforce capacity	Med–High	High	Hiring, training, retention and succession
Signal / technology reliability	Medium	High	Modernization, monitoring and resilient components
OCS condition	Medium	High	Engineering assessment and modernization
Regulatory / CAP exposure	Medium	High	Governance, evidence-based closure and executive visibility
Funding constraints	High	High	Prioritized SGR portfolio and multi-year capital strategy

Executive focus: fleet availability, aging track/switches, workforce capacity, technology reliability, OCS condition, regulatory exposure, and funding constraints are interconnected risks.

2023-2026 PROGRESS: WHAT CHANGED?

2023	Baseline & reliability	Asset condition, maintenance needs, fleet reliability and SGR priorities
2024	Service & maintenance	Gold Line frequency improvement; expanded maintenance and rail shutdown activity
2025	Safety & oversight	NCDOT scrutiny, UHC/CAP activity, fleet reduction and significant infrastructure/safety events
2026	Accountability & modernization	MPTA reporting; continued overhaul/SGR work; South End interface; OCS modernization evaluation

MAINTENANCE & FLEET
Expanded preventive/lifecycle maintenance; completed 600K truck overhaul; advanced 300K and bearing programs.

INFRASTRUCTURE & SGR
Advanced targeted track/drainage work and expanded risk-based infrastructure planning.

SERVICE & OPERATIONS
Improved Gold Line frequency and continued service development; strengthened operating coordination.

SAFETY & GOVERNANCE
Strengthened investigations, corrective actions, KPI/scorecards, reporting discipline and integration across operations, maintenance, inventory, safety and capital planning.

2027 – 2030 RAIL OPERATIONS STRATEGY

SAFETY
- Prevent serious incidents
- Strengthen rules, RWPP, electrical safety and investigations

RELIABILITY
- Improve OTP
- Increase fleet availability and reduce infrastructure failures

ASSETS
- Lifecycle management
- Condition-based maintenance and SGR prioritization

PEOPLE
- Build capability
- Staffing qualifications, leadership development and succession

TECHNOLOGY
- Use data
- EAM, analytics, monitoring and predictive maintenance

CAPITAL
- Invest by risk
- Deliver projects with clear operational outcomes

2027–2030 outcome | A safer, more reliable and more accountable rail system—supported by lifecycle asset management, qualified people, resilient technology and risk-based capital investment.

RAIL OPERATIONS COMMON TERMINOLOGY

OPERATIONS & CONTROL

ROCC Rail Operations Control Center	**FRA** Federal Railroad Administration
OTP On-Time Performance	**NCDOT** NC Department of Transportation
RWP Roadway Worker Protection	**MPTA** Metropolitan Public Transportation Authority

MAINTENANCE & ASSETS

RCM Rail Car Maintenance	**PM** Preventative Maintenance
MOW Maintenance of Way	**MDBF** Mean Distance Between Failures
EAM Enterprise Asset Management	**SGR** State of Good Repair

SYSTEMS & INFRASTRUCTURE

FTA Federal Transit Administration	**JHA** Job Hazard Analysis
CAP Corrective Action Plan	**LOTO** Lockout/Tagout
UHC Unacceptable Hazardous Condition	**NFPA** National Fire Protec

SAFETY, COMPLAINCE & PROGRAMS

OCS **Overhead Contact System**	**SCADA** **Supervisory Control and Data Acquisition**
LRV Light Rail Vehicle	**ATP** Automatic Train Protection
TC Traction Control	**TSS** Traction Substation

2023 – 2026 | THREE YEARS OF ACCOMPLISHMENTS

FLEET & MAINTENANCE

- Completed 600K truck overhaul
- Completed bearing exchange program
- Advanced 300K truck overhaul and coupler overhaul
- Developed mid-life overhaul specifications

INFRASTRUCTURE & SGR

- Replaced TPSS 11 pad-mounted disconnect
- Replaced Old Concord pre-curved rail and installed lateral-resistance plates
- Advanced track, geometry, switch, and drainage work
- Refreshed TPSS switchgear and repaired 6th Street interlocking OCS

SERVICE & OPERATIONS

- Improved Gold Line frequency and continued service development
- Strengthened daily operating coordination and service recovery
- Maintained continuous ROCC control, communications and incident coordination
- Advanced workforce-capacity planning for service coverage

SAFETY & GOVERNANCE

- Strengthened incident investigations and corrective actions
- Advanced NCDOT/UHC/CAP response and closure discipline
- Strengthened KPI, scorecard and reporting practices
- Integrated safety, operations, maintenance and capital priorities

SYSTEMS, DATA & TECHNOLOGY

- Advanced axle-counter evaluation/trial work
- Expanded EAM and analytics focus for asset management
- Advanced condition monitoring and predictive-maintenance planning
- Evaluated OCS fixed-to-variable tension modernization

PEOPLE, ACCOUNTABILITY & READINESS

- Defined staffing requirements across Operators, ROCC, RCM, MOW and leadership
- Advanced hiring and qualification planning
- Strengthened leadership development and succession focus
- Increased executive visibility through structured reporting

THANK YOU

Stay Connected with CATS

Service updates, rider information, and news.

- /CharlotteAreaTransitSystem
- /RideCats
- /CATSRideTransit
- /CharlotteAreaTransitSystem
- 704.336.7433

Scan to visit ridetransit.org

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 8C – Fare Ambassador Program

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion only.

Summary:

- The CATS Fare Ambassador Program is a customer-service-focused approach to fare validation and inspection, customer education, and system assistance.
- Block by Block will be providing this service to CATS. They will be employing approximately 60 Fare Ambassadors and support staff to manage the program. CATS will also have dedicated staff to oversee the contract and program performance.
- The program is scheduled to launch **October 29, 2026**, strengthening CATS' visible customer presence while allowing security personnel to remain focused on safety and security.
- At the Operations and Safety Committee meeting staff will review the attached presentation and answer questions. Block by Block representatives will also be available to answer questions.

Committee Process:

Operations and Safety Committee: September 23, 2026
Executive Committee: September 28, 2026

Staff Contact:

Vincent Rodriguez, Customer Service & Customer Programs Manager
Elizabeth Presutti, Chief Administrative Officer

Attachment:

- The CATS Fare Ambassador Program is a customer-service-focused approach to fare validation and inspection, customer education, and system assistance.



FARE AMBASSADOR PROGRAM

Moving People Forward

Vincent Rodriguez – Manager, Customer Service & Customer Programs

MPTA Operating & Safety Committee

September 23, 2026

Overview

- **The Fare Ambassador Program is a customer-oriented program**
  - Focused on fare inspection and validation
  - It creates an opportunity for positive customer experience: education, wayfinding, etc.
  - Not a security team
- **Block by Block has been selected to as the operator of the program**
  - Experienced ambassador operator
  - Local and transit experience
  - Has operational infrastructure
  - CATS retains oversight and accountability and will work closely to set team up for success

BLOCK BY BLOCK

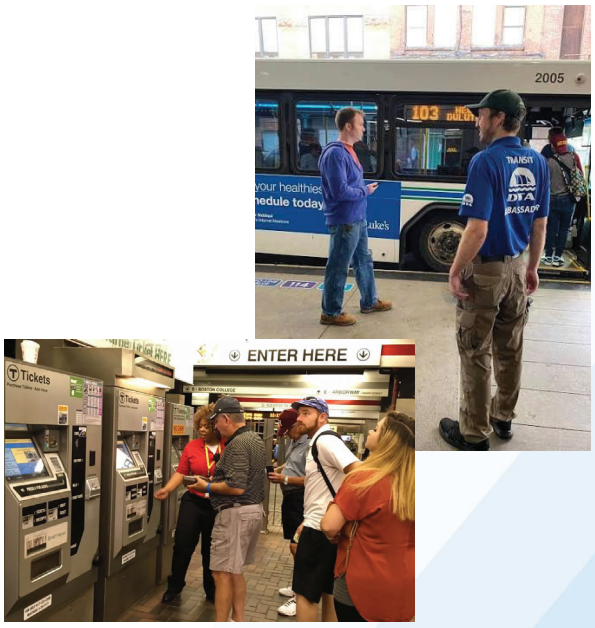
Block By Block

1995
First Ambassador program

Louisville, KY
National headquarters

3,200+
Employees nationwide

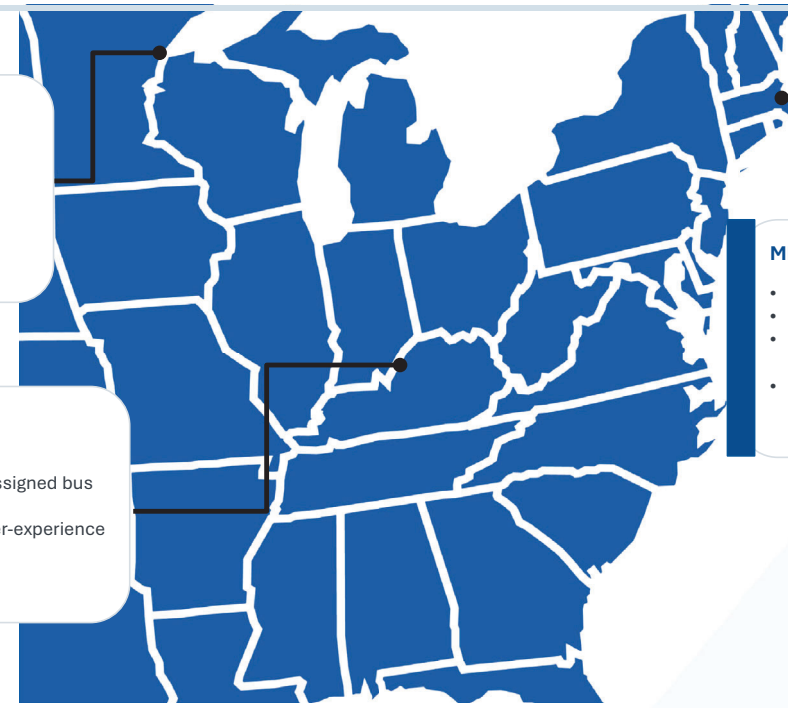
200+
Programs nationwide



Ambassador programs across downtowns, transit systems, parks, campuses and other public spaces.

Block by Block's Transit Experience

Transit ambassadorship is a specialized service with few options in the market; Block by Block brings active rail and bus experience.



Duluth Transit Authority

- Partner since 2022
- Hospitality services
- Public-facing support in a transit environment
- Reference provided in vendor proposal

TARC | Louisville, KY

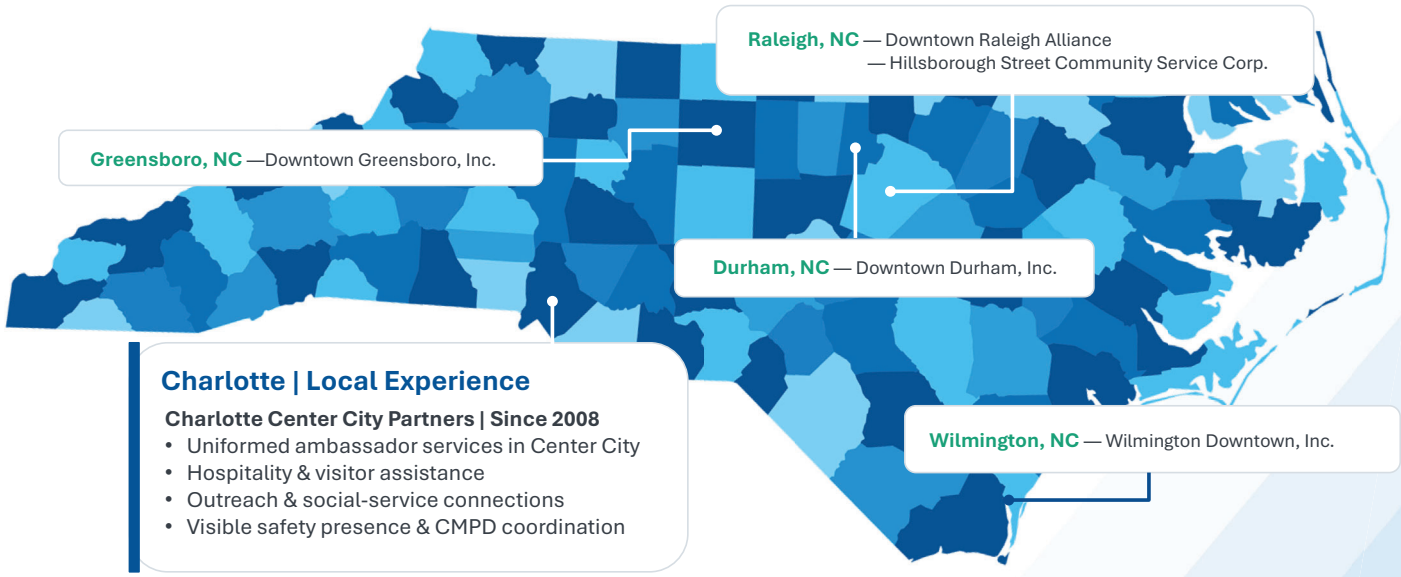
- Serving since 2024
- Safety Ambassadors ride assigned bus routes
- Observe, report & deter rider-experience issues
- Supports 350+ bus shelters

MBTA | Boston, MA

- Partner since 2017
- 275 Transit Ambassadors
- In-transit customer service & hospitality
- Rider education, navigation & visible presence

Block by Block: Charlotte & North Carolina Presence

Block by Block has supported Charlotte and other cities of North Carolina with the ambassador model.



Raleigh, NC — Downtown Raleigh Alliance
— Hillsborough Street Community Service Corp.

Greensboro, NC —Downtown Greensboro, Inc.

Durham, NC — Downtown Durham, Inc.

Wilmington, NC — Wilmington Downtown, Inc.

Charlotte | Local Experience

Charlotte Center City Partners | Since 2008

- Uniformed ambassador services in Center City
- Hospitality & visitor assistance
- Outreach & social-service connections
- Visible safety presence & CMPD coordination

FARE AMBASSADOR PROGRAM

System Context

- **Fare validation today:**
  - Bus – customers enter front door and validate at farebox by driver
  - Gold Line – not currently collecting fare
  - Blue Line – manual proof-of-payment checks conducted by security personnel
- **Issues faced with set up today:**
  - Lack of visibility on Blue Line and consistency across the system
  - Security taken away from their main priority of providing security
  - Tension between customers and security
  - Gap of educating and supporting the customer to create positive experience
- **The Fare Ambassador model allows us to lead with customer service and education, support fare compliance, and involve Security when a situation truly requires it**

Fare Ambassador Program Objectives

Visible Coverage
Provide a consistent, uniformed presence across trains and station platforms.

Fare Compliance
Reduce fare evasion through systematic, high-coverage proof-of-payment checks.

Rider Education
Help customers understand fare requirements before issues escalate.

Customer Support
Assist riders with fare machines, mobile ticketing, wayfinding and service resources.

Better Data
Capture inspection activity, compliance trends and recurring fare-related issues.

Rider Confidence
Support a safe, professional and approachable experience throughout the system.

Introducing: Fare Ambassador Program

Fare inspection comes first, supported by customer service and clearly defined safety practices.

A customer-centered approach with two functions.
Primary function: Fare inspection
Secondary function: Rider assistance delivered with professionalism and respect

1 VALIDATE FARES
- Conduct proof-of-payment inspections onboard trains and on platforms
- Verify active fare media
- Follow a consistent CATS inspection protocol
- Document inspection results and fare issues

2 SUPPORT RIDERS
- Explain fare requirements and purchasing options
- Assist with ticket vending machines and mobile ticketing
- Provide basic wayfinding
- Refer customers to additional CATS resources

3 PROTECT THE EXPERIENCE
- Remain calm, visible and professional
- Use non-confrontational communication
- Follow de-escalation protocols
- Report unsafe situations to CATS Safety & Security or Transit Police

How Ambassadors Will Work in the Field

The program is designed around **a 60-person team** to support consistent coverage across service periods, trains and platforms.

Broad Coverage

Zone-Based Coverage

Divide the Blue Line into operating sectors with clear assignments and accountability.

Peak-Hour Flexibility

Prioritize platform checks when onboard movement is unsafe or impractical.

Safe Operations

Paired Deployment

Ambassadors work in pairs for safety, backup and accurate documentation.

Daily Readiness

Begin each shift with assignments, safety updates, service notes and equipment checks.

Consistent Rider Interactions

Trains & Platforms

Rotate between railcars and platforms to expand coverage and avoid repeat checks.

Service-Day Coverage

Operate across morning, midday, evening and late-night service periods.

Accelerating Program Readiness

Leveraging an established operating model allows CATS to move from program design to field deployment more quickly.

Established Infrastructure	Recruitment, screening, onboarding, field supervision and reporting systems are already part of the vendor's operating model.
Faster Mobilization	CATS can focus on fare-inspection protocols, system-specific training and readiness rather than first standing up a new organizational structure and support infrastructure.
CATS Oversight	CATS defines requirements, approves readiness, monitors performance and provides ongoing oversight through the Ambassador Program Administrator.

Fare Ambassadors Are Coming to CATS

Launching OCTOBER 29, 2026 – A new customer-centered approach to fare validation

Workforce & Recruitment

- Competitive pay and benefits support recruitment and retention
- Second-chance employment opportunities with established hiring standards
- Structured background and pre-employment screening
- Employment verification, drug screening and role-fit hiring

30–45 days

Training

- Complete program-specific instruction and certification
- Fare protocols, CATS devices, de-escalation, ADA awareness, customer service and emergency response
- Introduce Ambassadors and explain fare requirements, purchasing options and program expectations
- Deployment planning, dry-run operations, equipment prep

Operate Jointly

- Work side-by-side with CATS staff during the first 30 days on the Blue Line and establish operating standard

Approval

- CATS evaluates inspection protocols, customer interactions, safety practices and operational familiarity
- Begin independent inspections only after CATS determines readiness
- Develop Phase 2 implementation plans for expansion to Bus and the Gold Line

Supervision from CATS

Pre-shift briefings, field coaching, biweekly refresher training and structured performance review.

Technology Enhancement

CATS validation devices plus Block by Block's SMART system for real-time, time- and location-tagged reporting.

How CATS Will Measure Program Performance

Daily activity, monthly KPI reporting and quarterly evaluations will support active program management.

COVERAGE

- Inspection volume
- Zone coverage
- Service periods
- Deployment completion

COMPLIANCE

- Valid and invalid fares
- Warnings and refusals
- Recurring fare issues
- Compliance trends

EXPERIENCE & SAFETY

- Professional interactions
- Safety-protocol compliance
- Incident reporting
- Customer concerns

RELIABILITY & QUALITY

- Staffing and attendance
- Training completion
- Data accuracy and timeliness
- Improvement actions

Fare Ambassador Program Summary

1

CUSTOMER-CENTERED

Fare validation is paired with education, wayfinding and practical rider support.

2

OPERATIONALLY READY

Paired deployment, structured training, real-time reporting and field supervision support consistent delivery.

3

CATS-CONTROLLED

Joint operations, readiness approval and a dedicated Program Administrator provide ongoing vendor oversight and CATS support.

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 8D - Public Transit Agency Safety Plan (ASP) Bus Plan and Rail Plan

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion only.

Summary:

- CATS Bus and Rail operations are subject to the ASP requirements of 49 CFR 673. CATS maintains separate Bus and Rail ASPs corresponding to its respective Bus and Rail safety committees. The Rail ASP is additionally subject to NCDOT State Safety Oversight (SSOA) review and approval pursuant to 49 CFR part 674; the Bus ASP is not subject to SSOA oversight.
- The Rail and Bus ASPs are subject to an annual agency review in accordance with 49 CFR 673.11 (a) and must be updated as necessary to maintain compliance with applicable safety management systems (SMS), ASP, and FTA requirements. The rail ASP is additionally subject to NCDOT State Safety Oversight Program Standards (SSOPS).
- Staff will present the respective safety committees with the proposed revision 6 of the CATS Rail ASP and revision 1of the Bus ASP.

Committee Process:

- **Operations and Safety Committee: September 23, 2026 (Discussion)**
- Operations and Safety Committee: October 21, 2026 (Recommendation)
- Executive Committee: October 28, 2026 (Recommendation)
- Board of Trustees: November 4, 2026 (Approval)

Staff Contact:

Eric Osnes, CATS Chief Safety and Security Officer

Attachment:

- Bus and Rail Agency Safety Plans Presentation
- Bus Agency Safety Plan (at end of agenda packet due to length)
- Rail Agency Safety Plan (at end of agenda packet due to length)

CATS OFFICE OF SAFETY & SECURITY · QUALITY ASSURANCE

Bus and Rail Agency Safety Plans

Separate and Distinct — By Regulation, Not by Preference

One agency. One Accountable Executive. One Chief Safety & Security Officer.
Two Agency Safety Plans, two safety committees, and two very different oversight regimes.

RAIL ASP · Rev. 6 · Nov 2026

BUS ASP · Effective Jul 1, 2026

Prepared by Quality Assurance | Joint ASP Committee Briefing

1

Why They Are Separate and Distinct

Same chassis, different rulebooks — the scope and the oversight authority are what split the plans, not agency preference.

R RAIL AGENCY SAFETY PLAN

GOVERNING RULES

49 CFR Parts 671, 672, 673, 674 + NPTSP + NCDOT State Safety Oversight Program Standard (SSOPS)

SCOPE

LYNX light rail and streetcar — rail fixed guideway only

OVERSIGHT

NCDOT as State Safety Oversight Agency (G.S. 136-18) with inspection, audit and approval authority

COMMITTEE

Rail Safety & Security Committee (RSSC); Chair signs the ASP

APPROVAL PATH

RSSC → Accountable Executive → MPTA resolution → NCDOT

B BUS AGENCY SAFETY PLAN

GOVERNING RULES

49 CFR Part 673 + National Public Transportation Safety Plan

SCOPE

Fixed-route bus, STS paratransit, Microtransit, Vanpool — largely contractor-operated

OVERSIGHT

FTA directly; no State Safety Oversight Agency, no state program standard

COMMITTEE

Bus Safety Committee (BSC); Co-Chairs sign the certification of compliance

APPROVAL PATH

BSC → Accountable Executive → MPTA

Bottom line: separation is a compliance requirement, not an organizational convenience. Merging the plans would import 15+ NCDOT obligations onto bus modes that are not subject to state oversight — and bury rail obligations FTA and NCDOT expect to find in one controlled document.

2

The Four Pillars — Identical in Both Plans

Both ASPs are built on the same SMS structure required by 49 CFR §673.23–.29. The pillars do not change by mode; what fills them does.

01 §673.23

Safety Management Policy

CEO policy statement, safety objectives, accountable executive and CSSO authority, safety reporting program with anti-retaliation protection, 50/50 labor-management safety committee.

RAIL RSSC; MPTA as Equivalent Authority

BUS BSC; 8 members incl. SMART Union & STS

02 §673.25

Safety Risk Management

Hazard identification, safety risk assessment using severity and likelihood indexing, risk matrix and tolerability rules, mitigation selection and tracking in the Risk Register.

RAIL Undesirable-risk acceptance goes to NCDOT

BUS Same S&S23 method, closed internally

03 §673.27

Safety Assurance

Performance monitoring against targets, internal audits and reviews, rules-compliance verification, investigation of events, management of change, corrective action plans.

RAIL ISR program on a 3-year cycle, NCDOT-approved CAPs

BUS QA100 audits; CAPs closed by CSSO

04 §673.29

Safety Promotion

Competency-based safety training for all safety-sensitive roles, ASP and policy dissemination, safety communication of hazards and mitigations to the workforce.

RAIL Part 672 PTSCP training, RWP training

BUS Contractor flow-down to TMOC / MV / CWE

Audit implication: a finding against a pillar in one plan is a legitimate line of inquiry in the other. The pillar is common; the evidence is not interchangeable.

Similarities — The Shared Spine

Where the two plans genuinely converge. These are single-source elements: one procedure, one owner, one set of records serving both modes.

1 Same accountable leadership

CEO as Accountable Executive and the CSSO administer both plans; neither role is duplicated by mode.

2 Same governing board

The MPTA is the Equivalent Authority that reviews and approves both ASPs and their revisions.

3 Same risk methodology

Procedure S&S23 — Risk Assessment, Mitigation and Monitoring, with MIL-STD-882E severity and likelihood indexing.

4 Same investigation procedure

Procedure S&S03 governs safety event notification, investigation and reporting for both modes.

5 Same audit procedure

Procedure QA100 — Quality Audits provides the internal review method and checklist discipline.

6 Same performance measures

All 14 National Public Transportation Safety Plan measures, set on a three-year rolling NTD average.

7 Same committee architecture

50/50 frontline and management membership, compensated participation, documented votes, dispute resolution outside the Accountable Executive.

8 Same reporting culture rules

Anti-retaliation policy, reportsafety@charlottenc.gov, City anonymous hotline, and a three-year record retention floor under §673.31.

Because these procedures are shared, a revision requested by one committee is a change of record for both — and any S&S23, S&S03 or QA100 revision must also be submitted to NCDOT under the SSOPS.

Nuance and Differences

The operational and governance distinctions that make one plan a poor substitute for the other.

Dimension	Rail ASP	Bus ASP
Operating environment	Controlled right-of-way, signal system, traction power, roadway worker exposure	Public streets, mixed traffic, busway, stations and curbside — no controlled ROW
Workforce model	Predominantly direct City/CATS employees	Contractor-operated: TMOC (SMART Union), MV Transportation, Enterprise Vanpool
Modes covered	LYNX light rail and streetcar	Fixed-route bus, STS paratransit, STS+, Microtransit, Vanpool
External inspections	NCDOT Safety Risk Monitoring and Risk-Based Inspections, announced (24-hr notice) and unannounced; triennial state audit	No state inspection program; FTA review and internal audit only
Corrective actions	CAPs entered in NCDOT's system and require NCDOT review and approval before closure	CAPs developed, verified and closed internally through the CSSO and BSC
Risk acceptance	'Undesirable' risk held open by management decision must be forwarded to NCDOT for approval or disapproval	Risk acceptance decided internally under S&S23; no external concurrence
Unique programs	Roadway Worker Protection (Part 671), safety certification of projects, hours-of-service limits, PTSCP-certified investigators (Part 672)	Contractor safety flow-down, ADA paratransit service delivery, demand-response and vanpool oversight

5

State Commitments: Rail Carries Them, Bus Does Not

NCDOT is the State Safety Oversight Agency for rail fixed guideway under 49 CFR Part 674 and N.C.G.S. 136-18. There is no equivalent authority over bus.

R RAIL — RECURRING NCDOT OBLIGATIONS

MONTHLY	Corrective Action Plan summary report to NCDOT by the 5th
QUARTERLY	Hazard tracking log, Roadway Worker Protection performance, asset management status, safety performance targets
ANNUALLY	ASP submittal; internal safety review schedule each December; staffing analysis of eight key rail functions; Annual Safety Activities Report by February 15
PER AUDIT	30-day notice before each internal safety review; checklists to NCDOT for approval 30 days prior; audit report within 30 days of closure
EVENT-DRIVEN	Preliminary investigation report in 72 hours, final draft in 30 days; hours-of-service violations in 72 hours; federal correspondence in 24 hours; 10-day notice of planned shutdowns
ON REQUEST	Response to NCDOT information requests within 10 calendar days; access for announced and unannounced inspections

B BUS — STATE-FACING SURFACE

0

state-mandated submittals, approvals or inspections

The only state-facing duty in the Bus ASP is §673.15(a): make annual safety performance targets available to the State and the MPO for regional planning. Everything else — plan approval, audits, corrective actions, risk acceptance — is federal and internal.

No SSOA means no external referee — the BSC and the CSSO are the last line of review.

15+ distinct NCDOT submittal and notification obligations are identified in Rail ASP Rev. 6. None of them attach to bus modes.

6

Where the Two Actually Overlap — and What Stays Bus-Only

State expectations set on rail do not legally bind bus, but they set the agency's practical standard of care. That is where the two committees intersect.

R STATE RIGOR THAT PULLS BUS ALONG

- Shared procedures: S&S23, S&S03 and QA100 are written to satisfy NCDOT. Bus inherits that evidence standard by using the same documents.
- CAP discipline: root cause, verification and effectiveness checks are built to survive state review — the bus committee applies the same closure test voluntarily.
- Audit cadence: the three-year ISR cycle covering every ASP component is a defensible model for bus internal reviews with no state mandate behind it.
- Shared exposure: buses serve LYNX stations and the busway. Events at shared locations can be rail-reportable to NCDOT even when a bus is involved.
- Target coordination: rail coordinates targets with NCDOT and CRTPO; bus makes targets available to the MPTA and MPO. Both feed the same regional planning cycle.

B WHAT REMAINS BUS-ONLY

- Contractor governance: safety requirements must flow down to TMOC, MV Transportation and Enterprise through contract, not through a state program standard.
- Multi-modal scope: STS, STS+, Microtransit and Vanpool have no rail analogue and carry their own hazard profiles.
- Street environment: vehicular and pedestrian conflict risk sits with bus in a way controlled right-of-way rules do not address.
- Internal closure authority: bus corrective actions and risk-acceptance decisions end at the CSSO — nobody outside CATS concurs.
- Committee mechanics: monthly meetings on the fourth Tuesday, quorum of four, simple majority, and electronic voting where non-response counts as concurrence.

RECOMMENDED NEXT STEP

Adopt a joint change-control protocol for the shared procedures (S&S23, S&S03, QA100) so a revision approved by either committee is routed through the other and, where rail is affected, submitted to NCDOT under the SSOPS. Same review, one document of record, no surprise non-conformance.

Governance & Approval — Who Owns What?

Part 673 assigns distinct, non-transferable roles. For rail, Part 674 and the NCDOT SSOPS add a layer on top of them.

1 §673.23(d)(3)

CHIEF SAFETY & SECURITY OFFICER

- Designated by the CEO; administers the ASP and the day-to-day SMS for both modes.
- Coordinates the annual ASP review and update.
- Rail: serves as the NCDOT liaison and may not hold operations or maintenance duties.

2 §673.19(d)

SAFETY COMMITTEES (RSSC / BSC)

- Rail RSSC and Bus BSC review and approve their respective ASP and any updates before governing-authority approval.
- Set annual safety performance targets for the Safety Risk Reduction Program.
- Recommend mitigations and identify those that are ineffective, inappropriate or not implemented as intended.
- Equal frontline and management representation. Disputes are not decided by the Accountable Executive — §673.19(c)(8).

3 §673.11(a)(7)(iv)

ACCOUNTABLE EXECUTIVE

- Ultimately accountable for the ASP and the agency SMS; accountability cannot be delegated.
- Ensures resources are available to carry out the plan and its safety objectives.
- Must implement Safety Risk Reduction Program mitigations and must consider every other mitigation the committee recommends.
- Declining a non-SRRP mitigation requires a written explanation to the committee — §673.25(d)(6).

4 §673.11(a)(1)

MPTA / EQUIVALENT AUTHORITY

- Reviews and approves each ASP and subsequent revisions, after the applicable Safety Committee has completed its required approval.
- Provides formal governing-authority approval of the agency safety plan and SMS framework. Rail approval is evidenced by MPTA resolution.
- Does not replace responsibilities assigned by Part 673 to the Safety Committee or the Accountable Executive.

BUS BSC approves → Accountable Executive signs → MPTA approves
No State Safety Oversight Agency. Approval and closure authority end inside CATS.

RAIL RSSC approves → AE signs → MPTA approves → NCDOT
NCDOT oversight continues after approval: CAPs, ISR checklists and undesirable-risk acceptance.

THE ASK Adopt joint change control for S&S23, S&S03 and QA100 — either committee's revision routed through the other, and to NCDOT where rail is affected.

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 9 – Reports to the Committee

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information only.

Summary:

This agenda item is for the committee to receive information.

Committee Process:

N/A

Staff Contact:

Elizabeth Presutti, CATS Chief Administrative Officer

Attachment(s):

N/A

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 10 – Granicus Overview

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion only.

Summary:

- Legislate, a Granicus product, is a cloud-based application for viewing meeting agendas and archived materials and videos. It allows Trustees to receive, review, and annotate meeting agendas, packets, and attachments digitally.
- Staff will provide an overview of Legislate, how to access, navigate, view materials, make annotations, notes, and bookmarks, and access archived materials and videos.
- Additional in-meeting software tools, like electronic voting, speaker tools, and video casting instruments designed for increased public transparency, will be rolled out in a second next phase after trustees reach a comfort level with the new technology.

Committee Process:

Executive Committee: August 26, 2026 (Presentation)
Operations and Safety Committee: September 23, 2026 (Presentation)
Planning and Capital Project Delivery Committee: October 14, 2026 (Presentation)

Staff Contact:

Emily Kunze, CATS Board Support Staff
Racquel Benedict, CATS Technology Staff
Elizabeth Presutti, CATS Chief Administrative Officer

Attachment:

- Legislate Software Presentation

BOARD MANAGEMENT SOFTWARE

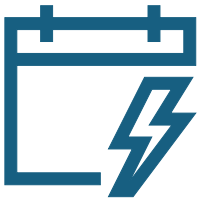
Legislate Application Overview

September 23, 2026

Overview

- Rollout Timeline
- Housekeeping
- Working with Legislate
- Legislate Features
- Agendas
- Attachments
- Annotations and more tools

Rollout Timeline



- **Phase One – iPad Configuration with Legislate**
  - September/ October: Legislate Presentation to Committees
  - October 14th:
    - All meeting materials distributed via Legislate (iPads will be made available if desired)
    - Hard copies of agenda packet can be made available
    - Pre-Board Meeting @ 5 pm: Optional training refresher
- **Phase Two – Legislate Meeting Tools**
  - November/ December:
    - Training on in-meeting tools (electronic voting, speaker sign up, VoteCast etc.)
  - January 2027:
    - Go 100% Paperless!

Housekeeping



- Passwords provided
  - Will be changed and updated by the user for the final profile
- Adherence to Privacy Statement
  - Treating these iPads as business tools
- Updates will be needed for the MPTA profile
- iPad Help/Service
  - **support@ridemptaboard.com**

What is Legislate?

Legislate, a cloud-based application for viewing meeting agendas.

- You can do the following in Legislate:
- View your published agendas.
- View and annotate agenda attachments.
- Bookmark agenda items.
- Take notes on agenda items.
- View meeting videos.

Legislate Logon

- Look for the desktop Icon.
  - URL: https://mpta.granicus.com/legislate/login
- **Enter Username and Password**



How to Change Legislate Temporary Password

Step 1. Log on to Media Manager
https://mpta.granicus.com/myaccount.php

Step 2. Enter your same credentials

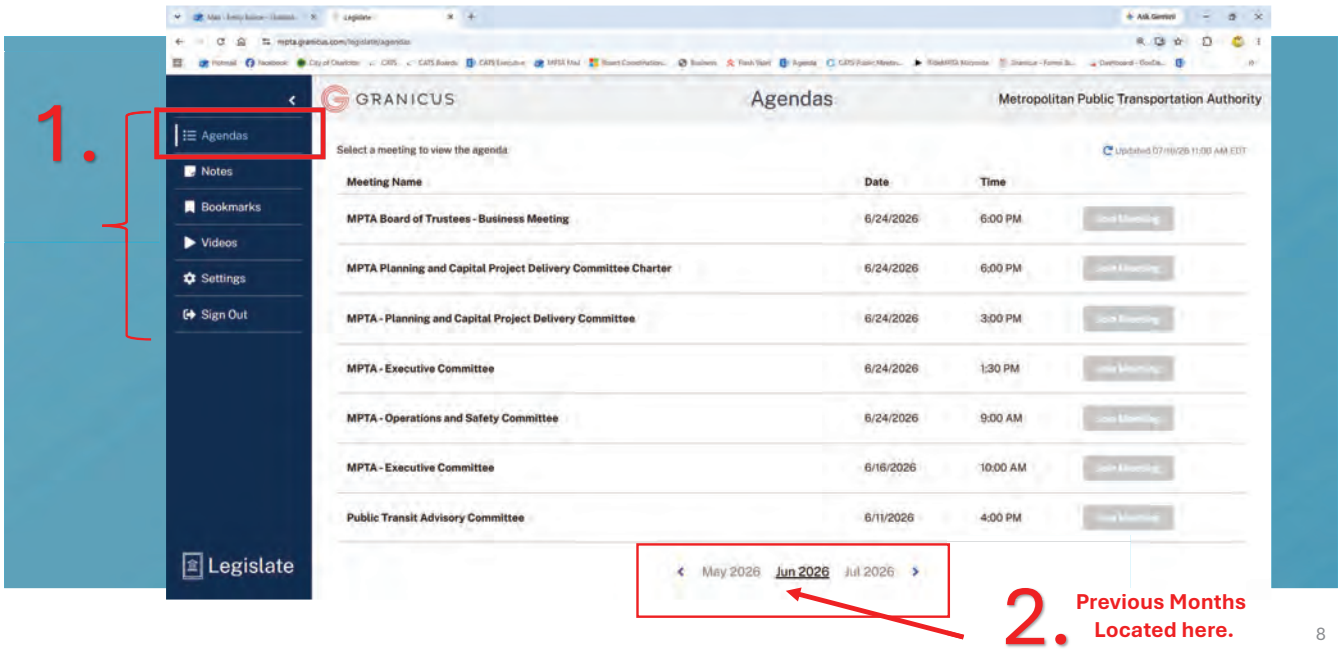
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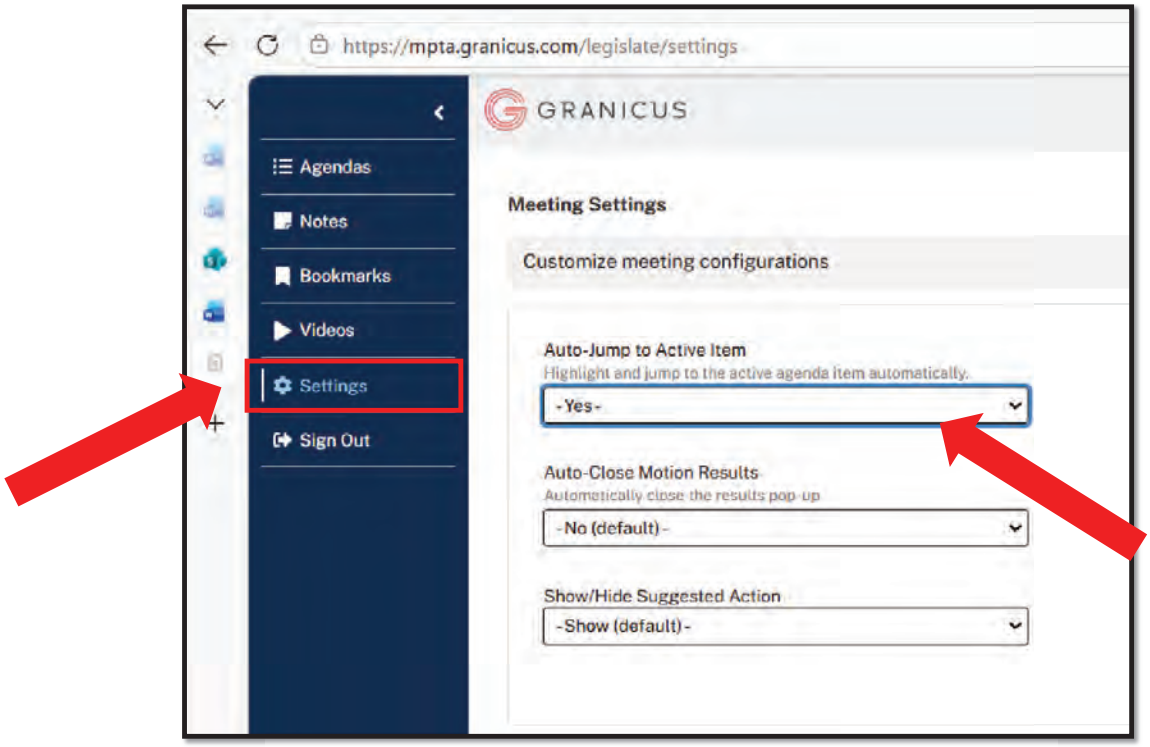




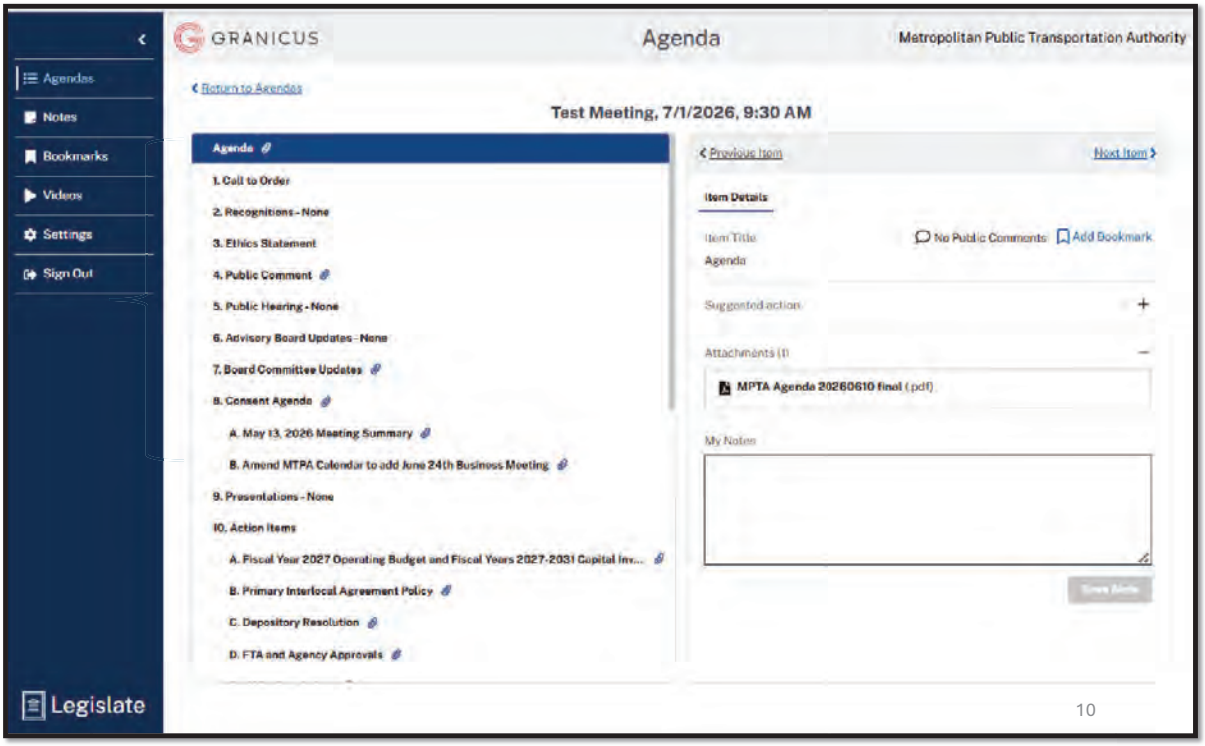
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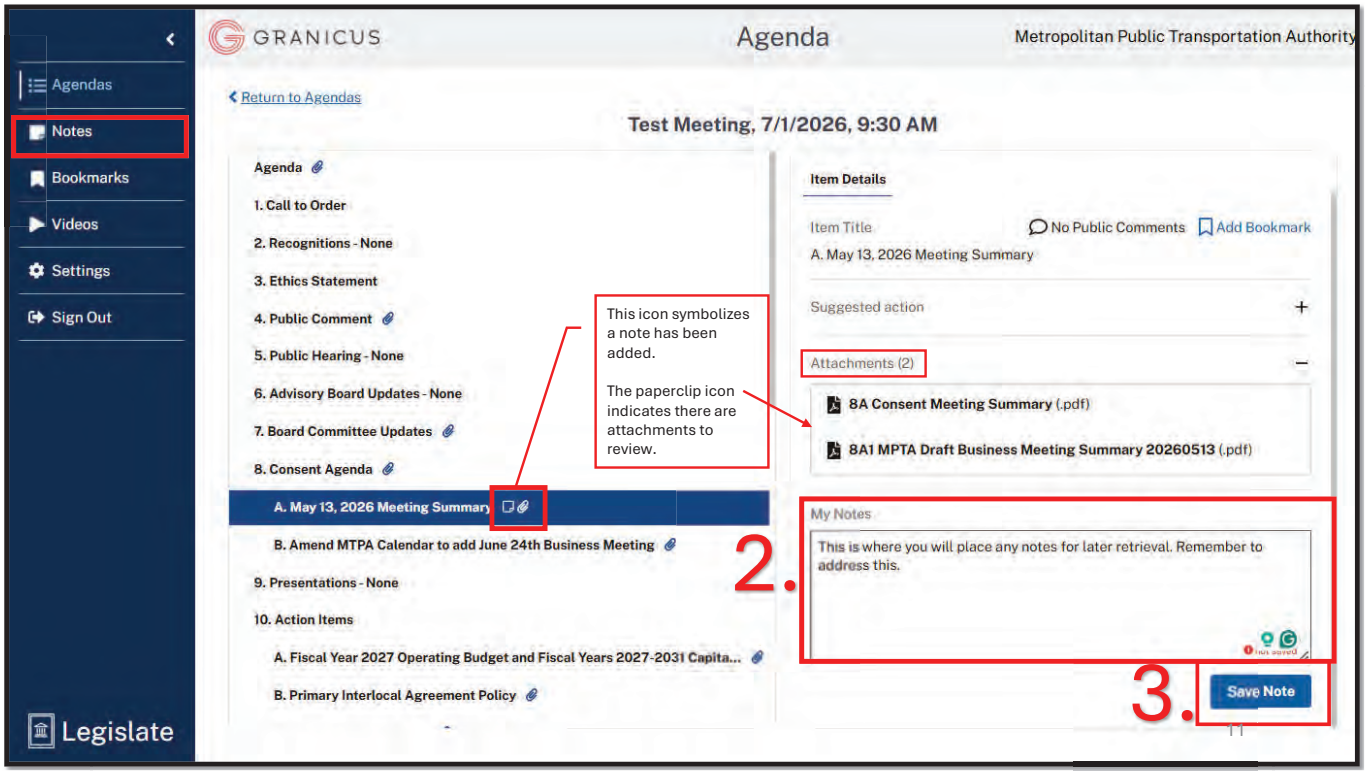
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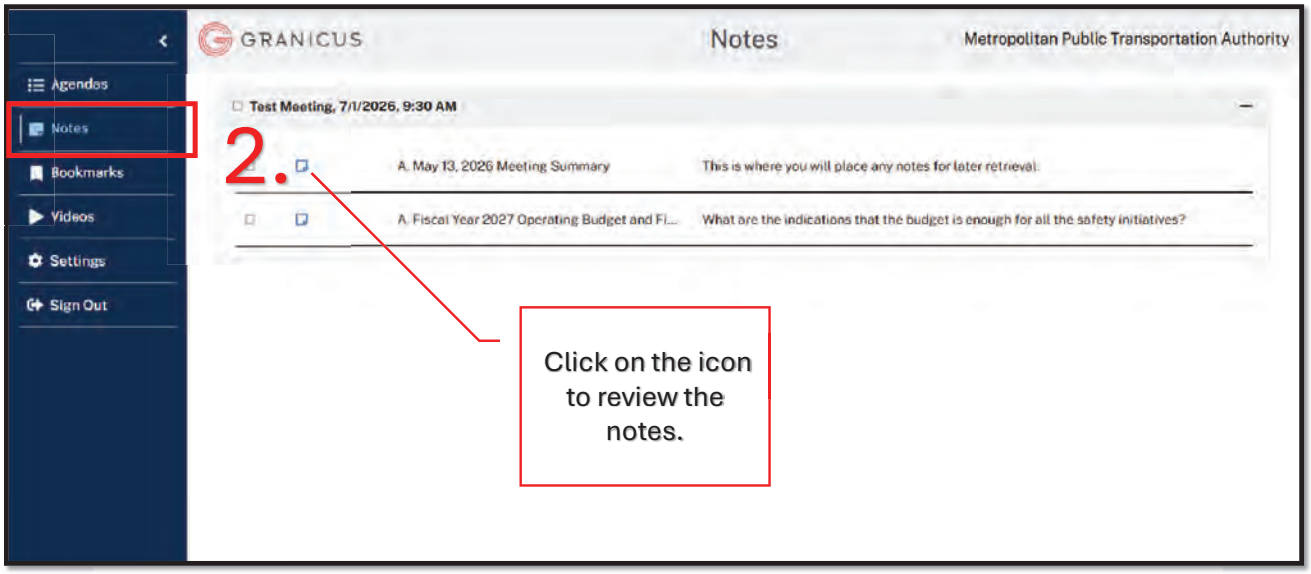
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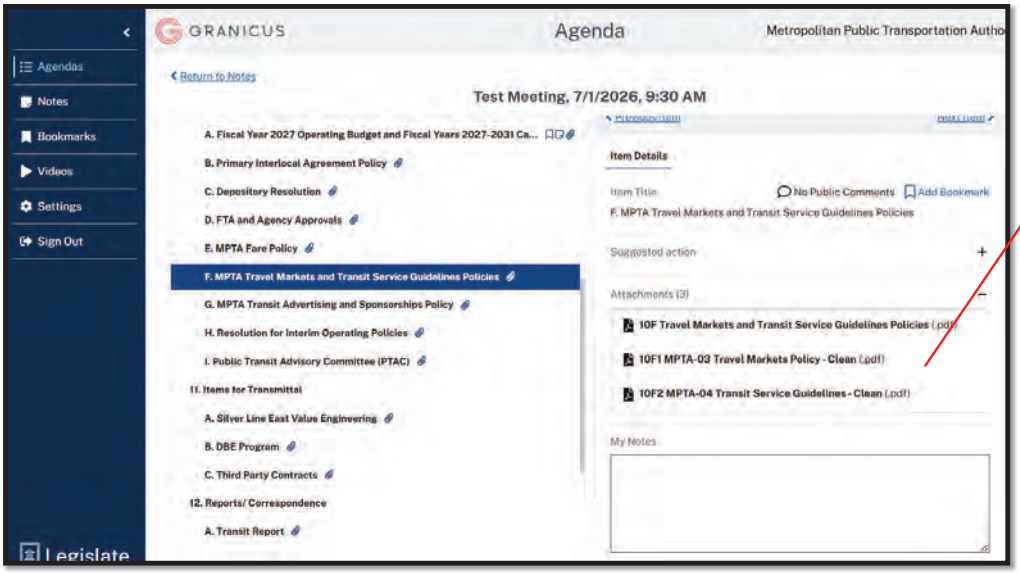
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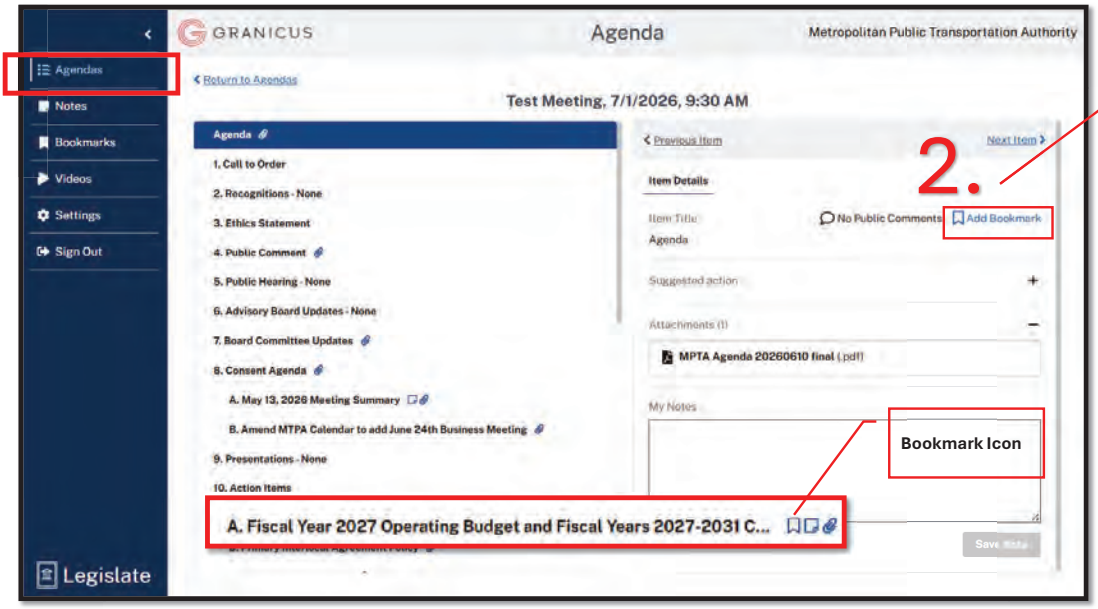
Attachments – This is the location of the agenda package attachments and supplemental information.



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Features: Bookmarks

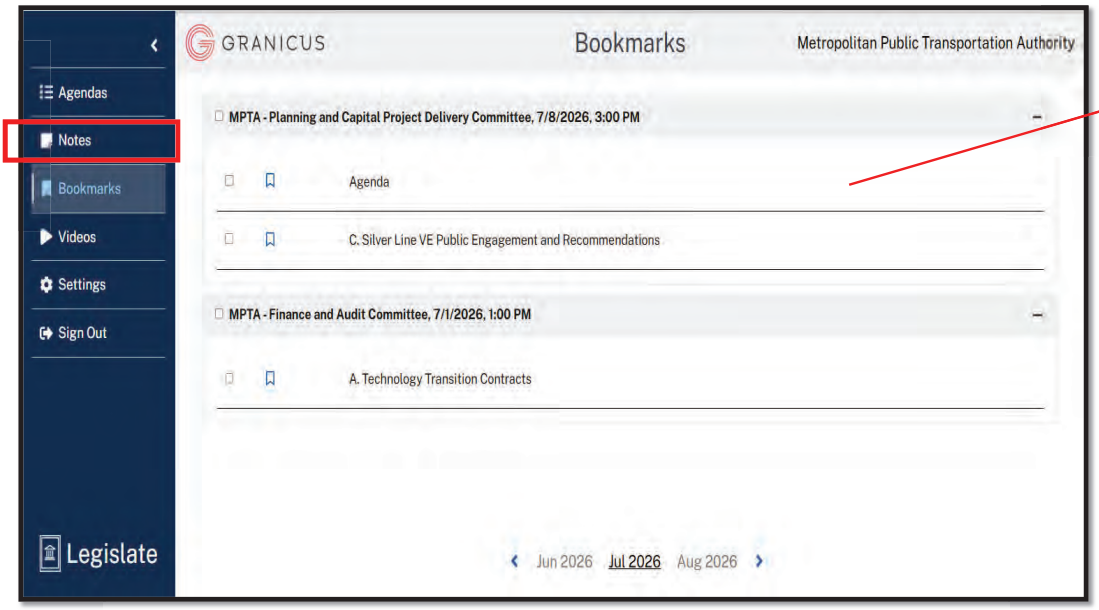
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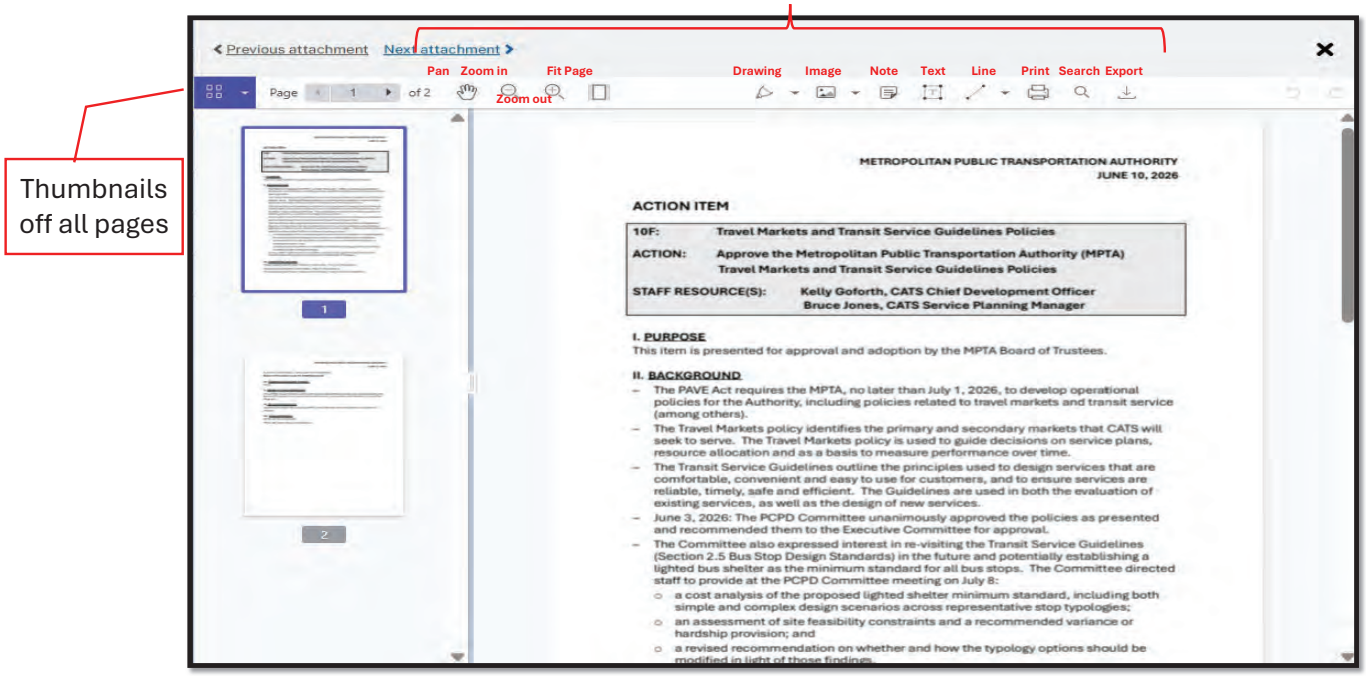
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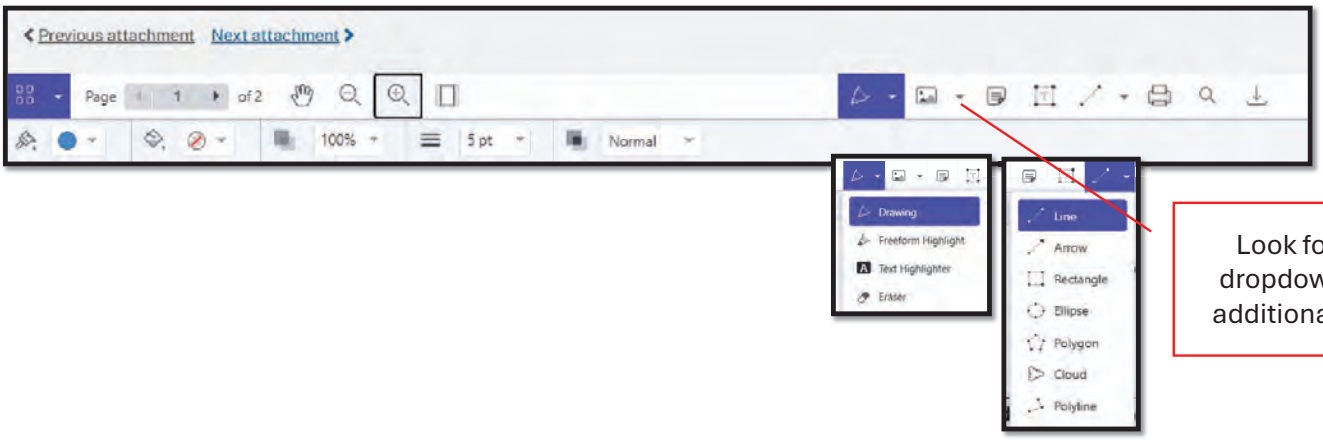
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Annotation – Legislate enables you to annotate your attachments. You can highlight, underline, draw, leave a note, or add a bookmark. Annotations do not sync to the cloud; you will only be able to see them on your iPad. If you want to share annotations, download the annotated attachment and email it to your intended recipient.

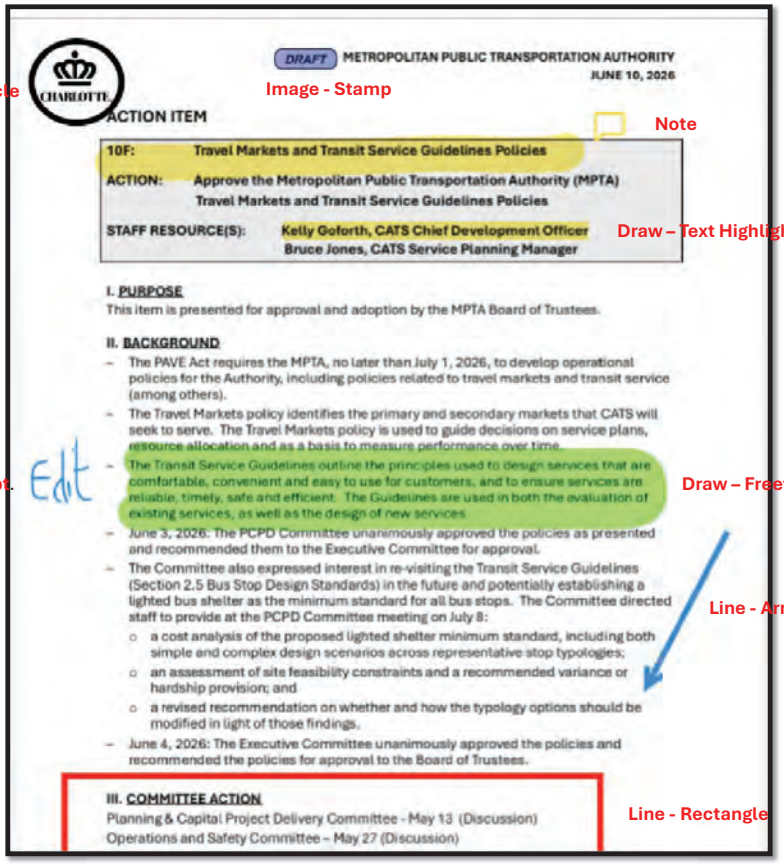


Attachments – Annotate tools



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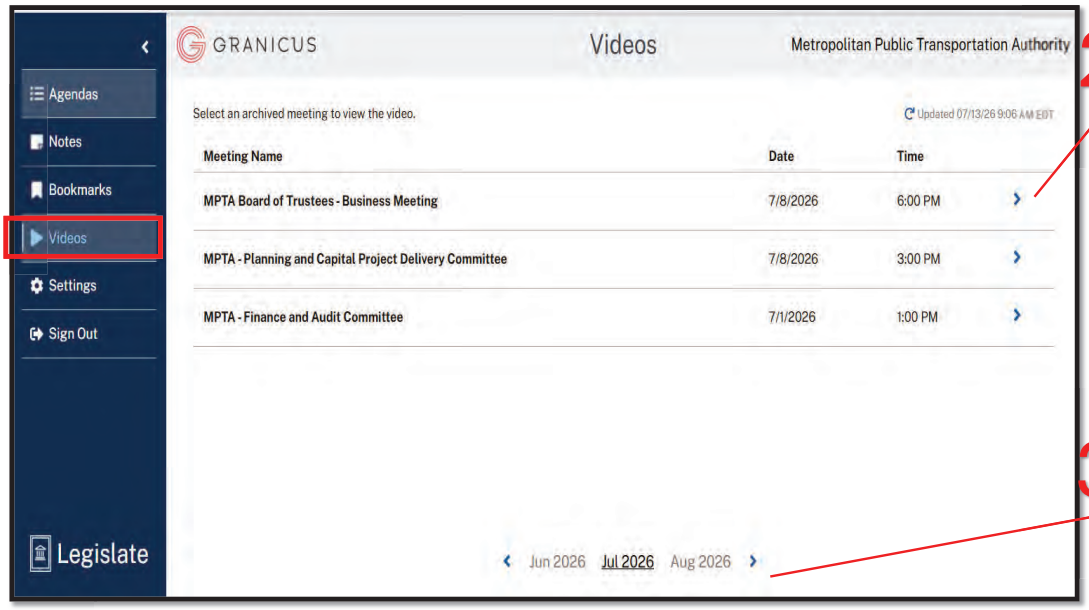
Attachment – Annotate tools, example.



Features: Meeting Video Archives

A complete location to see all previous archives.

1.



2. Click on the arrow to access the meeting recording

3. Move between different months quickly

Questions / Thank you!



Service: support@ridemptaboard.com

OPERATIONS AND SAFETY COMMITTEE
EXECUTIVE SUMMARY

Agenda Item 10B – Interlocal Agreements (ILAs) Transition Update

Financial and Budget Impact:

There are no costs associated with this agenda item.

Recommendation:

This item is presented for information and discussion.

Summary:

MPTA Transition Update – Interlocal Agreements (ILAs) and Shared Services

- The MPTA Transition Team and City of Charlotte continue to make progress on the development of Interlocal Agreements (ILAs) and shared services arrangements needed to support MPTA operations at Gate 2. Functional teams are completing validation of service descriptions, scope, and costing assumptions, with draft agreements expected to advance through City and MPTA governance processes during the fourth quarter. This work remains aligned to the January 1, 2027 transition timeline and is intended to ensure continuity of critical services at Gate One.
- The agreement will establish the framework for services that will continue to be provided by the City following the transition, while MPTA builds its future-state operating capabilities. Current efforts are focused on finalizing service inventories, validating scope and costs with functional departments, and preparing agreements for Board and Council consideration later this year.

Committee Process:

N/A

Staff Contact:

Carolyn Flowers, Transition Manager
Debra Campbell, Transition Manager
Robert Beal, EY Senior Director
Sanaa McClendon, EY Senior Consultant
Elizabeth Presutti, CATS Chief Administrative Officer

Attachment(s):

- ILA / Shared Services Update

MPTA Operations & Safety Committee

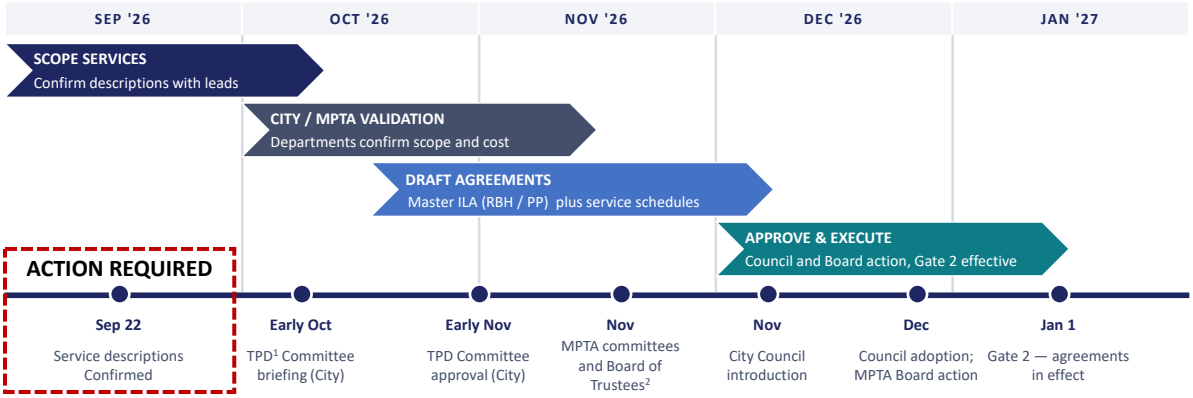
MPTA Transition

September 23, 2026

1

ILA / Shared Services — Approval Runway

Four phases mapped to the City Council and MPTA Board of Trustees calendar



MPTA Transition Team

- Compiles the service inventory — scope, duration, and confirms initial costs provided by City
- Refines descriptions with functional leads each week
- Hands schedules to outside counsel for the master agreement

City of Charlotte

- Confirms and refines service inventory – initial scope and duration provided by MPTA
- Confirms with departments the 'requested services' and what City can provide
- Leads ILA costing and aligns with MPTA

[1]TPD = Transportation, Planning & Development Committee of Charlotte City Council.
[2]MPTA to take agreement through committees and Board process in November and December. Committee, Council, and Board dates to be confirmed against published calendars.

2

Bus Operations
Public Transit
Agency Safety Plan



Effective Date: September XX, 2026

CHARLOTTE AREA TRANSIT SYSTEM (CATS)
Charlotte-Mecklenburg Government Center (CMGC)
600 East Fourth Street
Charlotte, NC 28202

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DOCUMENT REVISION POLICY

This plan is complemented by and dependent on other supporting documents by CATS and other third parties. The CATS Chief Safety and Security Officer determine the distribution for this document. Previous revisions of this document must be discarded or identified as superseded when a new revision is issued. Anyone who is referring to a copy of this document must verify they are using the latest revision.

This document is available electronically on CNet under Departments > Charlotte Area Transit System > CATS Policies and Procedures.

DOCUMENT REVISION RECORD

Revision Number	Revision Date
Initial Release	September 2026*Confirm Date

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APPROVALS

Certification of Compliance

This Bus ASP meets the requirements of 49 CFR §673.11(a)(1)(i), §673.19(d)(1)), §673.31

_____ _____

Eric Osnes Date
CATS Chief Safety & Security Officer

_____ _____

Brent Cagle Date
CATS Interim CEO and Director of Public Transit

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Table of Contents

1. TRANSIT AGENCY INFORMATION 1
2. PLAN DEVELOPMENT AND UPDATES 4
2.1 Annual Review and Update of the Public Transportation Agency Safety Plan, ... 4
2.2 Record Keeping and Publishing 4
3. ANNUAL SAFETY PERFORMANCE TARGETS 5
3.1 Safety Performance Measures 6
3.2 Safety Performance Target Coordination 6
4. SAFETY MANAGEMENT POLICY 7
4.1 Safety Goals and Objectives 8
4.2 Bus Safety Committee 10
4.3 Agency Safety Plan Communication 10
4.4 Authority, Accountabilities and Responsibilities 11
4.4.1 Accountable Executive: 11
4.4.2 Chief Safety Officer 12
4.4.3 Agency Leadership and Responsibilities 12
4.4.4 Key Staff 13
4.6 CATS Safety Reporting Program 14
4.6.1 Anti-Retaliation Policy 14
4.6.2 Employee Behavior Excluded from Protection: 15
5. SAFETY RISK MANAGEMENT (SRM) PROCESS 15
5.1 Hazard Identification §673.25 (b)(1) and (2) 15
5.2 Safety Risk Assessment 16
5.2.1 Hazard Severity Rating 16
5.2.2 Risk Assessment Matrix and Hazard Risk Index 19
5.2.3 Risk Tolerability Non-Consensus Procedures 19
5.3 Risk Mitigation and Reduction Program 19

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5.3.1 Evaluation of Current Mitigations 20
5.3.2 Risk Mitigation Implementation and Tracking 21
5.4 Minimize Exposure to Infectious Diseases 673.25 (d)(2)(ii) 21
5.5 Risk Reduction Program – Vehicular and Pedestrian 21
5.6 Assault on Transit Workers – Risk Reduction Program 22
6. Safety Assurance 23
6.1 Safety Assurance Process 23
6.2 Safety Performance Monitoring and Measurement 24
6.3 Hazard Log and Risk Register (reference S&S23) 24
6.4 Process for Ensuring Rules Compliance 25
6.5 Management of Change 25
6.6 Safety and Security Certification Plan 25
6.6.1 Organizational Functions Audited 25
6.7 Occupational Safety and Health Compliance Verification 26
6.8 Audit Schedules 26
7. Safety Promotion - Training and Communication 27
7.1 Training 27
7.2 Safety Communication 28
8. Emergency Response Plan 29
9. Additional Information 29
APPENDICES 32

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1. TRANSIT AGENCY INFORMATION

Table (1)-Agency Information

Modes of Service Covered by this Plan	Contracted Purchased Transportation-(PT)	Bus-MB, Commuter Bus-CB, Demand Response-DR, (Micro Transit) Vanpool-VP
	Directly Operated Transportation-(DO)	Demand Response (STS)-DR (ADA)
FTA Funding Types	5307 Urbanized Area Formula Grants 5309 Capital Investment Grants 5310 Enhanced Mobility for Seniors & Individuals	
Services provided on behalf of another agency or entity	None	

Bus System Description

The CATS Bus Operations Division (BOD) is the entity that provides CATS' fixed- route bus and maintenance service and operated by a service contractor Transit Management of Charlotte (TMOC), with unionized labor. CATS operates 70 fixed routes: local buses, express buses, and neighborhood shuttles. Express routes provide service to and from outlying areas of Mecklenburg County as well as neighboring counties.

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CATS bus service provides transit service seven days a week to LYNX Blue Line stations and on urban streets, suburban streets, limited access highways, and a bus-only busway. Bus operating hours are from 4:55 a.m. to 2:00 a.m., 6 days a week and until 1:30 a.m. on Sundays. All buses are outfitted with multiple closed-feed camera video system, AVL/Telematics and PTT radio system.

Bus Facility list

South Tryon Bus Facility 3145, 3201, 3249, 3239 S. Tryon	This facility opened in March 2005 and is the principal CATS Bus Operations and Maintenance Facility. It is the centralized administrative base for BOD and provides space for warehousing and major repair activities. 3145 S. Tryon Bus Operations 3239 S. Tryon Paint and Body Shop 3249 S. Tryon Bus Maintenance. Bus lot has capacity for 250 buses with 6 battery electric bus dispensers. Maintenance, Fuel, Fare and Wash, Tire repair and Body/paint activities are also performed on this campus. Campus is covered with multi-camera closed feed video system and building access control, fire sprinkler/extinguishers and AED.

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Davidson Street Bus Facility 900, 901, 929 North Davidson St	This facility was built and opened in 1985 and was originally designed as a full-service maintenance facility for 200 vehicles for bus and paratransit services. 900 N. Davidson St location houses the bus operations and maintenance departments. 901 N. Davidson St. was rehabilitated in 2011 and houses CATS' Special Transportation Services (STS) and CATS Technology. 929 N. Davidson St. bus lot, diesel refueling, 7 battery electric bus dispensers and cleaning centers. A contracted gasoline fueling truck refuels gasoline paratransit buses. Campus is covered with multi-camera closed feed video system and building access control, fire sprinkler/extinguishers and AED
Charlotte Transportation Center (CTC) 303 E. Trade St	• 23 covered Bus Bays • Access to CATS light rail platform • Admin/Retail space • Multi-feed camera video system • Fire sprinklers/extinguishers • AED
Rosa Parks Community Transit Center 2811 Beatties Ford Rd	• 5 Bus shelter stops • Multi-feed camera video system • Fire sprinklers/extinguisher • AED
Eastland Community Transportation Center 5407 Central Ave	• 4 Bus shelter stops (Central Ave) • 4 Bus shelter stops • Multi-feed camera video system • Fire sprinklers/extinguisher • AED
Multiple location Bus-only Park and Ride lots (Bus Shelter equipped, no amenities)	• Cornelius Park and Ride • Huntersville Gateway Park and Ride • Huntersville Northcross Park and Ride • Mallard Creek Park and Ride • Matthews Park and Ride All locations utilize a multi-feed camera video system.

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Special Transportation Service

CATS Special Transportation Service (STS) directly operates the ADA mandated ¾ mile paratransit service headquartered at 901 North Davidson. STS has also expanded service with ADA equivalent service to the citizens of Mint Hill beginning in 2024 with the service known as STS+. Service currently consists of 84 lift equipped with 12 passenger cutaway vans with Auto Vehicle Location (AVL)/Telematic, Push to Talk (PTT) radios and internal closed feed multi camera video system.

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Micro-Transit

CATS has launched a new demand response service that serves the northern Charlotte, Huntersville and Cornelius regions. The service is provided by contractor MV Transportation with a local company to provide service in defined zones. The contractor utilizes ADA accessible passenger vans to connect passengers to the CATS fixed route system. The contractor has 9 vehicles in operation equipped with Drive Cam camera system and PTT radios with AVL through cell-enabled tablets.

Van Pool

Van pool services have transitioned to a contractor Enterprise providing the service beginning in 2025. Vanpool transit service is a pre-arranged ride-sharing service that enables a group of people, typically ranging from four to 15 individuals, to commute together in a van or SUV. These groups usually consist of people who live near each other and work near each other and have the same schedule. CATS has partnered with *Commute with Enterprise* (CWE) to create the CATS Vanpool program

Large Urban Provider

CATS is a *Large urbanized area provider*, which means a recipient or subrecipient of financial assistance under 49 U.S.C. 5307 that serves an urban area with a population of 200,000 or more as determined by the most recent decennial Census.

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Geographic Area of Coverage – Region 4, NTD ID Number: 40008

2024 NTD Data – Image 1

Geographic Coverage		Service Consumed	
Primary Urbanized Area	Charlotte, NC--SC	**Annual Passenger Miles Traveled (PMT)**	71,613,098
Square Miles	658	**Annual Unlinked Trips (UPT)**	14,903,051
Population	1,379,873	**Average Weekday UPT**	45,880
Other Areas Served:		**Average Saturday UPT**	36,378
North Carolina Non-UZA,Concord, NC,Rock Hill, SC,Gastonia, NC		**Average Sunday UPT**	23,395
Service Area Population	1,329,749		
Service Area Sq. Miles	675		

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2. PLAN DEVELOPMENT AND UPDATES

49 CFR §673.5 and §673.23(d) Accountable Executive and a Chief Safety Officer

The Bus Agency Safety Plan which now covers only the Bus, STS, Vanpool, and Microtransit modes, has been fully rewritten. Previously, these modes had been included in the comprehensive system wide Agency Safety Plan that encompassed all modes of service including Rail, Bus, STS, Vanpool, and Microtransit.

2.1 Annual Review and Update of the Public Transportation Agency Safety Plan

49 CFR §673.11(a)(5)

CATS Accountable Executive holds management and committees accountable for compliance with the processes and procedures detailed in the Agency Safety Plan (ASP) to ensure adequate safety performance and fulfill requirements of the Bus Agency Safety Plan, regulation (49 CFR Part 673). CATS Chief Safety Officer will coordinate the annual review of the ASP, beginning with a notification to all CATS departments by March 1 of each year that they must review ASP sections applicable to their function to ensure that the ASP aligns with their processes. CATS departments must submit comments to the Chief Safety Officer by April 1 of each year. The Chief Safety Officer will incorporate departmental comments in the ASP and then conduct a final review and update with the Director of Operations and Director of Maintenance by June 1 of each year. The Accountable Executive will sign and approve any changes, then forward the ASP to the MPTA for approval.

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CATS may need to modify this ASP outside of this annual review cycle. The CSSO shall notify Co-Chairs within five (5) business days of identifying a modification requiring an off-cycle revision. Within thirty (30) calendar days of a modification request, the Chief Safety Officer, Director of Operations, and Director of Maintenance will present the Accountable Executive with the modified plan for review and signature. Off-cycle modifications to the Bus ASP shall be submitted to the Bus Safety Committee for deliberation and majority vote of a verified quorum prior to submission to the Accountable Executive and forwarding to MPTA. The Accountable Executive will then forward the modified plan to the MPTA for approval.

Key Dates –

- March 1: CSSO notifies departments they must review
- April 1: Departments submit comments
- June 1: CSSO incorporates comments and conducts final review

2.2 Record Keeping and Publishing

49 CFR §673.5

The Bus Safety Committee and MPTA meeting minutes regarding the updates to this plan will be maintained in accordance with all City, State, Federal record keeping requirements, a minimum of three years.

The most current version of this plan will be posted on the CATS website once approved. CATS internal website is under construction. (Chris Ingraham – Project Mgr.)
All documents will be made available upon request to FTA or other Federal entity and a State.

3. ANNUAL SAFETY PERFORMANCE TARGETS

49 CFR §673.11(a)(3), §673.11(a)(7), and §673.27(b)
CATS will develop annual safety performance targets based on the safety performance measures established under the National Public Transportation Safety Plan.

- CATS Bus has adopted FTA's 14 safety performance measures noted in the chart below.

Safety Performance Measures for All Agencies Subject to PTASP Regulation[2]		
1	Measure 1a:	Major Events
2	Measure 1b:	Major Event Rate
3	Measure 1.1:	Collision Rate (new)
4	Measure 1.1.1:	Pedestrian Collision Rate (new)
5	Measure 1.1.2:	Vehicular Collision Rate (new)
6	Measure 2a:	Fatalities
7	Measure 2b:	Fatality Rate
8	Measure 2.1:	Transit Worker Fatality Rate (new)
9	Measure 3a:	Injuries
10	Measure 3b:	Injury Rate
11	Measure 3.1:	Transit Worker Injury Rate (new)
12	Measure 4a:	Assaults on Transit Workers (new)
13	Measure 4b:	Rate of Assaults on Transit Workers (new)
14	Measure 5:	System Reliability

- Safety performance targets for the 2026 plan year are established using prior National Transit Database (NTD) reported data, including a three-year rolling average methodology where applicable, and are adjusted based on operational changes, fleet condition, service expansion, and identified safety risk trends through the Safety Management System (SMS) process.

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3.1 Safety Performance Measures

CATS establishes annual safety performance targets consistent with the safety performance measures established in the National Public Transportation Safety Plan (NPTSP) and required by 49 CFR §673.11(a)(3). CATS' 2026 safety performance targets, including SRRP targets, are set using a three-year rolling average of NTD-reported data (2023-2025), consistent with FTA Safety Performance Targets guidance. For fatalities, targets are set at zero by agreement across all modes. For transit worker assaults, targets reflect actual historical experience by mode. Targets were calculated by CATS-provided NTD data and validated internally; they remain subject to formal review and approval through the Bus Safety Committee and MPTA prior to final adoption, consistent with 49 CFR 673.19(d)(2)

Injuries are based on NTD reportable events injuries. Safety events are based on a combination of NTD S&S 40 Major Events and Other recordable S&S 50 events. System Reliability is based on the mean distance between major mechanical failures Major mechanical system failures are those that prevent a vehicle from completing or starting a scheduled revenue trip because actual movement is limited or because of safety concerns.

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Methodology for setting 2026 Safety Performance Targets: CATS calculated each 2026 target using the three-year rolling average of National Transit Database (NTD) reported totals for calendar years 2023–2025 (NTD S&S forms S&S-40 and S&S-50 as applicable). Rates were computed per 100,000 vehicle revenue miles (VRM) for Motor Bus and per 100,000 VRM for Demand Response unless otherwise noted.

- Three-year rolling average (Total):

$$3-Year\ Average = \frac{\{T_{[2023]} + T_{[2024]} + T_{[2025]}\}}{3}$$

- Rate per 100,000 VRM:

$$Rate\ per\ 100{,}000\ VRM = \frac{3-Year\ Average}{Average\ VRM} \times 100{,}000$$

- Target setting (example with reduction goal r):

3.2 Safety Performance Target Coordination

The CATS SMS team extracts and provides trend data and analysis to support the Bus Safety Committee's selection of safety performance targets, consistent with

the target-setting process described in the Bus Safety Committee Bylaws, Section 10, and as required by 49 CFR 673.19(d)(2). In accordance with 49 CFR §673.15(a), CATS shall make annual safety performance targets available to the Metropolitan Public Transportation Agency (MPTA) for use in regional transportation planning and performance-based planning processes. Table 4 identifies the transmission dates with the Chief Safety Officer, CEO and MPTA.

Table 4.

Safety Performance Coordination		
CATS Accountable Executive shares our ASP, including safety performance targets, with the MPTA in our service area each year. CATS Accountable Executive also provides a copy of our formally adopted plan to the Any State Department of Transportation. In addition, CATS coordinates with the State (if applicable) and MPTA in the selection of safety performance targets as requested.		
Targets Transmitted to State	State Entity Name	Date Targets Transmitted
	Department of Transportation	TBD
Targets Transmitted to Governing Body	Governing Body	Date Targets Transmitted
	MPTA Metropolitan Public Transportation Agency	TBD

DRAFT

Failure to meet any quarterly or annual safety performance target shall trigger Safety Assurance review, hazard trend analysis, and corrective action development through the SMS governance process – S&S23.

4. SAFETY MANAGEMENT POLICY

49 CFR §673.23

CATS has established and implemented a Safety Management System (SMS) under this part. CATS Safety Management System is appropriately scaled to the size, scope and complexity of the transit agency and include the following elements:

(a) Safety Management Policy as described in § 673.23;

(b) Safety Risk Management as described in § 673.25;

(c) Safety Assurance as described in § 673.27; and

(d) Safety Promotion as described in § 673.29.

673.23 (a) CATS has established its organizational accountabilities and responsibilities and has a written statement of Safety Management Policy that includes the transit agencies:

- **Safety Objectives**
  CATS Safety Committee and approach to cooperation with frontline transit worker representatives.

- **Safety Management Policy Statement**
  The following is the Safety Management Policy Statement issued by the Chief Executive Officer (CEO) of the Charlotte Area Transit System (CATS).

  The Charlotte Area Transit System (CATS) was organized with the mission to provide safe, secure, reliable, and effective bus, paratransit and rail transportation services to our customers. Accordingly, safety is a primary concern that affects all levels of CATS activities including operations, maintenance, and administrative functions of the organization.

  All employees and contractors of CATS are expected to conduct their duties safely, aimed at preventing, controlling, and minimizing undesired events, such as customer or employee injury, equipment or property damage, or degradation to system safety in any CATS function. Employees and customers are CATS' most important assets, and their safety and security are among CATS' greatest responsibilities.

  While the minimizing of unsafe conditions and the prevention of accidents in CATS' transportation system and facilities are the responsibility of each employee, they are first and foremost the responsibility of CATS Management. A safety reporting program was established as a viable tool for employees to voice their safety concerns. No disciplinary action will be taken against any employee who communicates a safety concern through the CATS safety reporting program unless such disclosure indicates the following: an illegal act, gross misconduct and/or negligence, or a deliberate or willful disregard of CATS rules, policies, and procedures.

  CATS Management is committed to developing a Safety Management System (SMS) and will develop programs to promote the safety and security of all employees and customers. CATS Management is committed to working with and cooperating with frontline transit worker representatives through the safety committees' roles and responsibilities that ensure frontline transit workers are part of the process in developing safety objectives and implementing the SMS program. We are fully committed to providing a safe work environment, safe vehicles, systems, and facilities. To that end, CATS' Chief Safety Officer is empowered and authorized to administer a comprehensive, integrated Agency Safety Plan.

4.1 Safety Goals and Objectives

CATS Safety Objectives:

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CATS establishes the following safety objectives in support of the Agency Safety Plan and SMS.

Implement annual review and update, if necessary, to the ASP.

- Enforce existing CATS Rules and Regulations. Develop and enforce departmental safety rules. Implement operational Bulletins.
- Develop and implement departmental Safety Goals and Action Plans.
- Establish, implement, and evaluate maintenance and inspection programs for all Bus departments and divisions.
- Evaluate procedures for facility/structure maintenance and respond to divisional requests for repairs to structures and equipment to ensure customer and employee safety.
- Establish and implement emergency response procedures for facilities, stations, equipment failures in service, collisions, fires, inclement weather, and release of hazardous materials.
- Review federal, state, and local safety and environmental regulations as well as CATS Bus Operations for input into Safety Policy/Instructions. Develop and implement safety and environmental Policy/Instructions when necessary.
- CATS Bus Safety and Quality teams will investigate all catastrophic events and develop a Root Cause Analysis (RCA). The RCA will be presented to the Chief Safety Officer and Bus Safety Committee for review and approval.
- Conduct Hazard Analyses on safety critical system/equipment and operating procedures/rule changes in accordance with established system safety principals outlined in Military Standard 882E and CATS S&S23 procedure – Risk Management for Hazards, Vulnerabilities, and Nonconformance Conditions.
- Conduct industrial hygiene investigations of work sites and customer areas and identify corrective measures or safety risk mitigations according to the safety order of precedence.
- Evaluate the work and customer environment to ensure that all safety Policy/Instructions are being implemented.
- Maintain a high level of ability to respond to emergency/disaster conditions.
- Establish requirements, lines of authority, levels of responsibility and accountability for implementation of the Agency Safety Plan within the organization.
- Ensure that the SMS is appropriately scaled to the size, scope, and complexity of the CATS Bus Operation and includes Safety Management Policy, Safety Risk Management, Safety Assurance, and Safety Promotion.

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Quarterly Progress Report

Each quarter, our Safety Department will report to our entire agency regarding how well we are meeting our safety objectives. We will review and update these objectives, as needed, each year.

4.2 Bus Safety Committee

The Bus Safety Committee membership and By-Laws are held within Appendix B of this document. These bylaws include the following:

- The Bus Safety Committee's role in reviewing and approving the ASP is described in the Committee Bylaws, Appendix B, Section 9
- The Bus Safety Committee's role in identifying and recommending safety risk mitigations is described in the Committee Bylaws, Appendix B, Section 11
- The Bus Safety Committee's role in identifying ineffective, inappropriate, or improperly implemented mitigations is described in the Committee Bylaws, Appendix B, Section 11.1.
- The Bus Safety Committee's role in identifying safety deficiencies for continuous improvement is described in the Committee Bylaws, Appendix B, Section 11.

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In addition to the roles described elsewhere in this ASP, the Bus Safety Committee's responsibilities include reviewing and approving updates to this Agency Safety Plan, identifying and recommending safety risk mitigations, identifying mitigations that are ineffective, inappropriate, or not implemented as intended, identifying safety deficiencies for continuous improvement, and setting annual safety performance targets for the Safety Risk Reduction Program, all as further described in the Bus Safety Committee Bylaws (Appendix B), Sections 1.1, 8, 9, 10, and 11, consistent with 49 CFR 673.19(d).

4.3 Agency Safety Plan Communication

49 CFR §673.23(c)

CATS is committed to ensuring the safety of our customers, personnel and operations.

Part of that commitment is to develop an SMS and agencywide safety culture that reduces agency risk to the lowest level possible. The first step in developing a full SMS and agencywide safety culture is communicating our ASP throughout our agency.

The ASP and safety objectives are at the forefront of all communications. This communication strategy will include posting the policy in prominent work locations

for existing employees and adding the policy statement to the on-boarding material for all new employees. In addition, the policy statement will become part of our agency's regular safety meetings and other safety communications efforts. The policy will be signed by the Accountable Executive so that all employees know that the policy is supported by management.

The Chief Safety Officer (CSSO) shall ensure that updates to ASP are communicated effectively to employees, contractors, purchased transportation providers and as well as other key stakeholders.

The CSSO will instruct contractors to communicate with contract employees using a variety of tools including Bulletin boards, Newsletters, Training, Notices in employee mailboxes, Email and CATS internal website under construction (Chris Ingraham – Project Mgr.)

Performance regarding safety metrics will be made available to employees and contract staff.

4.4 Authority, Accountabilities and Responsibilities

49 CFR §673.23(d)(4)

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The Transit Authority has identified senior leadership who are accountable and responsible for the implementation of the SMS.

4.4.1 Accountable Executive:

Roles and Responsibilities - All system-wide/Accountable Executive

May delegate specific responsibilities, but the ultimate accountability for the transit agency's safety performance cannot be delegated and always rests with the Accountable Executive. The Chief Executive Officer (CEO), who is the Accountable Executive, has the following authorities, accountabilities, and responsibilities under this plan:

- Controls and directs human and capital resources needed to develop and maintain the ASP, SMS, and Transit Asset Management Plan.
- Designates a Chief Safety Officer with a direct line of reporting to the Accountable Executive.
- Issues annual SMP statement and safety objectives.
- Ensures that CATS SMS is effectively implemented throughout the system.
- Ensures action is taken to address substandard performance in CATS SMS.
- Monitors CATS safety performance.

- Accepts safety risk associated with hazards or mitigates unacceptable safety risk.
- Assumes ultimate responsibility for carrying out CATS ASP and SMS including safety risk mitigations recommended by the Safety Committee.

4.4.2 Chief Safety Officer

Roles and Responsibility - Safety Goals and Objectives, System Safety Program Implementation, Safety and Security Certification, System Modification, Safety and Security Qualification, Safety Data Acquisition and Analysis, Accident and Incident Investigation, Notification and Reporting, Risk Mitigation and Verification of Effectiveness, Emergency Management, Rules and Procedures, Facilities and Equipment Safety Inspections, Training Qualification, Employee and Contractor Safety, Hazardous Materials Management, Emergency Drills, Audits in Design and Construction, Audits. The Chief Safety Officer reports directly to the Accountable Executive (CATS CEO).

At CATS, safety is everyone's job. All employees, regardless of position, are empowered to report issues of concern regarding workplace and operating conditions. However, in addition to the Accountable Executive and Chief Safety Officer, there are other employees who have a leadership role in the oversight of safety at the Transit Authority.

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4.4.3 Agency Leadership and Responsibilities

General Manager of TMOC and Special Transportation – Hazard Management, Accident and Incident Investigation, Risk Mitigation and Verification of Effectiveness, Data Acquisition and Analysis, Drug and Alcohol Program, Rules and Procedures, Facilities and Equipment Safety, Qualification and Training Qualification, Employee and Contractor Safety, Configuration Management

Directors of Operations – Manage front line operations supervisor, all aspects of the collective bargaining agreement, Configuration Management,

Director of Maintenance - Responsible for oversight, care and maintenance of Davidson and S. Tryon facilities, vehicles and the safety oversight of all maintenance staff.

Director of Human Resources - Drug and Alcohol Program, Blood Exposure Control Plan, Configuration Management, Hiring Practices, CDL compliance.

Operations Managers - Manage BOCC, Road, and CTC supervisors

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Maintenance Superintendents – Vehicle safety inspections, PM compliance, defect correction verification, and maintenance CAP closure.

Safety Manager – Maintains the Hazard Log, reviews incident investigation, trend analysis, internal audits, CAP tracking, and committee support.

Safety Coordinators – Ensure day to day safety compliance through regular observations, and periodic inspections, conducts incident investigations, and track trends.

Road and CTC Supervisor – Supervise front line employees ensuring adherence to CATS and TMOC policies and procedures.

BOCC Supervisor – Supervise front line employees ensuring adherence to CATS and TMOC policies and procedures elating to service performance.

4.4.4 Key Staff

In addition to leadership positions, front line transit workers are in positions which require significant attention to safety.

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Bus Operators - are tasked with working directly with our passengers and members of the public. They are responsible for transporting passengers to and from work, medical appointments, and other essential services. They provide transportation if requested by emergency services. They assist with directions and provide the eyes and ears for system safety and security. They ensure passengers in mobility devices are secure and safe for transport.

Mechanics – Mechanics are tasked with both preventative maintenance tasks and deficiency repairs. Further the repairs and preventative maintenance on a timeline schedule which allows for continued, safe, and quality service to the community with few to no service delays due to mechanical failure or defect.

Maintenance Staff – Maintenance staff ensure buses are serviced, cleaned, and are responsible for the cleaning of Biohazards on revenue vehicles.

Union Representation – Ensure the guidelines of the Operations Agreement are upheld, and safety related items are submitted to the company for resolution and closeout.

Key Staff Committees

CATS uses five committees to support SMS implementation:

- SMS Committee;
- Joint Labor Management Safety Committee;
- Management of Change Committee;
- Accident and Incident Review Board;
- Bus Rules and Procedure Development Committee.

4.6 CATS Safety Reporting Program

49 CFR §673.23(b)

CATS has established and implemented a process to encourage its workers to report safety concerns, including assaults on transit workers, near-misses, and unsafe acts and conditions to senior management, includes protections for transit workers who report, and includes a description of transit worker behaviors that may result in disciplinary action.

Submission to the reporting program will be made available to the Bus Safety Committee monthly, provided by the SMS Team.

Employee Reporting –

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- Notify bus operations control center (BOCC)
- Immediate Supervisor, Manager or Union Representative
- Email – reportsafety@charlottenc.gov , these emails go directly to CATS Safety & Security manager group, which respect confidentially rules.
- Anonymous reporting, Safety Hotline – 1-844-566-4040
- Employees who report safety concerns to management through any of the reporting methods will receive a response from their supervisor, manager or member of safety staff on how the concern was addressed.

4.6.1 Anti-Retaliation Policy

49 CFR §673.23(b)

To support employees and third-party contractors and to further encourage them to report unsafe conditions, COC-HR5 and TMOC, Standards of Excellence, Section 14. Anti-Harassment Policy. These policies allow individuals to raise concerns regarding behavior, working conditions, equipment and other potential hazards without fear of harassment, retribution or retaliation. By doing so the agency can have more eyes and ears throughout the workplace to better identify problems and issues in the workplace in advance of them causing injury to a passenger or employee. This policy contributes to employee engagement and contributes to a positive workplace culture.

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4.6.2 Employee Behavior Excluded from Protection:

It must be noted that while CATS encourages employees to share safety concerns to agency management and in doing so should not fear retribution, however, certain employee behaviors if reported may result in disciplinary actions and would not be covered by reporting protections. These behaviors include:

- Intentional misconduct
- Criminal acts
- Gross negligence
- Willful violation of established safety procedures
- Gross mismanagement
- Gross waste of funds
- Abuse of authority
- Deliberate disregard for public safety

In such cases as specified above, the employee is willfully and knowingly participating in an illegal or deliberate disregard for the rule of law and as such shall not be subject to standard protection language.

Reporting encourages employees to provide accurate information about known safety hazards. The ability to communicate safety risk information in a timely and professional manner is essential for CATS to function as intended. CATS applies a just culture framework that distinguishes human error, at-risk behavior, and reckless behavior, promoting learning and corrective action while preserving accountability

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5. SAFETY RISK MANAGEMENT (SRM) PROCESS

49 CFR §673.25

5.1 Hazard Identification §673.25 (b)(1) and (2)

The following describes the methods and processes used to identify hazards and determine the consequences of the associated hazards.

CATS uses the hazard management process as the primary tool to ensure the safety of the operation, passengers, employees, vehicles, and facilities. It is a process whereby hazards are identified, assessed for potential impacts, and resolved in a manner acceptable to management.

Hazard identification is the initial step in the hazard management process. Hazard identification is achieved through conducting safety inspections, safety reviews, accident investigations, environmental compliance reviews, industrial hygiene fire safety surveys, and at the request/recommendation of the Safety Committee. Trend analyses focus on employee and customer accidents, near-miss incidents,

fire incidents, and common deficiencies resulting from inspections, investigations, reviews, and surveys. Additionally, hazard assessments are conducted in accordance with Military Standard 882E and CATS S&S23 procedure – Risk Management for Hazards, Vulnerabilities, and Nonconformance Conditions.

Other source of identification will be data and alerts from State, Federal, FTA, NTSB, or other external organization, such as the World Health Organization, Interpole.

5.2 Safety Risk Assessment

49 CFR §673.25 c (1) and (2) -

Once they have been identified, hazards are then categorized into severity levels ranging from catastrophic to negligible. The categorization of hazards is consistent with risk-based criteria for severity as it reflects the principle that not all hazards pose an equal amount of risk to personal safety. By developing tiered categories of risk, the agency can make judgements regarding the potential impact of a risk on the population.

5.2.1 Hazard Severity Rating

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Severity Categories

Severity	Category	Service Impact	Safety	Reputational Damage
Catastrophic	1	Complete loss of service or severe disruption of service systemwide	One or more fatalities.	National/State loss of reputation; damaging national/state exposure
Critical	2	Partial loss of service, major system damage, or major system wide disruption of service	May cause severe injury, or severe occupational illness.	Significant regional loss of reputation
Marginal	3	Service delay of 1 hour or more or minor system damage, or minor system damage disruption of service.	May cause lost-time injuries or moderate occupational illness.	Significant loss of local reputation
Negligible	4	Service delay of less than 1 hour or less than minor system disruption of service	May cause minor injury, or minor occupational illness.	Light impact on reputation

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Probability Categories

Probability Levels Description	Level	Specific Guidance
Frequent	A	Likely to occur multiple times within a year
Probable	B	Likely to occur no more than twice per year
Occasional	C	Likely to occur no more than once per year
Remote	D	Likely to occur no more than once per five years
Improbable	E	Unlikely to occur over the lifecycle of the hazard
Eliminated	F	Incapable of occurrence within the life of an item. This category is used when potential hazards are identified and later eliminated.

Severity × Likelihood Matrix

MIL-STD-882E Risk Assessment Matrix				
SEVERITY / PROBABILITY	Catastrophic (1)	Critical (2)	Marginal (3)	Negligible (4)
Frequent (A)	1A	2A	3A	4A
Probable (B)	1B	2B	3B	4B
Occasional (C)	1C	2C	3C	4C
Remote (D)	1D	2D	3D	4D
Improbable (E)	1E	2E	3E	4E
Eliminated (F)	ELIMINATED			

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Hazard Risk Index	Criteria by Index
	Unacceptable (Immediate Action Required)
	Undesirable (Management Decision Required)
	Acceptable with Review by Management
	Acceptable without Review
	Potential Hazard was Identified and Eliminated

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5.2.2 Risk Assessment Matrix and Hazard Risk Index

Follow-up actions resulting from the Risk Assessment are as follows:

- Unacceptable: The hazard must be mitigated in the most expedient manner possible before normal service may resume. Interim corrective action may be required to mitigate the hazard to an acceptable level while the permanent resolution is in development.
- Undesirable: A hazard at this level of risk must be mitigated unless a documented decision to manage the hazard until resources are available for full mitigation is issued by executive management.
- Acceptable with review: The Office of Safety and Security must determine if the hazard is adequately controlled or mitigated as is.
- Acceptable without review: The hazard does not need to be reviewed by management and does not require further mitigation or control.
- The Risk Assessment Process is used to prioritize hazardous conditions and focus available resources on the most serious hazards requiring resolution.
- Safety Critical: An item where any component of an asset containing a characteristic where the failure, malfunction, or absence of which could cause a catastrophic or critical failure resulting in loss of, serious damage to, a major asset or infrastructure or an unacceptable risk of personal injury or loss of life.
- Unacceptable and undesirable safety conditions identified during the Transit Asset Condition Assessment will be reported to the Office of S&S immediately.

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5.2.3 Risk Tolerability Non-Consensus Procedures

In situations where there is non-consensus on Hazard Risk Assessment ratings, the Subject Matter Expert (internal or external) will take the lead in providing information to the CSSO/SMS Manager and Operations Manager to promote resolution of non-consensus. If consensus is not reached, the Accountable Executive or their designee will make the final decision.

5.3 Risk Mitigation and Reduction Program

49 CFR §673.25 (d)

Risk mitigation is the process of reducing the risk to the lowest practical level given agency constraints. CATS recognizes that not all safety risks can be eliminated completely and for that reason, resolution of hazards will utilize a risk assessment and process so that the most damaging and common hazards will be prioritized.

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The objectives of the risk mitigation and reduction process are to:

- Identify hazard solutions including changes to system design, installation of safety devices or development of special procedures.
- This includes measures to reduce visibility impairments for bus operators.
- Resolve hazards that involve interfaces between two or more systems.
- This includes measures to reduce risk of assaults against drivers or transit workers.
- Ensure system solutions do not create new hazards.
  TMOC and STS through oversight of the CSSO, is responsible for local safety review and uses the following methodologies to assure that system safety objectives are implemented through design and operations, and that as a result, hazards are eliminated, mitigated or controlled:

Designed to eliminate or minimize hazard severity: To the extent permitted by cost and practicality, identified hazards are eliminated or controlled by the design of equipment, systems and facilities

Design of protective safety features or devices: Hazards that cannot reasonably be eliminated or controlled through design are controlled to the extent practicable to an acceptable level through the use of fixed, automatic, or other protective safety design features or devices.

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Training and functional checks: Provisions are made for periodic functional checks of safety devices and training for employees to ensure that system safety objectives are met.

Warning systems: When design and safety devices cannot reasonably nor effectively eliminate or control an identified hazard, safety warning devices are used (to the extent practicable) to alert persons to the hazard.

Hazard control: Where it is impossible to reasonably eliminate or adequately control a hazard through design or the use of safety and warning devices, procedures and training are used to control the hazard.

Meetings are to be held by the CSSO at necessary intervals to ensure each of these measures are implemented.

5.3.1 Evaluation of Current Mitigations

Whatever the decision regarding a particular hazard, mitigations and Corrective Action Plans (CAPS) must be monitored for effectiveness and to ensure that no other hazard has been introduced. CAPS are verified by Safety Assurance activities that are tracked in the Internal Safety Audit (ISR) by the SMS team. If risk mitigation is not effective or appropriate, safety risk control should be reviewed through the Safety Risk Management and Hazard Analysis process.

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5.3.2 Risk Mitigation Implementation and Tracking

Mitigations that have been implemented are tracked in the bus hazard log, the person assigned the mitigation will be responsible for tracking and reporting on the status of the mitigation through closure.

5.4 Minimize Exposure to Infectious Diseases 673.25 (d)(2)(ii)

CATS has put in place strategies for mitigating infectious diseases that are consistent with guidelines from the Centers for Disease Control or NC Department of Labor. These include, but not limited to:

- Posters reminding employees to wash their hands.
- Gloves provided in dispatch and maintenance areas
- Health screenings
- Cleaning and disinfecting buses and work areas.
- Driver's barriers
- Training to include – blood borne pathogens, hazard communication, SDS training- right to know
- Personal Protective Equipment (PPE) training

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5.5 Risk Reduction Program – Vehicular and Pedestrian

49 CFR §673.25 (d)(5)

City of Charlotte Vision Zero

The CATS safety team is an active participant in the city's adoption of the Vision Zero plan. Vision Zero distinguishes itself from traditional road safety approaches by focusing on fatalities and serious injuries and through the acknowledgment of human error. It is the shared responsibility between users, designers and decision-makers. This Action Plan is a living document that will continually be updated as new data becomes available and as new strategies prove to be successful in making our streets safer.

Charlotte's Vision Zero Action Plan was developed using a collaborative approach that focused on equity and engagement with an in-depth analysis of fatal and serious injury crash data. A Vision Zero Task Force was convened in June 2018 consisting of over 50 members from 25 organizations representing a breadth of safety professions and advocates – including public health, law enforcement agencies, transportation engineers and planners, emergency response and activists. The Task Force jointly developed the following commitment statement:

"As a community, it's our responsibility to eliminate traffic deaths and serious injuries for all who share Charlotte streets by 2030."

Vehicle procurement board – approves all new vehicle design standards to ensure vision barriers are not introduced.

Bus Stop Committee: Evaluates new stops to ensure adequate lighting and crosswalks prior to installation to ensure pedestrian safety. The CATS Bus Stop Safety Committee plays a critical role in reducing pedestrian and vehicle collisions by bringing together planners, transit officials, engineers, and front-line employees to identify risks and implement targeted solutions. Through data analysis, the committee pinpoints high-risk bus stop locations and recommends infrastructure improvements such as better lighting, clearly marked crosswalks, traffic calming measures, and safer bus stop placement. The committee also advocates for consistent signage and visibility enhancements to ensure that both drivers and pedestrians are more aware of transit activity.

5.6 Assault on Transit Workers – Risk Reduction Program

49 CFR §673.25 (d)(5)

In accordance with US Code title 49.4329(d)(1)(I)(ii), Public Safety

CATS uses a range of measures to prevent assaults on transit workers including:

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- Operator barriers are installed on the entire bus fleet, and we continue to evaluate the effectiveness and product improvement as technology evolves.
- Mobile Video Surveillance
- Facility Video Surveillance
- Ambassador Program
- Exclusion Policy
- Riders Code of Conduct
- Security Ride Along Program
- Armed Guards on TVM services and cash transports
- Emergency alarms
- Automatic vehicle location
- Real time video and remote access for each fixed route bus (currently working on STS)
- Operating Procedures
- Policing Strategies
- Communication Protocols
- Adequate Lighting
- Access control for all CATS facilities
- Violence in the workplace procedures
- De-escalation training

- Provide law enforcement with data and materials necessary to pursue assailants.
- Provide the frontline staff and union with security data and trends

CATS tracks all assaults on transit works and reports data to the Nation Transit Database.

Assault/Homicide Events:

2023 - 2
2024 - 1
2025 – 6

6. SAFETY ASSURANCE

49 CFR §673.27

6.1 Safety Assurance Process

49 CFR §673.27(a)

Safety Assurance are processes within CATS Bus Agency Safety Plan that function to ensure the implementation and effectiveness of safety risk mitigation, and the transit agency meets or exceeds its safety objectives through the collection, analysis, and assessment of information.
Safety Assurance focuses on three processes:

- Safety performance monitoring and measurement (§ 673.27(b)),
- Management of change (§ 673.27(c)), and
- Continuous improvement (§ 673.27(d)).

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6.2 Safety Performance Monitoring and Measurement

49 CFR §673.27(b)

Management regularly monitors safety performance through leadership team meetings, safety meetings, investigations, and frequent, ongoing conversations with supervisory and front-line employees. Individual managers are responsible for regularly reviewing and monitoring safety-related information that is produced by their respective departments and employees. As described in the Safety Risk Management section 5, department managers are responsible for reviewing safety-related data for potential safety hazards, and for evaluating those hazards to determine whether mitigation is needed. Managers are also responsible for communicating information regarding safety performance with the Chief Safety Officer and other affected divisions throughout the agency.

Safety Performance Monitoring and Measurement is used to evaluate our compliance with operations and maintenance procedures and to determine whether our existing rules and procedures are sufficient to control our safety risk. It's also used to assess the effectiveness of safety risk mitigations and to make sure the mitigations are appropriate and implemented as intended. Safety Performance Monitoring and Measurement activities also include investigating safety events to identify causal factors and analyzing the information from safety reporting, including data about safety failures, defects, and conditions.

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Safety Performance Monitoring and Measurement Processes:

- Monitor its system for compliance with operations and maintenance procedures, and establish methods to verify that procedures are sufficient (§ 673.27(b)(1));
- Monitor its operations to identify any safety risk mitigations that may be ineffective, inappropriate, or were not implemented as intended (§ 673.27(b)(2));
- Conduct investigations of safety events, including accidents, incidents, and occurrences (defined in §673.5), and identify causal factors (§ 673.27(b)(3));
- Monitor information reported to it through any internal safety reporting programs, including the employee safety reporting program (§ 673.27(b)(4)).

6.3 Hazard Log and Risk Register (reference S&S23)

Bus uses a Hazard Log to track short term issues within the system and a Risk Register for key or high-risk system hazards. Each tracking database includes a unique id number, name of the hazard with makes is easy to identify, summary of the hazard, potential consequences of the hazard, safety risk assessment for each potential consequence, mitigation that is in place and the hazard rating after mitigation, monitoring activities, and responsibilities for monitoring.

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6.4 Process for Ensuring Rules Compliance

The TMOC and STS operating divisions employ different strategies for ensuring compliance with the rules that govern all employees and their divisional rules and procedures. Operating supervisors are responsible for ensuring their employees are performing their duties in compliance with the Safety Policy/Instructions and other safety procedures. Checklists are used by various divisions to assist supervision. In addition, safety audits are performed by CATS Safety and Quality assurance.

When outside contractors are working on CATS property, the contract specifications stipulate that the Safety and Security of CATS and TMOC employees are the responsibility of the contractor. They shall comply with all CATS policy and procedures, as well as all State and Federal regulations and codes. In addition, they will follow the guidelines of all National Fire Protection Association (NFPA) including National Electrical Codes (NEC) guidelines.

6.5 Management of Change

The change control process is outlined in CATS BOD Policy 104, Configuration Change Control. All references to change control methods can be located in this policy.

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6.6 Safety and Security Certification Plan

The Safety and Security Certification Plan (SSCP) ensures that any design or operating hazards/threats are identified, monitored, and properly controlled or mitigated, prior to the commencement of revenue service. SSCP addresses all systems and equipment, which may be to CATS Bus customers, employees, contractor's emergency responders, and the public. The plan identifies the technical and managerial tasks required during the design, supply, construction, and commissioning of any CATS Bus project or equipment. Safety and security operational readiness is demonstrated through a safety and security certification program that is developed and implemented for each subsequent operating segment and phase. The complete SSCP procedure is outlined in Appendix C: Safety and Security Certification Plan

6.6.1 Organizational Functions Audited

The following organizational functional areas are included in the audit process:

- Hazard Management Process
- System Modification Review/Approval Process
- Safety Certification
- Safety Data Acquisition and Analysis
- Accident/Incident Notification, Investigation, and Reporting
- Emergency Management Program
- Rules and Procedures Development, Maintenance, and Compliance
- Facility and Equipment Safety Inspections
- Maintenance Audits and Inspections

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- Training and Qualification Program
- Configuration Management
- Employee and Contractor Safety Program
- Hazardous Substances Programs
- Drug and Alcohol Programs
- Procurement
- Internal Safety Audit Program

6.7 Occupational Safety and Health Compliance Verification

The Safety Department is responsible for monitoring and ensuring compliance with all applicable federal, state, and local codes. It is the responsibility of each director, manager, and supervisor of each department to maintain a safe and healthful work environment for all employees assigned to activities under their direction.

Verification of compliance is accomplished using reviews, inspections, and analysis of injury/illness reports. Additional data is provided by the Risk Master Database and Division OSHA 300 logs which are maintained by City HR and TMOC HR.

Disciplinary procedures have been established for those that repeatedly fail to comply with applicable CATS Bus occupational safety and health program requirements. Examples of employee actions that are subject to disciplinary action are failure to use/wear required personal protective equipment; failure to follow rules, procedures and policies; failure to follow proper chemical handling procedures; and the unauthorized modification of safety equipment and devices.

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Construction safety is the responsibility of each respective contractor. CATS Bus Safety audits compliance with the construction program requirements through reviews of contract documents and specifications, testing, and inspections of on-site work activities. The Safety Department periodically monitors compliance with the construction safety requirements.
(This is to be a new section within Safety)

6.8 Audit Schedules

Each audit area is reviewed at least once every three years, with approximately one-third of the functional areas audited each year. An audit schedule is prepared annually, with specific audit dates communicated to the CSSO when established. At least 30 days advance notice of the planned audit is communicated to the respective section manager(s) responsible.

7. SAFETY PROMOTION - TRAINING AND COMMUNICATION

49 CFR §673.29(a) (1)(2)

Safety promotion ensures that CATS employees and contractors are aware of policies and procedures related to the safety of agency operations, and specifically, as related to their areas of work. CATS comprehensive safety training program applies to all CATS employees directly responsible for safety, including:

- Bus vehicle operators,
- Dispatchers,
- Maintenance Staff, 673.29(a)(2)
- Managers and supervisors, admin staff
- Agency Leadership and Executive Management,
- Chief Safety Officer and Safety Department, and
- Accountable Executive.

7.1 Training

49 CFR §673.29(a)(1)

Training includes de-escalation training, safety concern identification and reporting training, and refresher training for all operations transit workers and transit workers directly responsible for safety in the transit agency's public transportation system.

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Training records are maintained in accordance with the NC PUBLIC TRANSPORTATION SYSTEMS AND AUTHORITIES Retention Schedule, issued, April 1, 2006.

Training has been developed for each designated position throughout the agency, appropriate to the position’s individual safety-related job responsibilities and role in the SMS. This training includes instruction and testing to verify initial competency, as well as refresher training to ensure employees remain current on the agency’s policies and procedures.

The above-mentioned training will be conducted upon hire and every three years of the anniversary date.

The training records will be proved electronically to the SMS Team at the beginning of each quarter. The SMS team will provide this in their executive reporting.

For the Safety Department, CATS participates in the Voluntary Bus Safety Training Program outlined in FTA’s Public Transportation Safety Certification Training Program regulation, 49 CFR Part 672. CATS designated Safety Department personnel will complete the following curricula, in accordance with the Program’s specifications:

- SMS Awareness (e-Learning);
- Safety Assurance (virtual instructor-led);
- SMS Principles for Transit (classroom); and

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- Transit Safety and Security Program managed by TSI:
  - Effectively Managing Transit Emergencies,
  - Transit Bus System Safety, and
  - Fundamentals of Bus Collision Investigation.

Following the conclusion of this training, designated personnel will complete refresher training that includes, at a minimum, one hour of safety oversight training. CATS also conducts SMS initial and refresher training on basic SMS principles and the mandatory and voluntary ESRP for frontline and supervisory operations and maintenance employees.

CATS Safety Department will regularly monitor TMOC and STS safety skill training and SMS training, including refresher training. Monitoring schedule will be established by the Chief Safety Officer.

7.2 Safety Communication

49 CFR §673.29 (b)

CATS will communicate safety and safety performance information throughout the transit agency's organization that, at a minimum, conveys information on:

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- *Hazards and safety risk relevant to transit workers' roles and responsibilities*
- *Informs employees of safety actions taken in response to reports submitted through a transit worker safety reporting process.*
- *CATS will also communicate the results of cooperation with frontline transit worker representatives as described at § 673.17(b) (Bus Safety Committee Representatives and Monthly Minutes)*

As part of new-hire training, CATS distributes safety policies and procedures, included in the CATS Employee Handbook, to all employees. CATS provides training on these policies and procedures and discusses them during safety talks between supervisors and bus operators and vehicle technicians.

For newly emerging safety issues or safety events at the agency, CATS Chief Safety Officer issues bulletins or messages to employees that are reinforced by supervisors in one-on-one or group discussions with employees. CATS Training Division also develops materials and courses to explain the rationale behind changes to policies, procedures, and work instruction that address hazards and safety risk relevant to employees' roles and responsibilities.

The Safety Department works with CATS executive and management teams (representing all
appropriate functions) to define specific, safety-related information that CATS needs to
communicate to different employee groups. CATS also uses multiple approaches to communicate pertinent safety information to management, and individual employees
across all CATS functions, as appropriate.

Explaining actions taken in response to employee reporting - CATS provides targeted
communications to inform employees of safety actions taken in response to reports submitted through one of the employee reporting tools, such as newsletters, handouts and flyers, safety talks, updates to bulletin boards, and one-on-one discussions between employees and supervisors.

Union Safety Reporting - CATS also relies on Union Representation to disseminate safety actions taken in response to report submitted through the union.

The Safety Department works with each operating function to ensure that all SMS and safety
Communication-related activities take place as scheduled. The Safety Department also maintains documentation of communication processes and procedures and records of safety communications.

8. EMERGENCY RESPONSE PLAN

49 CFR §673.11 (6)(i)

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An emergency preparedness and response plan or procedures that addresses, at a minimum, the assignment of transit worker responsibilities during an emergency; and coordination with Federal, State, regional, and local officials with roles and responsibilities for emergency preparedness and response in the transit agency's service area;

- Details are contained in the CATS Emergency Preparedness and Continuity Plan

9. ADDITIONAL INFORMATION

CATS and its contractor will maintain documentation related to the implementation of its SMS; the programs, policies, and procedures used to carry out this ASP; and the results from its SMS processes and activities for three (3) years after creation. This documentation will be available to the Federal Transit Administration or other Federal or oversight entity upon request.

Part 673 Definitions of Terms Used in the Safety Plan

CATS incorporates all of FTA's definitions that are in 49 CFR § 673.5 of the Public Transportation Agency Safety Plan regulation.

- Accident means an Event that involves any of the following: A loss of life; a report of a serious injury to a person; a collision of public transportation vehicles; an evacuation for life safety reasons;
- Accountable Executive means a single, identifiable person who has ultimate responsibility for carrying out the Public Transportation Agency Safety Plan of a public transportation agency; responsibility for carrying out the agency's Transit Asset Management Plan; and control or direction over the human and capital resources

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needed to develop and maintain both the agency's Public Transportation Agency Safety Plan, in accordance with 49 U.S.C. 5329(d), and the agency's Transit Asset Management Plan in accordance with 49 U.S.C. 5326.

- Agency Safety Plan means the documented comprehensive agency safety plan for a transit agency that is required by 49 U.S.C. 5329 and Part 673.
- Chief Safety Officer means an adequately trained individual who has responsibility for safety and reports directly to a transit agency's chief executive officer, general manager, president, or equivalent officer.
- Equivalent Authority means an entity that carries out duties similar to that of a Board of Directors, for a recipient or subrecipient of FTA funds under 49 U.S.C. Chapter 53, including sufficient authority to review and approve a recipient or subrecipient's Agency Safety Plan.
- Event means any Accident, Incident, or Occurrence.
- Hazard means any real or potential condition that can cause injury, illness, or death; damage to or loss of the facilities, equipment, or infrastructure of a public transportation system; or damage to the environment.
- Incident means an event that involves any of the following: A personal injury that is not a serious injury; one or more injuries requiring medical transport; or damage to facilities, equipment, rolling stock, or infrastructure that disrupts the operations of a transit agency.
- Investigation means the process of determining the causal and contributing factors of an accident, incident, or hazard for the purpose of preventing recurrence and mitigating risk.
- National Public Transportation Safety Plan means the plan to improve the safety of all public transportation systems that receive Federal financial assistance under 49 U.S.C. Chapter 53.
- Occurrence means an Event without any personal injury in which any damage to facilities, equipment, rolling stock, or infrastructure does not disrupt the operations of a transit agency.
- Operator of a public transportation system means a provider of public transportation as defined under 49 U.S.C. 5302(14).
- Performance measure means an expression based on a quantifiable indicator of performance or condition that is used to establish targets and to assess progress toward meeting the established targets.
- Performance target means a quantifiable level of performance or condition, expressed as a value for the measure, to be achieved within a time period required by the FTA.
- Risk means the composite of predicted severity and likelihood of the potential effect of a hazard.
- Risk mitigation means a method or methods to eliminate or reduce the effects of hazards.
- Safety Assurance means processes within a transit agency's Safety Management System that
- functions to ensure the implementation and effectiveness of safety risk mitigation, and to ensure that the transit agency meets or exceeds its safety objectives through the collection, analysis, and assessment of information.
- Safety Management Policy means a transit agency's documented commitment to safety, which defines the transit agency's safety objectives and the accountabilities and responsibilities of its employees in regard to safety.

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- Safety Management System (SMS) means the formal, top-down, organization-wide approach to managing safety risk and assuring the effectiveness of a transit agency's safety risk mitigation. SMS includes systematic procedures, practices, and policies for managing risks and hazards.
- Safety Management System (SMS) Executive means a Chief Safety Officer or an equivalent.
- Safety performance target means a performance target related to safety management
- activities.
- Safety Promotion means a combination of training and communication of safety information to support SMS as applied to the transit agency's public transportation system.
- Safety risk assessment means the formal activity whereby a transit agency determines Safety Risk Management priorities by establishing the significance or value of its safety risks.
- Safety Risk Management (SRM) means a process within a transit agency's Agency Safety Plan for identifying hazards and analyzing, assessing, and mitigating safety risk.
- Serious injury means any injury which: (1) requires hospitalization for more than 48 hours, commencing within 7 days from the date when the injury was received; (2) results in a fracture of any bone (except simple fractures of fingers, toes, or noses); (3) causes severe hemorrhages, nerve, muscle, or tendon damage; (4) involves any internal organ; or (5) involves second- or third-degree burns, or any burns affecting more than 5 percent of the body surface.
- Transit agency means an operator of a public transportation system.
- Transit Asset Management Plan means the strategic and systematic practice of procuring, operating, inspecting, maintaining, rehabilitating, and replacing transit capital assets to manage their performance, risks, and costs over their life cycles, for the purpose of providing safe, cost effective, and reliable public transportation, as required by 49 U.S.C. 5326 and 49 CFR Part 625.

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List of Acronyms Used in the Safety Plan

- ASP - Agency Safety Plan
- CAP - Corrective Action Plan
- CEO - Chief Executive Officer
- ESRP - Employee Safety Reporting Program
- FTA - Federal Transit Administration
- BUS ASP - Public Transportation Agency Safety Plan
- SMP - Safety Management Policy
- SMS - Safety Management System
- SOP - Standard Operating Procedure
- SRM - Safety Risk Management
- TSI - Transportation Safety Institute
- U.S.C. - United States Code
- VRM - Vehicle Revenue Miles

APPENDICES

A. Bus Safety Committee Members
B. Bus Bylaws
C. Safety and Security Certification
D. Non-Union Frontline Employee Selection Process for the Bus Safety Committee
E. Annual Performance Targets for Bus (MB) and other related modes

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Appendix A:

Bus Safety Committee Members

Front Line Employees:

1. James Hinton – Maintenance Steward, SMART Local 1596, TMOC
2. Gia Lockhart – Bus Operator, Steward, SMART Local 1715, TMOC (Co-Chairperson)
3. Christy Kiser – Bus Operator, President, SMART Local 1715, TMOC
4. Yolanda Jackson (Interim Frontline*) – Steward, SMART Local 1715, TMOC

Management

1. Johnny Williams –Maintenance Superintendent, TMOC
2. Amerio Andre –Assistant Director of BOCC and Street, TMOC Bus Operations
3. Sterling Faggart - Manager of Bus Safety, CATS, City of Charlotte (Co-Chairperson)
4. Tasheena Spencer - Field Ops Manager, Special Transportation, CATS, City of Charlotte

Record/Secretary – Jerusalem Kyros (S&S Admin Assistant)

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Technical Experts:

Security – Kermit Watkins
Facilities – John Mrzygod, Nick Modrack
Safety – Henry Staten, Richard Jones (Senior Safety Coordinators)
Emergency Management – David Moskowitz (Director of Emergency Mgmt)
QA – Laura Johnson (QA Mgr)
Director of Operations, TMOC/WeDriveU - Beatrice Cutter
Human Resources – Stanley Thomas (Human Resource Manager)
Union Representative – Yolanda Jackson
Special Transportation Reservationist, CATS, City of Charlotte - Zach Smith

*Until STS frontline elections are conducted

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Appendix B:

Bus Safety Committee Bylaws

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September 2026
Initial Release

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DOCUMENT REVISION POLICY

These Bylaws rely on supporting documents from the Charlotte Area Transit System (CATS) and other external sources. Any revisions require the same approval process as the original Bylaws. Distributed copies are uncontrolled, and users should verify they are referencing the most current version.

DOCUMENT REVISION RECORD

Revision Number	Revision Date
Initial Release	July 2026

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Table of Contents

1. PURPOSE AND GOVERNANCE 673.19(c)(9) 4

1.1 Main Purpose 4

1.2 Roles and Responsibilities 4

1.2.1 Representatives 673.19(a)(1)(2) 4

1.2.2 Compensation 673.19(c), 673.19(c)(4) 5

1.2.3 Officers 5

2. MEETING AGENDAS AND MINUTES 673.19(C)(2) 6

2.1 Meetings 6

3. TRAINING 673.19(C)(3) 8

4. ACCESS TO TECHNICAL EXPERTS AND RESOURCES (673.19(C)(5) 8

5. VOTING AND DECISION MAKING (673.19(C)(6)) 9

6. COMMUNICATION WITH ACCOUNTABLE EXECUTIVE (673.19(C)(7)) 10

7. DISPUTE RESOLUTION 673.19(C)(8) 11

7.1 Identification Of Dispute 11

7.2 Documentation 12

7.3 Initial Review and Discussion 12

7.4 Escalation Process 12

8. EXECUTION OF RESPONSIBILITIES 673.19(C)(9) 13

9. ASP APPROVAL PROCESS 673.19(D)(1) 14

10. SAFETY PERFORMANCE TARGETS 673.19(D)(2) 14

11. HAZARD IDENTIFICATION AND MITIGATION TRACKING 673.19(D)(3) 15

11.1 SMS Support and Mitigation Tracking Operational Workflow Safety Issue Log 15

11.2 Safety Communication and Feedback 16

DRAFT

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1. PURPOSE AND GOVERNANCE

49 CFR §673.19(c)(9)

The purpose of the Bus Safety Committee (BSC) is to support safe and secure bus operations for employees, passengers, contractors, and the public. The committee works collaboratively to identify hazards, improve safety practices, support regulatory compliance, and promote a strong safety culture throughout the Charlotte Area Transit System (CATS), in accordance with S&S23.

Goal

The goal of the BSC is to improve safety and security by identifying hazards, supporting compliance, encouraging teamwork, and promoting continuous improvement through training, communication, and Safety Management System (SMS) practices.

1.1 Main Purpose

The BSC shall:

1. Identify and evaluate bus safety and security issues
2. Review hazard assessments and recommend mitigations
3. Review and approve the Agency Safety Plan (ASP) and applicable updates
4. Set annual safety performance targets for the Safety Risk Reduction Program
5. Support the operation of the CATS Safety Management System (SMS).

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1.2 Roles and Responsibilities

1.2.1 Representatives

49 CFR §673.19(a)(1)(2)

For the purposes of this committee, the following definitions for frontline and management employees will apply:

Frontline employees are employees whose primary duties directly support, operate, maintain, control, inspect, secure, or respond to the day-to-day operation of the public transportation system and who are routinely exposed to operational safety hazards within the transit environment.

Management employees are employees designated by the transit agency who have supervisory, managerial, administrative, technical, or executive responsibility for the oversight, implementation, support, or governance of transit operations, maintenance, safety, security, training, asset management, or other functions that influence the safety performance of the public transportation system.

The CATS BSC, in accordance with Federal Transit Administration (FTA) guidelines, shall be composed of 50% management representatives and

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50% frontline employee representatives. The committee shall include four (4) frontline members: three (3) union representatives from the SMART Union—one (1) from Local 1596 and two (2) from Local 1715—and one (1) representative from Special Transportation Services (STS). Union frontline members shall be appointed by Union leadership, while the STS frontline representative shall be selected by a worker-selection mechanism established for Special Transportation Services (STS) frontline employees, consistent with 49 CFR 673.19(b)(2). (Reference appendix C)

The CATS management membership shall consist of four (4) representatives appointed by the CATS Chief Safety and Security Officer (CSSO). To the extent practicable, the Safety Committee shall also include frontline transit worker representatives from both operations and maintenance at each bus garage.

CATS Chief Safety and Security Officer (CSSO) and union leadership shall each select committee Co-Chairs for the BSC. The Co-Chairs will share the duties as chairperson. *673.19 (c)1*

The Co-Chairs shall designate a primary representative and an alternate representative for front line employees and management. Alternates may participate and vote in the absence of the primary representative.

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1.2.2 Compensation

49 CFR §673.19(c), 49 CFR §673.19(c)(4)

If committee members participate in meetings, training, or other BSC activities outside of their normal work hours, they shall be compensated in accordance with the CATS compensation policy or the applicable TMOC collective bargaining agreement.

1.2.3 Officers

The BSC officer structure includes:

Co-Chairs and Secretary

The Secretary position will be filled by the Safety and Security admin assistant.

1.2.3.1 Duties of the Co-Chairs

- Schedule committee meetings
- Develop committee meeting agendas
- Facilitate committee meetings

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- Review and approve correspondence and reports
- Submit meeting minutes to the committee for review and approval
- Communicate committee decisions and updates regarding open safety issues to committee members and Bus leadership
- Lead committee and conduct other necessary activities to ensure that the committee's responsibilities are properly addressed
- Support execution of responsibilities identified within the ASP and SMS.

1.2.3.2 Duties Of The Secretary

- Assist with drafting and distributing the meeting agenda
- Recording and distributing meeting minutes
- Maintain committee records and documentation
- Maintain the BSC dispute log and safety issue tracking records
- Coordinate document distribution and retention activities
- Support the Chairperson and Vice-Chairperson in committee operations

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2. MEETING AGENDAS AND MINUTES

49 CFR §673.19(C)(2)

2.1 Meetings

Monthly schedule: The BSC will meet on the **4th Tuesday** of each month from 10:00 AM to 11:30 AM. unless otherwise rescheduled by the Co-Chairs.

Special meetings will be called by the Co-Charis or CSSO when necessary to address urgent safety concerns, hazards, safety events, or corrective actions.

Attendance and alternates: Each representative is required to attend meetings and other committee activities. Any representative unable to attend a meeting will have a designated alternate attend in their place, and they will be the voting member at that meeting.

Agenda:
The following process describes how agendas are developed: At least seven (7) calendar days prior to the scheduled meeting, the Secretary shall issue a digital call for agenda items to all committee representatives. All member submissions, hazard concerns, or mitigation updates must be submitted to the Secretary within

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forty-eight (48) hours of the call. Once items have been submitted for consideration, the Co-Chairs and Secretary shall develop the meeting agenda no fewer than five (5) calendar days prior to each scheduled meeting.

Meeting notices, agendas, previous meeting minutes, supporting safety documentation, and applicable voting materials shall be distributed electronically to committee members, alternates, invited participants, and the CSSO.

Recurring Agenda Sections:

- Call to order, welcome, and attendance
- Review and approval of prior meeting minutes
- Review of open safety concerns and hazard mitigations
- Review of Risk Register
- Corrective Action Plan (CAP) status updates
- Safety performance target reviews
- Safety event and investigation updates
- Safety Assurance and mitigation effectiveness monitoring activities
- New business and safety concerns
- Open discussion and unresolved safety issues

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The final agenda, along with the previous meeting's draft minutes, the updated Risk Register, and all applicable voting materials, shall be compiled into a single meeting packet. The Secretary shall distribute this packet electronically to all committee members, alternates, and the CSSO exactly three (3) business days prior to the scheduled meeting.

The Secretary shall record meeting minutes documenting attendance, motions, seconded motions, voting outcomes, dissenting opinions, mitigation recommendations, unresolved issues, assigned action items, implementation target dates, and committee determinations.

Draft meeting minutes shall be distributed within ten (10) business days following each meeting.

Approved meeting minutes, attendance records, voting records, dispute logs, mitigation tracking records, and supporting documentation shall be retained in accordance with 49 CFR §673.31 and the CATS record retention schedule for a minimum of three (3) years.

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3. TRAINING

49 CFR §673.19(C)(3)

All BSC members will receive the training necessary to fulfill their responsibilities under the Agency Safety Plan (ASP) and the Safety Management System (SMS). At a minimum, each member will receive:

- **Initial Onboarding Training:** Orientation to the ASP, SMS awareness, hazard identification methods, committee responsibilities, and applicable CATS safety procedures.
- **Annual Refresher Training:** Updates to the ASP, revisions to SMS processes, new safety tools, regulatory changes, and lessons learned from audits or investigations.
- **Specialized Training as Needed:** Additional training will be provided that is essential for effective participation. Specialized training will be facilitated by CATS Safety and Security or qualified internal/external instructors.

Training documentation and compliance will be maintained in accordance with the Safety record retention schedule.

By mutual consent, the Co-Chairs may revise the training activities required to be completed by new representatives or additional training for incumbent representation.

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4. ACCESS TO TECHNICAL EXPERTS AND RESOURCES

49 CFR § 673.19(C)(5)

To support Safety Risk Management (SRM), Safety Assurance (SA), and BSC deliberations, the committee may request technical experts, transit workers, operational data, audit information, safety analyses, inspection results, or other transit agency resources necessary to evaluate safety concerns or proposed mitigations. For the purposes of this committee, the following definitions will be applied:

- **Technical Experts:** Internal or external subject matter experts including, but not limited to, engineers, maintenance managers, operations supervisors, trainers, and safety professionals will be consulted, upon request and approval, to provide advisory input on complex safety issues.
- **Other Transit Workers:** Frontline transit workers with relevant operational expertise may be invited to participate or provide information in an advisory capacity when their insights are necessary to evaluate hazards or mitigations
- **Transit Agency Information and Resources:** The committee will have access to operational data, audits, inspections, procedures, training materials, and other information needed to support decisions.
- **Transit Worker Safety Reporting Program Submissions:** The BSC will review and incorporate relevant employee safety reports to ensure frontline feedback is included in hazard identification and risk assessment.

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The following process details how the safety committee will access technical experts and resources:

To request internal or external technical experts, operational data, or specific tools, Co-Chairs will submit a formal written request via email to the CSSO. The request must specify the safety issue under deliberation and the scope of expertise required.

Upon receipt of the request, the CSSO or designee will evaluate the request against internal resource availability and external contractual constraints within five (5) business days. If approved, the CSSO will coordinate the assignment of the expert or the extraction of the requested data within ten (10) business days. If a request must be modified or denied due to contractual unavailability, the CSSO will issue a written justification via email to the requesting Chairperson within five (5) business days, detailing alternative information streams or timelines to support the committee's needs.

Approved requests may include participation from:

- Frontline transit workers
- Operations personnel
- Maintenance personnel
- Engineering personnel
- Quality Assurance personnel
- Training personnel
- Security personnel
- Safety personnel
- External technical advisors or consultants

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The BSC will also review information from Risk Register, Internal Safety Reviews (ISRs), Corrective Action Plans (CAPs), transit worker safety reporting submissions, safety event investigations, audit reports, safety performance data, and Safety Assurance monitoring activities to support committee deliberations and mitigation recommendations.

All requests and dispositions shall be documented and retained with committee records.

5. VOTING AND DECISION MAKING

49 CFR § 673.19(C)(6)

No business shall be conducted nor any vote taken without a quorum present.

Voting quorum: For an eight-member committee, a quorum shall consist of at least four (4) voting members, provided equal frontline and management representation is maintained to the extent practicable.

Committee decisions shall be reached through formal motion to accept a safety action or mitigation must be voiced by a voting member, followed by an explicit second from another voting member, after which the Co-Chairs will open the floor for committee discussion. Following discussion, a roll-call vote will be taken.

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Approval requires a simple majority vote of voting members present once quorum requirements are satisfied.

The Secretary shall document all motions, voting results, abstentions, dissenting opinions, deferred items, mitigation recommendations, and committee determinations within the meeting minutes.

Safety concerns, corrective actions, mitigation recommendations, or unresolved issues not resolved during the meeting shall remain open agenda items and continue to be reviewed during subsequent meetings as an “Unresolved/Carried Over” item until a formal decision is reached or the item is officially escalated through the Section 7 Dispute Resolution process.

When immediate action is necessary between scheduled meetings, virtual or electronic voting will be conducted. Voting members shall be provided with a response period of five (5) business days unless emergency safety conditions require expedited action.

Electronic voting requests shall clearly identify:

- The issue under consideration;
- Any proposed action or mitigation;
- Supporting documentation, when applicable; and
- The deadline for the response.

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If a voting member does not respond within the established voting period, the non-response shall be recorded as concurrence with the proposed action unless the member has previously notified the Co-Chairs or Secretary of an inability to participate.

Electronic voting results, including participating members, non-responses, and final determinations, shall be documented in the next scheduled meeting minutes.

6. COMMUNICATION WITH ACCOUNTABLE EXECUTIVE

49 CFR §673.19(C)(7)

The BSC shall coordinate and communicate with the Accountable Executive, Metropolitan Public Transportation Authority (MPTA), executive leadership, as necessary, regarding safety concerns, mitigation recommendations, corrective actions, safety performance targets, and Safety Management System (SMS) activities.

Requests for participation by executive leadership, MPTA and Safety Committee members, or other agency personnel, shall be initiated by the Co-Chairs through written communication submitted to the CSSO or designee.

Safety risk mitigations recommended by the BSC shall be submitted to the Accountable Executive through the CSSO or designee for review and consideration.

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When the BSC recommends a safety risk mitigation associated with the Safety Risk Reduction Program, the mitigation shall be incorporated into the Agency Safety Plan (ASP), or incorporated by reference, in accordance with 49 CFR §§673.11(a)(7)(iv) and 673.25(d)(5).

When the BSC recommends a safety risk mitigation unrelated to the Safety Risk Reduction Program and the Accountable Executive determines that the mitigation will not be implemented, the Accountable Executive shall prepare a written statement explaining the decision in accordance with 49 CFR §673.25(d)(6).

The written explanation shall:

- Identify the recommended mitigation
- Explain the basis for the decision
- Identify alternative actions or mitigations being considered
- Be presented to the BSC

High or severe safety risks that cannot be resolved through normal CSSO processes shall be escalated to the CSSO, then to the Accountable Executive, and, when necessary, to the MPTA for awareness, executive coordination, resource support, or implementation direction.

The BSC Co-Chairs shall document identified hazards, mitigation recommendations, implementation decisions, escalation activities, and mitigation status updates within committee records, meeting minutes, Risk Register, Corrective Action Plan (CAP) records, or other applicable tracking mechanisms.

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The Accountable Executive and/or MPTA may be requested to attend BSC meetings to provide immediate guidance, coordination, or executive support regarding significant safety concerns, unresolved mitigation activities, resource constraints, or high-risk operational conditions.

BSC members retain the right to communicate urgent safety concerns directly to CATS CSSO and the BSC Co-Chairs when immediate awareness or action is necessary to support the safety of the public transportation system.

The Accountable Executive retains final authority regarding agency implementation decisions associated with the SMS and ASP but shall not serve as the final decision-maker for internal BSC disputes governed under Section 7.

7. DISPUTE RESOLUTION

49 CFR §673.19(C)(8)

The BSC shall follow a structured process to identify, document, and resolve disputes related to safety risks, mitigations, or compliance decisions.

7.1 Identification Of Dispute

A dispute is defined as a disagreement among Committee members regarding:

- Safety risk identification or assessment

- Proposed safety risk mitigations
- Implementation of corrective actions
- Compliance with regulatory requirements or internal policies

Any Committee member may formally raise a dispute during a scheduled meeting or by submitting it in writing to the Co-Chairs.

7.2 Documentation

All disputes shall be documented within the formal BSC Dispute Log maintained by the Secretary.

The dispute log shall include:

- Description of the issue
- Stakeholders involved
- Applicable hazard or mitigation information
- Supporting data or regulatory references
- Proposed recommendations or positions

The dispute log shall be maintained with committee records in accordance with 49 CFR §673.31 and the CATS record retention schedule.

7.3 Initial Review and Discussion

The BSC shall review disputes during scheduled meetings and evaluate supporting information, risk assessments, operational impacts, maintenance impacts, and applicable regulatory requirements.

The committee shall attempt to reach consensus through discussion and collaboration.

7.4 Escalation Process

If consensus cannot be reached, the BSC will utilize an agreed-upon dispute resolution process, mediation process, or applicable labor-management resolution process to facilitate resolution.

Upon requesting an approval, the CSSO, Risk Management personnel, legal counsel, technical experts, or other subject matter experts will provide advisory support or technical clarification; however, final dispute resolution authority shall remain within the agreed-upon BSC dispute resolution process.

The Accountable Executive shall not serve as the final decision-maker for BSC disputes in accordance with 49 CFR §673.19(c)(8).

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8. EXECUTION OF RESPONSIBILITIES

49 CFR §673.19(C)(9)

The BSC shall carry out its responsibilities in accordance with 49 CFR Part 673, the CATS Agency Safety Plan (ASP), and the CATS Safety Management System (SMS).

To support the execution of its responsibilities, the BSC shall routinely review:

- Risk Register
- Safety Risk Assessments
- Internal Safety Review (ISR) reports
- Corrective Action Plans (CAPs)
- Safety event investigation findings
- Transit worker safety reporting submissions
- Safety performance data and trends
- Near miss reporting trends
- Mitigation implementation status reports
- Safety Assurance monitoring activities

The BSC shall:

- Review and approve the ASP and any updates prior to submission to the Metropolitan Public Transportation Authority (MPTA) or equivalent authority.
- Set annual safety performance targets for the Safety Risk Reduction Program based on National Transit Database (NTD) data and applicable regulatory requirements.
- Identify and recommend safety risk mitigations necessary to reduce the likelihood and severity of potential consequences identified through Safety Risk Management activities.
- Identify safety risk mitigations that may be ineffective, inappropriate, or not implemented as intended.
- Identify safety deficiencies for purposes of continuous improvement.
- Monitor mitigation implementation activities and mitigation effectiveness.
- Review instances where annual safety performance targets were not achieved; and
- Recommend additional mitigation strategies necessary to improve safety performance.

When annual safety performance targets are not achieved, the BSC shall coordinate with the Safety Department to:

- Assess associated safety risk using the Safety Risk Management process
- Recommend additional mitigations
- Monitor implementation activities
- Track mitigation effectiveness
- Continue monitoring activities until the identified safety risk is reduced to an acceptable level or performance improves

All mitigation recommendations, implementation target dates, responsible departments, follow-up activities, and mitigation effectiveness reviews shall be documented within committee records maintained by the Secretary

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9. ASP APPROVAL PROCESS

49 CFR §673.19(D)(1)

The following process describes how the committee will review and approve the ASP:

- **Step 1 (Initiation)**: On or before October 1st of each year, the Safety Department shall compile all proposed revisions, state audit findings, and corrective actions affecting the ASP into an 'Annual ASP Revision Draft' and deliver it to the Co-Chairs.
- **Step 2 (Distribution)**: The Secretary shall distribute a digital copy of the Annual ASP Revision Draft via email to all active frontline and management committee members at least seven (7) calendar days prior to the scheduled October voting session.
- **Step 3 (Deliberation):** During the October session, a Co-Chair shall open a formal floor discussion to review changes. Committee members submit verbal or written amendments, which the Secretary will record in the meeting minutes.
- **Step 4 (Voting):** Following deliberation, a formal motion to approve the revised ASP must be made, seconded, and passed by a majority vote of a verified quorum. If rejected, the Safety Department has five (5) calendar days to address objections and resubmit the draft for an extraordinary virtual session.
- **Step 5 (Submittal to Accountable Executive):** Within two (2) business days of committee approval, ASP will be submitted to the Accountable Executive for final signature.
- **Step 6 (Submittal to MPTA)**: Accountable Executive forwards approved ASP to MPTA for review.

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10. SAFETY PERFORMANCE TARGETS

49 CFR §673.19(D)(2)

The following process describes how the committee will set annual safety performance targets to include those targets associated with the safety risk reduction program:

- **Step 1 (Data Extraction):** By September 1st, the SMS team shall extract the trailing three (3) years of verified bus safety performance metrics and submit it to the Secretary for the distribution of this package to the committee.
- **Step 2 (Gap Analysis):** At the September monthly meeting, the committee shall compare current-year performance against existing targets to identify negative trends or missed benchmarks.
- **Step 3 (Target Drafting):** Working in equal coordination, frontline and management members shall draft revised safety performance targets for the Safety Risk Reduction Program (SRRP) aimed at reducing risk to the lowest acceptable level.
- **Step 4 (Approval and Logging):** The proposed targets must be ratified by a majority quorum vote during the September meeting. Once approved, the Secretary shall log the targets in the meeting minutes and append them to the ASP. The CSSO will ensure these targets are included in the final ASP submittal to the MPTA for review and approval.

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11. HAZARD IDENTIFICATION AND MITIGATION TRACKING

49 CFR §673.19(D)(3)

The BSC shall systematically review identified hazards and associated mitigation strategies intended to reduce the likelihood and severity of potential consequences.

The committee shall monitor mitigation effectiveness and identify deficiencies requiring corrective action or continuous improvement.

The committee will encourage employees to identify health and safety hazards in the workplace. Concerns raised by employees can be reported to the Bus Safety Committee through their representative.

The following process describes how the committee will support the operation of the transit agency's SMS:

11.1 SMS Support and Mitigation Tracking Operational Workflow Safety Issue Log

To support the continuous operation of the CATS Safety Management System (SMS), the committee shall process, assess, and evaluate risk mitigations using a standardized monthly four-step workflow:

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- **Step 1: Joint Hazard Identification [§ 673.19(d)(3)(I)]**

  Process: During the first week of every month, the SMS Liaison shall extract all newly submitted hazard items which shall be compiled into an 'BSC Monthly Hazard Review List' and sent to all members.

- **Step 2: Risk Indexing and Prioritization [§ 673.19(d)(3)(I)]**

  Process: At each monthly session, the committee shall review the risk assessments prepared by the Management System Team under S&S23, applying the CATS Safety Risk Assessment Matrix (S&S23 Appendix B), and shall recommend risk prioritization.

- **Step 3: Formulation and Recommendation of Mitigations [§ 673.19(d)(3)(I)]**

  Process: For hazards rated Unacceptable or Undesirable per S&S23 Appendix B, the committee shall review and recommend mitigation controls. *Timeline & Responsibility*: The committee shall vote to approve a formal Safety Recommendation Memo. The Secretary shall log the approved mitigation, assign it a unique tracking ID, designate the responsible department head for implementation, and establish a firm target completion date within the Risk Register (per S&S23 sec 6.5).

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- **Step 4: Continuous Evaluation and Monitoring of Implemented Mitigations [§ 673.19(d)(3)(ii)-(iii)]**

  Process: On a quarterly basis, the committee shall review previously implemented mitigations recorded in the Risk Register to evaluate their performance. The committee shall review field data, subsequent worker reports, and operational feedback to determine if a mitigation is ineffective, inappropriate, or was not implemented as intended.

  Timeline & Close-Out: If a mitigation is found to be performing as intended, the committee will vote to transition the item to 'Closed' status in the log. If it is deemed ineffective, or if an annual safety performance target was missed due to its failure, the item will be automatically reopened, re-indexed under Step 2, and a revised mitigation strategy must be developed within thirty (30) calendar days.

This is in accordance with S&S23 sec 6.5 Monitoring Mitigation Implementation as follows;

- Minimum verification frequency: open mitigations shall be reviewed for implementation status at each monthly working committee meeting until confirmed complete. High-severity (Catastrophic/Critical) mitigations shall be verified within 30 days of the assigned implementation target date.
- Where a mitigation is found not to have been implemented timely as intended, the condition shall be escalated to Management, assigned a corrective action through the CATS Corrective Action Program, and retained as an open item in the Risk Register.
- Implementation status of open mitigations is reviewed monthly by the Bus Safety Committee (Joint Labor-Management Safety Committee), consistent with 49 CFR 673.19(d)(3)(ii)-(iii).

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11.2 Safety Communication and Feedback

The BSC shall support Safety Promotion activities by communicating relevant safety information throughout the organization consistent with 49 CFR §673.29.

Committee activities, hazard trends, mitigation updates, CAP activities, safety performance information, and committee recommendations are communicated throughout the agency using the following established communication tools through:

- Committee meeting minutes;
- Safety bulletins;
- Employee safety meetings;
- Toolbox talks;
- Safety alerts;
- Department briefings;
- Operational notices; and
- Other approved agency communication methods.

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The BSC shall review safety concerns and feedback submitted through the transit worker safety reporting program and ensure that relevant safety actions taken in response to reported concerns are communicated to affected departments and frontline employees when appropriate.

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Appendix C: Safety and Security Certification

Safety and Security Certifications

The CATS safety and security certification process is used to ensure that safety concerns and hazards are adequately addressed prior to the initiation of passenger operations for new start projects and subsequent major projects to extend, rehabilitate, or modify our existing system, and to replace vehicles and equipment. Major Capital Projects are defined as $100 million or greater by the FTA, but the administrator may apply this process for Federal funded projects under $100 million. The process also applies to all other projects determined by CATS' Office of Safety and Security to be of sufficient significance to require formal safety and security certification. CATS' processes for safety and security certification are based on FTA's Handbook for Safety and Security Certification (2002) and CATS' own configuration management plans and procedures. Separate safety and security certification plans are developed for each identified project.

During the performance of hazard analyses, as part of Safety and Security Certification Process, CATS identifies Category 1 Catastrophic and Category 2 Critical hazards. These hazards constitute the Safety Critical Items List (SCIL), a subset of the CIL, to provide visibility of these issues and to verify monitoring and control. The Office of Safety and Security updates the CIL to reflect the status of all hazards, prioritizing Category 1 and 2 hazards. The SCIL and CIL are published and managed until all hazards have been eliminated, reduced, or controlled to acceptable levels. System changes and modifications are not to be made without first being reviewed and approved by the SSRC.

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A separate Safety and Security Certification Plan (SSCP) is developed for new start projects and major projects in accordance with the FTA's Handbook for Safety and Security Certification (2002). CATS will comply with FTA's Circular 5800.1, FTA's Project and Construction Management Guidelines, and 49 CFR Part 633.

CATS is a self-certifying agency except in cases where the required expertise to oversee the safety and security certification process is not available among CATS staff in the estimation of the Chief Safety and Security Officer. In those cases, qualified consulting services may be retained to perform the certification according to FTA standards. Although CATS may contract out safety and security certification services, CATS maintains the responsibility to report to the FTA their acceptance and endorsement of the work performed under the safety and security certification process. To facilitate coordination between Transit Authority Governing Body and CATS, CATS has designated and assigned a project liaison for each CATS major project. This includes coordination and submittal of project reports. The report requirements and frequency will be established through joint collaboration.

Certifiable Components

These components are broken down into four major categories:

1. Facilities/Equipment
2. Systems

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3. Integrated Test Requirements
4. Operational Requirements

The certifiable components for a project are defined by reviewing the project design criteria manual, project management plan (PMP), and like project-related documents such as the CILs and specifications.

All major contractor and manufacturer audits, inspections, and tests where the safety and security of customers and/or employees, equipment, or facilities could be affected by the improper or incorrect construction or manufacture of system components. These audits, inspections, and tests cover both facilities and system components. Included are First Article Inspections, Mockup Reviews, Qualification Tests, Performance Tests, and Acceptance Tests. The integrated tests are developed to verify the integration and compatibility of equipment, facilities, and operation/maintenance procedures to function together under normal, abnormal, and emergency situations. This includes verifying the coordination, response, environmental constraints, and capabilities of CATS and outside agencies.

The safety and security certifiable components in each construction package are certified independently once all sub-element and sub-item submittals are received, reviewed, signed off by the appropriate construction staff, and verified. Any “Open Items” that remain in effect with operational restrictions are documented and attached to the components certificate. The restriction(s) must have been resolved (or workarounds / operating restrictions put in place) and approved by the SSRC.

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The Project Safety and Security Certificate is prepared by the Office of Safety and Security and reviewed/approved by the SSRC once all the construction packages have safety and security certificates, transportation and maintenance personnel have been trained, emergency response personnel have been prepared to respond to emergency situations in or along bus facilities, paying particular attention to electric bus fleet and surrounding infrastructure. The overall project certificate and cover letter are presented to the CATS CEO for signature by the Chief Safety and Security Officer. The certificate’s signature provides a formal notification that the applicable portion of the operating system is safe and secure for revenue service. Any “Open Items” that remain in effect with operational restrictions are documented SCIL and attached to the System Safety and Security Certificate. The restriction(s) must have been resolved (or workarounds / operating restrictions put in place) and approved by the SSRC.

Hazard Resolution for Projects

The hazard resolution process can be applied throughout the five phases of the system life cycle.

Phase 1 - Planning
Phase 2 - Design
Phase 3 - Construction
Phase 4 - Operations

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Phase 5 – Disposal

Identification of hazards is the responsibility of all divisions and is key to system safety. Hazards that are identified are analyzed for severity, frequency, and cost feasibility of remedial action required to eliminate or reduce the hazard to the lowest practical level. Hazard identification defines conditions and faults which have the potential for causing an accident. The CATS Office of Safety and Security verifies that mechanisms are in place for identifying and reporting hazards on the system.

Assessment of a hazard is based on the probability of occurrence and the severity of an event. Hazards with greater severity or probability to cause serious injury to have a greater need for immediate resolution. Hazard resolution is the corrective action taken in response to the hazard identification and assessment process, but time and resource restrictions may determine the level of resolution that can be accomplished. The following are actions for hazard resolution:

- Eliminate the hazard if possible.
- Install protective devices/measures to reduce the hazard.
- Provide training to educate the workforce of possible hazards.
- If the hazard cannot be eliminated, reduce exposure to it.

Hazard analysis encompasses a set of methodologies that first searches throughout the system for the potential to do harm. Having found such hazards, further analysis attempts to control any hazard at an acceptable level. However, to do so first requires an understanding of the causes of the hazards.

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Hazard analysis attempts to determine the set of primary events in the hazard generation process. Upon identification of these events, CATS will seek to mitigate, control, or eliminate the generation of hazards in ways that can reduce their risk to an acceptable level.

Hazard analysis also attempts to reduce the severity of accident events by introducing protective devices and equipment, procedures and/or forms, or system modifications that reduce the amount of human and property damage in an accident event. The objective of hazard identification and analysis is to identify and define as many hazardous conditions as possible and enter them into the Hazard Resolution process before those conditions or associated activities cause an accident, injury, death, or other loss.

While identifying every hazard is unlikely, the historical rail and bus passenger accident experience is a reliable source of input information that aids in the identification and capturing of hazards. CATS also uses inspections and checklists to identify hazards. For potential hazards during design of projects, we do hazard analysis as described in the Preliminary Hazard Analysis and mitigated hazards are moved to the Operational Hazard Analysis for CATS projects.

CATS uses the hazard identification and analysis process in the areas of System Safety, Environmental Protection, Design, and Procurement before purchasing and accepting new equipment and modifications of existing facilities, systems, or rolling stock. When safety

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certification is required, CATS uses qualified consulting services to verify that new or overhauled equipment, facilities, and rolling stock meet its safety requirements.

Managing Safety in System Modifications

Changes and/or modifications, including non-permanent system changes or modifications made to CATS' existing systems, vehicles, facilities, and equipment that have the potential to adversely impact customer, employee, public, and/or system safety or security, but do not require safety certification (as determined by CATS' Office of Safety and Security), are subject to CATS' hazard management program. Such changes and modifications must be accomplished in a controlled manner to ensure that safety is incorporated into the project designs, plans, and procedures developed to implement the system change or modification. Such changes and modifications must also be performed in accordance with CATS plans and applicable CATS procedures such as CATS *EX06 Project Management Planning* and Project Management Plans, BOD and STS Change Control Procedure and Configuration Change Control Procedure.

Any division or section initiating a change must inform the CATS Office of Safety and Security and any other affected division or section, so they may review possible impacts, including safety or security impacts, resulting from the proposed change or modification. The Office of Safety and Security may determine that safety analyses are required as part of the change/modification design process. CATS Quality Assurance has oversight responsibility for changes to policies and procedures and enforcement of review by affected divisions/sections.

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Organizations providing professional services, architectural / engineering design, construction, or construction management to CATS are required to provide a Quality Assurance/Quality Control Plan (QAP) that defines the administrative and control measures appropriate for their respective scope of services.

Managing Safety in Procurement

CATS shall ensure that any purchased product conforms to specified purchase requirements. The type and extent of control applied to the supplier and the purchased product shall be dependent upon the effect of the purchased product.

Procurement actions are conducted in accordance with all applicable Federal, State, and local laws, regulations, and policies. CATS conforms to the current procurement ordinances, policies and/or procedures adopted by the Council of the City of Charlotte or the Charlotte City Manager.

The Transit Asset Management Program Manager oversees the Asset Management and State of Good Repair requirements set forth by FTA TAMS requirements and will submit quarterly to the Chief Safety Officer. The Development Division is responsible for CATS' TAM Plan compliance with FTA.

The TAM Manager shall provide the Office of Safety and Security department a monthly report regarding all Bus capital assets.

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The City Council has full budget and signature authority for all contracts. The authority to sign contracts for normal operations, supplies, and service contracts has been delegated to the City Manager or his/her designee, the Department Director or his/her designees, or the Chief Procurement Officer, based on the total dollar amount of the contract.

The Chief Procurement Officer has primary responsibility for procurement and contract administration, including issuing and compliance, with CATS Procurement Policies and Procedures.

CATS Procurement Manual details the requirements for all important activities, such as preparation of purchase orders, contracts for services, bid lists, vendor quality requirements, and contract file maintenance.

CATS CEO, project managers, and other key personnel have primary responsibilities, contributor/support responsibilities, or approval authority for specified aspects of the procurement function based on the scope of the contract. Responsibilities are identified in the Procurement Manual.

Large procurements need to be planned during the budget preparation cycle to ensure specifications and contract awards are not driven by budget. All procurements must have an accurate detailed estimate prior to solicitation.

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Large projects (over $100,000) require a PMP that identifies project team members including the Office of Safety and Security. The Procurement Service Request (PSR) identifies whether a PMP is required. The Office of Safety and Security identify the level of safety certification for the project in the PMP. Safety and security design criteria and standards are integrated into all project designs, unless determined otherwise by the Chief Safety and Security Officer.

Planning for procurement and contracts entails considering safety, as well as technical, business, and management requirements in controlling acquisition from inception to completion.

The purchasing process begins with the preparation of a specification and PSR that is then submitted to City Procurement. For hazardous materials, safety items, personal protective equipment, safety products/systems, and service contracts, the Office of Safety and Security will review and approve the PSR prior to the processing of the purchase order.

City Procurement works in conjunction with all CATS divisions and applicable City of Charlotte Departments and utilizes existing city contracts for all purchasing contracts. When purchasing personal protective equipment (PPE) for employees, controlling chemicals and other hazards in the workplace, mandating safety requirements in specific contracts, and requiring compliance from specific vendors with CATS safety requirements, the Office of Safety and Security is consulted and reserves the right of approval.

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Those specifying requirements for purchased products and services are responsible for ensuring that products and services meet requirements specified in the procurement information. When products or services are received that do not meet requirements, employees are expected to work with Procurement to arrange a return or adjustment as appropriate. CATS QA works with Procurement and key suppliers to ensure that suppliers have the capability to meet specified requirements.

The Bus Inventory Management Manual addresses the visual inspection of parts prior to placing in inventory.

CATS currently utilizes the SPEAR Maintenance and Material Management System (MMMS) to effectively track all parts procurement, work orders, vendor technical bulletins, recall notices, and end user defect comments. Currently, the SPEAR MMMS keeps an active log of this information, which is retained for configuration management purposes.

The Office of Safety and Security has identified requirements to include in contract documents for contractors working on CATS property.

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Appendix D: Non-Union Frontline Employee Selection Process for the Bus Safety Committee

Special Transportation Service (STS) frontline employees are non-union employees and are therefore subject to the requirements of 49 CFR § 673.19(b)(2).

The following process establishes the formal mechanism by which non-union frontline employees select their representative(s) to serve on the Bus Safety Committee.

Call for Self-Nominations/Volunteers

A call for frontline employee self-nominations and volunteers to serve on the Bus Safety Committee will be announced on the first Monday in August of each election year through bulletin board postings, employee monitors, and company email.

Frontline employees interested in workplace safety may submit an application to serve on the Bus Safety Committee. The nomination period will remain open for 90 days and will close on the last Friday in October.

The application submission process will be included with the announcement. One position is available for election.

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Election Process

An election notice will be posted on the first Monday in November. Voting will open to frontline employees on the first Monday in December and will remain open through the following Monday to provide employees with sufficient opportunity to participate.

The elected representative will begin their term on the first Monday in January. Each term of service will be 36 months.

The election process will be included with the announcement.

Special Election Process – Vacant Committee Position

If an elected non-union frontline employee representative resigns, separates from employment, or otherwise becomes unable or ineligible to serve on the Bus Safety Committee before completing their 36-month term, the position will be considered vacant.

A special election will be conducted to fill the vacant position unless the vacancy occurs within six months of the next regular scheduled election. (Reference interim appointment below)

The special election process will follow an abbreviated nomination and voting process consistent with the procedures outlined in this Appendix.

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A notice announcing the vacancy and calling for self-nominations and volunteers will be posted to frontline employees within 30 days of the position becoming vacant. The nomination period will remain open for a minimum of 30 calendar days.

Following the nomination period, an election notice will be posted for a minimum of 14 calendar days, and all eligible non-union frontline employees will be provided an opportunity to vote. Voting will remain open for a minimum of seven calendar days to provide employees with sufficient opportunity to participate.

The candidate receiving the highest number of votes will be selected to fill the vacant position.

The individual elected through the special election will serve only the remainder of the original 36-month term and will not begin a new 36-month term. At the conclusion of the original term, the position will be subject to the regular election process outlined in this Appendix.

Vacant Committee Position – Interim Appointment

If the vacancy occurs within six months of the next regular election, a special election will not be conducted. Instead, the Bus Safety Committee may designate a qualified non-union frontline employee to serve as an interim representative until the next regularly scheduled election. The interim representative will serve only until the elected representative assumes the position following the regular election and will not extend or otherwise affect the original 36-month term.

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Eligibility Requirements

To be eligible for election, an employee must:

- Be a full-time frontline employee.
- Have at least one year of consecutive service as a frontline employee.
- Be an employee in good standing.
- Be willing and able to fulfill the responsibilities of serving on the Bus Safety Committee.

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Appendix E: Annual Performance Targets for Bus (MB) and other related modes

Microtransit Safety Performance Measures

Microtransit				
Safety Performance Measure #1: Major Events				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Event Total	0	0	0	0

Microtransit				
Safety Performance Measure #2: Major Event Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Event Total	0	0	0	0
Rate: (Events/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #3: Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Collision Total	0	0	0	0
Rate: (Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #4: Pedestrian Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Pedestrian Collision Total	0	0	0	0
Rate: (Pedestrian Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

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Microtransit				
Safety Performance Measure #5: Vehicular Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Vehicle Collision Total	0	0	0	0
Rate: (Vehicular Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #6: Fatalities				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Fatalities Total	0	0	0	0

Microtransit				
Safety Performance Measure #7: Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Fatalities Total	0	0	0	0
Rate: (Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #8: Transit Worker Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Transit Worker Fatalities Total	0	0	0	0
Rate: (Transit Worker Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #9: Injuries				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Injuries Total	0	0	0	0

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Microtransit				
Safety Performance Measure #10: Injury Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Injuries Total	0	0	0	0
Rate: (Injuries/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #11: Transit Worker Injury Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Transit Worker Injuries Total	0	0	0	0
Rate: (Transit Worker Injuries/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #12: Assaults on Transit Workers				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Assaults On Transit Worker Total	0	0	0	0

Microtransit				
Safety Performance Measure #13: Rate of Assaults on Transit Workers				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Assaults On Transit Worker Total	0	0	0	0
Rate: (Assaults on Transit Workers/VRM X 100,000)	0.00	0.00	0.00	0.00

Microtransit				
Safety Performance Measure #14: System Reliability				
Goal / Target: 0.0 failures per 20,000 VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	0	0	311,182	311,182
Major Mechanical Failures Total	0	0	0	0

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Rate: (Major Mechanical Failures/VRM X 20,000)	0.00	0.00	0.00	0.00

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Vanpool Safety Performance Measures

Vanpool				
Safety Performance Measure #1: Major Events				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Event Total	0	0	0	0

Vanpool				
Safety Performance Measure #2: Major Event Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Event Total	0	0	0	0
Rate: (Events/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #3: Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Collision Total	0	0	0	0
Rate: (Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #4: Pedestrian Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Pedestrian Collision Total	0	0	0	0
Rate: (Pedestrian Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

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Vanpool				
Safety Performance Measure #5: Vehicular Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Vehicle Collision Total	0	0	0	0
Rate: (Vehicular Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #6: Fatalities				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Fatalities Total	0	0	0	0

Vanpool				
Safety Performance Measure #7: Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Fatalities Total	0	0	0	0
Rate: (Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #8: Transit Worker Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Transit Worker Fatalities Total	0	0	0	0
Rate: (Transit Worker Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #9: Injuries				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Injuries Total	0	0	0	0

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Vanpool				
Safety Performance Measure #10: Injury Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Injuries Total	0	0	0	0
Rate: (Injuries/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #11: Transit Worker Injury Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Transit Worker Injuries Total	0	0	0	0
Rate: (Transit Worker Injuries/VRM X 100,000)	0.00	0.00	0.00	0.00

Vanpool				
Safety Performance Measure #12: Assaults on Transit Workers				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Assaults On Transit Worker Total	12	0	0	12

Vanpool				
Safety Performance Measure #13: Rate of Assaults on Transit Workers				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Assaults On Transit Worker Total	12	0	0	12
Rate: (Assaults on Transit Workers/VRM X 100,000)	2.32	0.00	0.00	0.84

Vanpool				
Safety Performance Measure #14: System Reliability				
Goal / Target: 0.0 failures per 20,000 VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	516,525	491,881	422,918	1,431,324
Major Mechanical Failures Total	0	0	0	0

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Rate: (Major Mechanical Failures/VRM X 20,000)	0.00	0.00	0.00	0.00

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Special Transportation Service Safety Performance Measures

Special Transportation Service				
Safety Performance Measure #1: Major Events				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Event Total	5	8	3	16

Special Transportation Service				
Safety Performance Measure #2: Major Event Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Event Total	5	8	3	16
Rate: (Events/VRM X 100,000)	0.27	0.41	0.14	0.27

Special Transportation Service				
Safety Performance Measure #3: Collision Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Collision Total	4	7	3	14
Rate: (Collisions/VRM X 100,000)	0.22	0.36	0.14	0.24

Special Transportation Service				
Safety Performance Measure #4: Pedestrian Collision Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Pedestrian Collision Total	0	0	0	0
Rate: (Pedestrian Collisions/VRM X 100,000)	0.00	0.00	0.00	0.00

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Special Transportation Service				
Safety Performance Measure #5: Vehicular Collision Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Vehicle Collision Total	4	7	3	14
Rate: (Vehicular Collisions/VRM X 100,000)	0.22	0.36	0.14	0.24

Special Transportation Service				
Safety Performance Measure #6: Fatalities				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Fatalities Total	0	1	0	1

Special Transportation Service				
Safety Performance Measure #7: Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Fatalities Total	0	1	0	1
Rate: (Fatalities/VRM X 100,000)	0.00	0.05	0.00	0.02

Special Transportation Service				
Safety Performance Measure #8: Transit Worker Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Transit Worker Fatalities Total	0	0	0	0
Rate: (Transit Worker Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Special Transportation Service				
Safety Performance Measure #9: Injuries				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Injuries Total	2	11	17	30

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Special Transportation Service				
Safety Performance Measure #10: Injury Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Injuries Total	2	11	17	30
Rate: (Injuries/VRM X 100,000)	0.11	0.56	0.82	0.51

Special Transportation Service				
Safety Performance Measure #11: Transit Worker Injury Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Transit Worker Injuries Total	2	6	5	13
Rate: (Transit Worker Injuries/VRM X 100,000)	0.11	0.31	0.24	0.22

Special Transportation Service				
Safety Performance Measure #12: Assaults on Transit Workers				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Assaults On Transit Worker Total	12	0	0	12

Special Transportation Service				
Safety Performance Measure #13: Rate of Assaults on Transit Workers				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Assaults On Transit Worker Total	12	0	0	12
Rate: (Assaults on Transit Workers/VRM X 100,000)	0.66	0.00	0.00	0.20

Special Transportation Service				
Safety Performance Measure #14: System Reliability				
Goal / Target: 2.0 failures per 33,333 VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	1,818,202	1,954,595	2,081,995	5,854,792
Major Mechanical Failures Total	140	156	54	350

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Rate: (Major Mechanical Failures/VRM X 33,333)	2.57	2.66	0.86	1.99

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Bus Operations Division Safety Performance Measures

Bus Operations Division				
Safety Performance Measure #1: Major Events				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Event Total	63	89	60	212

Bus Operations Division				
Safety Performance Measure #2: Major Event Rate				
Goal / Target: 0.8 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Event Total	63	89	60	212
Rate: (Events/VRM X 100,000)	0.65	0.93	0.66	0.75

Bus Operations Division				
Safety Performance Measure #3: Collision Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Collision Total	49	75	45	169
Rate: (Collisions/VRM X 100,000)	0.51	0.78	0.49	0.60

Bus Operations Division				
Safety Performance Measure #4: Pedestrian Collision Rate				
Goal / Target: 0.1 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Pedestrian Collision Total	3	4	1	8
Rate: (Pedestrian Collisions/VRM X 100,000)	0.03	0.04	0.01	0.03

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Bus Operations Division				
Safety Performance Measure #5: Vehicular Collision Rate				
Goal / Target: 0.6 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Vehicle Collision Total	46	71	45	162
Rate: (Vehicular Collisions/VRM X 100,000)	0.48	0.74	0.49	0.57

Bus Operations Division				
Safety Performance Measure #6: Fatalities				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Fatalities Total	1	5	4	10

Bus Operations Division				
Safety Performance Measure #7: Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Fatalities Total	1	5	4	10
Rate: (Fatalities/VRM X 100,000)	0.01	0.05	0.04	0.04

Bus Operations Division				
Safety Performance Measure #8: Transit Worker Fatality Rate				
Goal / Target: 0.0 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Transit Worker Fatalities Total	0	0	0	0
Rate: (Transit Worker Fatalities/VRM X 100,000)	0.00	0.00	0.00	0.00

Bus Operations Division				
Safety Performance Measure #9: Injuries				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Injuries Total	121	142	120	383

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Bus Operations Division				
Safety Performance Measure #10: Injury Rate				
Goal / Target: 1.4 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Injuries Total	121	142	120	383
Rate: (Injuries/VRM X 100,000)	1.26	1.49	1.32	1.35

Bus Operations Division				
Safety Performance Measure #11: Transit Worker Injury Rate				
Goal / Target: 0.5 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Transit Worker Injuries Total	32	51	35	118
Rate: (Transit Worker Injuries/VRM X 100,000)	0.33	0.53	0.38	0.42

Bus Operations Division				
Safety Performance Measure #12: Assaults on Transit Workers				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Assaults On Transit Worker Total	12	5	42	59

Bus Operations Division				
Safety Performance Measure #13: Rate of Assaults on Transit Workers				
Goal / Target: 0.2 per 100K VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Assaults On Transit Worker Total	12	5	42	59
Rate: (Assaults on Transit Workers/VRM X 100,000)	0.12	0.05	0.46	0.21

Bus Operations Division				
Safety Performance Measure #14: System Reliability				
Goal / Target: 1.0 per 10,000 VRM				
Period: 2023-2025	2023	2024	2025	Total Three Year Results
Vehicle Revenue Miles (VRM)	9,627,931	9,556,343	9,105,176	28,289,450
Major Mechanical Failures Total	1186	995	702	2883

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Rate: (Major Mechanical Failures/VRM X 10,000)	1.23	1.04	0.77	1.02



Rail Agency Safety Plan

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November 2026
Revision 6

CHARLOTTE AREA TRANSIT SYSTEM (CATS)
Charlotte-Mecklenburg Government Center (CMGC)
600 East Fourth Street
Charlotte, NC 28202

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Document Revision Policy

This plan is complemented by and dependent on other supporting documents by CATS and other third parties. The CATS Chief Safety and Security Officer determines the distribution for this document. Previous revisions of this document must be discarded or identified as superseded when a new revision is issued. Anyone referring to a copy of this document must verify they are using the latest revision.

This document is available electronically on CNet under Departments>Charlotte Area Transit System>CATS Policies and Procedures.

Document Revision Record

Revision	Effective Date
Revision 0	April 1, 2020
Revision 1	October 20, 2021
Revision 2	November 14, 2022
Revision 3	August 23, 2023
Revision 4	November 22, 2024
Revision 5	November 12, 2025
Revision 6	November XX, 2026

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Approvals

_____ _____
Eric Osnes **Date**
Chief Safety and Security Officer (CSSO)

_____ _____
Victoria Johnson **Date**
Chief Operating Officer (COO)

_____ _____
Brent Cagle **Date**
Interim Chief Executive Officer,
Charlotte Area Transit System
Director of Public Transit, City of Charlotte

Summary of Changes
Revision 6
November 2026

Location	Change
Entire document	Minor wording and formatting changes to improve clarity. Removed all non-rail-specific content, including but not limited to TMOC, Bus Operations, Bus Safety, Bus Maintenance, Paratransit, Special Transportation Services (STS), Vanpool, Microtransit, and similar topics. Changed all occurrences of MTC to MPTA.
Definitions	Added: Defect, Finding, Rail Grade Crossing, Safety Critical Revised: Equivalent Authority to Equivalent Entity, Unacceptable Hazardous Condition Removed: Bus Collision
Acronyms	Added: MPTA – Metropolitan Public Transportation Authority Removed: BSSC – Bus Safety and Security Committee, MTC – Metropolitan Transit Commission
Figures	Figures list removed from document
Purpose and Scope	Revised the Purpose and Scope section to reflect a rail-specific Agency Safety Plan (ASP); incorporated updated regulatory references (49 CFR Parts 671, 672, 673, and 674); clarified SMS responsibilities; and added descriptions of incorporated governing documents; clarified Chief Safety and Security Officer (CSSO) responsibilities
1.1	Added new last paragraph about the maintenance of the CATS Safety Management System and supporting documents.
1.2.1	Revised sixth bullet point from “A working environment that meets or exceeds all government and industry occupational health and safety standards and practices” to “ A safe working environment that meets or exceeds all applicable government and industry occupational health and safety standards and best practices, with timely identification of current and repeated deficiencies, tracking deficiencies and corrections, through continuous monitoring, accountability, hazard logs and risk registers.”
1.2.2	Revised entire section on “Objectives – Annual Safety Performance Metrics/Target and Indicators” to focus on essential concepts and incorporate by reference new and/or updated policies.
1.3.1	Removed entire sub-section on Bus Operation Division, South Tryon Street Bus Facility and North Davidson Street Bus Facility. Removed reference to Bus Operations Control Center (BOCC), under the South Boulevard Light Rail Facility section. Updated Gold Line hours of operation
1.3.3 – 1.3.5	Removed sections on Microtransit, Special Transportation, and Vanpool.

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Location	Change
1.4.1	Renamed section header from Metropolitan Transit Commission (Equivalent Authority) to Metropolitan Public Transportation Authority (Equivalent Authority) and rewrote entire section.
1.4.5	Under Chief Operating Officer (COO), removed reference of BOD and STS. Removed General Manager of Bus Operations
1.5.1	Added new section on Annual Staffing Analysis of Key Rail Safety Function
1.6.1	First paragraph: Removed “For bus, the labor organization that represents the plurality of CATS’ frontline transit workers will select frontline transit worker representatives for the Safety Committee. If CATS’ frontline transit workers are not represented by a labor organization, CATS will adopt a mechanism for frontline workers to select frontline transit worker representatives for the RSSC.”
1.7	Second paragraph: Changed General Manager to Chief Safety and Security Officer (CSSO).
1.9	Expanded first paragraph into six new paragraphs providing more details about the Emergency Preparedness and Continuity Plan (EPCP). This includes consideration of CDC or State health authority guidelines, recommendations, data and other information in the event of exposure to infectious diseases.
2.1	Added an introductory first paragraph referencing SS23 Risk Assessment, Mitigation and Monitoring procedure. Revised last paragraph to update stated responsibilities for safety risk management (SRM) from its being a centralized responsibility (i.e. Office of Safety and Security) to a distributed responsibility, i.e. across the entire organization.
2.2.1	Revised list items 5, 6, 9, and 13 for clarity and additional details, under Methods of Hazards Identification of Day-to-Day Operations Added final paragraph about next steps after Hazards are identified and supporting process and documents.
2.2.2	Rewrote entire section to replace detailed, category-specific hazard reporting and corrective action procedures with a centralized, standardized Safety Risk Management process governed by procedure S&S23. Simplifies employee reporting requirements and consolidates notification rules into referenced procedures.
2.2.4	Updated section on Hazards Management Logs to modernize and standardize hazard tracking, expand data sources, formalize documentation and review processes, and align hazard reporting with S&S23 and SSOPS requirements. Removed Hazard Tracking Process figure
2.2.5	Rewrote first paragraph into four new paragraphs in Safety Risk Reduction Program. Removed “Assault mitigation infrastructure and technology includes barriers to restrict the unwanted entry of individuals and objects into the workstations of bus operators” from second bullet point. Added a paragraph to introduce processes and activities where the Safety and Security Department performs oversight of rail maintenance and inspection activities.
2.3.1	Rewrote entire section on Hazard Analysis Processes
2.3.2	Rewrote entire section on Safety Risk Indexing and Hazard Severity Categories

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Location	Change
2.3.3	Rewrote entire section on Hazard Probability.
2.3.4	Added new second paragraph in Risk Assessment Matrix. Removed last sentence “Unacceptable and undesirable safety conditions identified during the Transit Asset Condition Assessment as described in CATS TAMP Section 2.0 will be reported to the Office of S&S immediately.”
2.4.1	Added paragraph beginning, “When identifying safety risk mitigations, CATS considers applicable guidance provided by FTA and NCDOT, as the SSOA…” Added paragraph beginning, “The RSSC reviews identified hazards and potential mitigations…”
2.4.3	Rewrote entire section on Risk Management Implementation and Tracking.
2.5.2	Renamed section from Data Reporting to Safety Function to Ongoing Data Reporting. Updated section expands reporting from a quarterly data submission into a monthly and quarterly reporting framework that is more detailed, integrated with SRM and Safety Assurance, aligned with the SSOPS, and includes formal responsiveness to NCDOT follow-up requests.
2.5.4	Rewrote entire section on Use of Data (Trend Analysis).
2.6 (and 2.6.1)	Rewrote last paragraph to further clarify CATS’ role to demonstrate a more active, detailed commitment to providing access, data, personnel, and collaboration necessary for SRMI and RBI oversight.
2.6.1	See above.
2.6.3	Rewrote first paragraph in Safety-Related Data to specify the types of safety data CATS shares and explicitly aligns data access with SRMI and RBI oversight programs.
2.7.1	Rewrote Overview section about the Roadway Worker Protection Program to explain transitions to include updated formal guidance documentation, enhanced audits, expanded reporting, and continuous coordination with NCDOT.
2.7.3	Rewrote section on Roadway Worker Protection Program (RWPP).
2.7.4	Added new second paragraph in RWPP Training about reference and required documents.
3.2.1	Removed “Quality Assurance” from the Overview in several places
3.2.5	Removed “a minimum of 15 days in advance” from third paragraph.
3.2.7	Removed “Checklists are prepared during the review of the documents referenced in the ASP section; previous audits; audit findings; and corrective actions” from first paragraph.
3.2.8	Rewrote entire ISR Audit Report section
3.2.9	First paragraph: Added “The report address, at a minimum, the applicable reporting elements identified in Appendix C of the NCDOT SSOPS Rev. 10 and provides a comprehensive summary of CATS’ Safety Management System (SMS) activities and performance.” Revised language in bullet list for clarity.

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Location	Change
3.2.12	Added Continuous Improvement section
3.3.1	Changed “Operational/Safety Related items” to “Safety Critical items” in second paragraph. Paragraph six: Removed “Bus Maintenance conducts an inspection of buses and review operator inspection cards when buses go for fueling.” Paragraph eight: CATS will provide Asset Management Status reports quarterly, instead of monthly.
3.3.2	Removed last paragraph about Bus Maintenance.
3.3.4	Paragraph one: Changed “Identified unacceptable hazards” to “Identified safety critical hazards. Added email address to General Manager of Facilities and the CSSO. Changed “Facilities’ Staff” to “CATS Safety Staff” Added new paragraph that expands reporting requirements as it pertains to rail vehicle brake testing.
3.3.5	Removed “Transit Amenities used TAMS Dailey Inspection Sheet (FMF04) to document inspections at bus and streetcar stops” from first paragraph. Removed “Bus Maintenance Technicians perform Preventative Maintenance Inspections using forms developed for each specific bus type. Shop Foremen perform safety inspection review on buses using Shop Foreman Safety Review Form B.” Removed “Bus operators also perform checks during operator relief.”
3.3.7	Clarified what will be provided to NCDOT in quarterly reports
3.4.8.3	Added information on what should occur “When an identified condition requires immediate or emergency corrective action to protect employees, passengers, the public, or the rail system…”
3.5.1.1	Expanded this section from one sentence to 5 paragraphs
3.5.1.2	First bullet point added “ROD304 Bulletins, Notice, General Orders and Operating Orders” Second bullet point added “ROD801 Configuration Change Control”. Removed “or by having the Rail Safety Manager cosign the bulletin or notice indicating Safety was involved in the review and accepts the changes.” Revised to “ROD304 is verified through acknowledgement and sign off sheets.” Added “ROD801 is verified through formal training by supervisors/instructors” Removed section about Bus Operations.
3.5.2.2	Removed section about Configuration Changes Control in Buses for BOD and STS.
3.5.3	Added information to address new SSOPS requirements regarding assignments of Major Project and Major Project Safety Liaisons and monthly status reporting to NCDOT.

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Location	Change
3.5.5	Removed sentence “Bus Warranty and Parts also perform a receiving inspection of incoming materials” from third to last paragraph. Updated Appendix referenced to “D” in the 3rd paragraph.
4.2	Fourth Paragraph: Changed “On or before August 1st of each year, CATS shall complete its annual ASP review and update process and submit its revised final draft ASP to NCDOT for review and comment” to “On or before August 1st of each calendar year, RTAs shall complete its annual ASP review and update process and submit its revised final draft ASP to NCDOT for review and comment. The RTA’s revised ASP shall include the requirements of this SSOPS and any referenced documents that are used by the RTA to address the PTASP regulation and any other relevant Federal and State regulatory requirements, as amended.”
4.4.1	First Paragraph: Changed time limit for when training is valid from one year to two years.
4.5.3	Updated CATS recertification training frequency from semiannually to annually
4.5.4.1	Removed paragraph on fatigue awareness training
4.5.5	Added Fatigue Management section
4.5.6	Added Fit for Duty Assessment section
Table 1	Updated item #3, Total Collisions row
Table 2	Removed rows addressing the responsibility of General Manager – Bus Operations and Sr. Manager – Bus Operations/Special Transportation Services (STS)
Table 3	Removed rows addressing Bus Safety & Security Committee (BSSC).
Table 4	Moved “Hazard Severity Categories” table from section 2.3.1 to section 2.3.2.
Appendix A	Added “CATS S&S23 Risk Assessment, Mitigation and Monitoring”
Appendix B	Updated CATS Org Chart
Appendix F	Removed Appendix F

DRAFT

Table of Contents

Document Revision Policy ..... *ii*
Document Revision Record ..... *ii*
Approvals ..... *ii*
Summary of Changes ..... *iii*
Table of Contents ..... *viii*
Definitions ..... *xii*
Acronyms ..... *xxii*
Purpose and Scope *1*
1.0 Safety Management Policy *3*
1.1 Chief Executive Officer's Safety Management Policy Statement **3**
1.2 Goals and Objectives **4**
1.2.1 Goals 4
1.2.2 Objectives - Annual Safety Performance Metrics/Targets and Indicators 5
1.3 System Description **7**
1.3.1 Light Rail Operations 7
1.3.2 Facilities Management 10
1.4 Management Responsibilities and Lines of Authority **11**
1.4.1 Metropolitan Public Transportation Authority (Equivalent Authority) 11
1.4.2 Chief Executive Officer (Accountable Executive) 12
1.4.3 Chief Safety and Security Officer (CSSO) 12
1.4.4 CATS Leadership and Executive Management 12
1.4.5 Key Staff and Groups 12
1.4.6 NCDOT State Safety Oversight 13
1.5 Safety Responsibilities Task Matrix **13**
1.5.1 Annual Staffing Analysis of Key Rail System Functions 16
1.6 Committee's Safety Responsibilities Task Matrix **17**
1.6.1 Rail Safety and Security Committee Roles and Responsibilities 19
1.7 Employee and Contractor Safety Concern Reporting Program **20**
1.8 Safety Plan and Policy Dissemination **22**
1.9 Emergency Preparedness and Continuity Plan **22**
1.10 Integration of Safety Function **23**
1.11 Safety Set-Aside Allocation **23**
2.0 Safety Risk Management *24*
2.1 Overview **24**
2.2 Hazard Management Process **24**

DRAFT

2.2.1 Hazard Identification 24
2.2.2 Addressing Identified Hazards 25
2.2.3 Methods for Continuous Hazard Identification and Targeted Campaigns 26
2.2.4 Hazard Management Logs 26
2.2.5 Safety Risk Reduction Program 27

2.3 Safety Risk Assessment 30
2.3.1 Hazard Analysis Processes 30
2.3.2 Safety Risk Indexing (Likelihood and Severity of Consequences) 31
2.3.3 Hazard Probability 32
2.3.4 Risk Assessment Matrix 32
2.3.5 Risk Tolerability Non-Consensus Procedures 34

2.4 Safety Risk Mitigations 34
2.4.1 Resolving Hazardous Conditions 34
2.4.2 Evaluation of Current Mitigations 36
2.4.3 Risk Mitigation Implementation and Tracking 36

2.5 Safety Data Acquisition and Analysis 37
2.5.1 Data Acquisition Process 37
2.5.2 Ongoing Data Reporting 38
2.5.3 Access to Data 39
2.5.4 Use of Data (Trend Analysis) 39

2.6 Risk-Based Inspections (Supporting NCDOT SSOPS Section 6) 40
2.6.1 NCDOT - Right to Access 40
2.6.2 NCDOT's Inspection Programs (with and without notice) 41
2.6.3 Safety-Related Data 42
2.6.4 NCDOT Data Management System 42
2.6.5 Inspection Prioritization Process 42

2.7 Roadway Worker Protection Program 43
2.7.1 Overview 43
2.7.2 Right of Way (ROW) Access/Permitting 43
2.7.3 Roadway Worker Protection Program (RWPP) 44
2.7.4 RWPP Training 44

3.0 Safety Assurance 45

3.1 SA Implementation Process 45

3.2 Internal Safety Review Program 45
3.2.1 Overview 45
3.2.2 Purpose and Scope 45
3.2.3 City and CATS Divisions Subject to Internal Safety Reviews (ISRs) 47
3.2.4 ISR Process 47
3.2.5 ISR Cycle / Schedule 47
3.2.6 Integrity of Review Process 48
3.2.7 ISR Checklist Development Process 48
3.2.8 ISR Audit Report 48
3.2.9 Annual Review Report 49
3.2.10 Coordination with SSO Program 50
3.2.11 Corrective Action Follow-up Procedures 50
3.2.12 Continuous Improvement 50

3.3 Maintenance and Inspection Program for Vehicles, Equipment, Systems, and Infrastructure 51
3.3.1 Facilities and Equipment Subject to Inspections 51

DRAFT

3.3.2 Systems and Facilities Subject to Maintenance Programs 52
3.3.3 Regular Inspections and Testing Procedures 53
3.3.4 Resolution of Review/ Inspection Findings 53
3.3.5 Checklists 54
3.3.6 Coordination with Hazard Management Program 54
3.3.7 Transit Asset Management Plan 54

3.4 Accident/Incident/Safety Event Notification, Reporting and Investigations 56
3.4.1 Overview 56
3.4.2 Accident / Incident/Safety Event Reporting Criteria to NCDOT and FTA 56
3.4.3 Safety Event Investigation Procedures on behalf of NCDOT 57
3.4.4 Supervisor Investigation 57
3.4.5 Safety and Security Follow-up 57
3.4.6 Investigation Called by Chief Executive Officer 58
3.4.7 Internal Notification of Accidents/Safety Events and Unacceptable Hazards (from CATS S&S03) 58
3.4.8 External Notification Procedure 58

3.5 Management of Change 61
3.5.1 Procedures for Evaluating Safety Risk of Proposed Changes 61
3.5.2 Configuration Management 64
3.5.3 Safety and Security Certifications 66
3.5.4 Managing Safety in System Modifications 69
3.5.5 Managing Safety in Procurement 70

4.0 Safety Promotion 73

4.1 Safety Plan Dissemination 73

4.2 Safety Plan Review and Modification 73

4.3 Employee and Contractor Safety Programs (Knowledge and Compliance) 74

4.4 Compliance with Local, State, and Federal Requirements 74
4.4.1 Working on or Near Rail Transit Controlled Property 74
4.4.2 Required Safety Programs 75
4.4.3 Compliance with Drug and Alcohol Programs 76
4.4.4 Compliance with Contractor Safety Program 77

4.5 Training and Certification Program 77
4.5.1 Overview 77
4.5.2 Classification of employees/contractors directly responsible for safety 78
4.5.3 Certification and Training Requirements 78
4.5.4 Hours of Service (HOS) 81
4.5.5 Fatigue Management 83
4.5.6 Fit For Duty Assessment 83
4.5.7 Recordkeeping 83

4.6 Safety Communication and Outreach 84
4.6.1 Procedures Used to Communicate Safety (external stakeholders and general public) 85
4.6.2 Communication and Follow-up on Reported Safety Concerns 85

4.7 Environmental Management Program 86

APPENDIX A - Reference Documents Index A-1

APPENDIX B - Organization Charts B-1

APPENDIX C - System Maps C-1

DRAFT

APPENDIX D - Forms ***D-1***

APPENDIX E - Approvals ***E-1***

Tables

Table 1: Performance Measures…… 6
Table 2: Safety Responsibilities…….. 14
Table 3: Committees' Safety Responsibilities……...17
Table 4: Hazard Severity Categories…… 31
Table 5: Hazard Probability Categories…… 32
Table 6: MIL-STD-882E Risk Assessment Matrix…… 33

DRAFT

Definitions

Accident Bus (DOT Reportable): An event that involves any of the following: a fatality; bodily injury in which that person receives immediate medical attention away from the scene of the accident; or at least one of the vehicles involved in the accident had to be towed from the scene.

Accountable Executive: A single, identifiable person who has ultimate responsibility for carrying out the Public Transportation Agency Safety Plan of a transit agency; responsibility for carrying out the transit agency's Transit Asset Management Plan; and control or direction over the human and capital resources needed to develop and maintain both the transit agency's Public Transportation Agency Safety Plan, in accordance with 49 U.S.C. 5329(d), and the transit agency's Transit Asset Management Plan in accordance with 49 U.S.C. 5326.

Administrator: The Federal Transit Administrator or the Administrator's designee.

Agency Safety Plan (ASP): A formal document developed by a rail, bus, or multi-modal transit agency that defined its Safety Management System (SMS) processes and procedures and meets the regulatory requirements of the Public Transportation Agency Safety Plan (PTASP) final rule at 49 CFR Part 673.

All-Hazards Approach: An ideology and approach used by planners to conduct integrated planning and build capability for safety, security, and emergency management, and to optimize and continuously improve the use of resources and the management of risks from hazards, threats, vulnerabilities, and adverse events or incidents.

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APTA Guidelines: The American Public Transit Association's (APTA) recommended best practices for managing transit safety.

Assault on a Transit Worker: As defined under 49 U.S.C. 5302, a circumstance in which an individual knowingly, without lawful authority or permission, and with intent to endanger the safety of any individual, or with a reckless disregard for the safety of human life, interferes with, disables, or incapacitates a transit worker while the transit worker is performing the duties of the transit worker.

Capital Asset: Any unit of the rail transit agency's rolling stock, facilities, equipment, or an element of infrastructure used for providing public transportation. [49 CFR Part 625]

Center for Disease Control (CDC): The Centers for Disease Control and Prevention of the United States Department of Health and Human Services.

Charlotte Regional Transportation Planning Organization (CRTPO): The federally designated Metropolitan Planning Organization (MPO) for the Charlotte Urbanized Area.

Chief Safety and Security Officer (CSSO): an adequately trained individual who has responsibility for safety and reports directly to a transit agency's chief executive officer, general manager, president, or equivalent officer. A Chief Safety Officer may not serve in other operational or maintenance capacities, unless the Chief Safety Officer is employed by a transit agency that is a small public transportation provider as defined in Part 673.5, or a public transportation provider that does not operate a rail fixed guideway public transportation system.

Collision: Any impact between a rail transit vehicle and any other vehicle, object, or any person.

Contractor: An entity that performs tasks on behalf of the Federal Transit Administration (FTA), a State Safety Oversight Agency (SSOA), or a Rail Transit Agency (RTA), through contract or other agreement. The contractor may not perform tasks for the oversight agency and the RTA at the same time.

Corrective Action Plan (CAP): A plan developed by a Rail Transit Agency (RTA) that describes the actions the RTA will take to address an identified deficiency or safety concern and the schedule for taking those actions. Either a State Safety Oversight Agency (SSOA) or the Federal Transit Administration (FTA) may require an RTA to develop and carry out a Corrective Action Plan.

Defect: any fault, malfunction, or physical deterioration discovered in rolling stock (vehicles), infrastructure (including tracks, stations, or highway-rail grade crossings), or equipment that adversely affects or has the potential to affect the safety, reliability, or performance of the system.

Designated Personnel: Can be defined in the following two ways:

1. Employees and contractors identified by the CATS Agency Safety Plan whose job function is directly responsible for rail safety oversight of CATS Transportation Services; or
2. Employees and contractors of a State Safety Oversight Agency whose job functions require them to conduct reviews, inspections, examinations, and other safety oversight activities of the rail fixed guideway public transportation systems subject to the jurisdiction of the agency.

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Derailment: a safety event in which one or more wheels of a rail transit vehicle unintentionally leaves the rails.

Direct recipient: an entity that receives Federal financial assistance directly from the Federal Transit Administration.

Directly responsible for safety oversight: Public transportation agency personnel whose primary job function includes the development, implementation, review, and enforcement of the agency's safety plan, and/or the State Safety Oversight Agency (SSOA) requirements for the rail fixed guideway public transportation system, pursuant to 49 CFR part 674.

Disabling damage: Damage to a rail transit vehicle resulting from a collision and preventing the vehicle from operating on its own power.

Emergency: As defined under 49 U.S.C. 5324, a natural disaster affecting a wide area (such as a flood, hurricane, tidal wave, earthquake, severe storm, or landslide) or a catastrophic failure from any external cause, as a result of which the Governor of a State has declared an emergency and the Secretary has concurred; or the President has declared a major disaster under section 401 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170).

Equivalent Entity: means an entity that carries out duties similar to that of a Board of Directors, for a recipient or subrecipient of FTA funds under 49 U.S.C. chapter 53, including sufficient authority to review and approve a recipient or subrecipient's Public Transportation Agency Safety Plan. The Metropolitan Public Transportation Authority (MPTA) is CATS Equivalent Authority.

Emergency Conditions: Unexpected events or incidents that occur naturally or manmade that impact the ability of CATS to operate normal service that causes a hazardous condition requiring an immediate response.

Emergency Preparedness and Continuity Plan (EPCP): A plan that describes the coordination and preparedness activities related to an organization's emergency response policies and procedures, including: the assignment of employee responsibilities during an emergency; specific emergency response annexes, as deemed necessary; and addressing various threats and vulnerabilities specific to internal organizational systems, functions, or work groups.

Emergency Management Program (EMP): A comprehensive framework, including plans, policies, and procedures, established to manage an All-Hazards Approach to emergency preparedness and response activities. This framework addresses the five phases of emergency management: prevention, preparedness, response, recovery, and mitigation. It incorporates, by reference, integration of the Emergency Operations Program (EOP) and its annexes.

Evacuation for life safety reasons: A condition that occurs when persons depart from transit vehicles or facilities for life safety reasons, including self-evacuation. A life safety reason may include a situation such as fire, the presence of smoke or noxious fumes, a fuel leak from any source, an electrical hazard, or hazard to any person.

Examination: A process for gathering or analyzing facts and information related to the safety of a rail fixed guideway public transportation system.

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Fatality: A death confirmed within 30 days of a safety event. Fatalities include suicides, but do not include deaths in or on transit property that are the result of a drug overdose, exposure to the elements, illness, or natural causes.

Finding: a determination of noncompliance when the facts disclosed during an investigation, compliance review, hazard trend analysis, or other information, indicate a failure to comply with the provisions of this State Safety Oversight Program Standard and/or the RTA's Agency Safety Plan (ASP).

Finding of Noncompliance: A determination of noncompliance made when the facts disclosed during an investigation, compliance review, hazard trend analysis, or other information, indicate a failure to comply with the provisions of the State Safety Oversight Program Standard or the Agency Safety Plan.

FRA: The Federal Railroad Administration. An agency within the U.S. Department of Transportation.

FTA: The Federal Transit Administration, an operating administration within the United States Department of Transportation.

FTA Reportable Event (Rail Only): A rail event that meets the notification threshold for the Federal Transit Administration (FTA). A Non-FTA Reportable Event does not rise to the threshold for reporting to the FTA but is required to be reported to NCDOT per 49CFR Part 674 and the SSOPS.

Hazard: Any real or potential condition that can cause injury, illness, or death; damage to or loss of the facilities, equipment, rolling stock, or infrastructure of a public transportation system; or

damage to the environment.

Hazard Management Log: An information management tool for tracking identified hazards, rating the hazards, any mitigations, and how the hazard is resolved. Unacceptable and Undesirable Hazardous Conditions must be captured in the Risk Register.

Homeland Security Exercise and Evaluation Program (HSEEP): A set of guiding principles for exercise programs related to national security, as well as a common approach to the exercise program management, design and development, execution, evaluation, and improvement planning for such programs.

Injury: Any harm to persons as a result of a safety event that requires immediate medical attention away from the scene. Does not include hard resulting from a drug overdose, exposure to the elements, illness, natural causes, or occupational safety events occurring in administrative buildings.

Infrastructure: The underlying framework or structures that support a public transportation system. [49 CFR 625]

Inspection: A physical observation of equipment, facilities, rolling stock, operations, personnel, or records for the purpose of gathering or analyzing facts or information.

Inspection Data: Data that includes, but is not limited to, inspection records and report forms, records of failures and defects with severity, records of speed restrictions, including the reason for applying, incident and safety risk mitigation verification, adherence to inspection schedules, including reports/documentation of inspections not performed, and capital project schedules and progress.

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Internal Safety Review (ISR): As an extension of the NCDOT SSO Program, the RTA's Safety Department Staff are responsible for establishing an internal safety auditing/review program designed to assess the level of safety and safety performance for its ASP and SMS.

Investigation: The process of determining the causal and contributing factors of a safety event or hazard, for the purpose of preventing recurrence and mitigating safety risk.

Individual: Any person on the property of a Transit Agency.

Joint labor-management process: A formal approach to discuss topics affecting transit workers and the public transportation system.

Large urbanized area provider: A recipient or subrecipient of financial assistance under 49 U.S.C. 5307 that serves an urban area with a population of 200,000 or more as determined by the most recent decennial Census.

Maintenance Data: Data that includes, but is not limited to, major maintenance activity schedule and progress, adherence to maintenance schedules, including reports/documentation of deferred maintenance, records of failures and defects with severity if applicable, and records of revenue vehicles out of service, including causal information.

Major Project: Any rail transit agency system expansion, modification, or refurbishment of a capital asset related to new start rail system projects, major reconstruction of existing rail systems and properties, and new rail vehicle purchases or vehicle overhaul projects which impacts safety,

regardless of project type, funding source, or budget.

National Public Transportation Safety Plan: The plan to improve the safety of all public transportation systems that receive Federal financial assistance under 49 U.S.C. Chapter 53.

NCDOT: The North Carolina Department of Transportation. The designated State Safety Oversight Agency (SSOA) for the State of North Carolina.

NCDOT/RTA Major Projects Liaison: RTA employee responsible for assuring effective and timely project communication with NCDOT and/or designee, along with the RTA's senior safety staff.

National Transportation Safety Board (NTSB): An independent Federal agency charged with determining the probable cause of transportation accidents, promoting transportation safety, and assisting victims of transportation accidents and their families.

New Starts Project: One type of transit capital investment project for a Rail Transit Agency funded under FTA's 49 U.S.C.5309 discretionary construction program.

Near Miss: a narrowly avoided safety event.

Operator of a Public Transportation System: A provider of public transportation.

Passenger: A person who is on board, boarding, or alighting from a rail or bus transit vehicle for travel.

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Passenger Operations: The period when any aspect of a Transit Agency's operations is initiated within revenue service with the intent to carry passengers.

Performance Measure: An expression based on a quantifiable indicator of performance or condition that is used to establish targets and to assess progress toward meeting the established targets.

Performance Target: A quantifiable level of performance or condition expressed as a value for the measure, to be achieved within a time period required by the Federal transit Administration (FTA).

Person: A passenger, employee, contractor, volunteer, official worker, pedestrian, trespasser, or any individual on the property of a rail fixed guideway public transportation system or associated infrastructure.

Point of Derailment: The point on the rail where the normal wheel-rail relationship was disturbed.

Potential Consequence: The effect of a hazard.

Preliminary Engineering Phase: The second developmental phase required for New Starts Projects to receive Federal funds. During this phase, project sponsors investigate the merits of all potential configurations and designs in greater detail. The results of this phase provide the basis for subsequent funding and implementation decisions. This phase concludes with the request to enter the final design phase.

Public Transportation: As defined under 49 U.S.C. 5302, regular, continuing shared-ride surface transportation services that are open to the general public or open to a segment of the general public defined by age, disability, or low income; and does not include:

(1) Intercity passenger rail transportation provided by the entity described in 49 U.S.C. chapter 243 (or a successor to such entity);

(2) Intercity bus service;

(3) Charter bus service;

(4) School bus service;

(5) Sightseeing service;

(6) Courtesy shuttle service for patrons of one or more specific establishments; or

(7) Intra-terminal or intra-facility shuttle services.

Public Transportation Agency: An entity that provides public transportation service as defined in 49 U.S.C. 5302 and that has one or more modes of service not subject to the safety oversight requirements of another Federal agency.

Public Transportation Agency Safety Plan (PTASP): The documented comprehensive agency safety plan for a transit agency that is required by 49 U.S.C. 5329 and 49 CFR Part 673.

Public Transportation Safety Certification Training Program (PTSCTP): The certification training program that is required by 49 U.S.C 5329(c) and 49 CFR Part 672.

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Qualification Level (QL): The practical examination for a qualifying Rail/Streetcar Operator is scored based on three levels. A Qualification Level 1 (QL-1) requires no performance or safety deviations, and the operator performed all functions with complete accuracy and confidence level was high. A Qualification Level 2 (QL-2) requires the operator to have only minor performance deviations, no safety related deviations, the operator performed the majority of the functions with accuracy and their confidence level was high to moderate. A Qualification Level 3 (QL-3) is a failing score with the occurrence of major performance and/or safety deviations and the operator's confidence level was low and uncertain.

Rail Collision: An impact in which one piece of on-track equipment strikes another piece of on-track equipment, railroad property, object, person, or non-rail vehicle.

Rail Grade Crossing: a designated location where a public or private road, street, pathway or crosswalk intersects one or more railroad tracks at the same elevation (grade), intended for vehicles and/or pedestrians to cross the tracks directly, rather than via an overpass or underpass.

Rail Incident: An event that involves any of the following: a loss of life; a serious injury to a person; a collision involving a rail transit vehicle; a runaway train; an evacuation for life safety reasons; or any derailment of a rail transit vehicle, at any location, at any time, whatever the cause. An accident must be reported in accordance with the thresholds for notification and reporting set forth in the State Safety Oversight Program Standard (SSOPS).

Rail Fixed Guideway Public Transportation System (RFGPTS): Any fixed guideway system, or any such system in engineering or construction, which uses rail, is operated for public transportation, is within the jurisdiction of a State, and is not subject to the jurisdiction of the Federal Railroad Administration. These systems include but are not limited to rapid rail, heavy

rail, light rail, monorail, trolley, inclined plane, funicular, and automated guideway.

Rail Transit Agency (RTA): Any entity that provides services on a rail fixed guideway public transportation system. *Both RTA and RFGPTS are referenced in various FTA documents and as such mean the same entity; regardless of which of the two acronyms is referenced.*

Rail Transit-Controlled Property: Property that is used by the Rail Transit Agency (RTA) and may be owned, leased, or maintained by the RTA.

Rail Transit Vehicle: Any rolling stock used by rail fixed guideway public transportation system, including but not limited to passenger and maintenance vehicles.

Recertification: The process of renewing an individual's Public Transportation Safety Certification Training Program certification for two years. [revised Part 672]

Recertification Training: The training courses or activities designated personnel must complete within two (2) years of completing the Public Transportation Safety Certification Training Program curriculum to maintain certification and every two (2) years thereafter. [revised Part 672]

Recipient: A State or local governmental authority, or any other operator of a public transportation system, which receives financial assistance under 49 U.S.C. chapter 53.

Revenue Vehicle: A rail transit vehicle used to provide revenue service for passengers. This includes providing free fare service.

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Risk-Based Inspection: An inspection conducted as part of a risk-based inspection program.

Risk-Based Inspection Data Management System: A physical or digital system that follows administrative policies and procedures that identify data storage, organizational, and management processes for risk-based inspections.

Risk-Based Inspection Program: An inspection program that uses qualitative and quantitative data analysis to inform ongoing inspection activities. Risk-based inspection programs are designed to prioritize inspections to address safety concerns and hazards associated with the highest levels of safety risk.

Risk Mitigation: A method or methods used to eliminate or reduce the effects of hazards.

Risk Register: An information management tool used to document Safety Risk Management and Safety Assurance activities. It records the hazards identified by the transit agency, the potential consequences associated with those hazards, initial safety risk ratings, new mitigations implemented to eliminate or minimize the risk associated with the hazard, revised safety risk rating, and mitigation monitoring measures and activities to ensure the implementation and effectiveness of mitigations.

Roadway: Land on which rail transit tracks and support infrastructure have been constructed to support the movement of rail transit vehicles, excluding station platforms.

Roadway Worker Protection (RWP): The policies, processes, and procedures implemented by an RTA to prevent safety events for transit workers who must access the roadway in the performance of their work.

RWP Manual: The entire set of the RTA's on-track safety rules and instructions maintained together, including operating rules and other procedures concerning on track safety protection and on-track safety measures designed to prevent roadway workers from being struck by rail transit vehicles or other on-track equipment.

Safety: Freedom from harm resulting from unintentional acts or circumstances.

Safety Assurance: Processes within a transit agency's Safety Management System that function to ensure the implementation and effectiveness of safety risk mitigation, and to ensure that the transit agency meets or exceeds its safety objectives through the collection, analysis, and assessment of information.

Safety Audit: A review or analysis of system components for compliance with the safety requirements. Audit methods may include interviews, document and record reviews, firsthand observations of operations and maintenance activities, spot checks, inspections, and visual examinations and measurements.

Safety Committee: The formal joint labor-management committee on issues related to safety that is required by 49 U.S.C. 5329 and 49 CFR Part 673.

Safety Critical: An item where any component of an asset containing a characteristic where the failure, malfunction, or absence of which could cause a catastrophic or critical failure resulting in loss of serious damage to, a major asset or infrastructure or an unacceptable risk of personal injury or loss of life.

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Safety Event: An unexpected outcome resulting in injury or death; damage to or loss of the facilities, equipment, rolling stock, or infrastructure of a public transportation system; or damage to the environment.

Safety Management Policy: A transit agency's documented commitment to safety, which defines the transit agency's safety objectives and the accountabilities and responsibilities for the management of safety.

Safety Management System (SMS): The formal, organization-wide approach to managing safety risk and assuring the effectiveness of a transit agency's safety risk mitigation. SMS includes systematic procedures, practices, and policies for managing hazards and safety risks.

Safety Management System (SMS) Executive: A Chief Safety Officer or an equivalent.

Safety Performance Target: A quantifiable level of performance or condition, expressed as a value for the measure, related to safety management activities, to be achieved within a specified period.

Safety Promotion: A combination of training and communication of safety information to support SMS as applied to the transit agency's public transportation system.

Safety Program Data: Data that includes, but is not limited to, event data, hazard, safety risk ratings, mitigation data, corrective action plan data, near miss data, and ongoing monitoring data.

Safety Review: A review or analysis of safety records and related materials. [revised Part 672]

Safety Risk: The composite of predicted severity and likelihood of a potential consequence of a

hazard.

Safety Risk Assessment: The formal activity whereby a transit agency determines Safety Risk Management priorities by establishing the significance or value of its safety risk.

Safety Risk Management: A process within a transit agency's Public Transportation Agency Safety Plan for identifying hazards and analyzing, assessing, and mitigating the safety risk of their potential consequences.

Safety Risk Mitigation: A method or methods to eliminate or reduce the severity and/or likelihood of a potential consequence of a hazard.

Safety set-aside: The allocation of not less than 0.75 percent of assistance received by a large, urbanized area provider under 49 U.S.C. 5307 to safety- related projects eligible under 49 U.S.C. 5307.

Security: Freedom from harm resulting from intentional acts or circumstances.

Sensitive Security Information (SSI): Information as described in 49 CFR § 1520, which is obtained or developed while conducting security activities, the disclosure of which would be detrimental to transportation safety. SSI includes: security program plans; security and vulnerability assessments; threat information; incident response plans; security directives and measures; security inspection or investigative information; security screening information or procedures; specifications for devices for detection of weapons or destructive devices or substances; specifications for communications equipment used for transportation security; and critical infrastructure information, including drawings, design plans, cut sheets, or architectural drawings.

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SPEAR: Database management software for tracking incidents and maintenance records pertaining to equipment for rail and bus operations.

State: A state of the United States, the District of Columbia, Commonwealth of Puerto Rico, the Northern Mariana Islands, Guam, American Samoa, and the Virgin Islands.

State of Good Repair (SGR): The condition in which a capital asset can operate at a full level of performance.

State Safety Oversight Agency (SSOA): An agency established by a State that meets the requirements and performs the functions specified by 49 U.S.C. 5329(e) and (k) and the regulations set forth in 49 CFR Part 674.

State Safety Oversight Program Standard (SSOPS): A written document developed and adopted by a State Safety Oversight Agency to describe the policies, objectives, responsibilities, and procedures used to provide safety oversight of rail transit agencies within a State's jurisdiction.

Substantial Damage: Damage to transit or non-transit property including vehicles, facilities, equipment, rolling stock, or infrastructure that disrupts the operations of the rail transit agency and adversely affects the structural strength, performance, or operating characteristics of the property, requiring towing, rescue, on-site maintenance, or immediate removal prior to safe operation. Can be found in: S&S-40

System Reliability: The mean distance between major mechanical failures by mode. The System Reliability measure expresses the relationship between safety and asset condition. The rate of vehicle failures in service, defined as mean distance between major mechanical failures, is measured as revenue miles operated divided by the number of major mechanical failures. This is a measure of how well a fleet of transit vehicles is maintained and operated. The Federal Transit Administration (FTA) recognizes the diversity of the transit industry and that agencies have varied equipment types with varied rates of performance. This measure allows agencies to develop safety performance targets that are specific to their fleet type, age, operating characteristics, and mode of operation.

Transit agency: An operator of a public transportation system. that is a recipient or subrecipient of Federal financial assistance under 49 U.S.C. 5307 or a rail transit agency.

Transit Asset Management (TAM): The strategic and systematic practice of procuring, operating, inspecting, maintaining, rehabilitating, and replacing transit capital assets to manage their performance, risks, and costs over their life cycles, to provide safe, cost effective, and reliable public transportation, as required by 49 U.S.C. 5326 and 49 CFR part 625.

Transit Asset Management Plan: means the strategic and systematic practice of procuring, operating, inspecting, maintaining, rehabilitating, and replacing transit capital assets to manage their performance, risks, and costs over their life cycles, for the purpose of providing safe, cost-effective, and reliable public transportation, as required by 49 U.S.C. 5326 and 49 CFR part 625.

Transit Worker: Any employee, contractor, or volunteer working on behalf of the transit agency.

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Unacceptable Hazardous Condition: an identified serious safety concern, hazard, or situation not otherwise classified, that poses a significant, intolerable danger, risk, or threat to safety, health, or property.

Unintended Train Movement: Any instance where a revenue vehicle is moving and is not under the control of a driver (whether or not the operator is physically on the vehicle at the time). This applies regardless of whether the event occurred in revenue service.

Urbanized area: As defined under 49 U.S.C. 5302, an area encompassing a population of 50,000 or more that has been defined and designated in the most recent decennial census as an urban area by the Secretary of Commerce.

Vehicle: Any rolling stock used on a Rail Fixed Guideway Public Transportation System (RFGPTS), including, but not limited to, passenger and maintenance vehicles.

Acronyms

AAR	After Action Report
AC	Alternating Current
ADA	Americans with Disabilities Act
APTA	American Public Transit Association
ASP	Agency Safety Plan
CATS	Charlotte Area Transit System
CDC	Centers for Disease Control and Prevention
CRTPO	Charlotte Regional Transportation Planning Organization
CEO	Chief Executive Officer
COO	Chief Operating Officer
CFR	Code of Federal Regulations
CSSO	Chief Safety and Security Officer
EOP	Emergency Operations Plan
EMP	Emergency Management Program
EPCP	Emergency Preparedness and Continuity Plan
FRA	Federal Railroad Administration
FTA	Federal Transit Administration
HML	Hazard Management Log
ISR	Internal Safety Review
MOW	Maintenance of Way
MPO	Metropolitan Planning Organization
MPTA	Metropolitan Public Transportation Authority
NBLRF	North Brevard Light Rail Facility
NCDOL	North Carolina Department of Labor
NCDOT	North Carolina Department of Transportation
NTD	National Transit Database
NTSB	National Transportation Safety Board
OCS	Overhead Catenary or Contact System
OHA	Operating Hazard Analysis
OSHA	Occupational Safety and Health Administration
PTASP	Public Transportation Agency Safety Plan

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PTSCTP	Public Transportation Safety Certification Training Program
RBI	Risk Based Inspection
RCM	Rail Car Maintenance
RFGPTS	Rail Fixed Guideway Public Transportation System
ROW	Right of Way
RSSC	Rail Safety and Security Committee
RTA	Rail Transit Agency
RWP	Roadway Worker Protection
RWPP	Roadway Worker Protection Program
SA	Safety Assurance
SBLRF	South Boulevard Light Rail Facility
SGR	State of Good Repair
SMS	Safety Management System
SOP	Standard Operating Procedure
SRM	Safety Risk Management
SRMI	Safety Risk Management Inspection
SSC	Safety Security Certification
SSCP	Safety and Security Certification Plan
SSI	Sensitive Security Information
SSOA	State Safety Oversight Agency
SSOPS	State Safety Oversight Program Standard
SSOPS-RM	State Safety Oversight Program Standard Reference Manual
SSOR	State Safety Oversight Reporting
STS	Special Transportation Services
TAM	Transit Asset Management
UHC	Unacceptable Hazardous Condition

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Purpose and Scope

The purpose of this Agency Safety Plan (ASP) is to establish the policies, requirements, and Safety Management System (SMS) governing the safe operation of the Charlotte Area Transit System (CATS) Light Rail Transit (LRT) system. This ASP applies exclusively to CATS rail transit operations and has been developed in accordance with 49 CFR Parts 671, 672, 673, and 674, the National Public Transportation Safety Plan, and the North Carolina State Safety Oversight Program Standard (SSOPS).

CATS Bus Operations maintains a separate Agency Safety Plan governing its bus transit services. While both plans are based on the principles of Safety Management Systems and support CATS' overall commitment to safety, this ASP applies only to rail transit operations subject to State Safety Oversight by NCDOT.

This ASP establishes the processes for identifying, evaluating, mitigating, and monitoring safety risk through the four components of SMS: Safety Management Policy, Safety Risk Management, Safety Assurance, and Safety Promotion. The CATS SMS is appropriately scaled to the size, scope, and complexity of the rail transit system.

The Chief Safety and Security Officer (CSSO) shall ensure that the Federal Transit Administration (FTA), other applicable Federal agencies, and NCDOT, as the State Safety Oversight Agency (SSOA), are provided access to conduct announced and unannounced inspections and to review ASP, SMS, audit, investigation, and other safety-related records upon request.

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The CSSO shall also ensure that NCDOT is notified, in accordance with the SSOPS, of safety-related contacts or correspondence to or from Federal agencies concerning CATS rail operations or safety programs, including FTA, the National Transportation Safety Board (NTSB), and the Federal Railroad Administration (FRA), as applicable. CATS shall provide NCDOT with the results of such contacts, including applicable correspondence, reports, findings, recommendations, requests for information, and other supporting documentation. All applicable safety-related records shall be maintained electronically in accordance with record retention requirements, but for no less than three (3) years.

For the purpose of this document, the word “employee” shall be defined as any transit worker who is directly employed by City of Charlotte/CATS. Contractor shall be defined as any transit worker not directly employed by the City of Charlotte/CATS but is providing services on behalf of the City of Charlotte/CATS.

CATS shall ensure that NCDOT is notified as per NCDOT SSOPS within twenty-four (24) hours of all safety-related correspondence to or from any federal agencies by email or phone call.

The ASP is specifically developed to:

- Establish the System Safety Program for CATS.
- Identify the relationships and responsibilities of CATS with other City of Charlotte departments and other agencies and organizations that impact transit system safety.
- Provide formal documentation of CATS Management’s commitment to safety.
- Provide a framework for implementing CATS’ safety policy.
- Achieve CATS system safety goals and objectives in compliance with the *National Public Transportation Safety Plan, January 2017.*

- Satisfy federal, state, and local laws, codes, ordinances, and regulations.

This Agency Safety Plan (ASP) establishes the policies, objectives, and Safety Management System (SMS) requirements governing the Charlotte Area Transit System (CATS).

Detailed governance, operational procedures, and implementation methodologies supporting this ASP are maintained in controlled supporting documents, including, but not limited to, the Rail Safety and Security Committee (RSSC) Bylaws, Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, Procedure QA100 – Internal Safety Reviews and Audits, Procedure S&S03 – Safety Event Investigation and Reporting, the Emergency Preparedness and Continuity Plan (EPCP), the Roadway Worker Protection (RWP) Manual, the Transit Asset Management (TAM) Plan, and other documents identified in Appendix A. These documents are incorporated by reference into this ASP, as applicable, and collectively establish the governance, procedures, and controls necessary to implement and maintain the CATS SMS.

This ASP establishes the minimum safety management standards governing CATS' rail operations and implements the requirements of 49 CFR Parts 671, 672, 673, and 674, the National Public Transportation Safety Plan, and the NCDOT State Safety Oversight Program Standard (SSOPS). Collectively, this ASP and its incorporated reference documents establish the minimum safety standards applicable to CATS' rail operations.

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1.0 Safety Management Policy

1.1 Chief Executive Officer's Safety Management Policy Statement

The following is the Safety Management Policy Statement issued by the Chief Executive Officer (CEO) of the Charlotte Area Transit System (CATS). This policy statement was reviewed and approved by the Metropolitan Transit Commission (MTC).

The Charlotte Area Transit System (CATS) was organized with the mission to provide safe, secure, reliable, and effective rail, bus, and paratransit transportation services to our customers. Accordingly, safety is a primary concern that affects all levels of CATS activities including operations, maintenance, and administrative functions of the organization.

All employees and contractors of CATS are expected to conduct their duties safely, aimed at preventing, controlling, and minimizing undesired events, such as customer or employee injury, equipment or property damage, or degradation to system safety in any CATS function. Employees and customers are CATS' most important assets, and their safety and security are among CATS' greatest responsibilities.

While minimizing unsafe conditions and preventing accidents in CATS' transportation system and facilities are the responsibility of each employee, they are first and foremost the responsibility of CATS Management. A safety reporting program was established as a viable tool for employees to voice their safety concerns. No disciplinary action will be taken against any employee who communicates a safety concern through the CATS safety reporting program unless such disclosure indicates the following: an illegal act, gross misconduct and/or negligence, or a deliberate or willful disregard of CATS rules, policies, and procedures.

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CATS Management is committed to developing a Safety Management System (SMS) and will develop programs to promote the safety and security of all employees and customers. CATS Management is committed to working with and cooperating with frontline transit worker representatives through the safety committees' roles and responsibilities, as described in Section 1.6.1 of this document, to ensure that frontline transit workers are part of the process in developing safety objectives and implementing the SMS program. We are fully committed to providing a safe work environment and safe vehicles, systems, and facilities. To that end, CATS' Chief Safety and Security Officer is empowered and authorized to administer a comprehensive, integrated Agency Safety Plan.

CATS distributes this Safety Management Policy Statement to each employee and reviews it with employees during initial onboarding classes. During employee safety meetings and toolbox talks, the distribution and review of this safety management policy statement is left up to the discretion of the supervisor. The CATS Safety Objectives are listed in the CATS Agency Safety Plan (ASP), Section 1.2.2. CATS' commitment to developing our SMS is supported by the following additional safety objectives:

- **Support** the implementation of an effective SMS by providing appropriate resources to support an organizational culture that fosters safe operational policies, encourages effective safety reporting and communication, and actively manages safety with the

same attention to results as that given to the other management systems of CATS.

- **Integrate** the management of safety as an explicit responsibility of CATS managers and employees.
- **Clearly define** for all managers, employees, and contractors their accountabilities and responsibilities for the delivery of safe transit services and the performance of our safety management system.
- **Establish and operate** a safety reporting program as a fundamental tool in support of CATS hazard identification and safety risk evaluation activities to eliminate or mitigate the safety risks of the consequences of hazards resulting from our operations or activities to a point that is as low as reasonably practical.
- **Comply** with and, wherever possible, exceed any applicable legislative and regulatory requirements and standards.
- **Ensure** that sufficiently trained and skilled personnel are available and assigned to implement CATS safety management processes and activities.
- **Ensure** that all staff are formally provided with adequate and appropriate safety management information, are competent in safety management system activities, and are assigned only safety related tasks commensurate with their skills.
- **Establish and measure** our safety performance against realistic safety performance indicators and safety performance targets.
- **Continually improve** our safety performance through management processes that ensure relevant safety action is taken in a timely fashion and is effective when performed.
- **Ensure** contracted services are ordered and delivered in compliance with our safety performance standards.

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Following implementation, the CATS Safety Management System (SMS) is maintained through the ongoing administration, monitoring, evaluation, and continual improvement processes established in this Agency Safety Plan and its supporting procedures. These processes include the annual Agency Safety Plan review, Safety Risk Management, Safety Assurance, Safety Promotion, Internal Safety Reviews, Safety Committee oversight, and other activities described throughout this ASP and its incorporated reference documents.

1.2 Goals and Objectives

1.2.1 Goals

The system safety goal is to design, construct, test, prepare, and operate a transportation system that attains a practical optimum level of safety during the entire life cycle of the system's five phases – Planning, Design, Construction, Operations, and/or Disposal as applicable. The ASP is directed toward achieving this goal within CATS' strategic goals and constraints.

The following are CATS' goals in achieving comprehensive system safety:

- Develop a sustainable safety culture focusing on safety through knowledge.
- Promote learning through the development of a comprehensive training curriculum.
- Ensure training enhances individual performance and provides continuous learning for all levels that are managed through a centralized learning management system.

- Continue to cultivate coordination, communication, and collaboration to achieve solutions for shared strategic initiatives.

Properly implemented, the Safety Management Systems processes documented herein will provide for the following:

- Identification and elimination or control of hazards to employees, customers, or the public.
- A safe working environment that meets or exceeds all applicable government and industry occupational health and safety standards and best practices, with timely identification of current and repeated deficiencies, tracking deficiencies and corrections, through continuous monitoring, accountability, hazard logs and risk registers.
- Investigation of all major accidents/incidents and identification and documentation of accident causes to implement corrective action to prevent recurrence.
- Effective emergency response by CATS and public safety agencies
- Integration of safety and hazard control measures into all CATS department and division activities.

1.2.2 Objectives - Annual Safety Performance Metrics/Targets and Indicators

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To accomplish its system safety goals and promote continuous improvement, CATS has established Specific, Measurable, Achievable, Relevant, and Time-bound (SMART) safety performance objectives. CATS utilizes the safety performance measures identified in the National Public Transportation Safety Plan (NSP), reports applicable safety performance data through the National Transit Database (NTD), and, to the maximum extent practicable, coordinates annually with the State and the Charlotte Regional Transportation Planning Organization (CRTPO) in the selection of State and Metropolitan Planning Organization (MPO) safety performance targets. CATS also establishes annual agency safety performance targets applicable to its transit operations. Annual safety performance targets and results are documented in Appendix G.

CATS has established fifteen (15) safety performance targets applicable to all modes of public transportation. Of those fifteen (15), eight (8) have been identified as being included in the safety risk reduction program. Targets are generally based on a three-year rolling average of NTD data. Where three years of historical data are unavailable, targets are established using the best available data beginning in January 2024.

Each January, the RSSC reviews the previous calendar year's safety performance, establishes or updates annual safety performance targets, and supports the annual review and approval of the ASP in accordance with Sections 8–10 of the RSSC Bylaws, which are incorporated by reference into this ASP.

In accordance with 49 CFR § 673.27(d)(1), CATS conducts an annual safety performance assessment. Coordinated by the CSSO under the direction of the Accountable Executive, the assessment evaluates the effectiveness of the SMS, performance against established safety performance targets, the effectiveness of

implemented safety risk mitigations, and opportunities for continuous improvement. At a minimum, the assessment includes a review of:

- Annual safety performance measures and targets;
- NTD safety performance data;
- Hazard identification and SRM activities;
- Risk Register entries and mitigation status;
- Internal Safety Reviews (ISRs), audits, inspections, and management reviews;
- Safety event investigations and Corrective Action Plans (CAPs);
- Safety Risk Reduction Program performance;
- Safety Assurance activities;
- Changes to applicable Federal, State, and agency safety requirements; and
- Organizational, operational, infrastructure, or service changes affecting system safety.

As part of the Safety Risk Reduction Program (Section 2.2.5), CATS reviews and updates annual safety performance targets and incorporates safety risk mitigations recommended by the RSSC to reduce the frequency and rate of:

- Safety events
- Injuries
- Assaults on transit workers
- Vehicular and pedestrian safety events

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Table 1 referenced below identifies each safety performance measure and indicates those measures added in the most recent version of the National Public Transportation Safety Plan.

1.	Measure 1a – Major Events- This includes all safety and security major events as defined by the NTD. Included in the Safety Risk Reduction Program.
2.	Measure 1b – Major Event Rate -This includes all safety and security major events as defined by the NTD, divided by VRM. Included in the Safety Risk Reduction Program.
3.	Measure 1.1 – Total Collisions – This includes all collisions as defined by the NTD. Included in the Safety Risk Reduction Program.
4.	Measure 1.2 – Collision Rate (new)- This includes all collisions reported to the NTD, divided by VRM. Included in the Safety Risk Reduction Program.
5.	Measure 1.2.1 – Pedestrian Collision Rate (new) -This includes all collisions “with a person,” as defined by the NTD, divided by VRM.
6.	Measure 1.2.2 – Vehicular Collision Rate (new)- This includes all collisions “with a motor vehicle,” as defined by the NTD, divided by VRM.
7.	Measure 2a – Fatalities -This includes all fatalities as defined by the NTD.
8.	Measure 2b – Fatality Rate- This includes all fatalities as defined by the NTD, divided by VRM.

9. Measure 2.1 – Transit Worker Fatality Rate (new)- This includes all transit worker fatalities as defined by the NTD, including the categories "Transit Employee/Contractor," "Transit Vehicle Operator," and "Other Transit Staff," divided by VRM.
10. Measure 3a – Injuries- This includes all injuries as defined by the NTD. Included in the Safety Risk Reduction Program.
11. Measure 3b – Injury Rate- This includes all injuries as defined by the NTD, divided by VRM. Included in the Safety Risk Reduction Program.
12. Measure 3.1 – Transit Worker Injury Rate (new) -This includes all transit worker injuries as defined by the NTD, including the categories "Transit Employee/Contractor," "Transit Vehicle Operator," and "Other Transit Staff," divided by VRM.
13. Measure 4a – Assaults on Transit Workers (new) -This includes all assaults on transit workers as defined by the NTD. Included in the Safety Risk Reduction Program.
14. Measure 4b – Rate of Assaults on Transit Workers (new) -This includes all assaults on transit workers as defined by the NTD, divided by VRM. Included in the Safety Risk Reduction Program.
15. Measure 5 – System Reliability -This includes Major Mechanical System failures as defined by the NTD.

Table 1: Performance Measures

The Office of Safety and Security will review and analyze the data received related to the target goals. A report showing the performance status of the fifteen (15) target goals will be submitted to CATS Leadership, the MPTA, NCDOT, and CRTPO quarterly and updated annually.

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Where incidents, audits, or observations indicate that the goals or objectives of this plan are clearly not being met, the Safety and Quality Assurance sections coordinate discussions with involved divisions and develop corrective action plans for follow up and completion.

1.3 System Description

CATS provides public transportation services in a large, urbanized area that includes a rail fixed guideway system (light rail and streetcar). The following describes both aspects of the light rail system.

1.3.1 Light Rail Operations

LYNX Blue Line

The LYNX Blue Line is the Charlotte region's first light rail service. It is 18.9 miles long and operates seven days a week from I-485/South Boulevard Station to the UNC Charlotte Main Campus in University City. With 26 stations, including 11 park and ride locations, the LYNX Blue Line provides a congestion free commute with a consistent travel time. Blue Line operating hours are approximately from 5:30 a.m. to 2:00 a.m., six days a week and until 1:30 a.m. on Sundays.

All CATS light rail passengers board trains at light rail stations. Each light rail station provides protection from inclement weather, lighting, blue light emergency phones, and security camera coverage. Appendix D – System Maps shows the map of the LYNX Blue Line.

The operation of the Blue Line rail system is managed by the Rail Operations Control Center (ROCC) in accordance with CATS Rail Operations Control Center (ROCC) Procedures Manual.

The Siemens Light Rail fleet consists of 42 double articulated, low floor Light Rail Vehicles (LRVs). The LRVs were procured by CATS from Siemens Transportation Systems and meet the following physical and performance characteristics:

- 70% Low Floor Design
- 100% Low Floor Boarding
- 68 Passenger Seats (Minimum)
- Maximum Speed of 66 mph
- Approximately 93 ft. in length and 9 ft. in width
- Bi-Directional Operation
- Cameras
- Automatic passenger counters

The LRVs and the station platform interface are compliant with the Americans with Disabilities Act (ADA). LRVs are capable of operating as single units or coupled in consists of up to two cars (with three car consist capability at designated stations for future express service). Each LRV is equipped with operating cabs at both ends and features alternating current (AC) propulsion, cab signaling equipment, automated station announcements, and a climate control system.

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CityLYNX Gold Line

The CityLYNX Gold Line is the Charlotte region's streetcar service which returned to revenue service in August 2021. It is approximately four miles long and has 17 stops/platforms for boarding and alighting, running from the intersection of French Street and Beatties Ford Road to the intersection of Sunnyside Avenue and Hawthorne Lane. The CityLYNX Gold Line is a conventional in-street running fixed-guideway with a mix of center and side platforms. Each stop has a shelter to provide protection from inclement weather. Gold Line operating hours are approximately from 6:00 a.m. to 11:00 p.m. Monday through Friday, 8:00 am to 11 p.m. on Saturday and 8:00 am to 10 p.m. on Sunday. Appendix D shows a map of the CityLYNX Gold Line.

The operation of the Gold Line rail system is managed by the ROCC in accordance with CATS ROCC Procedures Manual.

The Siemens Light Rail Hybrid Streetcar fleet consists of 6 double-articulated, low floor LRVs The LRVs were procured by CATS from Siemens Transportation Systems and have the following physical and performance characteristics:

- 70% Low Floor Design
- 100% Low Floor Boarding
- 54 Passenger Seats (Minimum)
- Maximum Speed of 66 mph

- Approximately 85 ft. in length and 9 ft. in width
- Bi-Directional Operation
- Cameras
- Automatic passenger counters
- On Board Energy Storage System (OESS)

The streetcars and the stop interface are compliant with the ADA. Streetcars operate as single units. Each streetcar is equipped with operating cabs at both ends and features both AC propulsion or battery operations, cab signaling equipment, automated station announcements, and a climate control system. The hybrid streetcar is designed to operate for specified distances without the overhead catenary system power utilizing the vehicle's battery pack also known as the On Board Energy Storage System (OESS).

Rail Car Maintenance

LRVs, including streetcars, are maintained by RCM in accordance with the CATS Light Rail Fleet Management Plan, applicable Light Rail Standard Operating Procedures (SOP), and manufacturer's maintenance manuals.

Rail Maintenance of Way

The vehicles are powered by electricity distributed by an Overhead (contact) Catenary System (OCS). A train control system, using cab signaling, provides vehicle spacing and routing throughout the light rail system. The Rail Maintenance of Way (MOW) section is responsible for the maintenance of Train Control and Communication Systems, Traction Power Substations, Overhead Catenary Systems, and track work on the LYNX Blue Line and the CityLYNX Gold Line. The CATS systems and equipment are maintained in accordance with CATS ROD600, *Preventive Maintenance Requirements for Rail MOW* and the referenced ROD600-series SOPs.

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Inventory Management

The Inventory Management Section of CATS Rail Operations is responsible for procurement and warranty of spare parts, managing inventory and warehousing materials for the LYNX Blue and Gold Line. They manage the shipping, receiving and inventory functions at the South Boulevard Light Rail Facility (SBLRF) and North Brevard Light Rail Facility (NBLRF). This section, headed by the Inventory Management Manager for Light Rail Operations, has been established to take any and all actions necessary to maintain light rail service by providing a continuous supply of spare parts and materials for MOW and RCM staff to perform preventative, corrective and emergency work orders as well as support supplies for transportation and administrative personnel.

The warehouses at SBLRF and NBLRF have an estimated area of 10,029 square feet including docks, staging areas, pallet racks, aisleways and office space.

South Boulevard Light Rail Facility

The SBLRF is adjacent to and west of the mainline light rail track between New

Bern Street and Clanton Road. Detailed information on the facility is contained in the Light Rail Fleet Management Plan. The Facility includes the ROCC, maintenance shop, storage yard, rail inventory space and administrative offices. Staff members are located in the building 24 hours a day, seven days a week, to ensure the safe and efficient operation of the LYNX Blue Line.

The Main Shop building contains the following rail vehicle service inspection, repair facilities, and warehouse space:

- A service track for interior and exterior vehicle cleaning
- A running repair track for scheduled car servicing and inspection
- A light repair area for change-out of minor components
- A heavy repair area for vehicle overhauls, major repairs, and modifications
- A wheel truing machine for running rail vehicle and truck wheel truing
- A truck shop for change-out and repair/overhaul of vehicle truck components
- An electronics shop for repairing electronic equipment and components
- Parts storage areas
- Overhead work platforms and maintenance pits
- Shop areas for repair of couplers, pantographs, and brakes
- A machine shop, welding shop, and carpentry shop
- A portable vehicle hoist system
- A 7.5-ton bridge crane, a monorail crane, and various jib cranes

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Component repair shops, which support maintenance services for all components of the light rail system, are included in the maintenance facility. A paint booth is provided in a separate building. Interior vehicle cleaning may be done on the LRV service and cleaning track, or it may be accomplished on the storage tracks. Daily LRV washing may occur when vehicles return from service or during off-peak service hours by drawing equipment from the storage tracks.

As a part of the Blue Line Extension project significant, much-needed vehicle storage and specialty maintenance capability was added to the SBLRF. In its original construction, the SBLRF was originally sized to accommodate a fleet of 40 vehicles. Improvements to the outside yard area at the SBLRF allowed for the accommodation of 16 additional LRVs and three trolleys. North Brevard Light Rail Facility

The NBLRF at 1911 North Brevard Street is a satellite facility utilized to perform daily vehicle cleaning, basic preventive maintenance inspections, and basic running repairs, including lowest level component replacement (for failure or repair only).

1.3.2 Facilities Management

CATS facilities are maintained by the Facilities Management section in accordance with the Facilities Management Plan. The major goals and objectives of the Facilities Management Plan are to do the following:

- Responsively address ongoing maintenance needs.
- Maintain facilities for all modes of transit in a safe condition and in compliance with applicable codes and regulations.
- Provide for the inspection of buildings and major building components when they reach the end of their expected service life.
- Provide periodic inspections on all passenger amenities.
- Provide appropriate custodial care to clean and sanitize facilities.
- Properly prioritize facility maintenance, renovation, and replacement needs to best utilize available resources.
- Serve as the framework to be used in the management of CATS facilities when this work is contracted outside the department.
- Assign responsibility and provide planning for the maintenance and renewal of parking lots, driveways, walkways, plazas, and outdoor lighting which support CATS facilities.
- Promote the efficient and effective use of existing space.
- Implement energy saving and environmentally friendly improvements.

1.4 Management Responsibilities and Lines of Authority

The CATS ASP Organizational Structure, CATS Organizational Chart and the Safety and Security organizational chart in Appendix B capture CATS lines of authority to manage safety issues.

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1.4.1 Metropolitan Public Transportation Authority (Equivalent Authority)

The Metropolitan Public Transportation Authority (MPTA) serves as the governing board and Equivalent Authority for the Charlotte Area Transit System (CATS). The MPTA is responsible for providing policy direction, governance, and oversight of the CATS public transportation system and exercising the authorities assigned to the governing entity under applicable Federal and State laws.

The Chief Executive Officer (CEO) is accountable to the Metropolitan Public Transportation Authority (MPTA) for the overall administration, operation, and performance of the CATS public transportation system. The CEO implements the policies and actions approved by the MPTA and provides regular reports and updates regarding the safety, performance, operation, maintenance, and continuous improvement of the transit system, including implementation and effectiveness of the Agency Safety Plan (ASP) and the Safety Management System (SMS).

As the Equivalent Authority, the MPTA reviews and approves the Agency Safety Plan (ASP) and all subsequent revisions in accordance with 49 CFR Part 673 and the North Carolina Department of Transportation (NCDOT) State Safety Oversight Program Standard (SSOPS). Following review and recommendation by the Rail Safety and Security Committee (RSSC), the ASP is submitted to the MPTA for approval. Evidence of MPTA approval is maintained through the official MPTA resolution and is included in Appendix F of this ASP.

1.4.2 Chief Executive Officer (Accountable Executive)

CATS has identified the Chief Executive Officer as the Accountable Executive. The Chief Executive Officer is accountable for ensuring that CATS Safety Management System (SMS) through the Agency Safety Plan (ASP) is effectively implemented throughout the transit agency's public transportation system. The CEO is accountable for ensuring action is taken, as necessary, to address substandard performance in CATS SMS. The Accountable Executive provides leadership and management oversight for the Executive and other divisions of CATS. The Executive Division includes Human Resources, Legal, and Civil Rights. The CEO may delegate specific responsibilities, but the ultimate accountability for CATS' safety performance cannot be delegated and always rests with the CEO.

The CEO of CATS must implement safety risk mitigations for the safety risk reduction program that are included in the ASP under 673.11(a)(7)(iv). The Accountable Executive of CATS receives and must consider all other safety risk mitigations recommended by the Safety Committee, consistent with requirements in 673.19(d) and 673.25(d)(6).

1.4.3 Chief Safety and Security Officer (CSSO)

The CEO has designated the Chief Safety and Security Officer (CSSO) for CATS. The CSSO is adequately trained in safety and is empowered and authorized to administer a comprehensive, integrated and coordinated ASP, including the day-to-day implementation and operations of the transit agency SMS program and for developing and maintaining the ASP in compliance with CFR 49 673. The CSSO maintains CATS Safety program and acts as a liaison with first responders and emergency management. The CSSO shall receive a monthly report on the SGR status for capital rail assets for review and be provided an update monthly on the status of the TAM Plan implementation. The CSSO may not serve in any other operational or maintenance capacities. The CSSO reports directly to the CATS CEO and informs the whole Leadership team on the status of the SMS and risks to CATS.

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1.4.4 CATS Leadership and Executive Management

CATS Leadership Team consists of the CEO's direct reports. The CATS Leadership team is responsible for the communication, implementation, and management of their assigned responsibilities of the ASP.

1.4.5 Key Staff and Groups

Chief Operating Officer (COO) is responsible for overseeing and performing complex professional leadership, direction, strategic planning and directing of Rail Operations Division and Facilities. The COO is responsible for managing CATS day-to-day operations and reporting them to the CEO.

Facilities Manager is responsible for Facilities Management.

General Manager of Rail Operations is responsible for Rail Operations.

Chief Transit Financial Officer is responsible for Capital Budget and Operating

Budget support. The Revenue Section receives, tracks, and distributes cash revenue.

Director of Marketing/Communications maintains public information and involvement programs.

Information & Technology Director works with CATS and City IT to protect CATS technology and integrate new technology with current technology.

Chief Development Officer oversees implementation of the City of Charlotte Regional Transit System Plan, including project development, design and construction, as well as capital planning, transit asset management, real estate and transit-oriented development (TOD), Art-in-Transit program, engineering services, and Quality Assurance.

Director of Planning oversees service planning, development, and scheduling of bus and rail services as well as long range planning, coordination with Metropolitan Planning Organizations (MPO) and data analytics, including Geographic Information Systems (GIS) and ridership reporting.

CATS Quality Assurance Section is responsible for oversight of the quality management system. CATS Quality Assurance section oversees the Policy and Procedure review process and participates in ASP audits.

City Procurement is a division within the City Department of General Services in the City of Charlotte. City Procurement has staff assigned to CATS Procurement.

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1.4.6 NCDOT State Safety Oversight

As required by 49 CFR Part 674, the State of North Carolina has designated the North Carolina Department of Transportation (NCDOT) to serve as the State Safety Oversight Agency (SSOA) responsible for overseeing CATS' system safety programs as implemented and administered for CATS' rail transit system. NCDOT's authority as an SSOA is established by North Carolina Statute G.S. 136-18.

NCDOT's State Safety Oversight Program Standard (SSOPS) establishes the minimum requirements for the CATS safety programs that must be met by all rail fixed guideway systems operating in the State of North Carolina. Per the Federal and State requirements, CATS will comply with NCDOT's policies and procedures included in NCDOT's SSOPS, accompanying Reference Manual (SSOPS-RM), and the requirements of U.S.C 5329, as amended. Refer to Section 2.6 Risk-Based Inspections for additional information regarding CATS compliance with NCDOT's rail safety inspection program related to CATS.

1.5 Safety Responsibilities Task Matrix

Table 2 lists safety responsibilities by position and title. A description of the specific activities required to implement the ASP is included for all employees, agents, and contractors, as part of the ASP.

Table 2: Safety Responsibilities	
Position/Title	**Safety Responsibilities** (Areas refer to departmental/divisional responsibilities unless noted as system-wide)
Chief Executive Officer	• All system-wide/Accountable Executive
Deputy Director/Chief Operating Officer	• Hazard Management • Accident and Incident Investigation • Risk Mitigation and Verification of Effectiveness • Data Acquisition and Analysis • Drug and Alcohol Program • Rules and Procedures • Facilities and Equipment Safety • Qualification and Training Qualification • Employee and Contractor Safety • Configuration Management
Director of Planning	• Hazard Management for design and construction • Safety and Security Certification for Major Projects • System Modification • Risk Mitigation for projects and Verification of effectiveness • Safety and Security Qualification • Employee and Contractor Safety • Configuration Management
Chief Development Officer	• Hazard Management for design and construction • Safety and Security Certification for Major Projects • System Modification • Risk Mitigation for projects and Verification of effectiveness • Safety and Security Qualification • Employee and Contractor Safety • Configuration Management
General Manager – Rail Operations	• Hazard Management • Accident and Incident Investigation • Risk Mitigation and Verification of Effectiveness • Data Acquisition and Analysis • Drug and Alcohol Program • Rules and Procedures • Facilities and Equipment Safety • Qualification and Training Qualification • Employee and Contractor Safety • Configuration Management
Service Implementation & Scheduling Manager	• System Modification • Route Development and Modification • Rules and Procedures • Configuration Management

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Chief Safety and Security Officer	• Safety Goals and Objectives • System Safety Program Implementation • Safety and Security Certification • System Modification • Safety and Security Qualification • Safety Data Acquisition and Analysis • Accident and Incident Investigation, Notification and Reporting • Risk Mitigation and Verification of Effectiveness • Emergency Management • Rules and Procedures • Facilities and Equipment Safety Inspections • Training Qualification • Employee and Contractor Safety • Hazardous Materials Management • Emergency Drills • Audits in Design and Construction • Audits with NCDOT SSO
Chief Financial Officer	• Hazard Management • Rules and Procedures • Risk Mitigation and Verification of Effectiveness • Data Acquisition and Analysis • Security of Revenue • Training Qualification • Employee Safety
Director of Marketing/Communications	• Crisis Communication • Public and Internal Communications • Risk Mitigation and Verification of Effectiveness • Training Qualification • Operation Life Saver
Procurement Services Manager (General Services)	• Procurement • Hazard Management • Safety and Security Qualification • Emergency Management • Configuration Management
Human Resources Manager	• Drug and Alcohol Program • Blood Exposure Control Plan • Configuration Management
Quality Assurance Manager	• Document Control Management • System Modifications and Capital Projects • Configuration Management – Rail Operations • Internal Audits and Evaluations • Audits in Design and Construction • Corrective Action Management • Performance Measurement and Management • Records and Information Management

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Information & Technology Director	• Hazard Management • Rules and Procedures • Facilities and Equipment Safety • Configuration Management • Emergency Management • Data Acquisition and Analysis • Training Qualification • Employee and Contractor Safety
Manager – Facilities Maintenance	• Hazard Management • Rules and Procedures • Facilities and Equipment Safety • Configuration Management • Training Qualification • Employee and Contractor Safety
Supervisors and Managers	• Comply with CATS Rules, Procedures and Policies • Identify and report hazards through the appropriate chain of command and safety reporting systems • Assist, as necessary, in the investigation, mitigation and elimination of hazards and unsafe conditions. • Oversee front-line employees to ensure compliance with safe work practices and adherence to policies and procedures • Support emergency situations • Provide appropriate training and tool talks • Evaluate employees for Reasonable Suspicion
All Employees and Contractors	• Comply with CATS Rules, Procedures and Policies • Identify and report hazards through the appropriate chain of command and safety reporting systems • Support in the investigation, mitigation and elimination of hazards and unsafe conditions. • Support emergency situations • Attend and participate in appropriate training and/or tool talks

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1.5.1 Annual Staffing Analysis of Key Rail System Functions

In accordance with the North Carolina Department of Transportation (NCDOT) State Safety Oversight Program Standard (SSOPS), Section 4.1.1, CATS conducts, at least annually, a staffing analysis for each key rail system function to evaluate whether sufficient qualified personnel are available to safely operate, maintain, and support the rail transit system. The staffing analysis is conducted as part of the Safety Assurance process and is used to identify staffing-related safety risks, support resource planning, and ensure the continued effectiveness of the CATS Safety Management System (SMS).

At a minimum, the annual staffing analysis includes the following key rail system functions:

- Rail Transportation
- Rail Operations Control (Rail Vehicle Movement)
- Rail Car Maintenance

- Maintenance of Way (Track, Signals, and Power)
- Facilities Management
- Rail Safety Function
- Quality Assurance
- Training and Instruction

For each function, the staffing analysis evaluates, at a minimum:

- Authorized staffing levels;
- Filled positions;
- Current vacancies;
- Projected staffing needs and additional positions necessary to effectively perform the responsibilities of each function;
- Qualifications and supervisory oversight of personnel performing safety-critical functions; and
- The impact of staffing levels on the agency's ability to effectively identify, report, evaluate, prioritize, control, track, mitigate, and resolve safety hazards.

The staffing analysis is used to determine whether staffing levels, vacancies, organizational changes, or resource constraints may adversely affect the safe operation of the rail transit system or the effectiveness of the Safety Management System. When staffing-related safety risks or deficiencies are identified, CATS evaluates those risks through the Safety Risk Management (SRM) process and develops appropriate corrective actions, mitigation strategies, staffing plans, or resource allocations, as necessary.

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The completed Annual Staffing Analysis shall be included as part of the agency's annual Safety Assurance activities and submitted to NCDOT each calendar year as required by the SSOPS. Results of the staffing analysis shall also be considered during the annual review and update of the ASP, the annual safety performance assessment, and the allocation of resources necessary to maintain the continued effectiveness of the CATS Safety Management System.

1.6 Committee's Safety Responsibilities Task Matrix

Table 3: Committees' Safety Responsibilities

Name	Main Purpose
Project Team meets as specified in Project Management Plans. Members: Led by Development - Coordinate with all divisions Chair(s): Project Manager(s)	• Provide oversight and coordination between all divisions and project committees • Track and oversee all critical tasks are completed on time • Allocate available resources as needed • Coordinate with other City departments and external agencies as required

Safety and Security Review Committee (SSRC) meets monthly, or more frequently as necessary. Members: Rail Operations, Bus Operations, STS, Development, S&S, Technology, Facilities Management, Quality Assurance, CMPD Chair: GM Safety and Security delegated to the Rail Safety Manager	• Review safety and security certification of system components including certifiable items lists and hazard analysis • Hazard Management for Projects
Safety and Security Committee (SSC) meets monthly or more frequently as necessary Members: Rail Operations, Bus Operations, STS, S&S, Technology, Facilities Management, Quality Assurance, CMPD, HR, Marketing and Communications, and Chairs of safety & security committees Chair: GM Safety and Security delegated to the Security Manager	• Review all safety and security efforts • Hazard Assessments and Recommend Mitigations • NCDOT reportable Incident/accident Investigation reviews • Review security breaches • Review items escalated from Rail, STS, and Bus safety committees • Assess and mitigate assaults on transit workers
Rail Safety & Security Committee (RSCC) meets monthly. The committee follows a Joint Labor Management Process to review and approve the ASP and Safety Goals. Members: S&S, QA, and frontline employees and management from Rail Operations, MOW, RCM, Transportation, Rail Inventory, Facilities Management. The committee membership will be 50% Frontline and 50% Management at a minimum. Chair selected by committee members Rail Safety Liaison: Rail Safety Coordinator	• Hazard Assessments and • Recommend Mitigations • Provide ongoing reporting of hazard resolution activities to NCDOT • Identify and investigate rail safety issues. • Review and approve the ASP as revised • Set annual safety performance targets for the safety risk reduction program • Support operation of the SMS; identify and recommend safety risk mitigations
Fire-Life Safety Committee (FLSC) meets bi-monthly, or more frequently as required. Members: S&S, Bus Operations, Rail Operations, Facilities Management, Risk Management, QA, Technology, CMPD, CFD, MEDIC, NCDOT– Rail Division, Project Staff (Design and Construction Chair: GM Safety and Security delegated to Bus Safety Coordinator	• Act as liaison group with emergency response agencies • Review designs, standards, and procedures • Make recommendations • Participate in emergency exercises

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1.6.1 Rail Safety and Security Committee Roles and Responsibilities

In addition to the requirements listed above in Section 1.6, the Rail Safety and Security Committee (RSSC) Bylaws will incorporate procedures regarding the composition, responsibilities, and operations of the committee, including their roles and responsibilities listed in this section of the ASP. The committee will be appropriately scaled to the size, scope, and complexity of CATS. The committee will be convened by a joint labor- management process. The Safety Committee will consist of an equal number of frontline transit worker representatives and management representatives. To the extent practicable, the Safety Committee will include frontline transit worker representatives from major transit service functions, such as operations and maintenance, across the transit system. Frontline workers serving on the committee, shall be selected by frontline transit work representatives. If RSSC members participate in meetings outside of their normal work hours, they will be compensated at their hourly rate for the time and work they perform for the RSSC.

When the safety committee recommends a safety risk mitigation unrelated to the safety risk reduction program, and the CATS Accountable Executive decides not to implement the safety risk mitigation, the CATS Accountable Executive must prepare a written statement explaining their decision. The CATS Accountable Executive must submit and present this explanation to the safety committee and MTC.

At a minimum, the RSSC will have the following roles and responsibilities (also found in the RSSC By-Laws):

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- The Chair of the RSSC has the authority to sign the ASP verifying committee approval.
- Create the organizational structure, size, and composition of the committee and how it will be chaired.
- Meeting agendas and notices will be developed and shared, and meeting minutes will be recorded and maintained.
- Participate in required training for RSSC members related to CATS' ASP and the processes, activities, and tools used to support CATS' SMS.
- Rail Management and the Office of Rail Safety will provide access and support to RSSC members when asking for technical experts, including other transit workers, to serve in an advisory capacity as needed; transit agency information, resources, and tools; and submissions to the transit worker safety reporting program to support its deliberations.
- RSCC will reach decisions through a voting process described in the RSCC By-laws and record decisions in the meeting minutes.
- RSSC will coordinate and communicate with CATS' Board of Directors, or equivalent entity, and the Accountable Executive through email, scheduled meetings, and presentations as requested by either party.
- RSSC manages disputes to ensure it carries out its operations by requesting assistance from the City Risk Management Office who will provide a Risk Manager to resolve the dispute.
- RSSC has adequate opportunity to review and provide feedback on

revised final draft red-lined versions of established (formal) rail policies and procedures that may affect the level of safety risk for the RTA's rail systems, employees, and the public before publishing.

- RSCC will be responsible to carry out the following duties specifically identified in paragraph (d) of Section 49 CFR 673.19:
  - Review and approve CATS' ASP and any related updates.
  - Set annual safety performance targets for the safety risk reduction program.
  - Identifying and recommending safety risk mitigations necessary to reduce the likelihood and severity of potential consequences identified through the CATS' safety risk assessment, including safety risk mitigations associated with any instance where CATS did not meet an annual safety performance target in the safety risk reduction program.
  - Identifying safety risk mitigations that may be ineffective, inappropriate, or were not implemented as intended, including safety risk mitigations associated with any instance where CATS did not meet an annual safety performance target in the safety risk reduction program.
  - Identifying safety deficiencies for purposes of continuous improvement as required at § 673.27(d), including any instance where CATS did not meet an annual safety performance target in the safety risk reduction program.
  - Consider mitigations to reduce visibility impairments for transit vehicle operators that contribute to accidents, including retrofits to vehicles in revenue service and specifications for future procurements that reduce visibility impairments.
  - Consider deployment of assault mitigation infrastructure and technology on transit vehicles and in transit facilities. Assault mitigation infrastructure and technology includes barriers to restrict the unwanted entry of individuals and objects into the workstations of rail operators.
  - Recommends safety risk mitigations, including mitigations relating to vehicular and pedestrian safety events involving transit vehicles or assaults on transit workers, based on a safety risk assessment and includes or incorporates by reference these safety risk mitigations.

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1.7 Employee and Contractor Safety Concern Reporting Program

CATS employees and contractors are held accountable for their safety performance and for compliance with rules and regulations. Employees who intentionally conduct unsafe acts will be disciplined commensurate with the offense per City, CATS, and contractor policies and procedures.

Employees are expected to address safety concerns within their control immediately. Employees should report unsafe conditions and acts, assaults on transit workers, near-misses, and issues with procedural compliance to their supervisor or manager. Employees

who feel that a safety concern is not being addressed promptly are encouraged to escalate unsafe issues to their safety committee representative, CSSO, or the Office of Safety & Security. CATS Management encourages employees to report safety concerns with no fear of reprisal. CATS Leadership will have no tolerance for any retaliation against employees, contractors or the public who report safety concerns. Reported safety concerns will be tracked in the appropriate hazard tracking format per the Hazard Management section of this ASP. For employee-reported safety concerns, where contact information is provided, the recipient of the safety concern is responsible for follow-up with the employee. The S&SF48 *Safety Issues Reporting Form* is available to employees via city intranet or can be requested from employee's supervisor. This form can be completed by hard copy or emailed and submitted to supervisors or the Office of Safety and Security. Another method of reporting a safety concern is to send an email to reportsafety@charlottenc.gov. This email account is monitored by all Safety and Security managers and SMS Team. Any reported safety concern to this email address will be reviewed, added to the hazard safety log if applicable, and followed up with the department manager/SMS and employee sending the email.

Reported safety concerns are tracked by the Rail Safety and Security Committees using safety concerns tracking logs. This information is shared with the Office of Safety and Security for review and to identify potential hazards that need to be mitigated through our Hazard Risk Management process.

The City of Charlotte maintains an Employee Hotline that allows for anonymous 24/7 reporting of Abuse, Fraud, and Safety and Waste violations. The hotline should only be used in instances when employees are not comfortable reporting directly to Human Resources, management or the Office of Safety and Security. CATS Safety and Security managers are part of the Employee Hotline process. The Employee Hotline phone number is as follows: 1-844-566-4040.

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Details on the Employee Hot Line are communicated on the City's CNET and at City offices/facilities throughout the City.

Employees can report safety concerns, including assaults on transit workers, near-misses, unsafe acts, and hazards. Examples of reportable offenses for safety include:

- Witnessing or experiencing unsafe working conditions or behavior that compromises one's safety or the safety of others.
- Equipment or facility maintenance issues that can lead to unsafe working conditions.

Employee Hotline process:

- An employee can either call in or email a safety concern. Reports are kept anonymous and confidential.
- Once the incident has been reported, the employee will be given a unique report number by the Hotline Operator which will allow them to call in or email at a later time to either provide additional information or to follow up on the report status.
- The report will then be provided to the CATS Office of Safety and Security for an initial screening for review and action.
- The issue will be reviewed, and a determination will be made: unfounded; credible with immediate resolution or mitigation; or credible with long term mitigation until final solution can be made. Responses to how the issue was addressed are sent back to

the Hotline administrator.

- An anonymous employee can call or email with their assigned unique number to hear the determination, mitigation, or resolution.
- CATS Safety and Security will submit all appropriate documentation and reports to the third-party administrator who manages the Hotline who will confirm in writing the information was made available to the anonymous employee.

NCDOT Direct Reporting process:

Any person(s) wishing to report an allegation of noncompliance with the RTA's ASP to the NCDOT may do so by contacting NCDOT directly:

- Phone: (877) 368-4968 or
- On-line: https://www.ncdot.gov/contact/Pages/default.aspx.

This contact information will be posted, at a minimum, in rail dispatch offices, rail operations control rooms, and lunch/breakrooms.

1.8 Safety Plan and Policy Dissemination

All CATS employees receive training on the ASP and CATS Safety Policy. The CATS Safety Policy references the transit agency's safety objectives in Section 2.1.1 and Section 1.6.1, that describes the transit agency's Safety Committee and assurance frontline employees will be included in developing safety goals and implementing SMS. CATS Safety Policy is communicated by all divisions during New Hire Safety training and is available on CATS CNET site with CATS Policies and Procedures. CATS Policies and Procedures (including CATS Safety Policy) are available on CATS CNET site and at key locations throughout CATS. ASP training for current employees includes training on the ASP and CATS Safety Policy including the employee's roles and responsibilities. The ASP is a controlled document that CATS QA manages through CATS QA02 Control and Distribution of Plans, Manuals, Policies, and Procedures to ensure only the most current revision of the document is available to employees.

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1.9 Emergency Preparedness and Continuity Plan

The Emergency Preparedness and Continuity Plan (EPCP) is incorporated by reference into this ASP as CATS' Emergency Preparedness and Response Plan. The EPCP satisfies the requirements of 49 CFR Part 673 and the SSOPS and establishes the policies, responsibilities, and procedures necessary to prepare for, respond to, recover from, and maintain continuity of operations during emergencies affecting the public transportation system.

At a minimum, the EPCP defines transit worker emergency responsibilities and establishes procedures for coordinating emergency preparedness, response, and recovery activities with Federal, State, regional, and local agencies having emergency management responsibilities within the CATS service area. The EPCP also incorporates the Continuity of Operations Plan (COOP) to support the continued performance of Mission Essential Functions during disruptions affecting personnel, facilities, communications, or other critical resources.

In identifying safety risk mitigations related to exposure to infectious diseases, CATS considers applicable guidelines, recommendations, data, and other information provided

by the CDC or a State health authority, consistent with 49 CFR §673.25(d)(2)(ii). This information is evaluated through CATS' SRM and SA processes to identify, implement, and monitor appropriate safety risk mitigations. During public health emergencies, CATS follows applicable CDC or State health authority recommendations and strategies to minimize infectious-disease exposure, including the provision of appropriate PPE and cleaning, disinfecting, and decontamination resources for employees, facilities, shops, yards, and vehicles, as further described in the EPCP. The EPCP expressly provides that infectious-disease exposure information from the CDC or a State health authority is analyzed and used to monitor safety performance.

The EPCP is reviewed annually to evaluate its effectiveness, ensure it remains current, and reflect changes in operations, organizational structure, regulatory requirements, emergency response procedures, and identified hazards. The annual review covers the previous calendar year and is completed prior to CATS' annual ASP submittal to NCDOT.

Revisions to the EPCP are submitted to NCDOT prior to the annual ASP submittal, together with affected reference documents, as applicable. Each revision includes a narrative or tabular summary describing the changes made and the anticipated timeframe for completing associated implementation activities, consistent with the SSOPS.

The EPCP is maintained as a controlled stand-alone document and is available for review by authorized internal and external personnel. It is complemented by other CATS and City emergency preparedness documents, including the City-wide Pandemic Plan.

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1.10 Integration of Safety Function

The ASP serves as a blueprint for the organizational integration of the safety function and its effective implementation ensures a safe functioning system. The safety function is integrated throughout all operations and activities of CATS through the delegation of safety functions and safety responsibility via CATS Safety Policy Statement from the CEO to all employees and contractors to include safety requirements, responsibilities and objectives into the work plans of managers and supervisors. Managers and supervisors are responsible for promoting the safety of all employees and customers. Safety is incorporated into employee training provided by CATS Instructors.

Rail operators and supervisors must be aware of conditions which may affect passenger safety and report problems so that they may be corrected. The Manager of Safety for Rail is notified of safety issues through various mechanisms described in this ASP and participates in the hazard resolution process, along with the Chief Safety and Security Officer.

Safety performance is measured through the monthly tracking and corporate reporting of indicators such as passenger and transit facility occupant injuries and injury rates as reported to the FTA's NTD. In addition, the Rail Hazard Tracking Log is submitted to NCDOT quarterly, and as a one-year log annually after end of the calendar year.

1.11 Safety Set-Aside Allocation

CATS will allocate its safety set-aside in the following fiscal year to safety-related projects eligible under 49 U.S.C. 5307 that are reasonably likely to assist the transit agency in meeting the safety performance targets in the future.

2.0 Safety Risk Management

2.1 Overview

The detailed Safety Risk Management (SRM) processes, methodologies, responsibilities, hazard tracking mechanisms, risk assessment criteria, reporting requirements, and mitigation monitoring activities are established in CATS Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this Agency Safety Plan.

Safety Risk Management (SRM) is the process for identifying hazards and analyzing, assessing, and mitigating safety risk. Hazard identification and resolution is one of the goals of the CATS System Safety Program. This process is applicable to all levels of the organization. It is how hazards are identified and analyzed for potential impacts and severity on the transit system. It also describes how identified hazards are resolved in a manner acceptable to management.

Safety Risk Management responsibilities are assigned throughout the organization. Transit employees, supervisors, managers, the Safety and Security Department, the RSSC, the CSSO, and the CEO, each have defined roles in implementing and supporting the SRM process. Additional responsibilities and authorities are described in Sections 1.4, 1.6, and Procedure S&S23, which is incorporated by reference into this Agency Safety Plan.

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2.2 Hazard Management Process

2.2.1 Hazard Identification

The following information lists methods of hazard identification used by CATS.

Methods of Hazard Identification of Day-to-Day Operations

1. Safety concerns identified through Safety Assurance activities under § 673.27
2. Hazards identified from near misses or accident/incident investigations
3. System and facility inspections that identify hazards or unsafe conditions. The Office of Safety and Security is reviewing its current processes for prioritization of observation and inspection activities. The hazard management program, audit and corrective action procedures will be reviewed and updated accordingly.
4. Safety issues or hazards identified during scheduled audits (Internal Safety Review Program, ASP Section 3.2), and unscheduled audits (staff warranted)
5. Hazards, unsafe conditions, procedural deficiencies, and safety concerns identified by transit workers through employee observations, verbal reports, written safety reports, confidential reporting processes, or other established CATS safety reporting mechanisms.
6. Hazards identified during planning, design, construction, testing, commissioning, implementation, operation, maintenance, or modification of major capital projects, New Starts projects, system extensions, system modifications, configuration changes, and other activities that may introduce

new safety hazards or change existing safety risks.

7. Safety staff regularly reviews bulletins or advisories, SSOA inputs, and general industry trends to determine their applicability as inputs into the safety management and/or hazard analysis process.
8. Operational data reports (e.g., SPEAR, ROCC/BOCC & key process indicator reports) are reviewed on an ongoing basis to identify known or potential issues that can have an impact on safe operations.
9. Hazards, safety concerns, recommendations, and emerging safety issues identified through the Rail Safety and Security Committee (RSSC), other CATS safety committees, management safety meetings, and committees whose scope includes safety-related matters.
10. Customer, contractor, and employee complaints
11. Data and information regarding exposure to infectious disease provided by the CDC or a State health authority.
12. Hazards, data, and information identified/provided by an oversight authority, including but not limited to FTA, NCDOT, or the SSOA having jurisdiction.
13. Hazards identified through annual Transit Asset Condition Assessments, asset management activities, infrastructure condition assessments, engineering evaluations, and other condition-based inspections.

Hazards identified from any of the sources listed above are documented, screened, evaluated, and managed through the CATS Safety Risk Management process. The detailed procedures governing hazard identification, documentation, initial hazard screening, hazard reporting, Safety Risk Assessment initiation, and hazard prioritization are established in CATS Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this Agency Safety Plan.

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2.2.2 Addressing Identified Hazards

The system to be analyzed is defined by its physical and functional characteristics, including:

- People
- Procedures
- Facilities and Equipment
- Operating Environment

Hazards identified through the sources described in Section 2.2.1 shall be documented, reported, evaluated, prioritized, and managed through the CATS Safety Risk Management (SRM) process. Employees are expected to promptly report identified hazards, unsafe conditions, procedural non-compliance, and other safety concerns using established CATS reporting processes so that appropriate evaluation and corrective action may be initiated.

Hazards shall be evaluated using the Safety Risk Assessment (SRA) methodology described in Section 2.3, which utilizes the principles of MIL-STD-882E to determine hazard severity, likelihood, the Safety Risk Index, risk acceptability, and the appropriate level of management review and approval.

The detailed processes governing hazard reporting, documentation, initial hazard

screening, Safety Risk Assessments (SRAs), Risk Register management, mitigation development and implementation, monitoring, verification of mitigation effectiveness, hazard closure, required notifications, and reporting requirements are established in CATS Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this Agency Safety Plan. Nonconformances are documented, investigated, corrected, and tracked in accordance with CATS Procedure QA05 – Nonconformity and Corrective Action, with hazardous conditions requiring formal Safety Risk Management additionally managed in accordance with Procedure S&S23.

Hazards requiring executive management notification, immediate operational action, or notification to NCDOT shall be managed and reported in accordance with Procedure S&S23, the SSOPS, and other applicable Federal and State requirements.

2.2.3 Methods for Continuous Hazard Identification and Targeted Campaigns

The methods used for continuous hazard identification as mentioned above in Sections 2.2.1 and 2.2.2 are performed on an ongoing basis using a variety of methods such as scheduled inspections, internal safety reviews (ISRs), routine safety walkthroughs, hazard reporting systems, incident trend analysis, and investigation of safety complaints.

Hazards identified through these methods are evaluated and prioritized for mitigation. Based on the hazards identified through these methods, targeted safety topics will be communicated and focused inspections or corrective actions will be implemented to address the issues revealed by the data analysis.

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2.2.4 Hazard Management Logs

CATS utilizes an integrated, system-wide hazard tracking process to support Safety Risk Management (SRM), Safety Assurance, and continuous improvement. Hazards and safety concerns identified through employee reports, inspections, audits, investigations, maintenance records, SPEAR entries, safety committee activities, Safety Risk Monitoring Inspections, Risk-Based Inspections, and other safety data sources are documented and managed through the appropriate Hazard Management Log (HML), Risk Register, Corrective Action Plan (CAP), and other supporting records, as applicable.

Hazard Management Logs and the Risk Register are maintained electronically as controlled records and are available to appropriate personnel for review, tracking, and follow-up. Hazards are assigned responsible owners, monitored throughout the mitigation process, and tracked until they are eliminated, controlled, mitigated to an acceptable level, or formally closed. The risk register is routinely reviewed to identify overdue actions, recurring issues, adverse trends, ineffective mitigations, or conditions requiring management escalation.

The Safety and Security Department administers the system-wide hazard tracking process and coordinates with responsible departments to ensure identified hazards are evaluated, assigned, tracked, and resolved. Department management, Safety, Quality, Security, SMS Coordinators, and other designated personnel are responsible for maintaining hazard records, monitoring mitigation

progress, and implementing corrective actions within their respective areas. The Rail Safety Office reviews accident and safety event reports, SPEAR entries, inspection and audit findings, employee reports, safety committee recommendations, and other rail safety information to determine whether additional evaluation, mitigation, or escalation is required. Hazards are managed through the Rail Hazard Management Log and, when appropriate, the Risk Register or CAP process.

CATS provides ongoing reporting of hazard identification, hazard analyses, Safety Risk Assessments (SRAs), safety risk mitigations, and hazard resolution activities to NCDOT in accordance with the SSOPS. Safety information generated through the hazard tracking process supports leadership reporting, safety committee reviews, employee safety communications, trend analysis, Safety Assurance activities, and the annual safety performance assessment.

The detailed procedures governing hazard documentation, Hazard Management Log requirements, Safety Risk Assessments, Risk Register management, mitigation tracking, implementation verification, effectiveness monitoring, reporting, and hazard closure are established in Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this Agency Safety Plan.

The Hazard Tracking Log is managed to eliminate, reduce, or control each hazard to an acceptable level. Hazards identified as undesirable or unacceptable are assigned a risk rating. The risk ratings and status of the Hazard Log are reviewed on a monthly basis. When an item is added by the Office of Safety, the Division Manager will be notified by e-mail. Hazard Tracking Logs will be distributed to CATS Leadership on a monthly basis. Hazard Tracking logs will be distributed to the SSC on a quarterly basis for review and discussion.

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Utilizing the information collected in the various safety reports, the CSSO will provide a monthly safety summary to the MPTA, CATS CEO, and CATS employees. TV screens are centrally located in areas (e.g. breakrooms) to display safety information, Chief Safety Officer's monthly report, alerts, statistical information, and other safety education materials for employees who do not have access to e-mail. The CATS CEO will receive safety updates during the Senior Leadership meetings.

2.2.5 Safety Risk Reduction Program

The CATS Safety Risk Reduction Program is established to improve safety performance by reducing the number and rates of safety events, injuries, assaults on transit workers, and vehicular and pedestrian safety events in accordance with 49 CFR § 673.25(d)(3)–(5). The program incorporates CATS' fifteen (15) annual safety performance targets, which are based on the National Public Transportation Safety Plan and are generally established using a three-year rolling average of NTD data. Where three years of historical data are unavailable, targets are established using the best available data beginning in January 2024.

Each January, the RSSC reviews the previous calendar year's safety performance, establishes or updates the annual safety performance targets, and recommends any necessary revisions prior to the annual review and approval of the ASP (see

Sec 1.2.2 Objectives – Annual Safety Performance Metrics, Targets, and Indicators).

CATS monitors safety performance against the annual safety performance targets established by the RSSC in accordance with 49 CFR § 673.19(d)(2) as part of the Safety Risk Reduction Program required by 49 CFR § 673.11(a)(7). When performance targets are not achieved, the RSSC evaluates the effectiveness of existing safety risk mitigations, identifies additional or revised mitigations as appropriate, and recommends corrective actions through the SRM process to support continual improvement of system safety performance.

The detailed governance, responsibilities, and procedures for establishing safety performance targets, recommending safety risk mitigations, monitoring mitigation effectiveness, maintaining the Risk Register, and implementing corrective actions are established in the RSSC Bylaws and Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, both of which are incorporated by reference into this ASP.

The CATS safety risk reduction program addresses:

- When identifying safety risk mitigations for the safety risk reduction program related to vehicular and pedestrian safety events involving transit vehicles, including to address a missed safety performance target set by the RSSC under 673.19(d)(2), CATS and the RSSC will consider mitigations to reduce visibility impairments for transit vehicle operators that contribute to accidents, including retrofits to vehicles in revenue service and specifications for future procurements that reduce visibility impairments.
- When identifying safety risk mitigations for the safety risk reduction program related to assaults on transit workers, including to address a missed safety performance target set by the RSSC under 673.19(d)(2), CATS and the RSSC will consider deployment of assault mitigation infrastructure and technology on transit vehicles and in facilities.
- When the CATS RSSC, as part of this risk reduction program, identifies and recommends under 673.19(c)(6) safety risk mitigations, including mitigations relating to vehicular and pedestrian safety events involving transit vehicles or assaults on transit workers, based on a safety risk assessment conducted under 673.25(c), CATS will include or incorporate by reference these safety risk mitigations in the ASP pursuant to 673.11(a)(7)(iv).

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CATS utilizes the hazard management process described in section 2.2 and other methods to inform the safety risk reduction program. The Office of Safety and Security along with Quality Assurance manages the Risk Registry that will be used to track safety risks. The Safety Risk Registers capture, manage, and mitigate identified Undesirable and Unacceptable Hazardous Conditions.

The Risk Register includes, at a minimum, the hazardous condition, potential consequences of the hazard, safety risk assessment for each potential consequence, mitigation that is in place and the hazard rating after mitigation, monitoring activities, and responsibilities for monitoring (S&S23 Risk Assessment, Mitigation and Monitoring).

A summary report of the updates and status of the Risk Register will be provided to the CEO and CATS Leadership Team monthly.

CATS utilizes the following methods to proactively identify hazardous conditions and reduce risk as low as reasonably practicable (ALARP):

- SPEAR – Mechanical Failures - The Rail Controllers capture safety events into the SPEAR (MMS) system. These events are then captured by the data analysis team and a report is distributed to Operations. The data is then broken down into Major and Minor failures using a manual process. The user departments then correlate the data as "True or False". The number of "True Events" are tabulated by the Mechanical group to establish the Major Mechanical Failures (MMF).
  - The NCDOT SSOA has been provided with access to SPEAR. Log in credentials have been provided to allow "view only" access.
- SPEAR – Hazard – These are non-vehicle inputs into the system based on Maintenance of Way Inspections, Adherence to the Preventive Maintenance cycles and the Rail Systems Corrective Work Orders (W.O.).
  - The NCDOT SSOA has been provided with access to SPEAR. Log in credentials have been provided to allow "view only" access.
- Transpro – this is a customizable software application that CATS uses to take the information generated through SPEAR and create customizable reports.
- Transit Master – this is another tool utilized by CATS to capture and customize the raw data from SPEAR.
- Hazard Tracking Log – CATS tracks Hazards utilizing a Hazard Tracking Log. This log is shared monthly with the CATS Leadership Team. All hazards that are classified as Undesirable Hazardous Conditions (UHC) require notification to the SSOA within 2-hours.
  - The Rail Safety and Security Committee reviews the Hazard Tracking Log monthly to ensure the data is correct.
- Corrective Action Plans (CAPS) - CATS also tracks CAPS that are developed from a number of sources. CATS uploads CAPS to the NCDOT SSOA internal site for tracking and updates.
- Employees have several methods for reporting Hazardous conditions. They can speak directly to their supervisors, there is an internal safety hotline, an email address to Safety and Security, or direct conversations with the RSSC, amongst other methods. The City of Charlotte and CATS have also established an email address and phone number to allow for anonymous reporting of Safety & Security concerns. NCDOT SSOA also provides a method for employees to report concerns directly to the oversight team.

As part of CATS' system-wide approach to identifying and managing safety risk, the Safety and Security Department provides direct safety oversight of rail maintenance and inspection activities. The following describes the processes and activities through which the Safety and Security Department performs this oversight:

- *CATS QA100 - Internal and External Audits* - CATS utilizes the CATS QA100

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procedure to verify compliance and provide direct safety oversight activities of maintenance and inspection procedures for the rail system and compliance with rules, processes, procedures, and mitigation implementation and effectiveness.

- The Office of Safety and Security has established inspections for the following areas:

  - Shop Floor Walk/Safety Inspection/PPE - these are performed bi-monthly to identify safety hazards throughout the rail maintenance shop environments to ensure compliance with OSHA 1910 regulations.
  - Station Safety Inspections – these are quarterly inspections of all light rail and streetcar stations/stops to identify any potentially hazardous conditions on the platforms that may involve trip hazards, line of sight issues, lighting, PA systems, etc.
  - Safety Ride Checks – Ride checks are performed by the Rail Safety staff (physically and/or virtually) to ensure safe operation of LRVs and SC's and adherence to operating rules by the Operators.
  - Rail Supervisor Ride Check – This entails a review of the ride check documentation from Rail Transportation Field Supervisors to ensure proper documentation and to verify that each supervisor conducts the assigned number of ride checks per month.
  - Training Mentor – Review of the Operator Trainee schedules to ensure that the trainees are always scheduled to be with a qualified Training Mentor during the "stick time" portion of training.
  - MOW Inspections – this task monitors MOW inspections to ensure compliance with SOP's and inspection schedules.
  - Training Evaluations – Review new hire training records for various disciplines to ensure compliance with the requirements set forth in the Operations Training Manual.
  - RCM Inspections – monitor LRV/SC PM inspections to ensure compliance with PM workplans and maintenance schedules.
  - Pre-Trips – review submissions of LRV/SC pre-trip cards to verify compliance of operator's submission of pre-trip cards for each vehicle that goes into revenue service.
  - Facilities Inspection – quarterly inspection of entire rail facilities to ensure compliance with OSHA 1910 requirements.
  - Sweeper Train Speed Review (3) - review sampling of Blue and Gold Line sweeper trains using event recorder downloads to ensure compliance with sweep train operating speeds.
  - RWP Compliance – Field inspections of CATS staff and Contractors to ensure compliance of RWP rules and training.

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2.3 Safety Risk Assessment

2.3.1 Hazard Analysis Processes

This section describes the CATS Safety Risk Assessment (SRA) process used to evaluate identified hazards, determine the level of safety risk to the public transportation system, prioritize hazards requiring mitigation, and support informed safety decision-making.

Hazards identified through the hazard identification process are initially screened to determine whether a formal Safety Risk Assessment (SRA) is required.

Screening is based on a review of available hazard information, including Hazard Management Log (HML) data, trend analyses, safety event investigations, inspection and audit results, employee reports, operational and maintenance data, existing safety controls, regulatory requirements, potential consequences, recurring occurrences, operational significance, and professional judgment. Hazards presenting elevated safety risk or otherwise requiring additional analysis are prioritized for inclusion in the SRA process.

The Office of Safety and Security is responsible for coordinating the initial review and screening of identified hazards. The CSSO, in coordination with affected department management and appropriate subject matter experts, is responsible for determining whether additional assessment is warranted and for prioritizing hazards for inclusion in the SRA process. The Accountable Executive retains ultimate accountability for safety risk acceptance decisions.

The detailed procedures governing hazard screening, SRA initiation, hazard prioritization, Risk Register management, safety risk mitigation, risk acceptance, mitigation monitoring, required notifications, reporting requirements, and hazard closure are established in Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this ASP.

2.3.2 Safety Risk Indexing (Likelihood and Severity of Consequences)

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CATS evaluates identified hazards using the hazard severity and probability methodology established in MIL-STD-882E. The methodology combines hazard severity and probability to determine a Safety Risk Index, which is used to prioritize hazards, determine the appropriate level of management review, identify required safety risk mitigations, and support risk acceptance decisions.

The Safety Risk Assessment considers existing safety controls and mitigations to determine whether the identified hazard has been adequately controlled or whether additional mitigation measures are necessary to reduce safety risk to an acceptable level.

Hazard Severity Categories

The categorization of hazards is consistent with risk-based criteria for severity; it reflects the principle that not all hazards pose an equal amount of risk to personal or system safety.

Table 4: Hazard Severity Categories

Severity	Category	Service Impact	Safety	Reputational Damage
Catastrophic	1	Complete loss of service or severe disruption of service systemwide	One or more fatalities.	National/State loss of reputation; damaging national/ state exposure
Critical	2	Partial loss of service, major system damage, or major	May cause severe injury, or severe occupational	Significant regional loss of reputation

		system wide disruption of service	illness.	
Marginal	3	Service delay of 1 hour or more or minor system damage, or minor system damage disruption of service.	May cause lost-time injuries or moderate occupational illness.	Significant loss of local reputation
Negligible	4	Service delay of less than 1 hour or less than minor system disruption of service	May cause minor injury, or minor occupational illness.	Light impact on reputation

2.3.3 Hazard Probability

Hazard probability represents the likelihood that a hazard or safety event will occur during the life cycle of a system, operation, or activity. Probability determinations are based on a combination of qualitative judgment, historical operating experience, trend analyses, inspection results, investigation findings, engineering evaluations, maintenance history, and other relevant safety data.

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Table 5: Hazard Probability Categories

Probability Levels Description	Level	Specific Guidance
Frequent	A	Likely to occur multiple times within a year
Probable	B	Likely to occur no more than twice per year
Occasional	C	Likely to occur no more than once per year
Remote	D	Likely to occur no more than once per five years
Improbable	E	Unlikely to occur over the lifecycle of the hazard
Eliminated	F	Incapable of occurrence within the life of an item. This category is used when potential hazards are identified and later eliminated.

2.3.4 Risk Assessment Matrix

CATS has adopted a system for assessing the level of risk for each identified hazard to determine what action(s) must be taken to correct or document the hazard risk. This risk assessment system guides CATS' hazard evaluation assessments and enables CATS decision-makers to understand the amount of risk involved in accepting the hazard in relation to the cost (schedule, cost, operations) to reduce the hazard to an acceptable level.

As part of each Safety Risk Assessment, CATS evaluates the potential consequences associated with each identified hazard. At a minimum, the assessment considers both the most likely potential consequence and the worst credible potential consequence when determining hazard severity and the resulting Safety Risk Index. Depending on the nature, complexity, and potential impact of the hazard, additional potential consequences may also be evaluated to support the development and implementation of appropriate safety risk mitigations.

The Risk Assessment Matrix identifies the risk assessment index based upon hazard category and probability and the criteria for defining further actions based upon that index.

Table 6: MIL-STD-882ERisk Assessment Matrix

SEVERITY / PROBABILITY	Catastrophic (1)	Critical (2)	Marginal (3)	Negligible (4)
Frequent (A)	1A	2A	3A	4A
Probable (B)	1B	2B	3B	4B
Occasional (C)	1C	2C	3C	4C
Remote (D)	1D	2D	3D	4D
Improbable (E)	1E	2E	3E	4E
Eliminated (F)	ELIMINATED			

Hazard Risk Index	Criteria by Index
	Unacceptable (Immediate Action Required)
	Undesirable (Management Decision Required)
	Acceptable with Review by Management
	Acceptable without Review
	Potential Hazard was Identified and Eliminated

Follow-up actions resulting from the Risk Assessment are as follows:

Unacceptable (Immediate Action Required): The hazard must be mitigated in the most expedient manner possible before normal service may resume. Interim corrective action may be required to mitigate the hazard to an acceptable level while the permanent resolution is in development.

Undesirable (Management Decision Required): A hazard at this level of risk must be mitigated unless a documented decision to manage the hazard until resources are available for full mitigation is issued by executive management and forwarded to NCDOT for review and approval/disapproval

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Acceptable with Review by Management: The Office of Safety and Security must determine if the hazard is adequately controlled or mitigated as is.

Acceptable without Review: The hazard does not need to be reviewed by management and does not require further mitigation or control.

Potential Hazard was Identified and Eliminated: The hazard was identified and eliminated

The Risk Assessment Process is used to prioritize hazardous conditions and focus available resources on the most serious hazards requiring resolution.

2.3.5 Risk Tolerability Non-Consensus Procedures

In situations where there is non-consensus on Hazard Risk Assessment ratings, the Subject Matter Expert (internal or external) will take the lead in providing information to the CSSO and Operations Manager to promote resolution of non-consensus. If consensus is not reached, the Accountable Executive or their designee will make the final decision.

2.4 Safety Risk Mitigations

2.4.1 Resolving Hazardous Conditions

CATS uses multiple methods to identify safety risk mitigations or strategies necessary to reduce the likelihood and severity of potential consequences and resolve identified hazards. Mitigations may include design changes, installation of

controls or warning devices, special procedures, training, or other measures identified through the SRM process.

When identifying safety risk mitigations, CATS considers applicable guidance provided by FTA and NCDOT, as the SSOA, as well as guidelines to prevent or control exposure to infectious diseases provided by the CDC or a State health authority, in accordance with 49 CFR §673.25(d)(2). Applicable guidance, recommendations, findings, inspection results, and other safety information from these sources are evaluated through the SRM process to determine whether new or revised safety risk mitigations are necessary.

The RSSC reviews identified hazards and potential mitigations, recommends actions to correct or mitigate safety risks, and monitors recommended actions through resolution. Identified hazards, mitigations, and associated actions are documented and tracked through the applicable CATS hazard tracking processes.

CATS applies the following safety order of precedence when identifying and implementing measures to resolve or mitigate hazards:

Design for Minimum Risk

The first priority is to eliminate hazards through engineering and design. This is applicable for facilities, rolling stock and equipment, park & rides, routes, transit stations, and product selection, etc.

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Safety Devices

Hazards that cannot be eliminated or controlled through design selection shall be controlled to an acceptable level using fixed, automatic, or other protective safety design features, devices, or personal protective equipment. Provisions shall be made for periodic functional checks of safety devices.

Warning Devices

When neither the design nor the safety devices can effectively eliminate or control an identified hazard, devices shall be used to detect the condition and to generate an adequate warning signal to correct the hazard or provide for personnel evacuation. Warning signals and their application shall be designed to minimize the probability of incorrect personnel reaction to the signals and shall be standardized within like types of systems.

Procedures and Instructions

Where it is impossible to eliminate or adequately control a hazard through design selection or use of safety and warning devices, procedures and training shall be used to control the hazard. Procedures may include the use of personal protective equipment. Precautionary notations on signs shall be standardized as specified by management. Safety critical tasks and activities may require certification of personnel proficiency.
CATS Business Planning Process in the CATS Quality Manual describes the budget cycle for all CATS divisions. It is the responsibility of each CATS division/section to prioritize risks based on the Hazard Management process using

Hazard Ratings to help resolve identified hazards.

2.4.2 Evaluation of Current Mitigations

Hazards are identified and categorized by likelihood and severity and mitigations are proposed. The various means of identifying hazards include the Preliminary Hazard Analysis (PHA) process. Once hazards are identified and mitigations selected, CATS evaluates the effectiveness of the Safety Risk Management (SRM) process by conducting Operating Hazard Analyses (OHA) to validate these mitigations using real-world data such as unusual occurrence reports, trend analyses, and compliance observations. Key performance indicators (KPIs) are reviewed to ensure that risks are being reduced to an acceptable level and remain as low as reasonably practicable (ALARP).

If mitigations are ineffective, introduce new hazards, or fail to meet performance targets, then CATS re-engages the SRM process by updating hazard records, revising risk scores, and modifying or replacing the mitigations. Safety Assurance activities, such as Internal Safety Reviews (ISR), operational audits, and targeted inspections, serve as the feedback loop to verify implementation and measure success. This continuous monitoring and improvement cycle ensures the SRM process remains dynamic, data-driven, and fully compliant with 49 CFR Part 673 requirements, supporting a proactive and evolving safety culture.

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2.4.3 Risk Mitigation Implementation and Tracking

CATS utilizes an integrated, system-wide hazard tracking process to ensure that identified hazards are managed from initial detection through evaluation, mitigation, monitoring, and final resolution, control, or elimination. Hazards identified through employee reports, inspections, audits, investigations, Safety Risk Monitoring Inspections (SRMIs), Risk-Based Inspections (RBIs), operational observations, maintenance activities, safety committee recommendations, safety event investigations, and other SMS processes are documented and managed using Hazard Management Logs (HMLs), Safety Risk Assessment (SRA) documentation, the Risk Register, Corrective Action Plans (CAPs), and other supporting records, as appropriate.

Each HML entry shall contain the information necessary to support hazard identification, prioritization, mitigation, trend analysis, reporting, and hazard resolution. At a minimum, each entry shall include:

- Unique hazard identifier;
- Date and time identified;
- Hazard source;
- Hazard type;
- Location;
- Hazard category;
- Hazard description;

- Potential consequence(s);
- Existing mitigation(s), when applicable;
- Initial Safety Risk Index (SRI);
- Hazard status; and
- Date entered into the SRA tracking process, when applicable.

HMLs are maintained as controlled records and updated throughout the hazard lifecycle to document hazard status, mitigation activities, monitoring, and final resolution or closure.

Following initial screening, hazards requiring formal SRM are evaluated using the SRA methodology described in Safety Risk Assessment Methodology and tracked through the Risk Register and Mitigation Tracker. For each safety risk mitigation requiring tracking, CATS documents, at a minimum, the hazard or potential consequence targeted for additional mitigation; associated safety performance indicator(s) or observable measure(s) used to evaluate effectiveness; the new or revised planned mitigation; the department, group, or individual responsible for implementation and designated point of contact; the estimated implementation due date; and the documentation or evidence to be used to verify mitigation effectiveness. Mitigation implementation and effectiveness are documented and monitored through the Risk Register, Mitigation Tracker, Effectiveness Monitoring records, and associated supporting documentation in accordance with Procedure S&S23 – Risk Assessment, Mitigation and Monitoring.

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The department or individual assigned responsibility for implementing a mitigation is responsible for monitoring implementation, documenting progress, and reporting status through completion. The Office of Safety and Security oversees the system-wide hazard tracking process, verifies mitigation effectiveness, and escalates overdue actions or ineffective mitigations to the appropriate level of management, as necessary.

CAPs are developed when necessary to minimize, control, correct, or eliminate identified hazards and safety risks. CAPs may be required by CATS, NCDOT, or the FTA, and are managed through implementation, monitoring, verification, reporting, and closure in accordance with Procedure S&S23 – Risk Assessment, Mitigation and Monitoring. The detailed procedures governing hazard documentation, SRA initiation, Risk Register management, mitigation implementation and monitoring, required notifications, reporting requirements, hazard closure, and CAP administration are established in Procedure S&S23, which is incorporated by reference into this ASP.

2.5 Safety Data Acquisition and Analysis

2.5.1 Data Acquisition Process

The Office of Safety and Security monitors the safety performance of the various CATS operations. Accident, incident, injury, and other safety data is collected throughout the organization and analyzed to determine trends within the organization. The safety data collected is analyzed to determine if safety performance meets established safety objectives. The accident and incident data

assists in identifying service areas that generate a higher percentage of accidents or potential for higher accident rates.

The safety data that is collected includes injuries to passengers, CATS personnel, and the public; hazardous equipment failures; unacceptable hazardous conditions; vandalism and security hazards; and rules and procedures violations. The Office of Safety and Security analyzes safety-related data for the purpose of implementing corrective action to assist in prevention or reoccurrence of hazards.

2.5.2 Ongoing Data Reporting

The Office of Safety and Security analyzes the data from SPEAR reports, incident investigations, safety committees, field inspections, police reports, and Risk Management. The Office of Safety and Security also uses the data acquisition and analysis process to identify system trends and to monitor safety and security program performance. The Office of Safety and Security provides monthly safety program performance reports to executive management and employees.

Currently, safety performance (NTD) reports are submitted to FTA on a monthly and annual basis and NTD reports are submitted pursuant to NTD guidelines, as amended. The report contains injury data regarding passengers, CATS personnel, and customer/public accidents and incidents. The Office of Safety and Security, based on FTA established guidelines, compiles safety data for the overall CATS organization. The report summarizes accidents and incidents into two categories: minor incidents and major incidents. CATS uses this report to establish safety performance goals and objectives for each coming fiscal year.

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CATS provides ongoing reporting of hazard identification and analysis, Safety Risk Assessments (SRAs), safety risk mitigations, mitigation effectiveness, and hazard resolution activities to NCDOT in accordance with the SSOPS. Reporting supports NCDOT's State Safety Oversight responsibilities by documenting system safety performance, implementation of safety risk mitigations, mitigation effectiveness, corrective actions, and continuous improvement of the SMS.

Ongoing reporting is accomplished through monthly and quarterly safety data submittals, including Hazard Management Logs (HMLs), Hazard Analysis Reports, Safety Risk Assessment Tracking Logs, Risk Register updates, Safety Risk Mitigation Monitoring Logs, Corrective Action Plan (CAP) updates, Emergency Management Program (EMP) status reports, Hours-of-Service (HOS) violation logs, safety performance target updates, Roadway Worker Protection (RWP) compliance monitoring results, Asset Management Status Reports, the Annual Safety Activities Report, and other information requested by NCDOT.

At a minimum, CATS submits the following reports to NCDOT:

Monthly (within ten (10) calendar days following the end of each month):

- Hazard Tracking Log;
- Hazard Analysis Report;

- Safety Risk Assessment Tracking Log;
- Safety Risk Mitigation Monitoring Log; and

Quarterly (within fifteen (15) calendar days following the end of each three-month quarter):

- EMP Status Reports;
- HOS Violations Log;
- Updated Safety Performance Targets, including Safety Risk Reduction Program targets, three-year rolling averages, and actual results; and
- Asset Management Status Report.

NCDOT may review submitted reports and request corrections, clarifications, additional documentation, or follow-up information. CATS shall respond to such requests within ten (10) calendar days. Detailed reporting requirements, submission procedures, reporting frequencies, and notification requirements are established in the SSOPS.

2.5.3 Access to Data

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The Office of Safety and Security has access to data from various divisions within CATS. The information regarding accidents, incidents, and hazardous conditions of the various CATS divisions are obtained from several different reporting mechanisms. These include, but are not limited to the following reports:

- Accident/Incident Database
- Accident/Injury Reports
- Audit/Inspection Reports
- Automatic Vehicle Locators
- CCTV Video
- Daily Operations Summary
- Employee/Occupational Injury reports
- Incident Reports
- National Transit Database (NTD) Safety and Security reporting module
- SPEAR Database – Material Maintenance Management System (MMMS)
- FTA guidance
- SSOA guidance

2.5.4 Use of Data (Trend Analysis)

Hazard data, Hazard Management Log (HML) information, Safety Risk Assessment (SRA) data, Risk Register information, safety event data, and other Safety Management System (SMS) information are compiled, analyzed, and monitored by the Office of Safety and Security to identify safety trends, emerging hazards, recurring issues, and opportunities for continuous improvement.

CATS conducts periodic Trend Analyses of HML data and other applicable safety information to evaluate historical performance, identify adverse trends, assess the effectiveness of implemented safety risk mitigations, and determine whether additional Safety Risk Assessments, corrective actions, or mitigation strategies are warranted. The results of each Trend Analysis are documented and include identified trends based on applicable historical data.

When adverse trends or recurring safety issues are identified, the Office of Safety and Security coordinates with the appropriate departments to evaluate contributing factors, implement additional safety risk mitigations, and monitor the effectiveness of corrective actions. Trend Analysis results also support hazard identification, Safety Assurance activities, leadership reporting, safety committee reviews, and continuous improvement of the SMS.

The detailed procedures governing Trend Analyses, HML data analyses, documentation requirements, historical data evaluation, reporting frequencies, and follow-up actions are established in Procedure S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this ASP.

2.6 Risk-Based Inspections (Supporting NCDOT SSOPS Section 6)

As required by 49 CFR Part 674, the State of North Carolina has designated the NCDOT to serve as the SSOA responsible for overseeing CATS' system safety programs as implemented and administered for CATS' rail transit system. NCDOT's authority as an SSOA is established by North Carolina Statute G.S. 136-18.

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NCDOT's State Safety Oversight Program Standard (SSOPS) establishes the minimum requirements for the CATS safety programs that must be met by all rail fixed guideway systems operating in the State of North Carolina. Per the Federal and State requirements, CATS will comply with NCDOT's policies and procedures included in the NCDOT's SSOPS, accompanying Reference Manual (SSOPS-RM), and the requirements of U.S.C. 5329, as amended.

In consultation with NCDOT, CATS has been providing NCDOT with the access, personnel, facilities, equipment, records, and safety-related data necessary to support its Safety Risk Monitoring Inspection (SRMI) and Risk-Based Inspection (RBI) Programs. These policies establish the processes for facilitating inspections, sharing required safety information, and supporting NCDOT's ongoing safety oversight activities in accordance with the SSOPS and SSOPS-RM.

The sections below describe CATS' responsibilities for supporting the NCDOT's RBI Program. Additional program requirements are established in the SSOPS and SSOPS-RM, which are incorporated by reference into this ASP. CATS will continue to coordinate with NCDOT to maintain and update applicable inspection procedures, protocols, and data-sharing requirements, as necessary.

2.6.1 NCDOT - Right to Access

CATS acknowledges that NCDOT staff and designated contractors have the capability and authority to access CATS' properties, with and without notice, to inspect infrastructure, equipment, records, personnel, CATS rail-related activities, and data, including the data that CATS collects when identifying and evaluating safety risks. This authority is derived from 49 U.S.C. § 5329 and NCDOT's enabling legislation under N.C. G.S. 136-18 (36); included in Appendix B to the SSOPS.

Consistent with CATS policies and procedures developed in consultation with NCDOT, CATS provides NCDOT personnel and designated contractors with the access necessary to perform Safety Risk Monitoring Inspections (SRMIs), Risk-Based Inspections (RBIs), investigations, audits, and other oversight activities. These procedures ensure timely access to CATS facilities, equipment, personnel, records, and safety-related information necessary to support NCDOT's oversight responsibilities.

To facilitate NCDOT access, as stated above, the CATS S&S Department provides NCDOT staff and contractors with individual proxy card/identification badges. The badges are programmed to permit access to all facilities, gates to restricted parking lots, and administrative buildings, as well as physical access to the necessary training required by CATS for non-employee access to facilities, track right of way, and other CATS rail-related infrastructure. NCDOT has access to the ROCC by knocking on the entry door and access is granted by an on-duty Rail Controller. NCDOT and CATS routinely review and collaborate on the right to access policies and procedures which are detailed in the SSOPS and SSOPS-RM.

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CATS reserves the right to verify certifications and trainings of NCDOT inspectors to ensure their compliance with CATS' safety protocols and training requirements.

2.6.2 NCDOT's Inspection Programs (with and without notice)

Per the SSOPS, Section 6, NCDOT conducts Safety Risk Monitoring Inspections (SRMI) and Risk-Based Inspections (RBI) to identify and evaluate safety risks at all RTAs within its jurisdiction. NCDOT inspections may be conducted by individual staff members, designated contractors, or a combination of both. NCDOT's lead inspector and inspection team members (both staff and contractors) are assigned by the SSO Program Manager. NCDOT inspections are pre-approved by the SSO Program Manager or designee.

NCDOT's program consists of Announced Inspections with announced scope, Announced Inspections with unannounced scope, and Unannounced Inspections. For Announced Inspections, the NCDOT lead inspector will provide a minimum of 24 hours advance notice. For Unannounced Inspections, the NCDOT lead inspector will communicate its intention to complete an inspection upon arrival.

Additional details regarding NCDOT's inspection programs and inspection procedures, specific to CATS, are provided within the NCDOT SSOPS and SSOPS-RM to include the following:

- NCDOT Scheduling of Inspections, and Report Format
- CATS Infrastructure Components Subject to NCDOT Inspections

- NCDOT-Identified Serious Safety Concerns
- NCDOT Safety Event Verification
- NCDOT Ongoing Monitoring
- NCDOT Inspections Resulting in Defects, Corrective Actions, and Corrective Action Plans

2.6.3 Safety-Related Data

Consistent with policies and procedures developed jointly with NCDOT, CATS provides NCDOT with access to the safety-related information and data necessary to support the Safety Risk Monitoring Inspection (SRMI) and Risk-Based Inspection (RBI) Programs. This includes raw safety-related data, hazard information, Safety Risk Management documentation, inspection records, investigation reports, corrective action status, and other information identified in the SSOPS and SSOPS-RM. CATS will provide this information in the format, frequency, and manner established through coordination with NCDOT.

Additionally, the NCDOT-identified CATS safety data sets to be shared, data format, processes for sharing the data, and frequency that the data will be shared is also detailed within the NCDOT SSOPS-RM, Appendix A-Data Source List.

Data that contains Personally Identifiable Information (PII) or Sensitive Security Information (SSI) must still be shared, but the sensitive information may be redacted or protected. NCDOT and CATS agree that access to PII/SSI data will be completed through coordinated NCDOT onsite reviews. Requests to view PII/SSI will be submitted in writing by NCDOT and addressed to the CATS CSSO for coordination of specific onsite date(s) and time(s) to complete the reviews. In addition to the SSI and PII request, the reason why the information would help an investigation and special obligations to protect this information from unauthorized disclosure.

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2.6.4 NCDOT Data Management System

NCDOT has an established data management system that is detailed in the SSOPS.

2.6.5 Inspection Prioritization Process

NCDOT prioritizes inspections based on information derived from ongoing analysis of data sets made available from CATS, as well as triennial audits, investigations, and other means. As part of its inspections program, NCDOT has established a safety risk management monitoring system to track CATS system components' risk levels and based on available CATS data and minimum safety standards. The type, frequency, and duration of NCDOT's inspections will be determined by many factors including: 1) existence of real and potential hazards, 2) levels of identified safety risk, and 3) CATS' demonstrated ability to manage hazards and risk. Additional risk factors and inspection prioritization may be based on Federal and State data and current events (e.g., locally severe weather, negative safety events occurring at other RTAs, etc.), as well as Safety Advisories and Directives issued by FTA. Additional details regarding inspection prioritization are included in the SSOPS-RM.

As part of an ongoing and continuous process, SRMI/RBI Prioritization Log entries are assigned an inspection priority level based on the completed data analysis and/or SRM-Monitoring Follow-Up Log activities. These levels inform NCDOT personnel to which inspections and type should be completed in priority order. As such, NCDOT utilizes both quantitative and qualitative analysis, as well as prioritization based on NCDOT's perceived RTA safety risk controls as demonstrated by RTA personnel.

2.7 Roadway Worker Protection Program

2.7.1 Overview

In accordance with 49 CFR Part 671 – Rail Transit Roadway Worker Protection, CATS has established and maintains an NCDOT-approved RWP Program developed in consultation with NCDOT that satisfies the requirements of 49 CFR Part 671, the SSOPS, and other applicable Federal and State requirements. The RWP Program is integrated into the ASP and SMS, including the SRM, SA, and SP processes, to support the identification, evaluation, mitigation, and continuous improvement of roadway worker safety.

The detailed policies, procedures, responsibilities, operating rules, training requirements, on-track safety requirements, audit processes, reporting requirements, and compliance activities governing the RWP Program are established in the RWP Manual and the Track Access Guide, both of which are incorporated by reference into this ASP. CATS coordinates with NCDOT regarding the development, implementation, maintenance, review, approval, and revision of the RWP Program, and submits revisions to the RWP Manual, supporting approval documentation, and other required records in accordance with the SSOPS.

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CATS conducts routine compliance audits using qualified personnel, addresses identified deficiencies through the SMS and CAP process, and submits required reports and quarterly RWP Program documentation to NCDOT in accordance with 49 CFR Part 671 and the SSOPS, including audit results, corrective actions, compliance monitoring activities, and overall program performance. The CSSO provides quarterly RWP Program performance reports to the SSOA and annual briefings to the CEO and the MPTA, consistent with 49 CFR § 671.43(b).

CATS CSSO will provide quarterly reports to SSOA and annual briefings to CEO and MTC Board, as per § 671.43(b)(1) and § 671.43(b)(2) detailing CATS' performance and compliance with the RWPP.

2.7.2 Right of Way (ROW) Access/Permitting

ROW access and permitting is governed by CATS ROD211 *ROW ACCESS AUTHORIZATION*. The ROCC is the control and communications center for all rail activities. The coordination of CATS roadway workers on the rail system will be reviewed and approved by the CATS Chief Rail Controller per CATS ROD211 *ROW Access Authorization*. Contractors and CATS employees must attend the weekly ROW Access Meeting held in advance of the requested work date and must submit a ROW Access Request (form RODF012) at the meeting. ROW access permits are issued following the meeting with all of the details including: ROW access date; entry/exit time period; number of work crew members;

location/station limits; status of overhead catenary power (on/off); description of work to be performed; and type of on-track protection required.

2.7.3 Roadway Worker Protection Program (RWPP)

The CATS Roadway Worker Protection (RWP) Program is documented in the CATS Roadway Worker Protection (RWP) Manual, which establishes the policies, procedures, responsibilities, operating rules, training requirements, audit requirements, reporting requirements, and on-track safety protections necessary to comply with 49 CFR Part 671 and the NCDOT-approved Roadway Worker Protection Program. The RWP Manual and the Track Access Guide are incorporated by reference into this Agency Safety Plan and are maintained as stand-alone controlled documents.

Major sections in the RWPP include: training, job briefings, on-track safety (work zones, fouling time only, train approach warning and other information) safe operation on on-track rail equipment, personal protective equipment, cell phones and other electronic devices, and forms for job briefing, contractor job briefing, and good faith challenge. Major sections in the Track Access guide include: getting authorized access, who can be on the ROW, preparing for work, establishing on-track safety, special rules, power (OCS) safety, personal protective equipment, and high noise areas.

The RWP Manual and the Track Access Guide are stand-alone controlled documents that are reviewed at least annually and updated, as necessary, to maintain compliance with 49 CFR Part 671, NCDOT requirements, and operational needs. Revisions requiring NCDOT review or approval shall be submitted in accordance with the NCDOT SSOPS.

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2.7.4 RWPP Training

CATS has an established RWPP training program. CATS documents that training is required for all individuals who fall under the designation of a transit worker and roadway worker who may be assigned duties on or near the railroad corridor such that they have the potential of fouling a track. The training covers the duties and responsibilities of each worker, as well as the requirements of this safety program. After successful completion of training and verifying understanding through a written test, transit workers are issued a RWP training card that must be carried with the worker during field activities. Verification of training and current RWP training cards is part of the job briefing.

Roadway Worker Protection training is conducted in accordance with the requirements of the RWP Manual and 49 CFR Part 671. Training records, qualification records, and worker certifications are maintained by CATS and are made available to NCDOT during audits, inspections, investigations, and other oversight activities upon request.

3.0 Safety Assurance

3.1 SA Implementation Process

Safety Assurance (SA) involves processes within a transit agency's Safety Management System that function to ensure the implementation and effectiveness of a transit agency's program. This involves monitoring key aspects of the operation for effectiveness and ensuring that no new hazards have been introduced into the system. This ongoing attention also provides for identification of new hazards as changes to the operation form, fit, or function are made.

3.2 Internal Safety Review Program

3.2.1 Overview

The purpose of the ongoing internal safety review process is to evaluate the effectiveness and safety performance implementation of all ASP elements and SMS by CATS Divisions, and to provide direct safety oversight of maintenance and inspection procedures for CATS rail program. The ISR process addresses the implementation of all elements of the ASP are reviewed within a three-year period. The Office of Safety and Security is responsible for the direction of the safety reviews and audits of CATS divisions and contractors to determine performance related to the System Safety goals and objectives. The ISR Team will be led by the Office of Safety and Security with support from division staff or external agencies.

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All CATS divisions and contractors are subject to safety reviews. The criticality of certain operations requires rigorous development of reviews and audits. These include training, maintenance, and operations activities. Both periodic and no-notice inspections are undertaken to address all aspects of the activity, including documentation, practices, and compliance with this ASP, CATS policy and other requirements. The Internal Safety Review team reviews training, practices, and procedures to correct deficiencies identified during the conduct of reviews or other safety activities, including inspections and emergency drills.

CATS safety committee reviews ISR reports, findings and any associated corrective action plans.

3.2.2 Purpose and Scope

The purpose of ISRs is to confirm all safety components are in place and assigned safety tasks and activities are being accomplished. This provides an additional means of documentation for senior management to verify how well each division is fulfilling their safety-related goals and objectives as required in the ASP.

Organizational functions subject to the ISR process include:

- Facility inspections
- Maintenance audits/inspections
- Review of rules, SOPs, special bulletins, and orders

- Review of training/retraining programs
- Emergency response planning, coordination, and training
- Management of Change
- Configuration Management
- Systems modifications (review and approval)
- Safety data analysis
- Employee safety programs
- Hazardous materials program
- CATS safety goals and objectives
- Occupational safety and health programs
- Contractor safety
- Procurement and specification engineering
- Drug and Alcohol Testing Program
- Roadway Worker Protection Program
- Any aspect or responsibility as outlined in this document

Pursuant to 49 CFR 673 and NCDOT SSOPS, the ISR process must evaluate the following components:

1. Safety Management Policy § 673.23(a)

1. Goals and Objectives § 673.23(a)
2. Management Accountabilities and Responsibilities § 673.23(d)
3. Employee Reporting Program § 673.23(d)
4. Safety Policy Dissemination § 673.11(a)(5)
5. Reference to Emergency Management Plan (EMP) § 673.21(a)-(d)
   a) Safety Management Policy Section§ 673.23
   b) Safety Risk Management Section§ 673.25
   c) Safety Assurance Section§ 673.27
   d) Safety Promotion Section§ 673.29

2. Safety Risk Management (SRM) Section§ 673.25(a)-(d)

1. SRM Process
2. Hazard Identification
3. Safety Risk Assessment
4. Safety Risk Mitigations
5. Safety Data Acquisition and Analysis

3. Safety Assurance Section§ 673.27(c)

1. SA Implementation Process
2. Safety Performance Monitoring and Measurement
   a) Monitor its system for compliance with, and sufficiency of, CATS operations and maintenance.
   b) Monitor its operations to identify any safety risk mitigations that may be ineffective, inappropriate, or were not implemented as intended.
   c) Conduct investigations of safety events to identify causal factors.
   d) Monitor information reported through any internal safety reporting programs.

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3. Internal Safety Review Program
4. Coordination with Hazard Management Program
5. Management of Change

4. Safety Promotion Section§ 673.29(a)-(b)

1. Safety Plan Dissemination
2. Safety Plan Review and Modification
3. Safety Plan Implementation Tasks and Activities (including responsibilities matrix)
4. Employee and Contractor Safety Programs (knowledge and compliance)
5. Compliance with Local, State, and Federal Requirements
6. Training and Certification Program
7. Safety Communication and Outreach
8. Environmental Management Program

3.2.3 City and CATS Divisions Subject to Internal Safety Reviews (ISRs)

- Rail Operations
- Facilities Management
- Safety and Security
- Quality Assurance
- Marketing and Communications
- CATS Technology
- City Procurement
- City HR
- Finance/Revenue

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3.2.4 ISR Process

The CSSO is responsible for the management of the ISR Program. All CATS divisions are required to cooperate fully with the ISR team. Executive and senior managers ensure that their divisions participate fully in the safety audit process. CATS Quality Assurance and Safety and Security will jointly conduct safety audits.

3.2.5 ISR Cycle / Schedule

Over a three-year period, key components of the ASP must be audited at least once. The CATS ISR Process is intended to be a continuous safety review process. The Office of Safety and Security and Quality Assurance will jointly develop and annually submit a comprehensive Internal Safety Audit schedule to NCDOT each December, detailing when it will audit the ASP components over the three-year period. The schedule is revised as necessary to accommodate schedules for auditors and the audited divisions. CATS QA100 Quality Audits outlines the process to be followed for ISR.

The ISR team will identify the components of the annual safety performance assessment based on SMS and conduct a safety assessment annually to verify compliance to audit schedule.

The ISR lead auditor notifies the division/organization and NCDOT of a scheduled safety audit. This notification must include the audit checklist for the sections of the ASP to be audited.

3.2.6 Integrity of Review Process

To maintain the integrity of the review process, an independent ISR team is used to conduct safety audits. The lead auditor will be a qualified person from Quality Assurance or the Office of Safety and Security. The Office of Safety and Security is unable to lead audits/reviews of functions/components that fall under their responsibility. These components are audited by Quality Assurance personnel, or an independent member of the audit team. No team member shall audit a function or activity for which he/she is responsible. The lead auditors will be certified to conduct audits by accredited bodies such as the Transportation Safety Institute (TSI), or American Society for Quality (ASQ).

3.2.7 ISR Checklist Development Process

CATS will notify NCDOT at least 30 days before conducting an ISR. Audit checklists are developed and submitted to NCDOT for review and approval 30 days prior to the review. Audit checklists are provided to the organization or division being audited a minimum of 15 days in advance of the audit.

Pre-audit and post-audit meetings are held by the audit team, as appropriate, with the entity being audited. The safety audits are comprised of record reviews, interviews, field observations and inspections, and measurements to verify the accuracy of documentation and spot inspections of facilities and equipment to verify compliance with the ASP, procedures, codes, and regulations.

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The following list of documents may be used to support development of the audit checklists:

- ASP, SSP and EPCP
- Rule Book(s), bulletins, and procedures
- Standard and emergency operating procedures
- Training program documentation
- Management and/or administrative plans/procedures
- Design standards and criteria
- Accident and investigation reports
- Hazard tracking logs
- Corrective Action Plans
- Previous audit reports
- Other sources as determined by NCDOT SSO upon request

3.2.8 ISR Audit Report

The Office of Safety and Security shall prepare and submit a written Internal Safety Review (ISR) report to NCDOT within thirty (30) calendar days following the audit team's closure meeting. The report shall document the completed review and, at a minimum, include:

- A summary of the ISR, including the names and titles of audit team members;
- Completed ISR checklists;
- Results of the ISR, including identified findings;
- Proposed Corrective Action Plans (CAPs), including applicable CAP identification numbers; and
- The specific department(s) and personnel, identified by name, assigned responsibility for addressing each finding and proposed CAP.

NCDOT may review the report and require corrections, additional information, or other revisions prior to final issuance.

Upon completion of each ISR, the Office of Safety and Security issues a comprehensive final report documenting the evaluation results and identifying conformity or nonconformity with applicable audit criteria. Nonconformities identify deficiencies that represent a safety risk and require corrective action, while recommendations identify opportunities to strengthen operational efficiency, processes, or safety performance.

A formal closing meeting is conducted to communicate findings, recommendations, and proposed CAPs to responsible parties and document agreement on required actions and responsibilities. Following completion of the review process, the final report is distributed to CATS senior leadership, Safety, Quality, Security, and the audited division's leadership to support transparency, accountability, and corrective action.

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Responsible divisions determine the causes of identified nonconformities and develop appropriate corrective actions. The audit team may recommend corrective actions and is responsible for reviewing and approving proposed actions. Safety and Security personnel coordinate with affected divisions to resolve areas of concern or disagreement and monitor corrective actions through implementation. CAPs resulting from ISRs are submitted to NCDOT for review and approval in accordance with Section 3.4.8.3 - *Corrective Action Plans.* Safety and Security personnel track NCDOT-approved CAPs through implementation, verification, and closure and provide approved CAPs to the audit team.

3.2.9 Annual Review Report

An Annual Safety Activities Report is provided to the CEO and to the NCDOT SSO for review and approval on or before February 15th. The report addresses, at a minimum, the applicable reporting elements identified in Appendix C of the NCDOT SSOPS Rev. 10 and provides a comprehensive summary of CATS' Safety Management System (SMS) activities and performance. The report includes:

- Results of Internal Safety Audits for the preceding calendar year; to gauge the adequacy and effectiveness of the ASP, and the status of findings and corrective actions
- Planned Internal Safety Audits for the upcoming calendar year
- Summary of all hazards identified during the preceding calendar year, corrective actions taken to address these hazards, and summary of all reportable accidents/incidents
- Summary of the Emergency Management Program

- Status of Resource Allocation Plan for SMS implementation

Along with the annual report, CATS must include a formal letter signed by the CEO certifying CATS is in compliance with its ASP. If the safety audit's findings indicate noncompliance with its ASP, the CEO must identify in the formal letter the nature of the noncompliance and the steps CATS will take to achieve compliance. An implementation schedule detailing when compliance will be achieved may also be provided (available upon request).

3.2.10 Coordination with SSO Program

As noted above, the following aspects of the Internal Safety Audit Process are coordinated with NCDOT per the current SSOPS:

- Internal Safety Audit Cycle and Schedule
- Safety Audit Checklists
- Actual dates of each safety audit
- Each Safety Audit Report
- Corrective Action Plans
- Annual Safety Activities Report
- CEO Annual Certification

3.2.11 Corrective Action Follow-up Procedures

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Findings from ISRs will be added to the CAPs log, per section 3.4.8.3 – Corrective Action Plans. If applicable, any finding deemed to be identified as a hazard will be added to the Hazard Management Log along with a hazard rating being assigned per the Hazard Management Process (S&S23 Risk Assessment, Mitigation and Monitoring). CAPs are reviewed monthly by the CSSO or designee to provide oversight and direction for corrective action activities in order to resolve hazardous conditions and deficiencies. Documented corrective actions follow a structured process that identifies the problem, evaluates the need for action to eliminate the cause, implements the action(s) and make changes to the management system, if necessary. A monthly CAPs summary report will be provided to NCDOT by the 5th of every month. Any hazardous condition/deficiencies that are rated as Unacceptable will be reported by the Chief Safety and Security Officer to the CEO per the Hazard Management Program. The CSSO will include a summary of safety deficiencies identified during audits as part of the hazardous conditions monthly report to the CEO.

3.2.12 Continuous Improvement

CATS assesses its safety performance annually to identify deficiencies in the SMS and deficiencies in performance against the annual safety performance targets established pursuant to §673.11(a)(3), based on the safety performance measures established under the National Public Transportation Safety Plan.

The assessment evaluates safety performance results, SMS processes and activities, safety risk mitigations, identified hazards and trends, and performance against applicable safety performance targets to identify areas requiring corrective action or improvement.

Detailed procedures governing the Annual Safety Performance Assessment, including data collection, trend analysis, identification of deficiencies, committee review, mitigation monitoring, reporting, recordkeeping, and preparation of the Annual Safety Performance Assessment, are established in S&S23 – Risk Assessment, Mitigation and Monitoring, which is incorporated by reference into this ASP.

Deficiencies identified through the annual assessment—including ineffective safety risk mitigations, recurring hazards, deficiencies in SMS implementation or effectiveness, and deficiencies in performance against established annual safety performance targets—are evaluated through the SRM process and addressed through the Risk Register, CAP process, or other applicable Safety Assurance activities. Corrective actions and mitigations are monitored through implementation and effectiveness verification to support continual improvement of the SMS.

Assessment results, identified deficiencies, corrective actions, and supporting documentation are retained in accordance with CATS record retention requirements and used to support management review, the annual update of the ASP, and continual improvement of the SMS.

3.3 Maintenance and Inspection Program for Vehicles, Equipment, Systems, and Infrastructure

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3.3.1 Facilities and Equipment Subject to Inspections

Periodic inspections are made of all CATS facilities and equipment to ensure they are maintained in a SGR; clean, safe, and functional to safeguard employees, visitors, and passengers.

CATS Facilities Management Plan identifies the responsibilities for facilities and equipment maintenance. Inspection schedules are included as an appendix to the Facilities Management Plan. Facilities Management performs inspections of CATS facilities (South Boulevard Light Rail Facility and North Brevard Light Rail Facility), as well as all transit centers, park and rides, light rail stations, streetcar stops and amenities. They also contract the inspection and maintenance of facilities equipment. The Facilities Management Plan identifies the priority structure assigned to Work Orders generated from inspections. Safety Critical items are priority one with a targeted response time of four hours or less. Facilities Management will immediately notify the Office of Safety and Security when a safety critical issue is identified, and it will be recorded on the respective department’s hazard management log.

Items are inspected and maintained in accordance with the manufacturer’s recommendations, Facilities Management Plan, SOPs and CATS standards by Facilities Management staff and Rail Operations staff or contractors.

Shop equipment is maintained and serviced according to manufacturer's recommendations and the Facilities Management Plan. In certain facilities, the services of outside vendors are required for servicing specialty items such as lifts,

hoists, and fire detection and suppression systems.

A member of the Office of Safety and Security staff completes a quarterly safety inspection of transit facilities and light rail stations that covers a variety of Occupational Safety and Health Administration (OSHA) 1910 and 1926 considerations in the facility such as housekeeping, fire extinguishers and guard rails/stair-rails in place. The Office of Safety and Security forwards the inspection reports to the responsible division/sections for resolution.

Rail Car Maintenance conducts daily inspections of vehicles before releasing vehicles into revenue service. Any safety-critical items identified will result in the vehicle being taken out of service for repair prior to release to revenue service.

Operators perform pre-trip inspections of vehicles prior to entering revenue service. Results of these inspections are documented on the pre-trip inspection card and submitted to Maintenance for follow-up and repair. Inspections are conducted to ensure that vehicles are safe, clean, reliable, and ready for revenue service. Any safety-critical items identified will result in the vehicle being taken out of service for repair prior to release to revenue service.

CATS Transit Asset Management (TAM) Plan establishes the direction for Asset Management Policies. The program establishes the divisional roles and responsibilities as stated in the CATS TAM Plan. The process will tie into the review of State of Good Repair and any Unacceptable or Undesirable Hazards will be addressed by following the Hazard Management Plan in the ASP. A report rating deferred maintenance items will be provided by Operations and Facilities at the monthly SSC. Updated TAM information is included in the data report and associated narratives submitted annually to the FTA's National Transit Database. Additionally, as requested by NCDOT SSO, CATS is providing a quarterly Asset Management Status Report until all inventoried assets are assigned a condition rating of 3.0 or above.

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CATS shall submit a copy of its written annual report for the RTA's capital assets inventory and SGR ratings to NCDOT within fifteen (15) calendar days of the RTA's annual submittal to FTA's NTD website. As per part 625.29 The TAM Plan must be updated at least once every four (4) years and should coincide with the planning cycle for the relevant Transportation Improvement Program or Statewide Transportation Improvement Program. Additional information on the TAM Plan is included in section 3.3.7 Transit Asset Management Plan.

3.3.2 Systems and Facilities Subject to Maintenance Programs

CATS ROD600 *Preventive Maintenance Requirements for Rail Systems* summarizes the maintenance and inspections performed by the Rail MOW Division. The MOW Division performs the following inspections in accordance with the Systems Maintenance Yearly Schedule and the 600-series Light Rail SOPs.

- Grade Crossings
- Signal Houses
- Track Circuits
- Switch Machines

- Traction Power Sub-Stations
- Overhead Catenary System
- Track and Roadbed
- Embedded Track Slab
- Track Drains
- Embedded Switch Machines

CATS may schedule planned shutdown periods for infrastructure maintenance activities that cannot be completed during revenue and non-revenue hours. CATS shall notify NCDOT of all rail-related revenue service shutdowns, planned and emergency, of rail transit services for the purpose of inspecting or repairing rail system components. CATS shall notify NCDOT at least ten (10) calendar days prior to the planned shutdown start date which will include a list of planned shutdown activities.

Light Rail vehicles are serviced and maintained in accordance with the Light Rail Fleet Management Plan and the 500-series Light Rail SOPs. Rail Car Maintenance performs equipment inspections in accordance with the Light Rail Fleet Management Plan and ROD SOPs. A Daily Inspection of each LRV is performed by RCM in accordance with the Light Rail Fleet Management Plan and CATS Procedure ROD502, *LRV Daily Inspection*.

3.3.3 Regular Inspections and Testing Procedures

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Inspections of facility equipment are made in accordance with appropriate maintenance manuals and procedures. Inspection of equipment prior to use is captured in Rule Books and Maintenance Manuals.

3.3.4 Resolution of Review/ Inspection Findings

Each facility inspection report is sent to the Facilities Administrative Officer for generation of work orders. It identifies specific areas and targets specific recommendations for corrective action. Identified safety critical hazards are immediately reported to the General Manager of Facilities and the CSSO via email by the inspector. Facilities Work Orders are tracked through completion in CityWorks. CATS Safety staff will rate identified hazards and track them on Hazard Tracking Log.

Preventative Maintenance of Vehicle work orders are triggered by either vehicle mileage or time milestones. Maintenance inspections are scheduled and tracked through the MMMS (SPEAR). SPEAR tracks these work orders through completion. Identified unacceptable hazards will result in the vehicles being taken out of service.

Rail vehicle brake testing shall be performed in accordance with applicable CATS maintenance procedures, manufacturer requirements, and established maintenance programs. CATS shall provide NCDOT copies of rail vehicle brake testing reports, including post-safety event brake testing, brake testing associated with rail vehicle maintenance overhaul activities, and dynamic brake testing, in accordance with the SSOPS and other applicable NCDOT requirements. Detailed brake testing procedures and reporting requirements are established in the applicable Rail Vehicle Maintenance procedures and maintenance manuals, which

are incorporated by reference into this ASP.

3.3.5 Checklists

Facilities Management uses *CATS Facilities Inspection Checklist* (Form FMF03) and Rail Station Monthly Inspection checklist (FMF07) for regular inspections.

Systems Maintenance checklists and forms are completed in accordance with the 600-series Light Rail SOPs and the Track Maintenance Plan.

The RCM Mechanic completes the LRV Daily Inspection Checklist (RODF091 S-70s and RODF093 Streetcars) and submits it to the RCM Supervisor.

The Office of Safety and Security conducts Facility Safety Inspections using iAuditor and Station Safety and Security Inspections using Checklist (S&SF29) based on OSHA Standards. These checklists are used to perform quarterly safety related inspections at facilities and stations.

A Pre-Departure Inspection is performed daily by vehicle operators and documented on the pre-trip inspection forms.

3.3.6 Coordination with Hazard Management Program

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Hazards identified during safety inspections are to be resolved as close to the source as possible. Identified hazards are reported via email or phone call to the appropriate section manager to make them aware of the hazard that needs to be resolved. Issues that are noted immediately, resolved, and result in a formal corrective action, are tracked following the Safety Corrective Action Plan process in the safety CAP log. Technicians are to repair equipment that does not meet safety requirements or take the equipment out of service/remove it from the work area as appropriate. Defective equipment must be tagged-out if it cannot be removed from the work area. Employees are to reject equipment that is not fit for use and issues must be addressed and resolved as soon as possible, with safety critical items being resolved first.

S&S Inspection reports are e-mailed to the responsible personnel for resolution and tracked through inspection logs. UAH/UDH hazards identified through inspection reports will be managed to closure and tracked using a centralized enterprise resource system.

3.3.7 Transit Asset Management Plan

CATS maintains a Transit Asset Management (TAM) Plan in accordance with FTA requirements (49 CFR Part 625). The CATS CEO is the Accountable Executive and is responsible for ensuring the TAM Plan is developed and carried out on a continual basis. CATS maintains records and documents that support and set forth in full it's TAM Plan.

The CATS TAM Plan includes an asset inventory comprised of equipment, rolling stock, infrastructure, and facilities. CATS utilizes internal spreadsheet reports, fleet management software and facility management software to maintain inventory, schedule maintenance and track the condition of assets. Assets are

inventoried and tracked by entering their information into CATS's ERP software.

The CATS TAM Plan addresses the condition of assets through performance of asset condition assessments. The physical condition of an asset is rated as an SGR performance measure because it is a direct reflection of its ability to perform its intended function. As part of the TAMP SGR Standards, CATS requires each Rolling Stock, Equipment, Infrastructure and Facility asset to meet FTA TAM Plan criteria. All assets must have a physical condition assessment conducted on an annual basis, where applicable. The condition assessments use a rating scale to rate the age of the asset and mileage. CATS maintenance personnel perform Condition Assessments for each type of asset to determine their useful life in accordance with the FTA's facility condition assessment guidebook and National Transit Database (NTD) requirements for rolling stock assets. Below is the summary of asset rating and condition utilized by CATS.

- 5.0 Excellent
- 4.0-4.9 Good
- 3.0-3.9 Adequate
- 2.0-2.9 Marginal
- 1.0-1.9 Poor

CATS utilizes a Useful Life Benchmark (ULB) as an SGR performance measure. The ULB is the expected lifecycle of a capital asset for the CATS operating environment, or the acceptable period of use in service for the CATS operating environment.

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CATS considers a capital asset to be in a state of good repair when the asset can operate/perform its designed function and does not pose a known unacceptable safety risk. Through the implementation of the ASP, CATS has established a formal process for hazard identification, analysis, categorization, and resolution. Each division is responsible for identification of hazards in its area and this process is a key contributor to CATS-wide system safety. Periodic condition assessments of CATS assets identify potential safety issues which could undergo safety risk assessment in the Safety Risk Management (SRM) process. CATS ASP uses the processes of SRM and Safety Assurance (SA) to ensure those critical assets that could impact the delivery of safe and reliable transit services do not present unacceptable risks.

CATS business planning cycle is tied in with the City budget cycle and includes a review of CATS priorities and CATS TRAX program for customer satisfaction. Federal and state grant programs provide assistance with procuring and maintaining CATS capital assets. CATS utilizes qualifying internal funds (i.e., funds from half cent sales tax) to meet local match requirements on federal and state grant funding. CATS has considered all funding sources reasonably expected in each fiscal year covered by the TAM Plan as well as current capital needs as indicated by our asset inventories and condition assessments. If there is a monetary shortage in obtaining assets needed for a state of good repair (SGR), CATS reprioritizes budget allocations, uses control account funding or pushes the SGR item out for another year. CATS' SGR budget from FY23 to FY27 includes approximately 100 million in deferred capital needs. Deferred needs include assets which require immediate reinvestment as they are past their useful life or require

rehabilitation or replacement due to compliance issues.

CATS makes its TAM Plan and any supporting records or documented performance targets, investment strategies, and its annual condition assessment report available to NCDOT upon request and also makes available to the MPO that provides funding to CATS to aid in the planning process.

CATS submits a copy of its written annual report for capital assets inventory and SGR ratings, to NCDOT, within fifteen (15) calendar days of the CATS annual submittal to FTA's NTD website for the following:

1. A copy of annual data report submitted to FTA's NTD that reflects the SGR performance targets for the following year and condition information for CATS public transportation system.
2. An annual narrative report that provides a description of any change in the condition of the RTA's transit system from the previous year and describes the progress made during the year to meet the performance targets set forth in the previous reporting year.
3. A consolidated annual data report and one consolidated annual narrative report, as described in items 1 and 2 above.

CATS also provides NCDOT with a quarterly Asset Management Status Report for all capital rail assets assigned Priority 1 due to operational and/or safety-related issues. Quarterly reports will continue to be submitted until the identified asset issues are resolved. In accordance with the TAM Plan, the TAM Program Manager provides the CSSO with a report on the SGR status of capital rail assets. The CSSO's review is documented through applicable meeting records, reports, comments, follow-up actions, or other supporting records. The TAM Program Manager also prepares the quarterly NCDOT SSOPS Asset Management Status Report.

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3.4 Accident/Incident/Safety Event Notification, Reporting and Investigations

3.4.1 Overview

All CATS employees and contractors are expected to comply with CATS S&S03 *Accident/Incident/Safety Event Investigation and Reporting* procedure (Appendix C) and use the forms prescribed. Roles, responsibilities, and accident/safety event reporting thresholds are outlined in the procedure, including accident/safety event notification, reporting and investigation throughout the organization. The level of investigation required is dependent on the seriousness of the event. Each accident/incident/safety event is investigated by a supervisor as specified in the procedure.

3.4.2 Accident / Incident/Safety Event Reporting Criteria to NCDOT and FTA

A Safety Event is defined as an unexpected outcome resulting in injury or death; damage to or loss of the facilities, equipment, rolling stock, or infrastructure of a public transportation system; or damage to the environment.

NCDOT State Safety Oversight Program Standard (SSOPS) requires that CATS notify and submit reports to NCDOT and FTA regarding safety events as defined

in SSOPS Section 8. Safety Events and Reporting Thresholds. Criteria are detailed in CATS S&S03 Section 8.3 *External Notifications by Safety and Security*.

3.4.3 Safety Event Investigation Procedures on behalf of NCDOT

In general, NCDOT authorizes CATS to conduct safety event investigations on its behalf, unless otherwise notified. CATS Safety personnel conducting investigations will be in compliance with the Public Transportation Safety Certification Program (PTSCP). For all investigations conducted by CATS on behalf of NCDOT, CATS utilizes procedure CATS S&S03 *Accident/Incident Investigation and Reporting* to conduct its investigations. CATS S&S03 has been approved by NCDOT. Information collected during investigations includes, at a minimum: scene assessment, supervisory and emergency responder reports, audio/visual reports, and vehicle downloads.

CATS must submit any updates and revisions to its safety event investigation procedures to NCDOT as they are completed and implemented by CATS or with the annual update of the ASP. This procedure, S&S03, is Appendix C of CATS ASP.

NCDOT may participate in the investigation process when CATS is conducting the investigation on NCDOT's behalf. The terms of participation are specified in the NCDOT SSOPS, CATS ASP and in CATS S&S03 *Accident/Incident Investigation and Reporting*. If NCDOT elects to conduct an investigation of safety events, the CSSO may also conduct an independent investigation.

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3.4.4 Supervisor Investigation

Light Rail accidents and incidents which do not involve serious injury and/or damage usually require only an initial investigation by the supervisor responding to the scene. Rail accidents and incidents that may be investigated by supervisors only are those that **do not** meet the criteria specified in ASP Section 3.4.2. The supervisor at the scene will:

- Perform an investigation, including an on-site inspection of the accident scene
- Conduct interviews with involved personnel and witnesses as appropriate
- Review reports written by involved personnel
- Gather, collect, and review physical evidence
- Complete each CATS accident / incident investigation form that applies to the event. (See CATS S&S03 *Accident/Incident Investigation and Reporting*.)
- Submit a report based on the information collected to the Manager of Rail Safety, Office of Safety and Security. The Manager of Rail Safety will ensure that the Chief Safety and Security Officer and the City of Charlotte Risk Management Division are provided copies of all reports.

3.4.5 Safety and Security Follow-up

The CATS Office of Safety and Security reviews all accident/incident/safety event reports for potentially serious problems or conditions. All accident/incident/safety event data is collected throughout the organization and analyzed to determine

trends within the operations. Additionally, when accident/incident/safety event reports and statistics show repetitive trends that result in an inability to meet or exceed the safety goal and objective, the Office, through the SMS department, initiates an investigation to determine the causal factors and settle on required corrective actions, approved by the CSSO.

3.4.6 Investigation Called by Chief Executive Officer

The CEO may bring in additional resources to support an investigation of any incident/accident/safety event occurrence conducted by the Office of Safety and Security including investigations by NCDOT or the National Transportation Safety Board (NTSB).

3.4.7 Internal Notification of Accidents/Safety Events and Unacceptable Hazards (from CATS S&S03)

Depending on the type of incident, the operator/employee must immediately notify the appropriate communications center and/or Safety and Security personnel. Non-revenue vehicle operators must notify their supervisor/manager if possible. CATS follows the S&S03 *Accident/Incident/Safety Event Investigation and Reporting* procedure when making internal notifications.

3.4.8 External Notification Procedure

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CATS follows the S&S03 *Accident/Incident/Safety Event Investigation and Reporting* procedure when making external notifications. The reportable incidents/safety events identified in S&S03 are based on the current Code of Federal Regulations (CFR) related to public transportation and the NCDOT State Safety Oversight Program Standards (SSOPS).

3.4.8.1 At-scene Procedures

CATS S&S03 describes the roles and responsibilities of CATS personnel on the scene of an incident.

3.4.8.2 Safety Event Investigation Reporting, and Documentation NCDOT

Each CATS investigation conducted on behalf of NCDOT must be documented in a final report that includes a description of investigation activities, findings, identified causal factors, and a Corrective Action Plan, if applicable. Preliminary reports will be submitted within 72 hours post incident and final draft reports will be submitted within 30 calendar days following the reportable safety event. All investigation and reporting requirements will follow current NCDOT State Safety Oversight Program Standards (SSOPS) and CATS S&S03 *Accident/Incident Investigation and Reporting* procedure.

Reports and records of accident/safety event investigations may contain information protected from public disclosure under state and federal law. To the extent NCDOT or CATS exchange information protected from disclosure, prior to responding to a public record request, CATS shall review all the requested materials and withhold nonpublic information. The basis for withholding items may include, but not limited to, G.S. §160A-168(c)(5), G.S.§ 132-1.7, 49 CFR Parts 15

and 1520, or 49 CFR 674.

National Transit Database
Accidents and Incidents for CATS are also reported to the National Transit Database (NTD) monthly.

Major events are reported by mode separately for each event. Information includes number of fatalities, number of injuries, total estimated property damage, date, time, and address of the event. Report includes a brief synopsis of the event.

For minor events: CATS reports by mode (Light Rail, Streetcar); the number of events, the number of injuries by category, and fires.

3.4.8.3 Corrective Action Plans

After the occurrence of a safety event and subsequent investigation, the development of recommendations, the identification of an unacceptable hazardous condition, or hazards identified through internal or external safety reviews/audits, the CATS Safety and Security representative will enter a Corrective Action Plan (CAP) in NCDOT's web-based software program after identification of the need for a CAP. CATS may request additional time to prepare the CAP for complex issues. Should the web-based program not operate properly, then the CAP will be submitted in the manner requested by the NCDOT SSO representative as outlined in section 3.2.11.

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The CAP describes the actions CATS will take to control, correct, and mitigate the issue until a permanent solution can be identified. CATS will evaluate the actions needed for reducing the levels of risks to the lowest available levels and creating a schedule for these actions.

NCDOT requires RTAs to develop and carry out a CAP from the following sources when applicable:

a) Results from investigations, in which the RTA or NCDOT determined that causal or contributing factors require corrective action plans
b) Findings of non-compliance from safety reviews and inspections performed by NCDOT
c) Findings of non-compliance from internal safety reviews performed by the RTA.

An exception may be made for immediate or emergency corrective actions that must be completed to ensure immediate safety, provided that the RTA notifies NCDOT of emergency corrective actions in progress or completed and as soon as practicable to make the notification.

When an identified condition requires immediate or emergency corrective action to protect employees, passengers, the public, or the rail system, CATS may implement necessary interim controls or corrective measures prior to NCDOT approval. Such actions may include removing equipment or vehicles from service, restricting or suspending operations, implementing temporary operating procedures or controls, performing emergency repairs, or taking other measures

necessary to reduce the immediate safety risk. CATS will notify NCDOT of emergency corrective actions in progress or completed as soon as practicable. At a minimum, CATS 72-hour preliminary report to NCDOT must include details regarding completed immediate or emergency corrective actions to ensure immediate safety. The process for managing these immediate or emergency corrective actions is established in QA05 – Nonconformity and Corrective Action, which is incorporated by reference into this ASP.

The CSSO, in coordination with the responsible division and appropriate management, oversees the implementation and documentation of the immediate or emergency corrective action. Actions taken, responsible parties, implementation status, and applicable follow-up requirements are documented through the appropriate hazard tracking, SRM, maintenance, or CAP records. NCDOT is notified as soon as practicable of immediate or emergency corrective actions in progress or completed. When a permanent corrective action is required, the issue is transitioned into the formal CAP process and tracked through implementation, verification, and closure in accordance with this section and Procedure S&S23 – Risk Assessment, Mitigation and Monitoring.

The Corrective Action Plan will include:

a) Title that references the ASP element number, the year, and a suffix starting with “01” (Indicates the first item for that element and year, and progresses numerically for additional CAPs). The format must be: “ASPxx-Year-xx” (use four-digit full year).
b) The hazard or deficiency identified and investigation (if relevant to the CAP)
c) Reason for the noncompliance (if relevant to the CAP)
d) Proposed actions planned to minimize, control, correct, or eliminate the unsafe or hazardous condition, including interim action if required
e) Scheduled date of completion of implementation
f) Division and individual responsible for implementing the CAP
g) Comments subsequently added, especially pursuant to NCDOT review and closure of the CAP.

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The CAP shall be submitted to NCDOT for review and approval using the web-based system. NCDOT will enter its approval or rejection of a CAP within 15 calendar days of receiving the CAP. In the event NCDOT rejects a CAP, NCDOT will state its reasons and recommend revisions. CATS shall submit a revised CAP to NCDOT no later than 15 calendar days following the rejection. If NCDOT takes issue with CATS’ proposed CAP, NCDOT and CATS must work together until NCDOT approval can be obtained. NCDOT approval is not necessary for short-term measures required to immediately mitigate hazardous conditions; however, these measures shall not replace the need for a long-term CAP. NCDOT will provide its support for such short-term measures, or outline its concerns regarding them, in its written approval or disapproval of the formal CAP.

If the NTSB investigates, CATS and NCDOT shall review the NTSB findings and recommendations to determine if a CAP is required. If a CAP is required either by the NTSB or NCDOT, CATS shall develop it.

Unacceptable Hazardous Conditions that are identified through any means,

including After Action Reports (AAR), as containing Sensitive Security Information (SSI) will be tracked in a separate hazard log.

The CAP log generated in NCDOT's web-based software program includes entries related to:

a) Most probable cause
b) Corrective actions for investigation reports, annual audits, three-year safety reviews, and FTA Program Audits
c) Unacceptable hazardous conditions
d) Hazard analysis or safety reviews performed at the request of NCDOT
e) Other related external reviews

The status of open corrective actions is reported and reviewed on a monthly basis with Rail Operations management. All corrective actions are prioritized for implementation using the risk assessment matrix (MIL-STD-882E within S&S23 Risk Assessment, Mitigation and Monitoring) and assigned a responsible person to lead the corrective action effort and close the corrective action after resolution. NCDOT requires verification from CATS that the CAP has been implemented either by: documentation submitted by CATS, independent visual inspection by NCDOT, or both.

3.4.8.4 Coordination with State Safety Oversight Agency

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When an accident, incident, safety event or condition involves post-accident inspections, examination, or testing by CATS Divisions, the Office of Safety and Security is the lead CATS office to coordinate with NCDOT. The Office of Safety and Security will evaluate the need for accident/incident reconstruction, in cooperation with the City of Charlotte Risk Management Division.

NCDOT may choose to investigate rail safety events and UHC rather than having the Office of Safety and Security perform the investigation on its behalf. CATS will fully cooperate with the NCDOT in its investigation, with the Chief Safety and Security Officer serving as CATS' primary point of contact. NCDOT submits draft reports to CATS for review and feedback. CATS will notify NCDOT SSO in writing of any findings or issues in which they disagree. Additional information and clarification will be provided to NCDOT to address any disagreements. NCDOT SSO will make the final decision on findings and issues.

3.5 Management of Change

3.5.1 Procedures for Evaluating Safety Risk of Proposed Changes

3.5.1.1 Internal / External Sources of Change

CATS identifies and monitors internal and external sources of change that may introduce new hazards, affect existing hazards or safety risk mitigations, or otherwise impact rail system safety performance. Changes may be planned or unplanned and may originate within CATS or from the external operating environment.

Internal sources of change may include changes to rail operations or service; organizational structure, staffing, or responsibilities; operating rules, policies, procedures, or work practices; vehicles, equipment, systems, facilities, or infrastructure; maintenance and inspection practices; technology, software, communications, signaling, or control systems; configuration or engineering requirements; procurement or overhaul of safety-critical equipment; and construction, rehabilitation, or capital projects.

External sources of change may include changes in Federal, State, or local requirements; FTA or NCDOT requirements or guidance; adjacent construction or new residential, commercial, or transportation development; roadway configurations, traffic patterns, grade crossings, pedestrian or bicycle activity; utility construction or relocation; drainage, erosion, flooding, weather, or environmental conditions affecting rail infrastructure; changes involving emergency response or community infrastructure; and other external conditions that may affect CATS rail operations or safety performance.

Sources of change may be identified through management and departmental reviews, field inspections and observations, operational and maintenance activities, employee reports, RSSC activities, capital project coordination, regulatory monitoring, coordination with external agencies and stakeholders, and other applicable Safety Assurance activities.

When a potential operational change is identified, the responsible division shall coordinate with the Office of Safety and Security to determine whether the change may introduce a new hazard or impact safety performance. Changes meeting these criteria shall be evaluated through the Management of Change and SRM processes prior to implementation.

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3.5.1.2 Process for Change

Utilizing safety risk management processes as outlined in Section 2, CATS Management will ensure that any changes in its projects or existing services will be carried out in a planned and controlled manner. Before approving any planned changes, it will consider if the change introduces a new hazard or impacts CATS safety performance. If so, CATS Safety evaluates the proposed change through its Safety Risk Management process as described in section 2.2 Hazard Management Process.

For Rail Operations, the following process will be used to review, evaluate, and document the process of change:

- ROD304 Bulletins, Notices, General Orders and Operating Orders For immediate and/or temporary internal change notifications, such as Operational Notices, Bulletins, Administrative Notices, or other forms of policy/procedural change notifications provided to employees, CATS shall ensure that these notice documents are co-signed by the Safety Manager to indicate that the change was approved by the Safety department prior to implementing the change. CATS shall provide a copy of these documents to NCDOT at the time that the change documents are distributed to service delivery functions for implementation. ROD304 is verified through acknowledgement and sign-off sheets.

- ROD801 Configuration Change Control: CATS established policies or procedures intended to reduce safety risk shall not be changed until formal review by CATS Safety & Security, Quality Assurance and Operations staff agree on the change to ensure no additional hazard or safety risk is introduced. The formal review will be documented using either the Hazard Analysis Form or Safety Analysis Form signed by appropriate management personnel. If new hazardous conditions are introduced, the Rail Safety and Security Committee will review those items with the safety department, along with guidance documents.

    - Review and comment by NCDOT shall be required as defined in the NCDOT State Safety Oversight Program Standards (SSOPS) prior to the change taking effect. Once the changes have been approved, employees will be trained on the change prior to implementing the new policy or procedure. ROD801 is verified through formal training by supervisors/instructors.

    - If the Hazard/Safety Analysis proposes that change should be implemented, the change will be made following the *ROD304 Bulletins, Notices, General Orders and Operating Orders* and/or *ROD801 Configuration Change Control Procedure*. Employees receive awareness and notification in regard to changes in their work area.

        - ROD304 is verified through acknowledgement and sign-off sheets.
        - ROD801 is verified through formal training by supervisors/instructors.

    - CATS established rail policies and procedures that will be affected include but not limited to the following documents:

        - Rail Rulebook
        - Rail Operations Control Center (ROCC) Manual
        - Rail SOPs
        - Any other new and/or revised operating policy or procedure that may affect the level of safety risk for rail systems, employees, and the public

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Once a safety related change has been finalized, some form of training of affected employees on the change, when practicable, shall be completed prior to implementing the new policy or procedure.

Change is planned to ensure it is accomplished in a controlled manner and CATS Management shall ensure that the integrity of the SMS is maintained when changes to the system are planned and implemented.

3.5.1.3 Field Observations for Changed Work Environments

Identified changes to the CATS System or mitigations that have been implemented in the field will be verified and monitored by the appropriate Division staff and Office of Safety personnel to ensure the mitigation is appropriate and effective. If it is determined that a mitigation for an Unacceptable or Undesirable hazard is

ineffective, the CSSO will be notified, and a different mitigation will be implemented to address the issue. These changes will be managed on the Division's HML and the Safety Risk Register as applicable.

3.5.2 Configuration Management

3.5.2.1 Overview

Configuration Management is defined as the effective control of a facility's as-built arrangement and operation to ensure compliance with approved and/or accepted technical requirements and other governing criteria. Control of the as-built configuration of facilities, systems, equipment, and vehicles begins during development of the final design and extends through construction, start-up, and operations. Control concludes with deactivation of the facility, system, equipment, or vehicle. CATS Configuration Management includes document and record control, change control in operating systems and construction change control.

CATS shall notify NCDOT of all rail-related planned modifications to existing systems, vehicles, and equipment and any rail New Starts Projects at the beginning of the Preliminary Engineering Phase of the modification or Project Life Cycle: including the requirements set forth in FTA's Circular 5800.1 and 49 CFR Part 633.

3.5.2.2 Process for Change

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3.5.2.2.1 Control of Documents

CATS Quality Assurance procedure CATS QA02 *Control and Distribution of Plans, Manuals, Policies and Procedures* defines the controls needed:

a) To approve documents for adequacy prior to issue
b) To review and update as necessary and re-approve documents
c) To ensure that changes and the current revision status of documents are identified
d) To ensure that current versions of applicable documents are available at points of use
e) To ensure that documents remain legible and readily identifiable
f) To prevent the unintended use of obsolete documents and to apply suitable identification to them if they are retained for any purpose.
g) Employees shall use the specified or latest revision of specifications or controlled documents to include documents of external origin.

3.5.2.2.2 Control of Records

At all times, CATS maintains documents that set forth the CATS ASP, including those related to the implementation of CATS SMS, and results from SMS processes and activities. CATS maintains documents in whole, or by reference, that describe the programs, policies, and procedures that the CATS uses to carry out the CATS ASP. CATS makes these documents available upon request by the FTA or other Federal entity, or a State or to NCDOT (the SSOA having jurisdiction). CATS maintains these documents for a minimum of three years after they are created.

Records are established and maintained to provide evidence of conformity to requirements and for the effective operation of the quality management system. SMS/ASP records are maintained by the record owners identified on CATS Records Retention Schedules and shall remain legible, readily identifiable, and retrievable. CATS RIM01 *Control of Public Records* defines the controls needed for the identification, storage, protection, retrieval, retention time, and disposition of records. Record retention schedules for CATS documents maintained by CATS and by other City departments for CATS are available in CATS Record Retention Schedule on CNet/CATS/CATS Records Management site. CATS Records Retention schedules are in compliance with NC General Statute (NCGS) Chapter 132. The ASP, records related to ASP development and SMS implementation will be retained electronically for a minimum of three (3) years in accordance with CATS Records Retention Schedules and 49 Parts 670, 672, 673, and 674.

3.5.2.2.3 Contract Changes

Changes to a contract can originate from various sources in the form of change notices, verbal directives, or contractor claims with merit. The procedure for contract changes is CATS P&CM04. CATS may, by written change order, make a change to the work within the general scope of the contract. The contractor may propose changes to CATS for its review and approval or disapproval. Acceptance of contractor-proposed changes is solely within CATS' discretion. Regardless of source, changes are considered to be pending until they are made a part of the Contract by a fully executed change order. The resident engineer (RE) maintains a status log of all pending changes and makes periodic reports to management on actions being taken to finalize these changes. The General Conditions Article entitled "Changes" dictates the Contract provisions for making changes to the Contract. In addition, CATS' Change Control Procedure must be followed. When there is conflict between the General Conditions, CATS Change Control Procedure, and the Construction Management Manual, the General Conditions takes precedence, followed by CATS Change Control Procedure, and finally the Construction Management Manual.

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3.5.2.2.4 Configuration Change Control in Light Rail Vehicles

CATS Procedure CATS ROD801 establishes the process to be followed to use alternative materials instead of Original Equipment Manufacturer materials and/or make changes in the process pertaining to the repair and maintenance of light rail equipment. The procedure also establishes a Configuration Control Board to review and approve or reject requests for changes to maintenance and material parts or processes and to ensure adherence to the procedure.

3.5.2.2.5 Authority for Change

The CATS Quality Manual is the authority for the following types of changes:

a) Control of Records
b) Control of Documents

3.5.3 Safety and Security Certifications

The CATS safety and security certification process is used to ensure that safety concerns and hazards are adequately addressed prior to the initiation of passenger operations for new start projects and subsequent major projects to extend, rehabilitate, or modify our existing system, and to replace vehicles and equipment. Major Capital Projects are defined as $100 million or greater by the FTA, but the administrator may apply this process for Federal funded projects under $100 million. The process also applies to all other projects determined by CATS' Office of Safety and Security to be of sufficient significance to require formal safety and security certification. CATS' processes for safety and security certification are based on FTA's Handbook for Safety and Security Certification (2002) and CATS' own configuration management plans and procedures. Separate safety and security certification plans are developed for each identified project.

During the performance of hazard analyses, as part of the Safety and Security Certification Process, CATS identifies Category 1 Catastrophic and Category 2 Critical hazards. These hazards constitute the Safety Critical Items List (SCIL), a subset of the CIL, to provide visibility of these issues and to verify monitoring and control. The Office of Safety and Security updates the CIL to reflect the status of all hazards, prioritizing Category 1 and 2 hazards. The SCIL and CIL are published nd managed until all hazards have been eliminated, reduced, or controlled to acceptable levels. System changes and modifications are not to be made without first being reviewed and approved by the SSRC.

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A separate Safety and Security Certification Plan (SSCP) is developed for new start projects and major projects in accordance with the FTA's Handbook for Safety and Security Certification (2002). CATS will comply with FTA's Circular 5800.1, FTA's Project and Construction Management Guidelines, and 49 CFR Part 633.

CATS is a self-certifying agency except in cases where the required expertise to oversee the safety and security certification process is not available among CATS staff in the estimation of the Chief Safety and Security Officer. In those cases, qualified consulting services may be retained to perform the certification according to FTA standards. Although CATS may contract out safety and security certification services, CATS maintains the responsibility to report to the FTA their acceptance and endorsement of the work performed under the safety and security certification process.

To facilitate coordination between CATS and NCDOT during active major projects, CATS shall designate and assign an internal Major Project Liaison for each major project. The Major Project Liaison serves as the primary point of contact between CATS and NCDOT for project coordination, safety oversight activities, and project reporting.

During active major projects, the Major Project Liaison shall provide a monthly project status report to NCDOT no later than the 10th calendar day of each month.

At a minimum, each report shall summarize significant project milestones completed since the previous monthly report, identify current project status and any significant safety issues or risks affecting the project, and provide a one- to six-month outlook of planned activities, upcoming milestones, and major project activities. Additional coordination, reporting, and documentation requirements may be established through the applicable Project Management Plan, Safety and Security Certification Plan (SSCP), or other project-specific agreements between CATS and NCDOT.

For each active major project, CATS shall also designate and assign an internal Office of Safety and Security team member to serve as the Major Project Safety Liaison. The Major Project Safety Liaison is responsible for overseeing project participants' and stakeholders' compliance with applicable CATS safety standards, project-specific Safety and Security Certification Plans (SSCPs), Agency Safety Plan requirements, and other applicable safety requirements throughout the project lifecycle.

The Major Project Safety Liaison shall conduct or coordinate periodic field audits, inspections, observations, and other safety oversight activities to evaluate compliance with approved project safety plans and applicable safety requirements. Identified safety deficiencies, hazards, or non-compliance issues shall be documented, communicated to the appropriate project personnel, tracked to resolution through the applicable CATS Safety Management System processes, and reported to NCDOT, as appropriate.

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3.5.3.1 Certifiable Components

a. These components are broken down into four major categories:

    1. Facilities/Equipment
    2. Systems
    3. Integrated Test Requirements
    4. Operational Requirements

b. The certifiable components for a project are defined by reviewing the project design criteria manual, project management plan (PMP), and like project-related documents such as the CILs and specifications.

c. All major contractor and manufacturer audits, inspections, and tests where the safety and security of customers and/or employees, equipment, or facilities could be affected by the improper or incorrect construction or manufacture of system components. These audits, inspections, and tests cover both facilities and system components. Included are First Article Inspections, Mockup Reviews, Qualification Tests, Performance Tests, and Acceptance Tests. The integrated tests are developed to verify the integration and compatibility of equipment, facilities, and operation/maintenance procedures to function together under normal, abnormal, and emergency situations. This includes verifying the coordination, response, environmental constraints, and capabilities of CATS and outside agencies.

d. The safety and security certifiable components in each construction package

are certified independently once all sub-element and sub-item submittals are received, reviewed, signed off by the appropriate construction staff, and verified. Any “Open Items” that remain in effect with operational restrictions are documented and attached to the components certificate. The restriction(s) must have been resolved (or workarounds/operating restrictions put in place) and approved by the SSRC.

e. The Project Safety and Security Certificate is prepared by the Office of Safety and Security and reviewed/approved by the SSRC once all the construction packages have safety and security certificates, transportation and maintenance personnel have been trained, emergency response personnel have been prepared to respond to emergency situations in or along the Right-of-Way (ROW), and safety and security system integration tests have been conducted. The overall project certificate and cover letter are presented to the CATS CEO for signature by the Chief Safety and Security Officer. The certificate’s signature provides a formal notification that the applicable portion of the operating system is safe and secure for revenue service. Any “Open Items” that remain in effect with operational restrictions are documented SCIL and attached to the System Safety and Security Certificate. The restriction(s) must have been resolved (or workarounds/operating restrictions put in place) and approved by the SSRC.

3.5.3.2 Hazard Resolution for Projects

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The hazard resolution process can be applied throughout the five phases of the system life cycle.

Phase 1 - Planning

Phase 2 - Design

Phase 3 - Construction

Phase 4 - Operations

Phase 5 - Disposal

Identification of hazards is the responsibility of all divisions and is key to system safety. Hazards that are identified are analyzed for severity, frequency, and cost feasibility of remedial action required to eliminate or reduce the hazard to the lowest practical level. Hazard identification defines conditions and faults which have the potential for causing an accident. The CATS Office of Safety and Security verifies that mechanisms are in place for identifying and reporting hazards on the system.

Assessment of a hazard is based on the probability of occurrence and the severity of an event. Hazards with greater severity or probability to cause serious injury to have a greater need for immediate resolution.

Hazard resolution is the corrective action taken in response to the hazard identification and assessment process, but time and resource restrictions may determine the level of resolution that can be accomplished. The following are actions for hazard resolution:

- Eliminate the hazard if possible.

- Install protective devices/measures to reduce the hazard.
- Provide training to educate the workforce of possible hazards.
- If the hazard cannot be eliminated, reduce exposure to it.

Hazard analysis **encompasses** a set of methodologies that first searches throughout the system for the potential to do harm. Having found such hazards, further analysis attempts to control any hazard at an acceptable level. However, to do so first requires an understanding of the causes of the hazards.

Hazard analysis **attempts** to determine the set of primary events in the hazard generation process. Upon identification of these events, CATS will seek to mitigate, control, or eliminate the generation of hazards in ways that can reduce their risk to an acceptable level.

Hazard analysis also attempts to **reduce** the severity of accident events by introducing protective devices and equipment, procedures and/or forms, or system modifications that reduce the amount of human and property damage in an accident event.

The **objective** of **hazard identification and analysis** is to identify and define as many hazardous conditions as possible and enter them into the Hazard Resolution process before those conditions or associated activities cause an accident, injury, death, or other loss.

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While identifying every hazard is unlikely, the historical rail passenger accident experience is a reliable source of input information that aids in the identification and capturing of hazards. CATS also uses inspections and checklists to identify hazards. For potential hazards during design of projects, we do hazard analysis as described in the Preliminary Hazard Analysis and mitigated hazards are moved to the Operational Hazard Analysis for CATS projects.

CATS uses the hazard identification and analysis process in the areas of System Safety, Environmental Protection, Design, and Procurement before purchasing and accepting new equipment and modifications of existing facilities, systems, or rolling stock. When safety certification is required, CATS uses qualified consulting services to verify that new or overhauled equipment, facilities, and rolling stock meet its safety requirements.

3.5.4 Managing Safety in System Modifications

Changes and/or modifications, including non-permanent system changes or modifications made to CATS' existing systems, vehicles, facilities, and equipment that have the potential to adversely impact customer, employee, public, and/or system safety or security, but do not require safety certification (as determined by CATS' Office of Safety and Security), are subject to CATS' hazard management program. Such changes and modifications must be accomplished in a controlled manner to ensure that safety is incorporated into the project designs, plans, and procedures developed to implement the system change or modification. Such changes and modifications must also be performed in accordance with CATS plans and applicable CATS procedures such as CATS DEV01 *Project Management Planning and Project Management Plans*, CATS P&CM04 Change Control Procedure or CATS ROD801 Configuration Change Control Procedure.

Any division or section initiating a change must inform the CATS Office of Safety and Security and any other affected division or section, so they may review possible impacts, including safety or security impacts, resulting from the proposed change or modification. The Office of Safety and Security may determine that safety analyses are required as part of the change/modification design process. CATS Quality Assurance has oversight responsibility for changes to policies and procedures and enforcement of review by affected divisions/sections.

Organizations providing professional services, architectural / engineering design, construction, or construction management to CATS are required to provide a Quality Assurance/Quality Control Plan (QAP) that defines the administrative and control measures appropriate for their respective scope of services.

3.5.5 Managing Safety in Procurement

CATS shall ensure that any purchased product conforms to specified purchase requirements. The type and extent of control applied to the supplier and the purchased product shall be dependent upon the effect of the purchased product.

Procurement actions are conducted in accordance with all applicable Federal, State, and local laws, regulations, and policies. CATS conforms to the current procurement ordinances, policies and/or procedures adopted by the Council of the City of Charlotte or the Charlotte City Manager.

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The Transit Asset Management Program Manager oversees the Asset Management and State of Good Repair requirements set forth by the NCDOT SSOPS and the FTA TAMS requirements and will submit quarterly the SSOPS Appendix D Form – Quarterly RTA Asset Management Status Report. The Development Division is responsible for CATS' TAM Plan compliance with FTA and NCDOT program requirements.

The TAM Manager shall provide the Office of Safety and Security department a monthly report regarding all rail related capital assets.

The City Council has full budget and signature authority for all contracts. The authority to sign contracts for normal operations, supplies, and service contracts has been delegated to the City Manager or his/her designee, the Department Director or his/her designees, or the Chief Procurement Officer, based on the total dollar amount of the contract.

The Chief Procurement Officer has primary responsibility for procurement and contract administration, including issuing and compliance, with CATS Procurement Policies and Procedures.

CATS Procurement Manual details the requirements for all important activities, such as preparation of purchase orders, contracts for services, bid lists, vendor quality requirements, and contract file maintenance.

CATS CEO, project managers, and other key personnel have primary responsibilities, contributor/support responsibilities, or approval authority for specified aspects of the procurement function based on the scope of the contract. Responsibilities are identified in the Procurement Manual.

Large procurements need to be planned during the budget preparation cycle to ensure specifications and contract awards are not driven by budget. All procurements must have an accurate detailed estimate prior to solicitation.

Large projects (over $100,000) require a PMP that identifies project team members including the Office of Safety and Security. The Procurement Service Request (PSR) identifies whether a PMP is required. The Office of Safety and Security identifies the level of safety certification for the project in the PMP. Safety and security design criteria and standards are integrated into all project designs, unless determined otherwise by the Chief Safety and Security Officer.

Planning for procurement and contracts entails considering safety, as well as technical, business, and management requirements in controlling acquisition from inception to completion.

The purchasing process begins with the preparation of a specification and PSR that is then submitted to City Procurement. For hazardous materials, safety items, personal protective equipment, safety products/systems, and service contracts, the Office of Safety and Security will review and approve the PSR prior to the processing of the purchase order.

City Procurement works in conjunction with all CATS divisions and applicable City of Charlotte Departments and utilizes existing city contracts for all purchasing contracts. When purchasing personal protective equipment (PPE) for employees, controlling chemicals and other hazards in the workplace, mandating safety requirements in specific contracts, and requiring compliance from specific vendors with CATS safety requirements, the Office of Safety and Security is consulted and reserves the right of approval.

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Those specifying requirements for purchased products and services are responsible for ensuring that products and services meet requirements specified in the procurement information. When products or services are received that do not meet requirements, employees are expected to work with Procurement to arrange a return or adjustment as appropriate. CATS QA works with Procurement and key suppliers to ensure that suppliers have the capability to meet specified requirements.

The Rail Inventory Management Manual addresses the visual inspection of parts prior to placing in inventory.

CATS currently utilizes the SPEAR Maintenance and Material Management System (MMMS) to effectively track all parts procurement, work orders, vendor technical bulletins, recall notices, and end user defect comments. Currently, the SPEAR MMMS keeps an active log of this information, which is retained for configuration management purposes.

The Office of Safety and Security has identified requirements to include in contract documents for contractors working on CATS property. The Office of Safety and Security is responsible for reviewing procurement activities for compliance with NCDOT's Asset Management and SGR requirements as noted in the current

SSOPS.

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4.0 Safety Promotion

4.1 Safety Plan Dissemination

Reference Section 1.8 on Safety Plan and Policy Dissemination.

4.2 Safety Plan Review and Modification

The Agency Safety Plan is a living document because CATS is an evolving transit system. The ASP therefore requires an annual compliance review. Each CATS Division and the Rail Safety and Security Committee (RSSC) will review the ASP annually and submit draft changes for consideration for incorporation in the revised ASP. Safety and Security staff shall complete their reviews for the previous calendar year and submit to the SSC for approval. The CSSO will ensure compliance with all ASP/SSOPS standards prior to submitting the ASP to the CEO for approval to include department heads review and comments. The CEO will certify annually that the ASP meets all required standards. The annual update is provided to NCDOT for review and approval per the SSOPS as amended.

The annual update of the ASP addresses the following:

- Change in service defined as system expansion, extended service, or change in the operation plan;
- Change in service equipment, facilities, or vehicles;
- Change in management or organizational change and reassignment of functional responsibilities which affect operations and/or safety;
- Change in safety polices, goals or objectives;
- Changes in regulatory requirements;
- Occurrence of a significant event or incident that warrants possible revision of the ASP; or
- Audit results, on-site reviews, or changing trends in incident/accident data.

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All revisions to the ASP are made in accordance with procedure CATS QA02 *Control and Distribution of Plans, Manuals, Policies and Procedures*.

The Chief Safety and Security Officer shall ensure that all changes and updates to the ASP are communicated to the NCDOT, the designated SSOA for CATS. On or before August 1st of each calendar year, RTAs shall complete its annual ASP review and update process and submit its revised final draft ASP to NCDOT for review and comment. The RTA's revised ASP shall include the requirements of this SSOPS and any referenced documents that are used by the RTA to address the PTASP regulation and any other relevant Federal and State regulatory requirements, as amended. The finalized ASP, whenever the ASP is revised, is submitted with the signature of the CEO and the resolution of the ASP approval by the RSSC and MPTA.

The CEO submits an annual certification of compliance, to NCDOT SSO, for Part 673 and the NCDOT SSOPS by February 15 of each year.

The EPCP shall also be reviewed annually.

4.3 Employee and Contractor Safety Programs (Knowledge and Compliance)

North Carolina has a fully approved State Occupational Safety and Health Plan under the United States Department of Labor, Occupational Safety and Health Administration (OSHA) 1910 Occupational Safety and Health Standards. The North Carolina Department of Labor (NCDOL) exercises jurisdiction over the occupational safety and health of all private and public-sector employers and employees within the State. Therefore, CATS employees are protected by the regulations issued by the North Carolina Department of Labor, Occupational Safety and Health Division. NCDOL adopted the Federal OSHA regulations and has issued a limited number of state-specific standards.

Safety information on approved methods and procedures are included in manuals, handbooks, and other documentation developed for the training and qualification of operating and maintenance personnel. Identification of protective devices and emergency equipment are included in the training documentation and instruction. In addition, safety posters and notices are used, as appropriate, to enhance safety awareness during all phases of system operations. Safety concerns are incorporated in briefings given to personnel prior to their working with equipment or facilities. Each operating division has a specific training protocol for refresher training as well as new employee orientation.

Safety Awards Programs are used to encourage both individual and group participation in the CATS Safety Program. Examples of employee recognition programs are: National Safety Council Safe Driver Award Pins, periodic group recognitions, and safety plaques. Other incentives and bonus programs may be periodically used to specifically recognize the safety achievement of employees in the various divisions.

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4.4 Compliance with Local, State, and Federal Requirements

4.4.1 Working on or Near Rail Transit Controlled Property

All CATS employees and contractors working on or near CATS ROW are provided mandatory Roadway Worker Protection Program (RWPP) Training by the Office of Safety and Security or other trainers with the approval of the Office of Safety and Security. Training is valid for two years from date of RWPP training. Personnel who successfully complete the Roadway Worker Protection (RWP) training are issued a certification card valid for two years from the date of training. The card shall be carried by personnel when working in the rail system.

The RWPP applies to all roadway workers involved in the ROW of the CATS LYNX Blue Line and CityLYNX Gold Line. The purpose of this safety program is to aid in the prevention of accidents and injuries while working within CATS ROW. These rules serve as a minimum safety standard based upon the following documents, as adapted for the conditions of CATS operations:

- 49 CFR 214 Railroad Workplace Safety
- APTA RT-OP-S-010-04 Standard for Contractor’s Responsibility ROW Safety
- APTA RT-S-OP-004-03 Standard for Work Zone Safety
- APTA RT-S-OP-016-11 Roadway Worker Protection Program Requirements

The safety of roadway workers is a top priority of CATS. Contractors and CATS employees must communicate and coordinate movements along the ROW with the ROCC in order to provide for the safety of roadway workers. Accordingly, all roadway workers must follow the applicable procedures outlined in this program.

To ensure compliance with the CATS Roadway Worker Protection Program, the Office of Safety & Security will conduct periodic onsite inspections of approved work crews to verify the following:

- Job Safety Briefings
- RWPP Cards
- PPE
- Proper flagging
- Other items as needed

If any on-site violation of rules or procedures is observed, the violation will immediately be brought into compliance. If no immediate remedy is available, work crew members may be asked to leave the approved work zone until such time as the work zone is brought back into compliance.

4.4.2 Required Safety Programs

The CATS Office of Safety and Security has the responsibility for ensuring that all applicable OSHA standards are properly implemented and the applicable training and associated Personal Protective Equipment (PPE) are provided by the responsible office. CATS tracks OSHA training for the various City positions using Learning Management System software.

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The rulebooks published and distributed by CATS include: The Rail Rule Book and the Rail Maintenance Handbook. Training is provided on the rulebooks and procedures during operations and maintenance training courses.

4.4.2.1 Review of Rules and Procedures

Policies, plans, rulebooks referenced above, and procedures are reviewed periodically to verify they meet the needs of the transit system in normal and emergency conditions. Division or Section Managers are responsible to update policies and procedures specific to their departments. Quality Assurance Section is responsible for reviewing, routing for approval, distributing and maintaining CATS plans, manuals, policies, and procedures. Prior to any changes occurring, the Management of Change process in Section 3.5.1.2 will be followed.

The Quality Assurance section coordinates additions to or deletions from these documents which impact the safe operation of the system with the CATS Office of Safety and Security and respective Division staff and other affected divisions/sections for approval prior to implementation. CATS QA02 *Control of Plans, Manuals, Policies, and Procedures* stipulates control and distribution, including the three-year review process. The length of time needed for the review may vary based on the document being reviewed but the individual reviews should not exceed 30 days. CATS QA08 *Procedure Change Request Process* gives employees two ways to submit a procedure change request. The Rail section

managers may issue a bulletin per CATS ROD304 *Bulletins, Notices, General Orders and Operating Orders* when an immediate revision is required to an operating rule or procedure. CATS safety committees, accident /incidents and audit reviews are also opportunities for rules reviews.

4.4.2.2 Process for Rules Compliance

Rail Supervisors conduct ride checks of each rail operator at a minimum of three ride checks per month (Form RODF063), 8 ride checks totaled each month per supervisor.

Maintenance supervisors evaluate compliance with maintenance rules on an ongoing basis along with work completion and performance assessments. MOW conducts a minimum of three evaluations per quarter using the CATS Light Rail System Evaluation Form (RODF600). Rail Car Maintenance (RCM) conducts and documents monthly assessments of RCM employees.

Ride checks, safety audits, and field observations provide an opportunity for retraining to comply with specific rules.

4.4.2.3 Compliance Techniques – Operations and Maintenance Personnel

Compliance techniques include observation of work activities and tasks and questioning employees about their knowledge of the respective rulebooks and handbooks. During initial training, employees are tested on their knowledge of applicable rules and procedures through written examinations.

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4.4.2.4 Compliance Techniques – Supervisory Personnel

Rail Operations

The Office of Safety and Security reviews a sample of Rail Operator ride check and observation forms and Maintenance proficiency check forms on an annual basis to evaluate the effectiveness of compliance methods utilized by supervisory personnel. The ride checks and field observations assess employees' knowledge of rules and procedures and validate the success of CATS' employee training programs.

Recommendations for enhancement of the compliance methods are submitted to Division managers by the Office of Safety and Security for appropriate action.

4.4.2.5 Documentation

Safety and Security periodically audits the proficiency check forms for completeness and identification of hazards. Identified hazards will be tracked in the Hazard Tracking Log. Unacceptable and Undesirable Hazardous Conditions will be reported per the Hazard Management Process.

4.4.3 Compliance with Drug and Alcohol Programs

CATS is certified as a drug-free workplace and complies with all provisions of the U.S. Department of Transportation, Federal Transit Administration, 49 CFR Part 655 Prevention of Alcohol Misuse in Transit Operations, 49 CFR Part 40

Procedures for Transportation Workplace Drug and Alcohol Testing Programs and CATS HR02 CATS Drug and Alcohol Policy.

The FTA posts the latest Drug and Alcohol Regulations, Rules, and Notices at: https://www.transit.dot.gov/drug-alcohol-program

New hires sign a form acknowledging receipt of the D&A Policy and related training. Updates to the policy are distributed either by paper with a form signed acknowledging receipt or by completing the review and acknowledgement online through the City/CATS Learning Management System.

4.4.4 Compliance with Contractor Safety Program

CATS requires a safe working environment for construction projects and workers. Per the FTA Project and Construction Management Guidelines, the Office of Safety and Security reviews the contractor's safety plan and concurs with or approves its compliance with this plan. CATS also requires contractors to follow all CATS safety and training standards to ensure its project workers' safety and well-being. This includes:

- Completion of Roadway Worker Protection training, as applicable.
- Complying with records retention and audit processes.
- Obtaining all necessary permits for work being completed, including any Right-of-Way Access permits.

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CATS Safety conducts periodic audits of contractors to assess their adherence to their construction safety plan. Any contractor employee found to be working in the operating rail system without a valid Contractor ROW safety card issued by CATS will be considered a trespasser and Police will be notified to take appropriate action. At a minimum, the contractor employee will be considered unqualified to work on a CATS contract and will be removed from the work site.

Workers on the project are required to follow OSHA 1926 Safety and Health Regulations for Construction safe work practices and comply with applicable safety, health, and fire loss prevention standards, and conduct their personal work activities in a manner which does not place themselves, other employees, or the public in a hazardous position. If a safety issue is identified by a CATS contractor on a CATS project, the contractor must immediately contact the designated CATS safety representative for the project.

It is CATS' responsibility to require that no project be so urgent that safety precautions are bypassed. The prevention of personal injury and property losses must always be part of the work task and in the mind of the manager, supervisor, and employee.

4.5 Training and Certification Program

4.5.1 Overview

Instruction in safe methods of operations and safety procedures is included in rulebooks, manuals, handbooks, and other documentation developed for the training and qualification of operations and maintenance personnel. Training

systems have been developed by each department, which include in-house classroom training, field training, on-the-job training, and testing. Each department is responsible for establishing training requirements for its employees. Rail Instructors are responsible for providing new and revised training programs to the office of Safety and Security for review.

CATS conducts review activities that identify where new training is needed, where current training must be revised and updated, and refresher training needs to be added to the current training requirements for employees and contractors. The program will also include updating job descriptions and training requirements for front line employees, managers and supervisors and senior managers.

4.5.2 Classification of employees/contractors directly responsible for safety

The Office of Safety and Security, in conjunction with other divisions, provides all employees with training in the areas of basic safety, the ASP, applicable OSHA regulations, ergonomics, and defensive driving, if applicable. In addition to the standard safety training provided by, or in conjunction with, the safety staff, safety awareness is maintained by special training presentations such as: bulletins; newsletters; and at work training to instruct employees on methods to prevent traffic, passenger, and employee accidents. Periodic training classes are held throughout the year to refresh or present new topics of concern to employees such as: de-escalation training, safety concern identification and report training, and refresher training for transit workers directly responsible for safety.

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4.5.3 Certification and Training Requirements

All employees and contractors play a role in safety at CATS. All employees are required to attend initial SMS training in person. Ongoing SMS awareness training will be conducted periodically, including the various way to report safety issues. Employees are trained to know their role and responsibilities and how to report safety concerns to management. CATS Safety and Security staff worked with the Training Department to develop the training materials. The Training Department is responsible for maintaining the training records.

SMS training and an SMS pocket card is provided to all new hire employees as part of their orientation training. Safety & Security staff provide the SMS training and CATS Training Department maintains and manages the training materials and maintain training records.

All employees receive safety related training on SMS, emergency preparedness, and de-escalation. The Training Department reviews and approves all training materials and maintains appropriate training records.

<u>Rail Operations</u>
Employees receive initial SMS training in person and then annually either in person or online. Contractors receive annual SMS training as part of their Roadway Worker Protection Program (RWPP) training. Contractors and their representatives working on CATS projects, who are designated by CATS staff as PTSCTP participants, are required to meet the provisions of 49 CFR Part 672.

The Rail/Streetcar Operator training program is a comprehensive two-phase

program which includes both classroom and practical instruction. Specific information about the training program for Rail Operators can be found in the *Rail Operator Training Manual* and *ROD308 Rail Operations Training Procedure*.

Requalification Training
All Rail Operators shall attend requalification training at a minimum of every two years. The Rail Instructor will do requalification with a limited number of Operators at a time to minimize manpower disruptions. These training programs are reviewed by Rail Operations Management and the Office of Safety and Security and are subject to review via the Internal Safety Audit Process.

ROCC Controller Training
The ROCC Controller training curriculum is a comprehensive training program requiring completion of the Rail Operator and Supervisor training programs followed by two weeks classroom and eight - ten weeks practical instruction. The training requirements for ROCC Controllers can be found in the Operations Training Guide.

ROCC Recertification Training
All Rail Controllers must complete requalification training at a minimum of every two (2) years. Requalification training is administered through the Operations Training department which consists of written and practical examinations. All training programs are developed collaboratively with Operations departments and the Office of Safety and Security and are subject to review via the Internal Safety Audit Process.

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ROCC Refresher Training
ROCC Controllers who are out of work for 30 - 89 days are required to complete refresher training. This training is administered through the Operations Training department. ROCC Controllers who are out of work 90 - 364 days must complete recertification training and testing. ROCC Controllers who are out of work for more than 365 days must complete the initial Controller training program. All training programs are developed collaboratively with Operations departments and the Office of Safety and Security and are subject to review via the Internal Safety Audit Process.

Maintenance Transit Worker Training
The Maintenance Transit Worker Training is extensive and covers two separate departments, Rail Car Maintenance (RCM) and Maintenance of Way (MOW). RCM has two crafts: Maintenance Assistant and Maintenance Technician. MOW has 4 crafts: Maintenance Assistant, Power Technician, Signals Technician, and Track Technician. The initial training consists of Instructor-Led training, which is a combination of classroom and hands-on instruction, and varies by craft in terms of length of time. MOW is followed by a minimum of 100 hours of On-The-Job Training. The specifics can be found in the Training Operations Training Guide Version 2.

Maintenance Transit Worker Recertification Training
The Maintenance Transit Worker does not require recertification. Reference the Training Operations Guide Rev 2. Vendor-led training is provided annually to the maintenance departments to meet the needs of the crafts.

Maintenance Transit Worker Refresher Training

Maintenance Transit Workers who are out of work for 30 - 89 days are required to complete refresher training. This training is administered through the Operations Training department. Maintenance Transit Workers who are out of work 90 - 364 days must complete recertification training and testing. Maintenance Transit Workers who are out of work for more than 365 days must complete the initial training program for their respective craft. All training programs are developed collaboratively with Operations departments and the Office of Safety and Security and are subject to review via the Internal Safety Audit Process.

49 CFR 672 Safety Training

CATS Office of Safety and Security Chief Safety and Security Officer, Managers and Coordinators for both Rail and SMS have been designated in April 2020 as being directly responsible for the safety oversight of a rail fixed guideway. The primary point of contact for CATS for participation and enrollment shall be the Senior SMS Coordinator. They shall provide annual reports to FTA and NCDOT regarding the status of their participants and agency-defined recertification training. Those employees required to meet this regulation must complete the following minimum training requirements within three years of being identified responsible for safety oversight. PTSCTP records will be properly maintained and made available to appropriate local, state and federal agencies as described in Section 49 CFR 672.23 *Availability of records*.

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Required Training:

- One-hour course on SMS Awareness – e-learning delivery (all required participants)
- Two-hour courses on Safety Assurance – e-learning delivery (all required participants)
- Twenty hours on SMS Principles for Transit (all required participants)
- Transportation Safety Institute (TSI) Courses:
    - Rail System Safety (36 hours)
    - Effectively Managing Transit Emergencies (32 hours)
    - Rail Incident Investigation (36 hours)

Safety recertification training shall be completed every two years after completing the initial requirements. The recertification training must include, at a minimum, specific recertification training defined by FTA, and training identified by CATS with a minimum of one hour of safety oversight training.

CATS recertification training:

- Roadway Worker Protection Program (RWPP) one (1) hour training provided by CATS.
- SMS Awareness one (1) hour online training provided by FTA/TSI.
- FTA required class: *Advancing Safety Assurance Through Corrective Action Plans*

Annually by January 31st the identified CATS POC must submit documentation to FTA and to NCDOT, via electronic method defined by FTA and NCDOT, that identifies:

- All employees and contractors of the recipient who are designated as PTSCTP participants.
- The course or courses the recipient has identified as required recertification training for their designated personnel.

CATS ensures employees are provided training on implemented changes that impact their duties and responsibilities.

4.5.4 Hours of Service (HOS)

4.5.4.1 Rail Operations

Rail Operations personnel include management, administration, supervisors, train operators, maintenance of way and rail car maintenance employees. Other than administrative staff, all other Rail Operations staff are considered to be safety-sensitive positions. Work schedules will meet Hours of Service requirements. The Rail Rulebook, Section 2.43 describes the work hours of Rail Operations safety-sensitive employees.

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Employees of Rail Operations

- No more than 16 hours per day for unanticipated events with no more than 12 hours of work in the aggregate.
- Must have 10 hours of time off between shifts.
- No more than 60 hours per week.

Work Week

- Train operators are not allowed to work more than six days in a row without a full day off (24 hours)
- Other Rail Operations employees are not allowed to work more than seven days in a row without a full day off (24 hours)
- The full day off shall prohibit the employee from being on-call

All Employees that work a 60-hour work week will then have two consecutive off days following the 60-hour work week.

Transportation supervisors may extend hours of service up to a maximum of 16 hours per day for unanticipated events with no more than 12 hours of work in the aggregate, only with the permission of the Transportation Manager and upon e-mail notification to the Manager of Safety – Rail. These extended hours are in compliance with APTA RT-S-OP-15-09 Standard for Train Operator Hours of Service Requirements and NCDOT State Safety Oversight Program Standards requirements. Employees will be excused from extended hours if they report that they are fatigued when requested to work beyond 12 hours in a shift.

Extended Hours During Emergency Conditions
During emergency conditions, the GM of Operations and Manager of Rail Safety

have the authority to jointly temporarily suspend hours-of-service requirements in order to provide critical transportation services. NCDOT will be immediately notified of emergency conditions that the GM of Rail Operations or the Office of Safety & Security has made the decision to temporarily suspend HOS requirements and when any violations occur as a result of emergency situations.

Any violations of Hours-of-Service requirements will be captured in the HML and NCDOT will be notified as noted in the current SSOPS. Operations schedules finalized for the following week will be reviewed for any scheduled HOS violations. Any individual scheduled to exceed HOS who cannot have their schedule changed to comply with the requirements will have their schedule approved by the respective manager. The manager will send a memo describing the violation and the reason for the violation to the GM of Rail Operations and Facilities for review and approval. Once the GM approves the HOS violation, the memo will be submitted to the Rail Safety Manager by the end of the respective work week. This will be in addition to the current procedure where HOS violations noted on weekly timesheets will be reported to the Rail Safety Manager. Rail Operations Administrative staff will review timesheets weekly to verify compliance with Hours-of-Service and number of days consecutively worked. Rail Operations Managers and Supervisors will review and develop work schedules that follow this section's requirements. If a violation is noted, Rail Safety will be notified by email of the violation, who will notify NCDOT. Rail Operations will follow ROD301 Performance Code Policy as appropriate for violations of this section.

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The Office of Safety and Security shall notify NCDOT of any violation of the RTA's HOS policy within 72 hours following the RTA's confirmation of a violation. Notifications to NCDOT shall be made via email. The notification will include the following information:

- The employee's identification number
- The employee's work title
- The type of violation
- The schedule of work and rest for the period of 72 hours prior to the infraction
- A description of the circumstances which resulted in the violation.

An hours-of-service violation log will be submitted to NCDOT on a quarterly basis.

4.5.4.2 Contractors

Contractors working on the CATS ROW are considered safety-sensitive employees. Contractors are required to follow their employers' hours of service and work schedule policy. In addition, their employees are required to meet the following requirements while working on CATS property.

- Work no more than 12 hours per day
- Must have 10 hours of time off between shifts
- Work no more than 60 hours per week
- Employees are not allowed to work more than seven days in a row

4.5.5 Fatigue Management

CATS' Fatigue Management Program consists of the policies, requirements, and activities established within this ASP and applicable CATS rules and procedures to identify, monitor, and manage fatigue-related safety risks associated with rail operations. The program supplements CATS' ASP and SMS activities and includes HOS requirements, work and rest limitations, fit-for-duty requirements, fatigue reporting, supervisory monitoring, work schedule and timesheet reviews, HOS compliance monitoring and reporting, and fatigue awareness training.

These activities are used collectively to identify conditions that may contribute to fatigue, prevent or reduce fatigue-related safety risk, monitor compliance with established work and rest requirements, and take appropriate action when fatigue or fitness-for-duty concerns are identified.

Fatigue awareness training is required for CATS employees and is incorporated into the new-hire training program. Fatigue awareness information is also periodically provided through the RODAP and other applicable safety communications.

4.5.6 Fit For Duty Assessment

Employees must report to duty physically and mentally capable of performing their duties in a safe and efficient manner. Employees are required to notify supervision of any condition or medication that could adversely impact their ability to perform their duties.

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Supervisors are responsible for ensuring that employees are fit for duty when reporting to work and throughout the workday. If a safety-sensitive employee reports that they are no longer fit for duty and can no longer safely perform their assigned duties during their shift, the employee must remain at their location until relieved by a supervisor.

The employee may not return to work until it has been verified that they can safely and efficiently perform all assigned duties, they have been cleared by a medical provider to return to work, and they have been released by CATS Human Resources.

4.5.7 Recordkeeping

The Office of Safety and Security, in collaboration with Rail Operations maintains a record of all operations, maintenance, and OSHA-required safety training provided to employees and contractor employees, including a list of the required training for each position. The training records for employees are kept in the City of Charlotte learning management program and SPEAR that tracks all CATS employee training. The Training Department also keeps detailed training records on initial and refresher training by employee. Safety training records are kept on sign-in sheets that are scanned into a file on a secure network and entered into a database maintained by the Office of Safety and Security.

Timekeeping records managed through their time-record software programs will

be maintained for a minimum of three years.

4.6 Safety Communication and Outreach

Safety Communication
CATS communicates safety and safety performance information throughout the transit agency's organization that, at a minimum, conveys information on hazards and safety risk relevant to transit workers' roles and responsibilities and informs transit workers of safety actions taken in response to reports submitted through a transit worker safety reporting program to include the activities of the safety committees.

Safety Committees
Safety Committees are required to serve as the basic forum to review safety issues and hazards, hazard reports, safety inspections reports, accident investigations, and corrective actions. The Safety Committee representatives communicate safety concerns from their work areas to the Safety Committee and report back to their workgroups. Safety Committee meeting minutes are available to all employees. The Rail Safety and Security Committees will review and approve the ASP annually.

Safety Messages
For employees, TV screens are centrally located in areas (e.g. breakrooms) to display safety information, CSSO's monthly report, alerts, statistical information, and other safety education materials. Operations employees are informed of hazards in their workspace through tool talks, bulletins, and informal shop meetings on an as needed basis.

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Marketing collateral materials will be used to raise safety awareness throughout the facilities, which may include, but are not limited to, brochures, posters, email blasts and newsletters to best accommodate every division's best communication practices.

For the public, per the Marketing and Communications Plan, Marketing and Communications provides safety marketing materials to its key audiences, including, but not limited to, the business community, the education community, the nonprofit community, drivers, riders, and community leaders, during public outreach events, such as safety blitzes and transportation fairs. Marketing and Communications also utilizes social media and online videos to educate the public, along with opt-in riders' alerts that include email and SMS messaging. CATS also posts alerts on the See Say App.

In 2020, CATS Marketing developed SMS and safety materials including pocket cards for all employees and safety messages and posters for the public. Posters regarding agency policy, safety roles and responsibilities and how to report safety concerns are maintained around the facilities.

CATS Safety & Security coordinates with CATS Marketing to review and update SMS marketing materials and safety messages to the public on an annual basis. CATS Marketing will produce and replace updated materials as needed.

Safety Quarterly Messages
The Safety Department publishes quarterly safety messages to be posted throughout all facilities. This is a communication tool that is used to enhance health and safety awareness among employees.

Safety Suggestion Boxes

Safety Suggestion Boxes are a tool that allows employees to share their safety ideas and concerns. Any safety-related comments and concerns received from Safety Suggestion Boxes are discussed and addressed at the Safety Committee Meeting.

Employee Recognition Program
CATS established the Employee Recognition Program to promote safety performance, build morale, and focus attention on achieving the agency's safety goals.

4.6.1 Procedures Used to Communicate Safety (external stakeholders and general public)

Per the Marketing and Communications Plan, CATS Marketing and Communications will continue to provide safety marketing materials to its key audiences, including, but not limited to, the business community, education community, nonprofit community, drivers, riders, and community leaders, during public outreach events, such as safety-marketing blitzes and transportation fairs. Marketing and Communications also utilizes social media and online videos to educate the public, along with opt-in riders' alerts that include email and SMS messaging. Marketing and Communications will create marketing material that explains proper safety procedures to be displayed in highly visible areas for the public. Methods of communication may include, but are not limited to posting inside vehicles, social media, and audio announcements. CATS will also use email and newsletters to communicate with key stakeholders. CATS will continue its partnership with Operation Lifesaver, Inc. and will perform safety presentations for community members and professional drivers' groups, among others.

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CATS Public Relations Team will communicate with media to inform them of necessary safety procedures. Public Relations will leverage the media to distribute key safety messages to customers.

4.6.2 Communication and Follow-up on Reported Safety Concerns

Customers may report unsafe conditions anonymously through the See Say application on their smart device. Reported incidents are tracked through the Office of Safety and Security. A procedure was developed to address the See Say app as a safety reporting tool, and Marketing and Communications will leverage marketing signage, social media, and video to communicate with the public and key stakeholders about this service.

Customers can report unsafe conditions by calling the Customer Service Call Center at 704-336-RIDE or emailing telltransit@charlottenc.gov. (See CATS CSVS04 *Customer Insights Tracking Process.*)

The Office of Safety and Security works with CATS Marketing/Communications to develop printed and electronic summary reports that provide feedback to employees on safety concerns submitted to the various safety committees. Employees who report safety concerns to management will receive a response from their supervisor or manager on how the concern was addressed.

4.7 Environmental Management Program

CATS is fully aware of the importance of employee chemical safety programs and the duty to comply with legally mandated hazardous materials rules and regulations. To this end, CATS has implemented a materials acceptance/rejection program to monitor and control chemicals that are brought onto CATS property and are used by employees.

CATS S&S05 *Hazard Communication Program* is in compliance with Title 29 Code of Federal Regulations Part 1910.1200, Hazard Communication Program. CATS' Hazard Communication program covers the procurement, receipt, storage, and disposal of hazardous materials. It also documents the maintenance of Safety Data Sheet (SDS) binders and employee training. Hazardous waste/chemical safety inspections are included in the responsibilities for safety inspections. CATS has contracted for the services of a properly licensed hazardous waste contractor for removal of hazardous materials. When necessary, consultants may be hired for special projects such as indoor air quality, chemical vapor, and particulate sampling.

The Office of Safety and Security reserves the right to reject a product if it is deemed too hazardous for employee use or CATS is unable to provide adequate safeguards or protection.

The SDS review/request procedure, which requires SDS review and approval of the Office of Safety and Security, is included in CATS S&S05 *Hazard Communication Program*. Section 2.8 of the CATS Rail Maintenance Handbook addresses the requirements of Safety Data Sheets for chemicals and hazardous materials used in CATS rail facilities and on CATS property. These programs are the responsibility of the using division and the Office of Safety and Security. Program effectiveness is reviewed via the Internal Safety Audit Process.

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Training on hazardous chemicals is provided whenever new hazards are introduced into the work environment or whenever hazardous chemicals will affect specialized procedures. Chemical training will provide information on specific hazards and measures that can be taken to control or minimize the hazards. Control measures can include elimination, substitution, engineering controls, administrative controls, or personal protective equipment.

All new procurements for a chemical, substance, or compound are sent to the Office of Safety and Security for review before being brought onto CATS property. Each CATS division is responsible for ensuring that materials that come onto CATS property are properly labeled and packaged. The Office of Safety is responsible for the following occupational safety and health activities related to hazardous materials:

- Reviewing the Safety Data Sheet (SDS) database
- Providing technical advice and expertise
- Responding to exposure concerns and incidents
- Performing reviews and audits of agency practices
- Recommending Personal Protective Equipment
- Reviewing and approving new procurements of hazardous materials
- Overseeing and auditing performance on various hazardous materials programs.

APPENDIX A - Reference Documents Index

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Reference Documents Index

Crisis Communications Plan

CATS HR02 Drug and Alcohol Policy for Safety Sensitive

Employees City Policy HR4 Drug and Alcohol-Free Workplace

Rail Maintenance Handbook Rail Rule Book

ROD304 *Bulletins, Notices, General Orders and Operating Orders*

CATS ROD600, *Preventive Maintenance Requirements for Rail MOW*

ROD600-series SOPs

CATS ROD801 Configuration Change Control

CATS CSVS04 *Customer Insights Tracking Process*

CATS RIM01 *Control of Public Records*

CATS QA02 Control and Distribution of Plans, Manuals, Policies and Procedures

QA05 *Nonconformity and Corrective Action*

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CATS S&S03 Accident/Incident Investigation and Reporting

CATS S&S05 *Hazard Communication Program*

CATS S&S23 Risk Assessment, Mitigation and Monitoring

Procurement Manual for the Charlotte Area Transit

System CATS Quality Manual

Transit Management of Charlotte, Inc. Substance Abuse Policy

External References

National Public Transportation Safety Plan, January 2017

North Carolina State Safety Oversight Program Standards (SSOPS)

North Carolina G.S. 20-37.19 reporting positive DOT drug or alcohol tests under 49 CFR Part 382 or Part 655.

FTA's Handbook for Safety and Security Certification (2002)

FTA posts the latest Drug and Alcohol Regulations, Rules, and Notices at: http://transit-safety.volpe.dot.gov/DrugAndAlcohol/Regulations/Regulations/default.aspx

49 U.S.C. Chapter 53

49 U.S.C.5309 discretionary construction

program 49 U.S.C. 5329(d)

49 CFR Part 40 Procedures for Transportation Workplace Drug and Alcohol Testing

Programs 49 CFR Part 655 Prevention of Alcohol Misuse in Transit Operations

49 CFR 672 Safety Training

49 CFR Part 673 Public Transit Agency Safety

Plans 49CFR Part 674 and the SSOPS

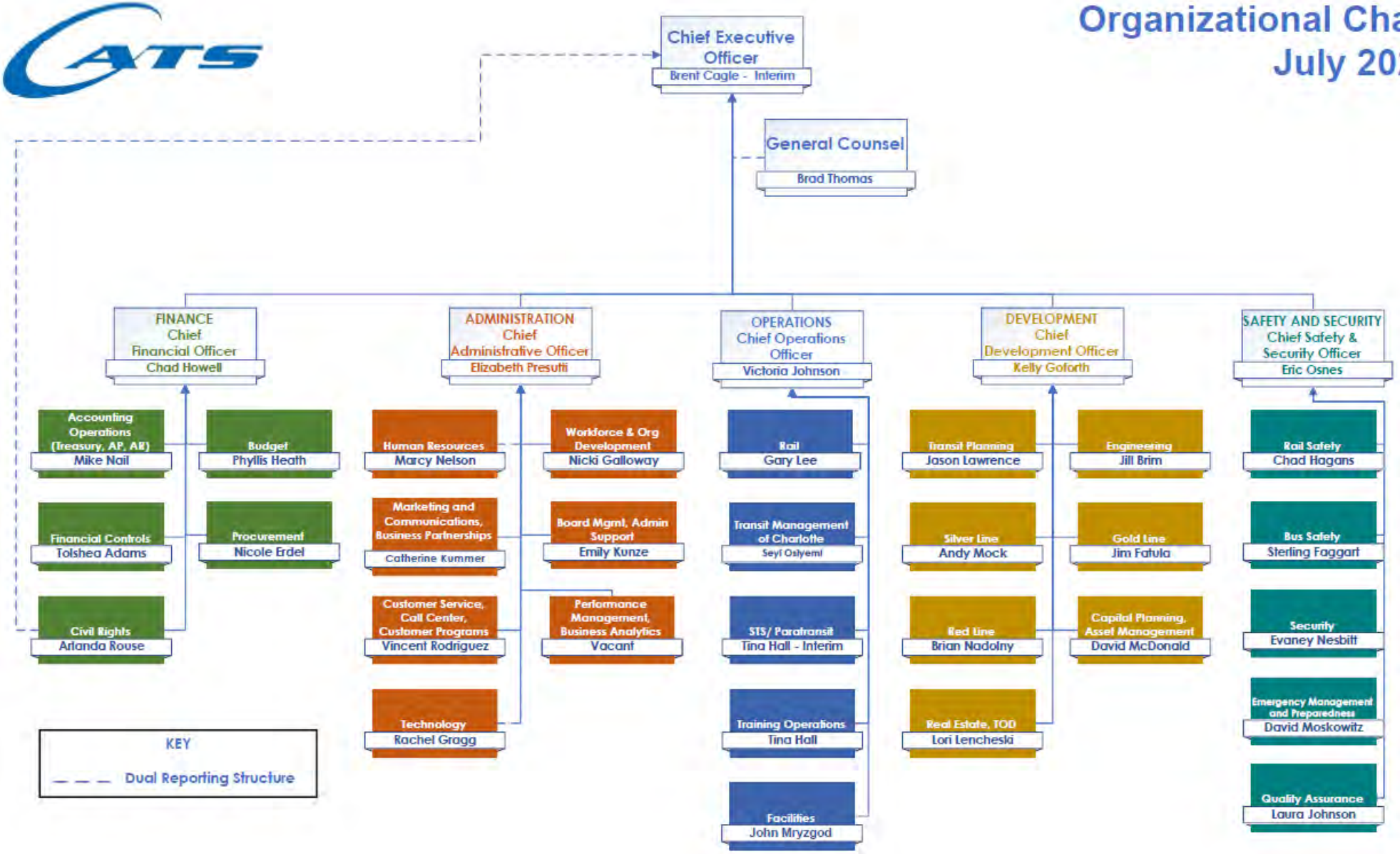
MIL-STD-882E DEPARTMENT OF DEFENSE STANDARD PRACTICE SYSTEM SAFETY

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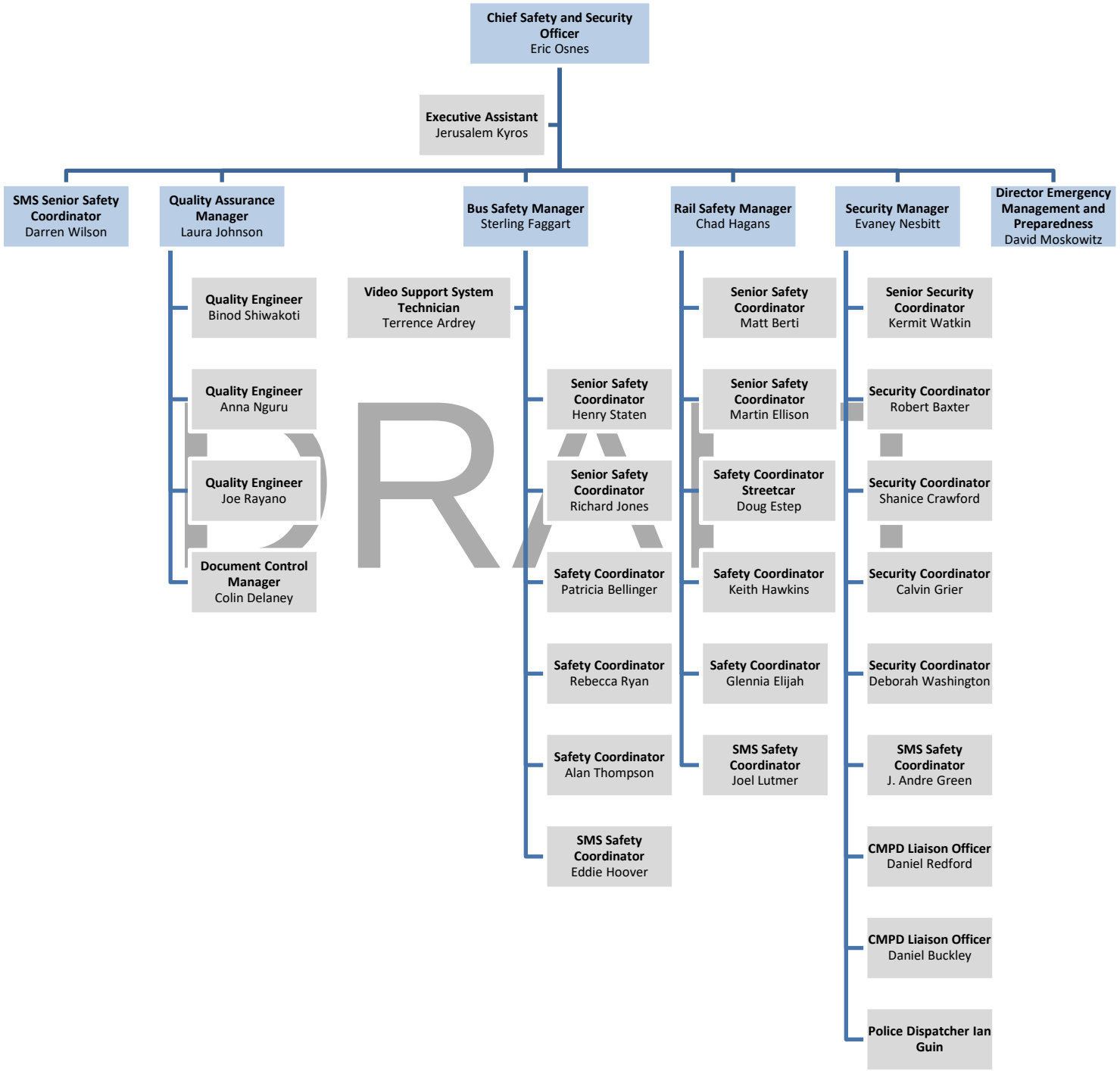
APPENDIX B - Organization Charts

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Organizational Chart
July 2026

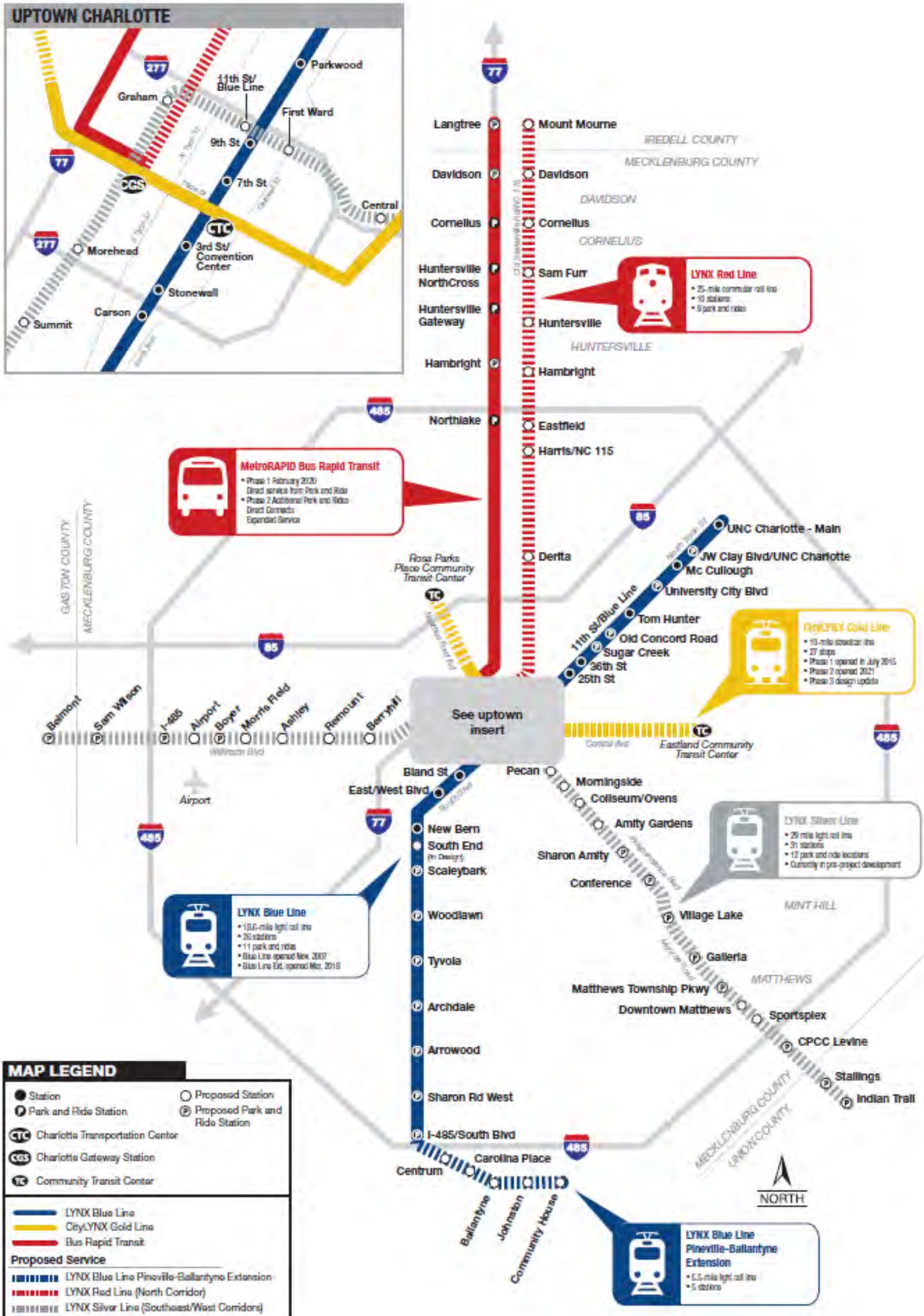


CATS Safety and Security Organizational Chart



APPENDIX C - System Maps

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MAP LEGEND

- Station
- Park and Ride Station
- Proposed Station
- Proposed Park and Ride Station
- CTC Charlotte Transportation Center
- CGS Charlotte Gateway Station
- TC Community Transit Center
- LYNX Blue Line
- CityLYNX Gold Line
- Bus Rapid Transit

Proposed Service

- LYNX Blue Line Pineville-Ballantyne Extension
- LYNX Red Line (North Corridor)
- LYNX Silver Line (Southeast/West Corridors)
- CityLYNX Gold Line Phase 3 under design

APPENDIX D - Forms

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Safety Issue Reporting Form

Name: _____ **Date:** _____

Unit or Division: _____

Has this issue been reported to a supervisor? Yes No

If yes, when was it first reported to a supervisor? _____

Location of Issue/Concern: _____

Nature of Issue/Concern: _____

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To be filled out by Safety Personnel

Name: _____ **Date Received:** _____

Date Reviewed: _____ **Initial Hazard Rating** _____

Assigned To: _____ **Final Hazard Rating** _____

Actions Taken: _____

Close Date: _____ **Manager Signature:** _____

Quarterly RTA Asset Management Status Report

Asset	# Planned Inspections	# Actual Inspections	Plan Reference Document	Priority 1 - Operational / Safety Related Issues Identified	Priority 1 - Operational / Safety Related Issues Open	Planned Date to Complete Priority 1 - Open Items
Rolling Stock						
Light Rail Vehicles						
Streetcars						
Equipment						
Non-Revenue Track Equipment						
Emergency Equipment						
Infrastructure						
Signal Systems						
Power Substations						
Guideway (OCS) System						
Grade Crossings						
Turnouts and Crossovers						
Bridges						
Walls / drainage systems						
Yards and Lighting						
Technology / IT						
Facilities						
Passenger Stations and Parking						
Maintenance Facilities						
State of Good Repair (SGR) Status	**Narrative: Condition Assessment Ratings below 3.0 and Mitigation Plans** *(Per, Transit Asset Management (TAM) Plan)*					
Rolling Stock						
Equipment						
Infrastructure						
Facilities						
Funding/Budgeting	**Narrative: Status of Current Funding Available, Source of Funding, and Shortfalls to Address Assessment Ratings below 3.0**					

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APPENDIX E - Approvals

Rail Safety and Security Committee Approval of ASP

MPTA Resolution Approval of ASP

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